UPSC CSE Mains 2027 · GS Paper II

POLITY

Constitutionalism · Rule of law · Separation of powers · Constitutional morality · Living Constitution · Union and its territory · Fundamental Rights: Art 12 · Reservation · Art 19 · Media · Art 20-22 · Art 21 · Exploitation · Religion · Secularism · Minorities · Waqf · DPSP · UCC · Fundamental Duties · Constitutional bodies · NHRC · President · Parliament · Centre-State relations

Handwritten-style notes

Built from the Sarrthi IAS GS-2 Polity handouts: Introduction to Constitution, Union and Its Territory; Fundamental Rights; Fundamental Rights 2; DPSP and Fundamental Duties; Constitutional and Statutory Bodies; Executive and Legislature; Centre State Relations.
Bracket trees · mnemonics · PYQ tags · current affairs
Right column and left binding margin are kept blank for your own use.

Personal study edition · for printing

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CONSTITUTIONALISM · RULE OF LAW

PYQ None quoted in the handout · Polity handout pp. 3–4

✎ *Constitutionalism means a government whose powers are limited by a supreme law. Rule of Law (Dicey) is one tool for that. Know the meaning, the six features, negative vs positive*

constitutionalism, why codification alone is not enough, Dicey's three principles and the exceptions to equality.

CONSTITUTIONALISM: MEANING AND FEATURES

Meaning and concept

→ ***powers of the government are not absolute***; they are limited by a body of laws or a supreme law called the ***Constitution***

→ government must subscribe to this body of laws as ***its legitimacy depends on it***; hence constitutionalism ***abhors absolutism***

→ tools to limit government: ***Dicey's Rule of Law*** and ***Separation of Powers***

Features of constitutionalism

→ ***Rule of Law***

→ ***Separation of Powers***

→ ***basic civil liberties*** and protection of people's rights

→ ***Democracy:*** temporariness of government through periodic free and fair elections

→ ***Independent Judiciary***

→ ***Free Media***

DR FISC – Six features: **D**emocracy (periodic elections) · **R**ule of law · **F**ree media · **I**ndependent judiciary · **S**eparation of powers · **C**ivil liberties. (own mnemonic)

Negative constitutionalism (prevent tyranny)

→ idea that the ***State can be a danger or source of oppression*** gained ground in the late medieval and early modern age

→ developed largely among ***Western thinkers*** to ***prevent tyranny by limiting the powers of the government*** after oppression by the ruling class

Positive constitutionalism

→ zeal for limiting power may ***hinder the State from performing basic functions*** (e.g. public order), leading to ***anarchy***; so the State must be empowered

→ government ***must have certain powers to perform its functions properly***

→ balances power to prevent ***tyranny (excess power and abuse)*** and ***anarchy (inadequate power)***

TA – Positive constitutionalism balances **T**yranny (too much power) against **A**narchy (too little). (own mnemonic)

Constitutionalism beyond the written Constitution

→ these principles are ***assimilated into the Indian Constitution to varying degrees***

→ ***mere codification is not a sufficient condition***: principles must be ***implemented and observable to citizens in daily life***

→ ***United Kingdom:*** no single codified Constitution, yet constitutionalism exists

→ so the presence or absence of codification ***does not guarantee*** the presence or absence of constitutionalism

RULE OF LAW

Meaning and concept

→ many have contributed, but ***A. V. Dicey***'s contribution is the most seminal

→ basically the ***supremacy of law over arbitrary power***: government power exercised according to law, and the law itself consistent with constitutional principles

Dicey's principles

→ ***Supremacy of law:*** rule by ***principles of law, not whims and fancies of the ruler***, and the ruler is also subject to law. SC: ***however high a person may be, the law is above them***. Upanishads express similar ideas (Dharma of the king, ***Lex is Rex***). Corollary: arbitrary exercise of power is prohibited

→ ***Equality before law:*** all sections of society equally subject to the law of the land. Affirmative action and positive discrimination depart from strict ***formal equality*** but promote ***substantive equality***

→ ***Equality of law administered through ordinary courts:*** today many forums have adjudicatory functions, e.g. quasi-judicial ***CAT, ITAT*** and other tribunals

SEE — Dicey: **S**upremacy of law · **E**quality before law · **E**qual administration through ordinary courts. (own mnemonic)

EXCEPTIONS TO LEGAL EQUALITY

President and Governors: Article 361

→ while in office, ***no criminal proceedings*** can be instituted or continued against them

→ ***no civil proceedings*** for acts in personal capacity during tenure unless ***two months' prior notice*** is given

→ ***no arrest or imprisonment*** process from any court during the term of office

→ a departure from strict formal equality

A. G. Noorani's criticism

→ termed the criminal exemption a ***mindless borrowing from the West***, based on British practice where courts cannot prosecute the ruler

→ in Britain courts are historically tied to the authority of the Crown and the ***sovereign enjoys constitutional immunity***; in India both the President and the courts are ***creations of the Constitution***, so similar provisions are questionable

→ can be abused: ***politicians facing criminal prosecution can be appointed Governors***

→ if introduced today through a constitutional amendment, it would ***not get the approval of the public or the courts***

Other exceptions

→ ***diplomatic immunity***

→ ***parliamentary privileges: Article 105(2):*** an MP is not liable to any court proceedings for ***anything said or any vote given in Parliament or any committee***; protection for speech inside the House, an exception even to defamation law

DPP — Exceptions to equality: **D**iplomats · **P**arliamentarians (Art 105(2)) · **P**resident and Governors (Art 361). (own mnemonic)

Recall drill: cover and answer

Constitutionalism in one line	powers of government limited by a supreme law	Six features	DR FISC
Negative constitutionalism	prevent tyranny by limiting power	Positive constitutionalism	balance tyranny and anarchy; State must have powers
Is codification enough?	No; UK has none yet has constitutionalism	Dicey's three principles	supremacy of law, equality before law, ordinary courts
President/Governor immunity	Article 361; civil notice of two months	MP speech immunity	Article 105(2)
Who called Art 361 mindless borrowing	A. G. Noorani		

⚖ SEPARATION OF POWERS · CHECKS AND BALANCES ⚖

PYQ None quoted in the handout · Polity handout pp. 5–8

✎ *Power should not sit in one institution, so it is split into law-making, law execution and law adjudication. Perfect separation is impossible; India follows a middle path with checks and balances. Know the overlaps, why strictness fails, each check, and the India / USA / UK comparison.*

MEANING, FUNCTIONS, BENEFITS

Separation of Powers

→ power of government should ***not be concentrated in one institution but divided among them***

→ traditionally ***legislative, executive and judicial/adjudicatory***; in medieval times kings held all, leading to ***absolutism***

→ ***Montesquieu***'s name is indelibly associated with the concept

→ functions: ***law-making*** (legislative) · ***law execution*** (executive) · ***law adjudication*** (judicial); governance runs on ***consensus between the three organs***, hence ***Checks and Balances***

Benefits

→ ***preserves democracy and rights*** of the people

→ healthy ***division of labour, specialisation and efficiency***

→ ***healthy debate and constructive friction***, so deliberation leads to better outcomes

FUNCTIONAL OVERLAP AMONG ORGANS

Even in the USA, the traditional home of rigid separation, there is dilution. ***Perfect separation is not possible in a modern State*** and is not followed anywhere in the world.

Westminster system

→ in a ***parliamentary system*** separation between legislature and executive is never complete

→ executive = ***permanent bureaucracy*** plus the ***Council of Ministers headed by the PM*** (political executive), who are generally MPs, so a minister is part of ***both*** legislature and executive

→ ***Article 75(5)***: a non-MP can become a minister but must become a member of either House within ***six consecutive months***

→ in the ***USA*** a person cannot be in the Presidential Cabinet and Congress at once: ***the biggest qualification to be a minister in India is a disqualification in the USA***

Delegated legislation

→ law passed in a ***broad skeletal form***; detailed ***rules, regulations and bye-laws*** are framed by the executive

→ law-making is delegated to the executive, a ***subordinate legislature***

Administrative adjudication

→ adjudication is traditionally a judicial function, but here the ***executive carries it out***: e.g. ***district administration (revenue courts)***, tribunals like ***CAT and ITAT***

→ technical matters of adjudication are better handled this way

Judge-made laws

→ where law is ***silent or ambiguous*** the court clarifies it by interpretation: a ***law-making*** function

→ where there is a ***legal vacuum*** the court gives guidelines that function as law, e.g. ***Vishakha Guidelines***

Ordinances

→ urgent need for a law and ***Parliament not in session***: the President can promulgate ***Ordinances under Article 123***

→ function as laws passed by Parliament, subject to constitutional requirements

Regulatory bodies

→ emerged worldwide due to the ***complex modern economy***

→ law-making, implementation and adjudication all vested in them: ***make rules, regulate the sector, penalise defaulters***; e.g. ***SEBI, IRDAI***

MPLADS and Article 372

→ ***MPLADS:*** an MP's main job is legislating, but here MPs ***identify local needs and recommend works***, a developmental (executive) function; ***overlap of legislative representation and executive functions***, though sanction and implementation stay with administrative authorities

→ ***Article 372:*** pre-Constitution laws could be aligned with the Constitution; this power was with the ***President for the first three years***, so the executive performed ***legislative functions***

MAJOR WAD – Eight overlaps: **M**PLADS · **A**rt 372 · **J**udge-made law · **O**rdinances · **R**egulators · **W**estminster (minister is MP) · **A**dministrative adjudication · **D**elegated legislation. (own mnemonic)

LIMITS OF STRICT SEPARATION

Why rigid separation is not maintainable

→ ***specialisation:*** traditional organs cannot handle all complex functions of modern administration

→ ***speed and efficiency:*** if all tribunal cases went to the judiciary it would be overwhelmed and could not perform its primary functions

→ ***public interest: power is not a property but a means to an end***; if the end (serving people, their welfare) is better served by vesting power in an institution not meant to exercise it, ***so be it***

SSP – Limits of strict separation: **S**pecialisation · **S**peed · **P**ublic interest. (own mnemonic)

SYSTEM OF CHECKS AND BALANCES

India does ***not follow strict, rigid separation*** as in the USA but a ***system of checks and balances*** (term borrowed from the USA): functions are divided among branches and ***each acts as a check on the others*** to prevent abuse of power.

Executive checks the judiciary: appointment of judges

→ on paper the executive has a role (President appoints), but in India the process has come to be ***substantially controlled by the judiciary through the Collegium System***

→ ***USA:*** President nominates, subject to ***Senate confirmation***

→ executive participation helps ensure ***competent judges of integrity***

Legislature checks the judiciary: removal of judges

→ ***Article 124(4):*** SC judge removed by the ***President*** after an ***address by each House***, supported by a majority of the total membership and ***not less than two-thirds of members present and voting***; a corresponding process for High Court judges

→ so difficult that ***not one HC or SC judge has been removed*** through it to date

Judiciary checks the executive and legislature

→ strikes down ***unconstitutional laws*** and ***illegal or unconstitutional executive action***

→ power to determine legality and constitutionality = ***Judicial Review***

Legislature checks the executive

→ laws need ***enactment by the legislature***

→ questions the executive via ***Question Hour, resolutions and debates***

→ extreme case: ***No-Confidence Motion*** against the Council of Ministers in the Lok Sabha

Executive checks the judiciary: clemency

→ power to ***grant clemency*** for punishments after judicial proceedings: ***President (Art 72)*** and ***Governors (Art 161)***

→ a distinct constitutional power, ***not an ordinary appeal***; meant for ***human errors and unduly harsh punishments***

CRJ-NQ — Checks in action: **C**ollegium / appointment · **R**emoval Art 124(4) · **J**udicial review · **N**o-confidence · **Q**uestion Hour · clemency (Art 72, 161). (own mnemonic)

SEPARATION OF POWERS: INDIA, USA, UK

Country	Position (handout)
India	if the offices of ***both President and Vice-President*** are vacant, the ***CJI discharges the President's functions*** under the ***President (Discharge of Functions) Act, 1969***; if the CJI is unavailable, the ***seniormost available SC judge***. An overlap where the head of one branch temporarily performs another's functions
USA	no such arrangement: ***more rigid*** separation than India
UK	***looser*** separation than the USA; highest appellate judicial function used to sit in Parliament (***House of Lords***), changed by the ***UK Supreme Court in 2009***

India follows a middle path between the rigid USA and the looser UK.

NEED FOR GREATER CHECKS ON THE EXECUTIVE

Why

→ historically ***more power gets vested in the executive***

→ if ***judicial independence is compromised*** and the ***opposition is fragmented***, executive rule goes unchecked

→ so a ***proactive legislature, discussion and an independent judiciary*** are needed, but in contemporary times both are ***less effective***

→ ***less discussion on Bills in Parliament***; separation exists on paper but may be weakened ***in a substantive sense***

Institutional checks on executive power

→ ***CAG, ECI, UPSC and CVC*** enjoy varying degrees of institutional independence

→ ***CAG, ECI and UPSC are constitutional bodies; CVC is a statutory body***

→ so there is no ***unbridled exercise of power*** by the political executive

CECU — Institutional checks: **C**AG · **E**CI · **C**VC (statutory) · **U**PSC. (The first, second and fourth are constitutional.) (own mnemonic)

Recall drill: cover and answer

Who is linked to Separation of Powers	Montesquieu	Three state functions	law-making, execution, adjudication
Art 75(5) time limit	six consecutive months	Ordinance power	Article 123, when Parliament not in session
Judge removal provision	Art 124(4); special majority; none removed so far	Clemency articles	Art 72 President; Art 161 Governor
Who acts if President and VP posts vacant	CJI, under the 1969 Act	Which is more rigid: India or USA	USA
Constitutional vs statutory checks	CAG, ECI, UPSC constitutional; CVC statutory		

⚖ CRITICAL APPRAISAL OF THE CONSTITUTION · AMBEDKAR'S WARNINGS ⚖

PYQ None quoted in the handout · Polity handout pp. 8–10

✎ *The handout lists five criticisms of the Constitution (borrowed, verbose, bulky, un-Gandhian, inconsistent) and the reply to each. Ambedkar's warnings at the close of the Constituent Assembly are the value-addition.*

CRITICISMS AND REPLIES

Charge 1: un-Indian and borrowed

→ alleged ***slavish imitation of the West*** and a ***carbon copy of the GoI Act, 1935***

→ British frameworks came through laws of ***1861, 1892, 1909, 1919 and 1935***; large parts borrowed from the ***1935 Act***

Reply

→ all provisions were ***debated in the Constituent Assembly*** before adoption: structure was adopted, ***the soul was debated***

→ framed on ***secular democracy***; after many constitutions existed, it would be ***foolish not to look at others***; ideas are ***not the copyright of any country***

→ ***intelligent adaptation, not blind copying***: US ***Bill of Rights vs Part III***

→ ***Granville Austin:*** calling it un-Indian was absurd as ***what constitutes Indianness is not defined***

Charge 2: complicated, verbose language

→ the Assembly was full of ***legal experts***; it is a ***legal document***, so legal jargon is expected

→ ***Ivor Jennings:*** a "***lawyer's paradise***"

Charge 3: too voluminous, and the defence

→ the effort tried to bring ***under one fold the accumulated experience*** of many constitutions

→ deals with ***details of administration***: accounts, audit, public services, elections, languages

→ ***single Constitution for the whole country*** (the US is smaller as states have their own)

→ ***diversity***: special provisions for states, minorities, backward classes; ***Centre-State relations in detail***

→ detail leaves ***minimal ambiguity*** and helps avoid litigation; the ***GoI Act, 1935*** was itself bulky

DISCO — Why bulky: **D**iversity · **I**nstitutional details of administration · **S**ingle Constitution for all · **C**entre-State detail · **O**ne-fold borrowing (1935 Act) and no ambiguity. (own mnemonic)

Charge 4: Ungandhian Constitution

→ allegation that ***Gandhi's ideology is not adequately reflected***; Congress strategy in the struggle was Gandhian, but post-Independence economy and polity took a different approach (***Gandhi's cottage industries vs Nehru's industrialisation***)

→ ***oceanic circles of power:*** power should radiate ***from the village to the Centre, not the reverse***

→ not enforceable: village panchayats went into ***Directive Principles, Article 40*** (non-justiciable)

→ ***Ambedkar*** saw villages as ***dens of darkness*** (casteism, patriarchy, feudalism); local democracy would represent ***local elites***

→ later local self-government got constitutional status via the ***73rd and 74th Amendments***

Charge 5: lack of theoretical consistency

→ India has many ***contradictions***, so the Constitution reflects them

→ provisions of ***modernity (liberty, equality, fraternity)*** and tradition (debates on ***UCC, divorce, adoption***)

→ India is a ***blend of modernity and tradition***; the ***incoherence in society*** gets reflected in the Constitution

BVBUC — Five charges: **B**orrowed · **V**erbose · **B**ulky · **U**ngandhian · **C**ontradictory (inconsistent). (own mnemonic)

AMBEDKAR'S WARNINGS AT THE INAUGURATION

Three warnings plus one need

→ ***constitutional methods:*** mass protests mattered when ***exploited under British rule*** but not after Independence; use constitutional methods to redress grievances and prevent the ***grammar of anarchy***

→ ***no hero worship in politics:*** do not raise leaders to ***divine status***

→ ***political vs socio-economic equality:*** "***entering an era of contradictions***": ***one person, one vote, one value*** in politics, but inequality continues in socio-economic life; so ***political democracy should be used to alleviate socio-economic inequalities***

→ ***need to cultivate constitutional values:*** constitutionalism and constitutional morality must be nurtured in generations to come

CHE — Ambedkar's warnings: **C**onstitutional methods · **H**ero worship no · **E**quality contradiction (+ cultivate morality). (own mnemonic)

Recall drill: cover and answer

Who called it a lawyer's paradise	Ivor Jennings	Who said un-Indian charge was absurd	Granville Austin
Gandhian ideas in the Constitution	village panchayats in DPSP Art 40; later 73rd, 74th Amendments	Gandhi's oceanic circles	power from village to Centre
Ambedkar on villages	dens of darkness	Ambedkar: grammar of anarchy	give up mass protest, use constitutional methods
Ambedkar on hero worship	no hero worship in politics	Era of contradictions	one vote one value vs socio-economic inequality

⚖ CONSTITUTIONALISM IN PRACTICE · INTERPRETATION · CONVENTIONS ⚖

PYQ None quoted in the handout · Polity handout pp. 10-12

✎ *Writing principles down is not enough; political, administrative and social culture decide whether constitutionalism lives. Courts also interpret the Constitution through definitions and several methods, and conventions give it flesh and blood.*

CONSTITUTIONALISM IN PRACTICE

Three cultures decide it

→ ***political culture:*** parties nurture democracy, but often show ***undemocratic culture: family fiefdoms, high-command culture, less scope for dissent, nomination of criminals, vindictive politics after coming to power***; the very institutions meant to preserve constitutionalism undermine it

→ ***administrative culture:*** civil servants must see themselves as ***servants of the people***. Under the British, civil services existed to ***preserve the Empire*** (colonial mindset, ***White Man's Burden***); the elitist/colonial mindset ***still persists to a lesser degree***, with ***corruption, nepotism and non-transparency***

→ ***social value system: high tolerance of unethical practices***; e.g. little public outrage at ***extrajudicial police encounter killings***

PAS — Three cultures: **P**olitical · **A**dministrative · **S**ocial value system. (own mnemonic)

CONSTITUTIONAL INTERPRETATION

Need and aids

→ the Constitution must be ***applied correctly***; it is interconnected and must be read in light of its ***overall philosophy and objectives***

→ ***Article 366*** defines many terms (e.g. SCs, STs); ***Article 12*** defines the State

→ ***General Clauses Act, 1897*** (list of legal terms) is applied through ***Article 367***

Methods the Supreme Court has given

→ ***ordinary meaning of English words:*** commonly used meanings unless the context demands otherwise

→ ***preamble:*** provisions amplify the philosophy summarised in the Preamble; of multiple interpretations the one that ***best fits the Preamble's philosophy*** is correct

→ ***progressive interpretation:*** norms change, so read provisions with ***changing social norms*** and emerging conditions; e.g. ***Article 21*** from restrictive to expansive meaning of life, giving shelter to many rights

→ ***purposive interpretation:*** uses the ***purpose or intent*** (Constituent Assembly Debates); read in light of the ***entire Constitution, an ecosystem in itself***, and all parts read together

→ ***harmonious construction:*** where one provision conflicts with another, ***reconcile them and give maximum possible effect***

→ ***liberal interpretation:*** provisions on ***liberty and security of citizens*** interpreted in their favour; e.g. ***privacy, freedom of the press, RTI*** through ***Articles 19 and 21***

OPPHL — Methods: **O**rdinary meaning · **P**reamble · **P**rogressive · **P**urposive · **H**armonious · **L**iberal. (own mnemonic)

ROLE OF CONVENTIONS

Conventions

→ tools used by the judiciary to interpret the Constitution; some conventions of the ***English parliamentary system*** are used by courts

→ the ***US Constitution originally had seven Articles***, supplemented by conventions and practices

→ uncodified but carry ***legitimacy backed by public opinion and political practice***, not necessarily legally enforceable

→ let the Constitution ***adapt without amendment***; courts use them to interpret it; they provide ***flesh and blood to the dry bones of law***

Recall drill: cover and answer

Three cultures	political, administrative, social value system	Article 366 defines	terms like SC and ST
Article 12 defines	the State	General Clauses Act year and link	1897; via Article 367
Six methods of interpretation	OPPHL	Harmonious construction	reconcile conflicting provisions, maximum effect
Liberal interpretation e.g.	privacy, press freedom, RTI via Arts 19, 21	Conventions give	flesh and blood to the dry bones of law

CONSTITUTIONAL MORALITY

PYQ None quoted in the handout · Polity handout pp. 12–13 · current affairs: verify dates

✎ *Constitutional morality is deep commitment to constitutional values even when popular sentiment opposes them. Know Ambedkar's idea, how it differs from public morality, the Navtej and Sabarimala judgments, and the debate on whether courts should use it.*

MEANING AND AMBEDKAR'S IDEA

Constitutional morality is a ***deep commitment to the values of the Constitution***: liberty, equality, fraternity, justice and dignity, ***even when popular sentiment runs against them***.

Dr. B. R. Ambedkar's conception

→ meant ***accepting plural opinions, rejecting coercion, keeping the executive answerable to elected representatives***, and ensuring ***no single person or institution claims absolute authority***

→ ***not a natural sentiment in India***; it had to be cultivated

→ a Constitution can be ***silently subverted*** not by changing its text but by ***distorting how it is administered***

→ courts have built on this: ***protecting minority rights, limiting majoritarianism, keeping all branches in check***

Public morality	***Constitutional morality***
rooted in ***majority beliefs, traditions, customs***	rooted in ***constitutional principles*** (liberty, equality, fraternity, justice)
can be ***majoritarian, regressive, discriminatory***	***inclusive, rights-based, progressive***
subordinate when in conflict	***prevails*** when in conflict

Significance

→ ***protects individual and minority rights*** from majority pressure

→ ***check on the highest functionaries***: ministers, judges, citizens

→ keeps the ***spirit of the Constitution alive*** beyond its text

→ gives courts a tool to ***interpret rights expansively***

PCKI — Significance: **P**rotects minorities · **C**hecks the high · **K**eeps the spirit alive · **I**nterprets rights expansively. (own mnemonic)

JUDICIAL APPLICATION

Landmark judgments

→ ***Navtej Singh Johar v. Union of India (2018)***: SC ***decriminalised consensual same-sex relations between adults*** (Section 377 IPC)

→ ***Indian Young Lawyers Association v. State of Kerala (2018)***: the ***Sabarimala*** judgment on women's entry into the temple

→ in both, ***constitutional morality must prevail over public or social morality*** when they conflict with constitutional rights and values

THE DEBATE

Criticism

→ ***April 2026***: SG ***Tushar Mehta*** in the Sabarimala review argued it should be discarded as a ground of judicial review: "***vague and subjective***", absent from the text, letting courts strike down actions without clear basis

→ ***2018, K. K. Venugopal*** (then AG): "***very dangerous***", could make the SC a ***third chamber of Parliament***

Counter view: Upendra Baxi

→ not a judicial invention: embedded in the ***Preamble, Part III and Part IVA***

→ three ideas: ***equality, liberty, fraternity*** · ***respect for diversity*** · ***Constitution in letter and spirit***

→ protects the ***vulnerable when majority opinion is hostile***; vagueness is inherent in all principles and courts use it through ***reasoned judgments***

Recent (verify): a nine-judge Constitution Bench ***reserved judgment*** on the Sabarimala reference on ***14 May 2026***. Handout view: it is a ***shared responsibility of legislature, executive and judiciary***; discarding it would leave the constitutional spirit vulnerable to the majoritarianism it was designed to check.

Recall drill: cover and answer

Constitutional morality means	deep commitment to constitutional values even against popular sentiment	Ambedkar: not natural, must be	cultivated
Silent subversion happens by	distorting how the Constitution is administered	Navtej Johar 2018	decriminalised consensual same-sex relations (Sec 377)
Sabarimala case 2018	Indian Young Lawyers Association v. State of Kerala	Who called it vague and subjective	Tushar Mehta (SG, April 2026)
Who said very dangerous	K. K. Venugopal (2018)	Baxi: embedded in	Preamble, Part III, Part IVA

⚖ THE CONSTITUTION AS A LIVING DOCUMENT · ARTICLE 21 ⚖

PYQ None quoted in the handout · Polity handout pp. 13-15 · 2025 case: verify

✎ *A living constitution evolves without losing its core identity. Know the seven features that make ours living, five reasons it must be, and the five-stage journey of Article 21 from Gopalan to digital access.*

CONCEPT AND FEATURES

The Indian Constitution is ***not a frozen text***; it is a ***living instrument with capabilities of enormous dynamism***. A living constitution ***evolves with time without losing its core identity***: an ongoing project responding to social, economic and political realities.

What makes it living

→ ***Article 368:*** amendment power; over a hundred amendments since 1950

→ ***amendment procedures: simple majority, special majority, special majority with State ratification***: flexible yet stable; simple-majority changes are made ***outside Article 368***

→ ***Basic Structure Doctrine: Kesavananda Bharati v. State of Kerala (1973)*** keeps amendments within limits

→ ***Judicial Review:*** supported by ***Articles 13, 32, 136 and 226*** (32 and 226 writ jurisdiction; 136 special leave to appeal)

→ ***open-textured language:*** esp. ***Articles 14, 19, 21***

→ ***Directive Principles:*** guideposts to gradually realise socio-economic goals

→ ***constitutional conventions*** develop over time

ABJODDC — Seven features: **A**rt 368 · **B**asic structure · **J**udicial review · **O**pen texture · **D**PSP · **D**ifferent amendment procedures · **C**onventions. (own mnemonic)

Why it is necessary for India

→ ***social:*** gender equality, ***LGBTQ rights***, dismantling caste hierarchies

→ ***economic: 1991 liberalisation, privatisation, globalisation*** forced reinterpretation of socialist provisions

→ ***technological:*** internet, mobile, data, AI, digital identity raise questions on privacy, speech, surveillance

→ ***federal evolution:*** coalition politics, ***cooperative and competitive federalism***

→ ***global engagement:*** treaties, climate agreements, human rights covenants

SETFG — Five drivers: **S**ocial · **E**conomic · **T**echnological · **F**ederal · **G**lobal. (own mnemonic)

Limit: living does ***not*** mean it can mean anything anyone wants. It is bound by the ***values of the Preamble, the limits of the Basic Structure and the discipline of constitutional methods.***

ARTICLE 21: THE LIVING CONSTITUTION IN ACTION

1950
A. K. Gopalan: narrow reading; restrictive ***personal liberty***; rights as separate compartments; "***procedure established by law***" without fairness test

1978
Maneka Gandhi: progressive view; procedure must be ***fair, just and reasonable***; opened a ***whole new world of rights***

PILs
unstated rights read into Art 21 (see list below)

2017
Puttaswamy: ***nine-judge*** bench, unanimous: ***privacy intrinsic to life and liberty*** (physical, informational, decisional); ***overruled ADM Jabalpur (1976)***

Now
dignity in death, partner choice, transgender rights, personality rights, digital access

Rights read into Article 21 (Stage 3)

→ ***livelihood:*** Olga Tellis (1985)
→ ***free legal aid:*** Hussainara Khatoon (1979)
→ ***clean environment:*** M. C. Mehta cases
→ ***education:*** led to ***Article 21A*** by the ***86th Amendment, 2002***
→ ***health:*** Paschim Banga Khet Mazdoor Samity
→ ***shelter:*** Chameli Singh
→ ***speedy trial*** and protection against ***custodial violence***

L-FEEHSS — Stage-3 rights: **L**ivelihood (Olga Tellis) · **F**ree legal aid (Hussainara) · **E**nvironment (M. C. Mehta) · **E**ducation (21A) · **H**ealth (Paschim Banga) · **S**helter (Chameli Singh) · **S**peedy trial. (own mnemonic)

Stage 5: continuing expansion

→ ***right to die with dignity*** (passive euthanasia); ***right to choose a partner***; ***rights of transgender persons***; ***personality rights*** (e.g. Jackie Shroff case)
→ ***right to digital access:*** Pragya Prasun v. Union of India (2025): an ***intrinsic component of the right to life and liberty under Article 21*** (verify)

AMBEDKAR'S INSIGHT

The Constitution is ***not a mere lawyer's document but a vehicle of life, and its spirit is the spirit of the age. "However good a Constitution may be, if those who are implementing it are bad, it will prove to be bad. However bad a Constitution may be, if those implementing it are good, it will prove to be good."*** It lives only when ***institutions and citizens give it life in every generation***.

Recall drill: cover and answer

Living constitution	evolves without losing core identity	Limits on "living"	Preamble values, Basic Structure, constitutional methods
Basic structure case	Kesavananda Bharati (1973)	Judicial review articles	13, 32, 136, 226
Gopalan 1950 vs Maneka 1978	narrow vs fair, just, reasonable procedure	Puttaswamy 2017	nine judges; privacy; overruled ADM Jabalpur
Livelihood / legal aid cases	Olga Tellis / Hussainara Khatoon	Art 21A inserted by	86th Amendment, 2002
Digital access case	Pragya Prasun v. Union of India (2025)		

UNION AND ITS TERRITORY · LINGUISTIC STATES · SMALL STATES · SECOND SRC

PYQ None quoted in the handout · Polity handout pp. 15–17

✎ *After 1947 language became the main basis for redrawing states. Know the arguments for and against, the three committees, Andhra and the 1956 Act, then the small-states debate, the Uttar Pradesh case and the case for a Second SRC.*

LINGUISTIC REORGANISATION OF STATES

After Independence ***language became the main basis*** for reorganising states, replacing the colonial emphasis on ***administrative convenience***. ***1920s:*** Congress accepted it in principle (***Gandhi reorganised Pradesh Congress Committees*** on linguistic lines). ***After 1947: Nehru opposed*** immediate reorganisation, fearing threats to ***national unity*** after Partition.

Against

→ ***administrative difficulties*** from numerous linguistic demands

→ ***national integration:*** strong linguistic identities weaken common identity

→ ***secessionism:*** linguistic nationalism may encourage separatism

→ ***regionalism:*** demands for ***jobs, subsidies, benefits*** raise regional hostility

In favour

→ ***administrative efficiency:*** governance in the people's language

→ ***education and culture:*** mother-tongue education

→ ***democratic participation:*** easier engagement

→ ***secular basis:*** alternative to ***religion and caste*** in drawing boundaries

AINR vs AEDS — Against: **A**dministration · **I**ntegration · **N**o secession · **R**egionalism. For: **A**dministration · **E**ducation · **D**emocratic participation · **S**ecular basis. (own mnemonic)

Committee / Commission	Major recommendations
S. K. Dhar Commission (1948)	rejected linguistic reorganisation; favoured ***administrative convenience***
JVP Committee (1948)	***Nehru, Patel, Pattabhi Sitaramayya*** opposed immediate linguistic reorganisation
Fazl Ali Commission (1953)	chair ***Fazl Ali***, with ***K. M. Panikkar and H. N. Kunzru***; accepted language as an important basis subject to ***national unity, economic viability, administrative efficiency***; rejected ***one state, one language***

DJF — Order: **D**har (no) → **J**VP (not now) → **F**azl Ali (yes, with limits). (own mnemonic)

Major developments

→ ***Andhra State (1953):*** after the death of ***Potti Sreeramulu*** in a hunger strike for a Telugu state; the ***first linguistically reorganised state***

→ ***States Reorganisation Act, 1956: 14 states and 6 Union Territories***

ISSUE OF SMALL STATES

Demand for smaller states persists due to ***administrative convenience, regional identities and development deficits***. Demands: ***Koshal (Odisha), Kodagu (Karnataka), Vidarbha and Konkan (Maharashtra), Bodoland (Assam), Maru Pradesh (Rajasthan), Mithilanchal (Bihar), Gorkhaland (West Bengal)***.

In favour

→ ***administrative convenience:*** large states have varied terrains and priorities; smaller ones are more homogeneous, so planning is easier

→ ***economic growth:*** higher growth in some cases (Punjab, Haryana; Uttarakhand, Jharkhand, Chhattisgarh)

→ ***democratic participation:*** capital nearer the people, though not always realised

Issues

→ ***definitional problem:*** what is small or large (population, area, both)?

→ ***inter-state disputes:*** borders and water

→ ***fragmentation:*** undoing ***Sardar Patel's*** work

→ ***no guarantee of human development:*** needs resources, planning, bureaucracy, leadership

→ ***financial constraints:*** lower resources, costs of capitals, central dependence

→ ***alternative: decentralisation*** via districts, panchayats, urban local bodies

AEG vs DIFNFA — For: **A**dministration · **E**conomy · **G**rassroots democracy. Against: **D**efinition · **I**nter-state disputes · **F**ragmentation · **N**o human-development guarantee · **F**inance · **A**lternative (decentralise). (own mnemonic)

Democratic decentralisation should be the first line of action, followed by adequate funds and empowerment with ***functions and functionaries***.

Case of Uttar Pradesh

→ ***Ambedkar*** was wary of one huge state; he proposed ***dividing UP into three states*** for ***administrative convenience, disproportionate influence in national politics and better minority representation***

→ recent proposals: ***Harit Pradesh, Awadh, Purvanchal, Bundelkhand***; economic viability questions remain

→ ***counter:*** if smaller is the solution, create ***more districts***; empower local bodies first; if population is an asset for India, so for UP: greater representation is ***its democratic right***, not disproportion

CASE FOR A SECOND SRC

Why

→ ***continuing statehood demands:*** reorganisation is an ***evolving exercise, not one-stop***

→ ***changing regional realities:*** three decades of LPG reforms caused ***demographic, economic, social, regional imbalances*** and neglect allegations

→ ***growing population*** in certain states

→ ***objective decision-making:*** assess on ***administrative convenience, economic viability, development deficits, cultural identity, national unity***, not politics

Way forward

→ ***Second SRC*** with rational, scientific, objective criteria

→ ***economic viability*** assessment

→ ***democratic decentralisation*** (funds, functions, functionaries)

→ ***address development deficits***: packages, autonomous councils, development boards

→ ***statehood as a last resort***, not a panacea

SEDAL — Way forward: **S**econd SRC · **E**conomic viability · **D**ecentralise · **A**ddress deficits · **L**ast resort statehood. (own mnemonic)

Recall drill: cover and answer

Dhar Commission year, view	1948; against linguistic, for administrative convenience	JVP Committee members	Nehru, Patel, Pattabhi Sitaramayya
Fazl Ali Commission members	Fazl Ali, K. M. Panikkar, H. N. Kunzru	First linguistic state	Andhra (1953), after Potti Sreeramulu's death
1956 Act result	14 states and 6 UTs	Ambedkar on UP	divide into three states
First line of action on small states	democratic decentralisation	Second SRC criteria	administrative, economic, development, cultural, national unity

DEMAND FOR DELHI STATEHOOD

PYQ None quoted in the handout · Polity handout pp. 17–18 · 2023 Act: verify

✎ *Delhi has an elected government but no control over police, public order and land. Know the constitutional position, the pro and anti arguments, the 2018 and 2023 Supreme Court rulings, the 2023 Act and the way forward.*

CONSTITUTIONAL POSITION

Where Delhi stands

→ national capital, but the elected government lacks full control of ***police, public order and land***

→ ***69th Amendment Act, 1991*** inserted ***Article 239AA***: Legislative Assembly and Council of Ministers

→ designated ***National Capital Territory (NCT)***, administered by a ***Lieutenant Governor*** appointed by the President

→ ***police, public order, land*** are outside the Assembly's competence

→ Parliament retains power to legislate on ***State and Concurrent List*** subjects for Delhi

ARGUMENTS

In favour of statehood

→ ***delay in decision-making:*** Centre handles police, order, land; elected government and LG share some responsibility, so ***fragmented responsibility means fragmented accountability***

→ ***population:*** many full states are smaller than Delhi

→ ***democratic accountability:*** the elected government needs adequate powers; greater autonomy reduces ***LG-government conflict***

Against statehood

→ ***national capital:*** sentimental value for all Indians, cannot be the property of one section; houses ***Parliament, the Supreme Court, foreign missions***

→ ***financial viability:*** an ***urban agglomeration***, industry shifting out due to pollution norms; infrastructure needs large resources

→ ***resource dependency:*** relies on neighbouring states for ***water, power, resources***

→ ***population argument limits:*** many cities exceed small states; should they all be states?

DPD vs NFRP — For: **D**elay · **P**opulation · **D**emocratic accountability. Against: **N**ational capital · **F**inance · **R**esource dependence · **P**opulation argument stretched. (own mnemonic)

JUDICIAL AND LEGISLATIVE DEVELOPMENTS

2018

SC judgment: stressed ***constitutional morality, representative government and collaborative federalism*** in Delhi's administration

2023

SC judgment: the elected Delhi Government has ***legislative and executive powers over services*** except ***police, public order, land***

2023

GNCTD (Amendment) Act, 2023: statutory framework under which the ***Union retains significant control over appointments, transfers and postings*** of officers

Way forward

→ rather than full statehood, focus on ***institutional clarity***: LG in a ***constitutional/nominal advisory role*** on non-reserved matters

→ ***greater administrative autonomy*** to the elected government over civic governance and public service delivery, while keeping Union control over ***core strategic functions***

Recall drill: cover and answer

Article for Delhi Assembly	239AA via 69th Amendment, 1991	Three subjects outside Delhi Assembly	police, public order, land
Who administers Delhi	Lieutenant Governor appointed by the President	2023 SC ruling	Delhi government controls services except police, public order, land
2023 Act effect	Union keeps control over postings and transfers	Way forward	LG advisory role; more civic autonomy; Union keeps strategic functions

LADAKH · STATEHOOD · SIXTH SCHEDULE

PYQ None quoted in the handout · Polity handout pp. 18–19 · 2025–26 developments: verify

✎ Ladakh became a Union Territory without a legislature in 2019. Know its set-up, the grievances, the four-point demand of LAB and KDA, why Sixth Schedule is sought, the Centre's position and a balanced way forward.

CONSTITUTIONAL POSITION AND GRIEVANCES

Position

→ **J&K Reorganisation Act, 2019** made Ladakh a separate **UT without a legislature** on **31 October 2019**
→ **administration:** **Lieutenant Governor** under **Article 239**, with **AGMUT cadre** officers
→ **local governance:** two Hill Councils, **LAHDC Leh and LAHDC Kargil**, with limited autonomous powers
→ **judiciary:** shares the **High Court of J&K and Ladakh**
→ **representation:** **one Lok Sabha seat**, no Legislative Assembly or Chief Minister

Major grievances

→ **democratic deficit:** no elected Assembly
→ **tribal identity:** fear over **land, employment, resources**
→ **ecological vulnerability:** unregulated **tourism, mining, infrastructure** threaten glaciers, water, biodiversity of a fragile high-altitude desert

FOUR-POINT DEMAND

Leh Apex Body (LAB)

→ and **Kargil Democratic Alliance (KDA)** demand: **1)** full statehood with a Legislative Assembly
→ **2)** Sixth Schedule status
→ **3)** a separate Public Service Commission
→ **4)** two Lok Sabha seats (Leh and Kargil).

SSPL — Four demands: **S**tatehood · **S**ixth Schedule · **P**SC of its own · **L**ok Sabha seats (2). (own mnemonic)

Sixth Schedule demand

→ **Article 244(2):** provides **Autonomous District and Regional Councils** with powers over land, forests, customs, local administration in specified **Northeastern tribal areas**
→ **NCST recommendation (2019):** Sixth Schedule protection for Ladakh given its predominantly tribal population
→ **significance:** tribal self-government, cultural protection, local control over resources and ecological conservation
→ **requirement:** a **constitutional amendment**, as coverage is limited to specified Northeastern states

CENTRE'S POSITION AND WAY FORWARD

Centre's position and developments

→ **strategic concerns:** sensitive borders with **China and Pakistan**
→ **alternative safeguards:** **Article 371-style** protections for land, culture, employment discussed
→ **MHA High-Powered Committee** to negotiate with Ladakhi representatives
→ **public mobilisation:** **Sonam Wangchuk** and Ladakhi groups: protests, marches, hunger strikes
→ **2025:** domicile, reservation, official language and recruitment safeguards, plus Hill Council provisions; **2026:** talks continue with differences over the extent of self-government (verify)

Way forward

→ ***democratic representation:*** examine an elected Assembly with national-security safeguards
→ ***constitutional protection:*** Sixth Schedule or Article 371-style
→ ***strengthen Hill Councils*** with ***Funds, Functions and Functionaries (3Fs)***
→ ***local employment:*** recruitment safeguards; separate PSC demand
→ ***sustainable development:*** local say on glaciers, water, fragile ecosystems
→ ***continued dialogue*** with LAB and KDA

DCSLSC — Way forward: **D**emocratic representation · **C**onstitutional protection · **S**trengthen Hill Councils (3Fs) · **L**ocal jobs · **S**ustainable development · **C**ontinued dialogue. (own mnemonic)

A lasting solution must balance ***democratic autonomy, tribal identity, ecological protection and national security.***

Recall drill: cover and answer

Ladakh UT date	31 October 2019, without a legislature	Ladakh administered under	Article 239 by an LG; AGMUT cadre
Hill Councils	LAHDC Leh and LAHDC Kargil	Who makes the four demands	LAB and KDA
Four demands	statehood, Sixth Schedule, own PSC, two Lok Sabha seats	Sixth Schedule article	Article 244(2)
NCST recommendation year	2019	3Fs	funds, functions, functionaries

NATURE OF FUNDAMENTAL RIGHTS · ARTICLE 12 · BCCI

PYQ None quoted in the handout · Fundamental Rights handout pp. 4–7

Fundamental Rights sit in Part III. Most work against the State, so Article 12 defines who the State is. Courts use tests (statute, control, agency, public function) to decide if a body is State. BCCI is the standing example: not State, but still reachable by writ for public duty.

WHAT FUNDAMENTAL RIGHTS ARE

Meaning

→ ***rights found in Part III*** of the Constitution
→ rights outside Part III are ***not*** Fundamental Rights: the ***Right to Vote***; the statutory ***Right to Information*** (RTI Act, 2005)
→ but the ***right to know and receive information*** is recognised as part of ***Article 19(1)(a)***

Category	Articles
Right to Equality	Arts ***14–18***
Right to Freedom	Arts ***19–22***
Right against Exploitation	Arts ***23–24***
Right to Freedom of Religion	Arts ***25–28***
Cultural and Educational Rights	Arts ***29–30***
Constitutional Remedies	Art ***32*** (Supreme Court); Art ***226*** gives remedies through High Courts

EFERCC — Categories in order: **E**quality (14–18) · **F**reedom (19–22) · **E**xploitation (23–24) · **R**eligion (25–28) · **C**ultural-educational (29–30) · **C**onstitutional remedies (32). (own mnemonic)

NATURE OF FUNDAMENTAL RIGHTS

Negative rights → most rights ***stop the State*** from acting, e.g. denying equality

Positive rights → some ***require the State to act***, e.g. education under ***Art 21A***

Vertical application → most rights protect ***individuals against the State***

Horizontal application → some also bind ***private persons***, e.g. ***Art 17*** (untouchability); other violations by private persons are met through civil and criminal law

Other features

→ ***Justiciable:*** enforced by courts through ***Art 32*** (SC) and ***Art 226*** (HCs)

→ ***Citizens vs all persons:*** some only for citizens (***Art 19***); others for ***all persons including foreigners*** (***Arts 14 and 21***)

→ ***Not absolute:*** subject to ***reasonable restrictions*** on constitutional grounds

Emergency and special cases

→ ***Art 358:*** Art 19 protections are affected during a National Emergency on grounds of ***war or external aggression***

→ ***Art 359:*** President may suspend the ***right to move courts*** for specified rights; ***Arts 20 and 21 enforcement cannot be suspended***

→ ***Art 33:*** Parliament may restrict or remove some rights of ***Armed Forces, public-order forces, intelligence and specified telecom personnel*** for discipline. Example: ***Police Forces (Restriction of Rights) Act, 1966***

Self-executing vs needing a law

→ most rights are ***directly enforceable*** without a law

→ some need a law: ***Art 17*** → Protection of Civil Rights Act, 1955 · ***Art 21A*** → RTE Act, 2009 · ***Art 23*** → laws against trafficking and forced labour

→ ***Art 35*** gives ***Parliament*** law-making power to implement specified rights

ARTICLE 12: DEFINITION OF STATE

Art 12 defines ***State*** for Part III. Since most rights run ***vertically against the State***, we must know who the State is.

State includes

→ ***Government and Parliament of India***

→ ***Government and Legislature of each State***

→ ***Local authorities*** (rural and urban)

→ ***Other authorities*** within India or under the control of the Government of India

Why "other authorities" is the debate

→ wording is ***vague***; State functions are ***dynamic*** and are increasingly ***outsourced*** to bodies acting on its behalf

→ question: can citizens claim Fundamental Rights against these bodies too? The SC has given ***tests***

Judicial tests

→ set up by a ***statute or executive order*** (e.g. RBI)

→ ***substantial financial and administrative control*** by government

→ works as an ***agency or instrumentality*** of the State

→ performs ***sovereign or public functions*** (defence, taxation, law and order)

SFAP — Four tests: **S**tatute-created · **F**inancial and administrative control · **A**gency of State · **P**ublic or sovereign function. (own mnemonic)

Pradeep Kumar Biswas v. IICB (2002): the tests are ***not rigid or isolated***. Overall question: is the body ***financially, functionally and administratively dominated or controlled*** by government? Control must be ***deep and pervasive***; ***mere regulatory control is not enough***.

Is the judiciary "State"?

→ Art 12 does ***not mention*** the judiciary

→ ***judicial functions:*** courts protect rights; decisions are challenged by ***appeal or review***, not under Art 12

→ ***administrative functions*** (staff recruitment and management): judiciary ***can be treated as State***; such acts can be challenged for violating rights

CASE STUDY: BCCI

Facts and Zee Telefilms (2005)

→ BCCI is a ***private society*** registered under the ***Tamil Nadu Societies Registration Act***, yet has a ***near monopoly*** over Indian cricket and selects the national team

→ ***Zee Telefilms v. Union of India (2005):*** Constitution Bench held BCCI is ***not State***: not created by statute · no deep, pervasive government control · no government financial support · functions important but ***not sovereign***

→ ***yet*** the Court separated ***being State (Art 12)*** from ***performing a public function***: a public duty can attract ***writ jurisdiction of the High Court under Art 226*** even if the body is not State

BCCI is State (argument)	BCCI is not State (argument)
monopoly control over a national sport	not created by statute
public functions affecting careers	no pervasive government control
represents India in international bodies	financially independent, mostly private funds
decisions affect Fundamental Rights	Ajay Hasia and Pradeep Kumar Biswas tests not fully met

Law Commission 275th Report (2018) recommended bringing the BCCI under the ***RTI Act*** because of its public functions. The debate is really about fitting the ***modern administrative State*** into Art 12.

National Sports Governance Act, 2025 (handout; verify details)

→ ***Presidential assent 18 August 2025***; a statutory framework replacing the non-statutory ***National Sports Development Code, 2011***

→ ***National Sports Board (NSB)*** recognises and regulates National Sports Federations, with power to ***suspend or cancel recognition*** for governance failures

→ ***National Sports Tribunal*** for sports disputes

→ recognised bodies must set up ***Ethics, Dispute Resolution and Athletes Committees*** and codes protecting athletes, especially ***women and minors***

→ aims at ***Olympic and Paralympic Charter*** alignment: India's ***2036 Summer Olympics*** aspiration

RTI link and concerns

→ RTI applies if a body is ***substantially financed*** by government, so financially independent BCCI is ***not automatically a public authority***

→ performing public functions ***does not automatically*** make a body ***State (Art 12)*** or a ***public authority (RTI)***

→ concerns: ***over-centralisation*** in the NSB (government role in appointments); conflict of a domestic regulator with the autonomy of ***FIFA and ICC***

Recall drill: cover and answer

Where are FRs found	Part III	Right to Vote is a FR?	No, outside Part III
Art 19 vs Art 14, 21	Art 19 citizens only; 14 and 21 all persons	Cannot be suspended in Emergency	enforcement of Arts 20 and 21
Art 33	restricts rights of armed and police forces; Act of 1966	Four tests of State	SFAP
Pradeep Kumar Biswas 2002	deep and pervasive control; tests not rigid	Is judiciary State	only for administrative functions
Zee Telefilms 2005	BCCI not State; public duty reachable under Art 226	NSGA 2025 assent	18 August 2025; NSB and National Sports Tribunal

⚖ AFFIRMATIVE ACTION · THE CASE FOR AND AGAINST RESERVATION ⚖

PYQ None quoted in the handout · Fundamental Rights handout pp. 7–10

✎ *Affirmative action opens elite positions to groups that were kept out. Ambedkar wanted objective constitutional measures, not waiting for a change of heart. Know the eight arguments for, and the objections with their replies (injustice, merit, caste not class, creamy layer, mismatch).*

MEANING AND TWO APPROACHES

Affirmative Action

→ broader and more refined term than ***reservation***; became prominent when US President ***John F. Kennedy*** used it in an ***executive order in 1961*** for equal opportunity

→ set of ***anti-discriminatory measures*** giving access to ***preferred positions*** (IITs, IIMs, IAS, IPS) to groups who would otherwise be excluded or unrepresented

→ these positions were historically ***monopolised by upper sections*** (gender, caste, class); the State tries to ***alter the social composition of elites***

Gandhian (spiritual) approach

→ Ashwini Deshpande calls it the ***Evangelical Approach***

→ ***moral regeneration of upper castes*** through philanthropic upliftment

Ambedkar's objective approach

→ ***secular***, not spiritual

→ rejected waiting for a ***change of heart***; we cannot wait years for moral regeneration

→ needs ***objective measures***, e.g. constitutional provisions for ***SCs and STs***

ARGUMENTS IN FAVOUR

Eight arguments for

→ ***Historical injustice:*** compensation for centuries of untouchability and deprivation; USA (racial injustice), Australia (Aboriginal communities)

→ ***Division of labourers, not labour:*** work assigned by ***accident of birth***; link between caste and job weaker among upper castes, but lower castes (Dalits, ***manual scavenging***) still face it

→ ***Class and caste coincide:*** lower castes face ***poverty plus social isolation***; Dalits also face ***landlessness***

→ ***Untouchability persists in new forms:*** separate utensils for domestic help, shoes outside the kitchen, trouble renting a home, honour killings over inter-caste marriage, caste preference in matrimonial ads

→ ***Labour-market dualism:*** Ashwini Deshpande on unequal outcomes. ***Thorat and Attewell (2007):*** applications with Hindu non-Dalit, Hindu Dalit and Muslim identities, ***same qualifications***, different outcomes

→ ***Bridging inequality:*** development alone does not close the gap; affirmative action bridges ***equality in law and equality in fact***

→ ***Benefits society:*** not only the individual; promotes the weakest and allows ***full use of the talent pool***

HDC-UL-BB — For: **H**istorical injustice · **D**ivision of labourers · **C**aste-class overlap · **U**ntouchability persists · **L**abour-market dualism · **B**ridging law-fact gap · **B**enefits society. (own mnemonic)

ARGUMENTS AGAINST AND REPLIES

Objection	Reply
Injustice to tackle injustice	unequal starting conditions: a weaker-section candidate cannot compete equally with a dominant-section one
Breeds caste hostility	stratification already created caste distinctions; this is **corrective justice**
Compromises merit	merit is **assisted, not inborn**: schooling, family support, absence of discrimination, post-school support
Hurts productivity	**Deshpande and Weisskopf (2012)**, Indian Railways 1980–2002: **no evidence** that reservation reduces productivity
Creamy sections corner benefits	need **better targeting, not abolition**; poor targeting afflicts many schemes
Mismatch hypothesis	dropout needs **evidence**, not generalising; answer is **extra and remedial classes, counselling**
Why caste, not class	a poor Dalit faces poverty **plus** social isolation and discrimination; quota also fixes **representation**; other welfare handles poverty in every community

IBMPCMC — Objections: **I**njustice · **B**ias-hostility · **M**erit · **P**roductivity · **C**reamy layer · **M**ismatch · **C**lass-not-caste. (own mnemonic)

Answer frame for Mains: **state the objection, concede what is valid, reply with evidence, then give the reform (targeting, support), not abolition.**

Recall drill: cover and answer

Kennedy and affirmative action	executive order 1961	Gandhi vs Ambedkar approach	moral regeneration vs objective secular measures
Thorat and Attewell 2007	same qualifications, different hiring outcomes by identity	Deshpande and Weisskopf 2012	Railways 1980–2002, no productivity loss
Mismatch remedy	remedial classes and counselling	Why caste not class	caste adds social isolation; quota also gives representation
Corrective justice	reply to the caste-hostility argument		

⚖ BEYOND QUOTA · BETTER TARGETING · CREAMY LAYER · SUB-CLASSIFICATION ⚖

PYQ None quoted in the handout · Fundamental Rights handout pp. 10–14

✎ *Quota alone cannot close gaps, so add support (land, jobs, handholding, diversity index). Then fix targeting: revise lists, apply the creamy layer, sub-classify OBCs (Rohini) and SCs (Davinder Singh 2024). Rohit Nathan (2026) says parental salary alone cannot decide creamy layer.*

QUOTA PLUS POLICY

Idea (Satish Deshpande)

→ **Quota Plus**: reservation alone cannot solve all socio-economic disadvantage

Limits of quota

→ **urban vs rural gap:** most backward classes, including Dalits, live in **rural India** with poor schooling; quotas in engineering and medical colleges help those **already able to qualify**

→ **50% ceiling** set by the SC (subject to later developments); **Tamil Nadu** has historically gone up to **69%**; raising percentages alone does not remove structural disadvantage

→ **land reforms** (many Dalits are landless labourers)

Additional measures

→ ***non-farm employment*** generation
→ setting up ***MSMEs***
→ ***handholding*** of beneficiaries: academic and institutional support in professional colleges
→ ***private sector Diversity Index*** on gender, community, caste

HELM-D — Quota Plus: **H**andholding · **E**mployment off-farm · **L**and reform · **M**SMEs · **D**iversity index. (own mnemonic)

Diversity Index (illustrative)	Class
0 – 0.33	Low diversity
0.33 – 0.66	Medium diversity
0.66 – 1.00	High diversity

Use of the index

→ Centre and States could weigh diversity in ***public procurement and outsourcing***
→ discussed in the ***UPA period***; idea is private-sector diversity ***without relying only on compulsory reservation***

Long-term objective

→ ***Art 334:*** original reservation of seats for SCs and STs in ***Lok Sabha and State Assemblies for ten years***; this is ***political***, not jobs or education
→ extended by amendments; ***104th Amendment Act, 2019*** extended it to ***25 January 2030***
→ handout proposal: ***phased reduction*** of dependence on quotas once equal opportunity is reached; review at three levels: ***promotion quotas, job quotas, education quotas***. This is a ***policy proposal, not a constitutional requirement***

BETTER TARGETING

Three tools

→ ***revise backward-class lists*** through the constitutional process: add new groups, remove those that no longer qualify
→ ***creamy layer*** to exclude advanced members; criteria to be ***reviewed regularly***
→ ***sub-classification*** within OBCs: a few communities take a disproportionate share

Justice G. Rohini Commission (2017)

→ appointed under ***Art 340*** to study ***unequal distribution*** of benefits among OBCs in the Central List and suggest ***sub-categorisation within the 27% quota***
→ reported illustrative split into four groups of ***2%, 6%, 9%, 10%***: ***reported proposals, not implemented***
→ report submitted to the President on ***31 July 2023***; submission does not mean implementation

CREAMY LAYER

Meaning and scope

→ stops ***relatively advanced*** members of backward classes from cornering benefits
→ Central framework applies to ***OBC*** reservation in ***jobs and admissions***; income threshold ***₹8 lakh per annum***, with detailed Income/Wealth Test conditions; ***salary and agricultural income treated separately***
→ ***SC/ST: Jarnail Singh (2018)*** discussed the principle for promotions; but the Centre and most States have ***no general OBC-style exclusion for SC/ST***, and it is not generally applied to initial appointments

Union of India v. Rohit Nathan (2026) (handout spells it Rohith; verify): Bench of Justices ***P. S. Narasimha and R. Mahadevan*** on UPSC candidates whose parents worked in ***PSUs, banks, private sector***.

What the SC held

→ ***parental salary alone cannot decide*** creamy layer; the ***status and category of the parent's post*** matter

→ ***1993 Office Memorandum*** (based on ***Indra Sawhney 1992***) is the foundation; the ***2004 clarificatory letter*** is ***invalid*** to the extent it changed the 1993 criteria (a clarification cannot add substantive conditions)

→ under the 1993 OM, ***salary and agricultural income are excluded*** from the Income/Wealth Test; parental service status still counts

→ ***Art 14:*** treating PSU and private-sector employees' children differently from similarly placed government employees ***without valid basis*** violates equality

→ creamy layer is rooted in ***substantive equality (Arts 14, 15, 16)***, not mere administrative policy

→ ***Art 142*** used for relief: ***supernumerary posts*** for eligible candidates wrongly denied non-creamy-layer benefit, with a ***time-bound*** process

Critique

→ test may become ***too income-dependent*** though affirmative action targets social discrimination

→ separate treatment of ***agricultural income*** lets prosperous farming families pass the test; benefits may pass ***across generations*** to the better-off

→ but the framework also uses ***parental status*** and other criteria, not only income

SUB-CLASSIFICATION OF SCs: DAVINDER SINGH (2024)

State of Punjab v. Davinder Singh (2024)

→ ***seven-judge*** Constitution Bench, ***6-1***: States may ***sub-classify within Scheduled Castes*** for fairer distribution of benefits

→ recognises that inequality exists ***among SC communities*** themselves

Conditions

→ must rest on ***empirical data***

→ cannot be used to ***include or exclude*** communities from the Presidential SC List (***Art 341***)

→ subject to ***judicial review***

→ cannot give the ***entire benefit to one sub-group*** arbitrarily

JEMS — Davinder Singh limits: **J**udicial review · **E**mpirical data · **M**ust not alter Art 341 list · **S**ub-group cannot take everything. (own mnemonic)

Opinions of individual judges on a creamy layer for SCs are ***not*** a universal rule; keep them distinct from an administrative or statutory exclusion.

Recall drill: cover and answer

Quota Plus coined by	Satish Deshpande	Tamil Nadu reservation	up to 69%
Quota Plus measures	HELM-D	Art 334 extended to	25 January 2030 by 104th Amendment (2019)
Rohini Commission	2017, Art 340, report 31 July 2023, 27% OBC split	Creamy layer threshold	₹8 lakh per annum
Rohit Nathan 2026 held	parental salary alone cannot decide; 2004 letter invalid; Art 142 relief	Jarnail Singh 2018	creamy layer idea for SC/ST promotions
Davinder Singh 2024	7 judges, 6-1, SC sub-classification allowed with data	Davinder Singh bar	cannot alter Art 341 list

⚖ DOMINANT CASTE DEMANDS · MARATHA · EWS · EFFECTIVENESS ⚖

PYQ None quoted in the handout · Fundamental Rights handout pp. 14–17

✎ *Backwardness must be shown by current objective data, not past victimhood or votes. Jats were rejected in Ram Singh (2015); the Maratha quota went 16% to 13/12% to struck down (2021), then a 2024 Act is pending. EWS 10% was upheld 3-2 in 2022.*

DOMINANT-CASTE DEMANDS: JAT

Background

→ Centre and States have ***discretion*** in listing communities as OBC, within constitutional safeguards and ***judicial review***

→ the ***Jati-Varna link*** is clear at the top and bottom of the hierarchy but ***weaker among middle castes***, so backwardness is contentious

→ ***2014:*** on the eve of Lok Sabha elections the ***UPA*** decided to include ***Jats in the Central OBC list*** in certain States; critics saw electoral motive; rejected by the SC in ***Ram Singh (2015)***

Ram Singh v. Union of India (2015): principles

→ ***historical injustice alone*** cannot identify OBCs; ***present*** social and educational conditions must count

→ ***continuous evolution*** of backward classes: e.g. recognition of ***transgender persons*** in ***NALSA (2014)***

→ ***self-perception cannot be the sole basis***; need ***objective, contemporary data*** (no single time period fixed)

→ questioned the ***adequacy of material*** behind the Jat decision; need for ***reliable caste-based data***

Vertical discrimination

→ against groups lower in the traditional hierarchy

→ answered by ***Arts 15(4) and 16(4)*** (affirmative action in education and jobs)

Horizontal discrimination

→ cuts across castes: ***women, transgender persons***

→ answered by ***Arts 15(1) and 16(2)***; ***horizontal reservation*** cuts across vertical categories where provided

→ also needs ***attitude and infrastructure change***, not quotas alone

MARATHA RESERVATION: TIMELINE

2014
Maharashtra announces ***16% for Marathas*** and a proposed ***5% for Muslims*** in education and jobs; legal challenges over backwardness, religion and the ceiling

2018
SEBC Act, 2018: ***16%*** for Marathas in education and jobs; challenged in the ***Bombay High Court***

2019
Bombay HC broadly upheld but cut it to ***13% in jobs and 12% in education***

2021
Jaishri Laxmanrao Patil: SC ***struck down*** the 2018 Act; no ***extraordinary circumstances*** to cross the ***50% ceiling***; reaffirmed ***Indra Sawhney (1992)***

2024
new ***SEBC Act:*** ***10%*** for Marathas, ***additional*** to existing quotas; challenged on the ceiling. Handout: ***as of October 2026 still before the Bombay HC*** (verify)

SEBC-16-13-10 — Maratha numbers: **16** (2018 Act) → **13/12** (HC 2019) → **struck** (SC 2021) → **10** (2024 Act). (own mnemonic)

EWS RESERVATION

Constitutional basis

→ **103rd Amendment Act, 2019** added **Arts 15(6) and 16(6)**: **10% reservation for Economically Weaker Sections**, subject to conditions

Criticisms

→ **breaks the 50% ceiling** of Indra Sawhney

→ Art 16(4) tests are **backwardness and inadequate representation**; EWS may not meet them

→ **purely economic criterion:** earlier cases said social backwardness cannot rest on economics alone

→ a separate **vertical** category though poverty cuts across communities; **excludes** poor persons in SC, ST, OBC groups

Janhit Abhiyan v. Union of India (2022): five-judge bench **upheld** the amendment **3-2**; economic criteria valid; exclusion of SC/ST/OBC upheld. The ceiling and economics points are **criticisms debated**, not the legal position that invalidates EWS.

EFFECTIVENESS OF RESERVATION

Gains (supporters)

→ **education gaps** between SC/ST and general population narrowed

→ more **representation** in services and institutions

→ rise of a **Dalit middle class**

Continuing challenges

→ unequal access to **quality education**

→ **concentration** of benefits

→ inadequate representation at **higher levels**

→ judge by **representation and broader socio-economic progress**

Recall drill: cover and answer

Ram Singh 2015 about	Jat inclusion in Central OBC list rejected	Ram Singh: backwardness needs	objective, contemporary data; not history or self-perception alone
NALSA 2014	transgender persons recognised as socially disadvantaged	Vertical vs horizontal discrimination	caste hierarchy vs cuts across castes (women, transgender)
Jaishri Patil 2021	Maratha 2018 Act struck; 50% ceiling	Maratha 2024 Act	10%, pending Bombay HC (verify)
EWS amendment	103rd, 2019; Arts 15(6) and 16(6); 10%	Janhit Abhiyan 2022	5 judges, 3-2, EWS upheld

ARTICLE 19 · RESTRICTIONS · DEFAMATION · SUBRAMANIAN SWAMY

PYQ None quoted in the handout · Fundamental Rights handout pp. 17-20

✎ Art 19(1) gives citizens seven (now six) freedoms; each has its own list of grounds for restriction. Speech has the longest list (eight). Press, silence, information and privacy are

inferred. Criminal defamation survived in Subramanian Swamy (2016), now sits in BNS s. 356.

ARTICLE 19(1): THE RIGHTS (CITIZENS ONLY)

Clause	Right	Restriction clause
(a)	freedom of ***speech and expression***	19(2)
(b)	assemble ***peaceably and without arms***	19(3)
(c)	form ***associations, unions, co-operative societies***	19(4)
(d)	move freely throughout India	19(5)
(e)	reside and settle anywhere in India	19(5)
(f)	***omitted*** (property)	-
(g)	practise any ***profession, occupation, trade or business***	19(6)

SAA-MRP — Art 19(1): **S**peech · **A**ssembly · **A**ssociation · **M**ovement · **R**esidence · (f gone) · **P**rofession. (own mnemonic)

GROUNDS OF RESTRICTION

19(2): speech and expression (eight grounds)

→ ***sovereignty and integrity of India*** · ***security of the State*** · ***friendly relations with foreign States*** · ***public order***

→ ***decency or morality*** · ***contempt of court*** · ***defamation*** · ***incitement to an offence***

SSF-P-DM-CDI — Eight grounds: **S**overeignty · **S**ecurity · **F**riendly relations · **P**ublic order · **D**ecency-morality · **C**ontempt · **D**efamation · **I**ncitement. (own mnemonic)

Clause	Reasonable restrictions in the interests of
19(3) assembly	sovereignty and integrity · public order
19(4) association	sovereignty and integrity · public order · ***morality***
19(5) movement, residence	***general public*** · protection of any ***Scheduled Tribe***
19(6) profession, trade	***general public***; may also lay down ***professional or technical qualifications*** and allow ***State or State-owned corporations*** to carry on a trade, wholly or partly excluding citizens

RIGHTS INFERRED FROM 19(1)(a)

Four inferred rights

→ ***Right to silence:*** freedom to speak includes, in context, the ***freedom not to speak***

→ ***Freedom of the press:*** expressing other people's views rests on freedom of expression; ***not separately listed***

→ ***Right to information:*** you cannot express well without information; ***right to know*** is an aspect of 19(1)(a)

→ ***Right to privacy:*** constant surveillance creates a ***chilling effect***; privacy is a Fundamental Right chiefly under ***Art 21***, linked with Art 19

SPIP — Inferred from speech: **S**ilence · **P**ress · **I**nformation · **P**rivacy. (own mnemonic)

DEFAMATION

Legal position

→ defamation is a ground in **19(2)**; gives rise to **civil and criminal** proceedings

→ criminal defamation: **Section 356 of the Bharatiya Nyaya Sanhita, 2023**; earlier **IPC Sections 499 and 500**

→ **exceptions** under s.356: good-faith imputations · comment on **public conduct of public servants** · **truth for the public good**; magistrates are said to apply it **mechanically** without checking exceptions

Issues with criminal defamation

→ **public remedy for a private wrong**: civil wrong between parties in most democracies

→ **chilling effect:** self-censorship of journalists and opposition; followers file complaints; social media lets cases be filed in **many parts of the country**; used to harass activists and journalists

→ **access:** costs and time favour the powerful; the common person struggles

Subramanian Swamy v. Union of India (2016): challenge to IPC 499/500 as an unreasonable restriction on 19(1)(a). **For retention:** State must protect **reputation** (dignity); freedom is not absolute. **Against:** chilling effect; civil damages suffice. **SC upheld** criminal defamation: **right to reputation is part of Art 21 (life and dignity)**, balanced against free speech; stressed **dignity and fraternity**. **Critics:** missed a chance to decriminalise.

Recall drill: cover and answer

Art 19(1)(f)	omitted	Art 19 applies to	citizens only
Number of grounds in 19(2)	eight	Grounds for 19(4) association	sovereignty, public order, morality
19(5) special ground	protection of Scheduled Tribe interests	Four inferred rights	SPIP
Criminal defamation now	BNS section 356 (was IPC 499, 500)	Subramanian Swamy 2016	criminal defamation upheld; reputation is part of Art 21

CONTEMPT OF COURT

PYQ None quoted in the handout · Fundamental Rights handout pp. 20–22

✎ *Courts can punish contempt under Arts 129 and 215 and the 1971 Act. The trouble is vagueness: scandalising the court, judge in own cause, intent vs effect. Mulgaokar (1978) says use sparingly; the UK abolished scandalising in 2013. Reform: objective standards.*

MEANING AND TYPES

Constitutional and statutory basis

→ **Contempt of Courts Act, 1971** defines and regulates it

→ **Art 129:** Supreme Court is a **Court of Record** and can punish its own contempt

→ **Art 215:** same for **High Courts**

Civil contempt

→ **wilful disobedience** of any judgment, decree, direction, order, writ or process

→ or **wilful breach of an undertaking** given to a court

Criminal contempt

→ **scandalising** or lowering the authority of a court

→ **prejudicing or interfering** with judicial proceedings

→ interfering with or **obstructing the administration of justice** in any other way

Why the power exists: unpopular rulings can trigger campaigns that undermine the ***independence and authority*** of the judiciary; without independence the ***public interest*** suffers.

ISSUES

Five issues

→ ***Nemo judex in causa sua*** (no one is judge in their own cause): the court whose authority is attacked may itself decide the contempt

→ ***Vagueness:*** "scandalising the court"; no objective yardstick; depends on judges' ***subjective assessment***, so outcomes vary, which touches ***equality before law***; broad use ***stifles genuine criticism***

→ ***Intent vs effect:*** proceedings may look at the ***tendency*** of criticism rather than ***mens rea***; relevance of intention depends on the type of contempt

→ ***Impression of infallibility:*** judges are human; just criticism of a judge is not criticism obstructing the institution

→ ***Judge vs court:*** contempt of court is not contempt of an individual judge; the line blurs

NVIJ — Issues: **N**emo judex · **V**agueness · **I**ntent vs effect · **I**nfallibility · **J**udge vs court. (own mnemonic)

In Re S. Mulgaokar (1978): Justice ***V. R. Krishna Iyer***: judges should have ***broad shoulders***; protect the ***administration of justice***, not the personal reputation of judges.

Mulgaokar guidelines

→ ***sparing use***; not every criticism merits contempt

→ act seriously when an attack is ***calculated to obstruct or destroy*** the judicial process

→ ***distinguish judge from court***

→ ***press freedom:*** the press may criticise courts within responsible limits

→ ***judicial restraint*** even if language is harsh

→ for ***malicious or intimidatory*** attacks, use contempt in the public interest

SAFEGUARDS IN THE 1971 ACT

Section 13 and Section 15

→ ***s.13:*** no sentence unless the contempt ***substantially interferes*** with due course of justice; after the ***2006 amendment truth is a defence*** if in ***public interest*** and ***bona fide***

→ ***s.15:*** criminal contempt (other than in the court's presence): ***suo motu*** by SC or HC; others need ***consent of the Attorney General or Solicitor General (SC)*** or ***Advocate General (HC)***; consent rule does ***not restrict suo motu*** jurisdiction

COMPARISONS AND REFORM

Country	Position
UK	***abolished scandalising the judiciary*** as contempt in England and Wales in ***2013***; "old fools" illustration: being old is a fact, being a fool is opinion
USA	strong free-expression protection; contempt is ***more restrictive*** for criticism outside the courtroom

Reform agenda

→ ***objective standards*** in place of vague phrases (Art 19(1)(a) compatibility)

→ ***criticism is not obstruction***; keep contempt for conduct that obstructs justice

→ ***judicial accountability:*** criticism improves institutions

→ protect the ***administration of justice, not judges' reputation***

Recall drill: cover and answer

Contempt Act year	1971	Articles on contempt power	129 (SC) and 215 (HC)
Civil contempt	wilful disobedience or breach of undertaking	Criminal contempt	scandalising, prejudicing proceedings, obstructing justice
Nemo judex	no one is judge in their own cause	Mulgaokar 1978 words	broad shoulders (Krishna Iyer)
Truth as defence	section 13, after 2006 amendment, public interest and bona fide	UK abolished scandalising in	2013

BOOK BANS · SEDITION · OBSCENITY · FILM CERTIFICATION · SECTION 66A

PYQ None quoted in the handout · Fundamental Rights handout pp. 23–27

✎ *Controversy alone does not justify a ban; the State must stay inside Art 19(2). Sedition (s.124A) was read down in Kedar Nath, put in abeyance in 2022 and replaced by BNS s. 152. Obscenity moved from Hicklin to community standards. Section 66A fell in Shreya Singhal (2015).*

BANNING OF BOOKS

Position and arguments against bans

→ restrictions only on grounds in ***Art 19(2)***; a book being ***controversial, unpopular or offensive*** is not enough

→ ***freedom of expression*** central to liberal democracy, even for unpopular ideas

→ ***right to receive information:*** bans hurt ***readers*** too

→ ***chilling effect:*** writers and historians self-censor

→ ***threat of violence:*** the State should not reward it by suppressing lawful expression; it must ***protect expression and keep order***

S. Rangarajan v. P. Jagjivan Ram (1989): expression cannot be suppressed because of ***threatened demonstrations or violence***; State must protect lawful expression; need a ***proximate connection*** to harm, not ***illusory or remote*** threats. A film case, but applies to books too.

SEDITION

History

→ colonial offence put in the ***IPC in 1870***; used against ***Tilak*** and against ***Gandhi (1922)***

→ ***IPC s.124A:*** hatred, contempt or ***disaffection*** against the government established by law; criticised for vague wording and misuse against journalists, activists, students and opponents

Kedar Nath Singh v. State of Bihar (1962): SC ***upheld s.124A*** but ***restricted it*** to speech or acts involving ***incitement to violence or tendency to create public disorder***. Strong criticism of government alone is not sedition.

Issues

→ ***colonial legacy***

→ ***misuse against dissent***

→ ***chilling effect*** on 19(1)(a)

→ ***government of the day is not the State or the nation***

1870 sedition enters the **IPC**

1922 **Gandhi** prosecuted

1962 **Kedar Nath:** upheld but read down

2022 SC directs **s.124A be kept in abeyance**; deals with fresh and pending cases

1 Jul 2024 **BNS** in force; **124A not retained**; **s.152 BNS** introduced

BNS Section 152: acts endangering sovereignty, unity and integrity

→ covers purposely or knowingly **exciting secession, armed rebellion, subversive activities**, encouraging **separatist feelings**, endangering sovereignty, unity, integrity

→ by **words, signs, visible representation, electronic communication, financial means** or otherwise

→ punishment: **life imprisonment or up to seven years**, plus fine

→ **Explanation protects lawful criticism:** disapproval of government measures to get them changed by **lawful means**

→ **critics:** "subversive" and "separatist" need careful reading or can catch dissent; must satisfy **19(1)(a) and 19(2)**

OBSCENITY

1868 **Hicklin test:** obscene if it can **deprave and corrupt** susceptible minds; isolated passages can be judged

1965 **Ranjit Udeshi:** SC applied Hicklin; upheld conviction over sale of **Lady Chatterley's Lover**

2014 **Aveek Sarkar:** SC **rejected Hicklin**; **contemporary community standards**; judge the **work as a whole** in context; **mere nudity is not obscenity**

Law and balance

→ earlier **IPC 292-294**; now **BNS 294-296**; online: **IT Act ss.67 and 67A**

→ sexuality or nudity is **not automatically obscene**; balance **artistic expression** with **decency and morality**

HRA — Obscenity tests in order: **H**icklin (1868) → **R**anjit Udeshi (1965, applied it) → **A**veek Sarkar (2014, community standards). (own mnemonic)

FILM CERTIFICATION

Framework

→ cinema is protected by **19(1)(a)** subject to **19(2)**

→ **CBFC:** statutory body under the **Ministry of Information and Broadcasting**, set up under the **Cinematograph Act, 1952**; films need **prior certification** (pre-censorship)

→ **K. A. Abbas (1970):** upheld pre-censorship with safeguards because of the film's **visual and emotional impact**

→ **Rangarajan (1989):** no suppression for threats of protest; **no Heckler's Veto**

Certificate	Meaning
U	unrestricted public exhibition
UA 7+	parental guidance below 7
UA 13+	parental guidance below 13
UA 16+	parental guidance below 16
A	adults only
S	restricted to a specified profession or class

Cinematograph (Amendment) Act, 2023

→ **age-based** categories UA 7+, 13+, 16+

→ **perpetual validity** of certificates (earlier 10-year limit removed)

→ ***anti-piracy*** provisions on unauthorised recording and exhibition

→ removed the ***Centre's revisional powers under s.6(1)***, consistent with ***K. M. Shankarappa***

→ ***Cinematograph (Certification) Rules, 2024:*** online applications, transparency, priority screening

Issues

→ ***subjectivity***

→ ***paternalism*** toward adults

→ ***political influence***

→ ***chilling effect*** (cuts, delays)

→ certification should ***guide, not censor***

Current affairs (verify): the ***September 2026*** magazine reports ***New Guidelines for Film Certification 2026*** from MIB, superseding the 1991 notification, with categories ***U/A 7+, 13+, 16+, A and Specialized***. Check the exact text before quoting.

SECTION 66A, IT ACT

What it was

→ inserted by the ***IT (Amendment) Act, 2008***, in force ***2009***; punished messages that were ***grossly offensive, menacing, annoying, inconvenient or misleading***; up to ***3 years*** and fine

→ ***problems:*** ***vague terms***, ***arbitrary use*** against criticism, ***chilling effect***; mere annoyance is ***not a 19(2) ground***

Shreya Singhal v. Union of India (2015)

→ SC ***struck down s.66A*** as violating ***19(1)(a)***, not saved by 19(2). Principles: ***discussion and advocacy are protected***, only ***incitement*** tied to a 19(2) ground can be restricted

→ ***vagueness***

→ ***overbreadth***

→ ***chilling effect. 2022:*** cases still being filed; SC said ***no one can be prosecuted under 66A*** and ordered references removed from pending cases.

Significance

→ ***online speech*** is protected by 19(1)(a)

→ cannot criminalise speech for being ***annoying, inconvenient or offensive***

→ restrictions must be ***clear, reasonable, within 19(2)***

→ reaffirms ***judicial review***

Recall drill: cover and answer

Rangarajan 1989	no ban due to threatened violence; proximate link needed	Sedition in IPC year	1870
Kedar Nath 1962	s.124A upheld but limited to incitement to violence or public disorder	2022 sedition order	kept in abeyance
BNS in force	1 July 2024; s.152 replaces sedition in spirit	s.152 punishment	life or up to 7 years plus fine
Hicklin to Aveek Sarkar	depraving minds to community standards, work as a whole	CBFC under	Cinematograph Act 1952
K. A. Abbas 1970	pre-censorship upheld	Shreya Singhal 2015	s.66A struck down; vagueness, overbreadth, chilling effect

FREEDOM OF SPEECH AND EXPRESSION · SIGNIFICANCE · BALANCE · THREATS

PYQ None quoted in the handout · Fundamental Rights handout pp. 27–28

✎ *Speech has value in itself, keeps democracy accountable, builds community, drives change and the marketplace of ideas. Restrictions must be proportionate; err on the side of freedom. Threats: old laws, weak politicians, weak courts, compliant media, Heckler's Veto, pliant officials.*

WHY FREEDOM OF SPEECH MATTERS

Five reasons

→ ***Inherent value:*** a faculty unique to humans (imaginative and visual communication); ***expression of human nature***

→ ***Cornerstone of democracy:*** accountability through free media and criticism; not absolute, but society must ***tolerate unpopular views*** (Galileo, Socrates)

→ ***Enables community life:*** minorities feel they belong only if their views are heard; collective life needs ***equal worth of views***

→ ***Enables progressive change:*** women's suffrage, workers' conditions, African American voting rights; better governance through ideas and criticism

→ ***Promotes innovation: marketplace of ideas***; best ideas gain acceptance; contest refines ideas

ICC-PI — Significance: **I**nherent value · **C**ornerstone of democracy · **C**ommunity life · **P**rogress · **I**nnovation. (own mnemonic)

BALANCING FREEDOM AND RESTRICTION

Proportionality

→ freedom is ***not absolute***: it must not become a tool for mischief or for violating others' rights

→ restrictions must be ***proportionate***: only as wide as the objective needs

→ when in doubt, ***err on the side of freedom***

→ ***Example:*** banning two-wheelers to stop road accidents is ***over-restriction***; tackle the causes of accidents instead

Current affairs (verify): the ***August 2026*** magazine notes ***In Re Noise Pollution (2005)***: Art 19(1)(a) does ***not*** permit ***amplified noise*** that violates others' rights. Use it as a boundary example for speech vs others' rights.

THREATS TO FREEDOM OF SPEECH IN INDIA

Five threats

→ ***Obsolete colonial laws*** and moral standards not revised for modern times

→ ***Weakness of the political class*** in amending or repealing restrictive laws; misuse to silence dissent

→ ***Weakness of the judiciary:*** reluctance to strike down or narrow such laws; sedition shows a law can ***chill speech even with few convictions***; relief comes after long litigation

→ ***Weakness of media and publishers:*** aligning with government; publishers ***withdrawing books under threat*** = ***Heckler's Veto***

→ ***Moral corruption of officials:*** carrying out orders under political pressure despite weak charges

OPJMO — Threats: **O**bsolete laws · **P**oliticians · **J**udiciary · **M**edia and publishers · **O**fficials. (own mnemonic)

Heckler's Veto: the threat of disruption or violence by one group effectively silences a speaker. The remedy (Rangarajan): the State must protect lawful expression and keep order, not give in to the heckler.

Recall drill: cover and answer

Five reasons FoSE matters	ICC-PI	Marketplace of ideas means	free contest of ideas refines them
Proportionality example	two-wheeler ban for accidents is over-restriction	Five threats	OPJMO
Heckler's Veto	threat of disruption silences speech	Noise pollution case 2005 (verify)	amplified noise not protected by 19(1)(a)

FREEDOM OF THE PRESS · ROLE OF MEDIA · ISSUES · TRIAL BY MEDIA

PYQ None quoted in the handout · Fundamental Rights handout pp. 29–32

✎ *Press freedom is inferred from Art 19(1)(a). Media is a civic forum and watchdog; Sen's China example shows what censorship costs. Problems: ownership concentration, paid news, conflicts of interest, trial by media (Sahara, postponement), TRP-driven sensationalism.*

CONSTITUTIONAL BASIS AND ROLE

Basis

→ press freedom is ***not named*** in the Constitution; it is ***inferred from Art 19(1)(a)***

→ ***NCRWC*** recommended explicit recognition in Art 19

Role of media in a democracy

→ ***civic forum:*** a "parliament of citizens"; public discussion, debate, criticism

→ ***watchdog:*** speaks truth to power; more press freedom, ***more accountability***; modern democracy is ***mediated***

→ ***adversarial relationship*** (slightly) with government is a ***sign of health***

→ ***protective:*** voice to the voiceless, helps welfare of weaker sections

→ ***information:*** censorship leaves citizens, then government, less informed and weakens feedback

→ ***value creation:*** brings attention to disasters and neglected issues (health facilities, malnutrition, road accidents, schools) and shapes what the government treats as important

CWAPIV — Roles: **C**ivic forum · **W**atchdog · **A**dversarial · **P**rotective · **I**nformation · **V**alue-setting. (own mnemonic)

Amartya Sen's example: in the ***Great Chinese Famine (1958–61)***, censorship meant even officials lacked reliable information on the crisis; absence of free information and criticism worsened the disaster. A free press helps governments see and answer suffering.

ISSUES AND CHALLENGES

Press freedom in India

→ many registered publications and channels suggest a vibrant space, but ***numbers do not prove freedom***

→ ***World Press Freedom Index (RSF)*** ranks countries; India's ranking raises questions on journalist safety, political pressure, institutional conditions. Rank figures in the lecture are ***year-specific***, not the present rank (check current RSF)

→ readership and viewership concentrated in a few entities; easier for the powerful to influence

Concentration of ownership

→ owners have other businesses and dealings with government (contracts, approvals) and links with parties

→ ***Murdochisation:*** one entity dominating ***print, TV and radio***; reduces diversity; limits on ***cross-media concentration*** argued for

Media corruption

→ ***Paid news:*** payment-influenced content presented as news; candidates and outlets collude; small papers vulnerable; raises election-expenditure questions; ***not a separate offence*** under the ***RPA 1951*** by that label, though conduct may fall under other laws

→ ***Conflict of interest:*** outlets holding ***equity in businesses*** they then cover

TRIAL BY MEDIA

Meaning and rights hit

→ media acts as ***judge, jury and executioner***: a ***Kangaroo Court*** (body without legitimate authority acting as a court); Khap Panchayats criticised similarly

→ ***reputation*** (Art 21 dignity): guilty before the verdict

→ ***privacy:*** excessive reporting of personal details

→ ***fair trial:*** pressure on the judiciary, loss of ***presumption of innocence***, interference with administration of justice

Sahara India Real Estate v. SEBI (2012): ***Doctrine of Postponement.*** If immediate reporting creates a ***real and substantial risk*** to a fair trial, the court may order a ***temporary postponement***, with strict safeguards: ***necessary and proportionate.*** ***Criticism:*** may deny the ***right to know***, does not curb ***frivolous media behaviour***, can shield influential accused; balance fair trial with public information.

COMMERCIALISATION OF MEDIA

Advertisement-driven journalism

→ "***Good news is no news***": chase for ads and ***TRPs*** fuels sensationalism

→ the ***Chinese Wall*** between editorial and marketing has been ***breached*** (it should stop commercial pressure on editorial decisions)

Sensationalism: five forms

→ ***exclusive stories*** chased for TRPs

→ ***breaking news*** on unfinished stories: inaccuracy

→ ***commodification:*** serious news packaged as entertainment

→ ***yellow journalism:*** little researched content, ***sensational headlines***

→ ***gonzo journalism:*** reporter becomes part of the story; deliberately subjective, ***not necessarily unethical***

→ ***post-truth:*** emotion and belief outweigh objective facts

EBCYGP — Sensationalism: **E**xclusives · **B**reaking news · **C**ommodification · **Y**ellow · **G**onzo · **P**ost-truth. (own mnemonic)

Poor quality of journalism

→ no uniform professional licence; course quality varies

→ need better ***education and training standards without hurting independence***

Recall drill: cover and answer

Press freedom basis	inferred from Art 19(1)(a)	NCRWC recommendation	explicit press freedom in Art 19
Sen's example	Great Chinese Famine 1958-61	Murdochisation	one entity dominating print, TV, radio
Paid news in RPA 1951	not a separate offence by that label	Kangaroo court	acts as court without legitimate authority
Sahara v. SEBI 2012	doctrine of postponement	Chinese Wall	editorial separate from marketing
Gonzo journalism	subjective, reporter involved, not necessarily unethical		

REGULATION OF MEDIA · PRESS COUNCIL · FDI · IT RULES, 2021

PYQ None quoted in the handout · Fundamental Rights handout pp. 32–37

✎ *Self-regulation is toothless (Katju); government regulation is risky; the ideal is independent external regulation. Know the bodies, the Press Council make-up, FDI limits, the Programme Code, and the IT Rules 2021 (intermediaries, SSMIs, traceability, three-tier grievance, OTT).*

NEED AND BODIES

Why independent regulation

→ media is meant to be ***adversarial***, so government regulation can harm media and society

→ self-regulation is the ideal on paper, but ***Justice Markandey Katju***: self-regulation equals ***no regulation***

→ so ***external regulation independent of government*** is more prudent

→ ***Leveson Inquiry (UK, 2012)*** after the ***News of the World phone-hacking*** scandal backed stronger independent press regulation

Body	Scope
BCCC (Broadcasting Content Complaints Council)	self-regulation of ***non-news*** broadcasting content
NBDSA (News Broadcasting and Digital Standards Authority, earlier NBSA)	self-regulation of ***news broadcasting***
ASCI (Advertising Standards Council of India)	self-regulation of ***advertising*** standards

Critics call self-regulatory bodies ***toothless***: weak enforcement powers.

PRESS COUNCIL OF INDIA

Composition

→ statutory body under the ***Press Council Act, 1978***; ***Chairperson + 28 members***; chair traditionally a ***retired SC judge***

→ ***20*** represent the press · ***5*** from Parliament · ***1*** Bar Council of India · ***1*** UGC · ***1*** Sahitya Akademi

20-5-1-1-1 — PCI 28: ***20*** press + ***5*** Parliament + one each from ***Bar Council, UGC, Sahitya Akademi*** (20+5+3 = 28). (own mnemonic)

Functions and limits

→ two functions: ***preserve press freedom*** and ***maintain standards and ethics*** of journalism

→ scope mainly ***newspapers and news agencies***; cannot directly regulate ***TV and online***; limited enforcement, so demands for stronger comprehensive regulation

FDI IN NEWS MEDIA

Category	FDI limit	Route
Print (news and current affairs)	***26%***	Government approval
Digital news media (specified activities)	***26%***	Government approval
TV news and current affairs channels	***49%***	Government approval

Case for liberalising

→ ***First Press Commission (1955)*** feared excessive foreign control

→ but print still has ***monopolies and concentration***

→ more investment could help ***small newspapers survive***, with ***editorial control kept domestic***

GOVERNMENT SUPPRESSION OF MEDIA

Pressure routes

→ legislation, executive action, ***licensing, advertising policy***, regulatory pressure

Illustrations

→ ***Yakub Memon coverage (2015):*** notices reportedly sent to ***ABP News, Aaj Tak, NDTV*** under the ***Programme Code*** of the ***Cable Television Networks Rules, 1994***

→ ***Programme Code bars:*** offences to good taste or decency · obscene or defamatory content · falsehoods, innuendoes, half-truths · content inciting ***violence or public disorder*** · content affecting the ***integrity of the judiciary. Criticism:*** vague words allow arbitrary use

→ ***denial of government advertising*** to particular outlets: indirect pressure on press freedom

DIGITAL NEWS AND THE IT RULES, 2021

Why digital news is hard to regulate

→ internet keeps ***evolving***; fixed classes can force structures

→ ***convergence:*** TV channels also online

→ ***foreign ownership*** in some platforms

→ ***borderless:*** news in the USA is read in India

→ ***platforms*** (Google, Facebook) distribute news: publisher vs intermediary vs distributor

Scope

→ ***IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021***, under the ***IT Act, 2000***

→ ***intermediary:*** receives, stores or transmits records for another (Facebook, WhatsApp, YouTube, Instagram); ***digital news and OTT publishers are not automatically intermediaries***

→ ***reasons:*** fake news · hate speech and security threats · abuse · incitement · ***morphed pictures of women*** · defamation. ***Tehseen Poonawalla (2018)*** (mob lynching guidelines; curb explosive messages) is part of the backdrop

Due diligence by intermediaries

→ ***inform users*** of rules, privacy policy, user agreement

→ ***act on lawful orders*** to remove or disable unlawful content

→ ***retain information*** for prescribed periods (***180-day*** requirements in defined cases, not for every deleted item)

→ ***grievance redressal*** mechanism

Significant Social Media Intermediaries (SSMI)

→ threshold originally ***50 lakh registered users*** in India

→ extra duties: ***Chief Compliance Officer*** · ***Resident Grievance Officer*** · ***Nodal Contact Person*** (24x7 with law enforcement) · ***monthly compliance report***

CRNM — SSMI four: **C**hief compliance officer · **R**esident grievance officer · **N**odal person · **M**onthly report. (own mnemonic)

First originator (messaging SSMIs)

→ must enable identification of the ***first originator*** on a ***judicial or authorised government order***, for serious offences (sovereignty, security, public order, sexual violence)

→ ***concerns:*** breaks ***end-to-end encryption***; ***privacy (Art 21)*** needs legality, necessity, proportionality; security and business interests

Tier	Grievance mechanism for digital publishers
1. Publisher	appoint a ***Grievance Redressal Officer***; resolve within the prescribed period (originally ***15 days***)
2. Self-regulatory body	of publishers, if complainant is not satisfied

3. Government oversight	**Central Government and an Inter-Departmental Committee**; criticised as **government-run final oversight**

Other provisions

→ **emergency blocking** directions under the specified process: censorship worries
→ **OTT classification: U, U/A 7+, 13+, 16+, A**; **parental controls** and **age verification** for adult content
→ **code of ethics:** digital news publishers follow the **PCI Norms of Journalistic Conduct** and the **Programme Code** (rules built for old media on new platforms)

ISSUES WITH THE IT RULES, 2021

Eight issues

→ **Safe harbour (Section 79, IT Act):** conditional protection from liability for third-party content; lost if due diligence is not followed
→ **Encryption and privacy:** traceability may risk mass surveillance
→ **Limited consultation** across publishers, tech firms, civil society, users
→ **Excessive delegated legislation:** rules cannot go beyond the parent Act; a fuller statute may be needed
→ **Unreasonable restrictions and censorship:** test against 19(1)(a) and 19(2)
→ **Compliance burden**, especially for small digital outlets
→ **Legacy media** online may face overlapping print, TV and digital rules

SELDUCL — Issues: **S**afe harbour · **E**ncryption · **L**imited consultation · **D**elegated legislation · **U**nreasonable restriction · **C**ompliance burden · **L**egacy media overlap. (own mnemonic)

Balance: Big Tech shapes public discourse and the State must protect security and order, so regulation within constitutional limits is valid; but it must respect **privacy and free speech**. The digital space is still evolving.

Recall drill: cover and answer

Katju on self-regulation	equal to no regulation	Leveson Inquiry	UK 2012 after phone hacking
PCI Act and size	1978; chair plus 28 members	PCI 28 members	20 press, 5 Parliament, 1 each Bar Council, UGC, Sahitya Akademi
FDI print / digital / TV news	26 / 26 / 49 per cent, government route	Programme Code under	Cable Television Networks Rules, 1994
IT Rules 2021 SSMI threshold	50 lakh users	SSMI four officers	CRNM
Three tiers	publisher, self-regulatory body, government committee	Section 79	safe harbour for intermediaries

RIGHT TO PROTEST

PYQ None quoted in the handout · Fundamental Rights handout pp. 37–38

✎ *Protest is derived from Arts 19(1)(a), (b), (c) and linked to Art 21. It is subject to reasonable restrictions. Amit Sahni (Shaheen Bagh) says no indefinite blocking of roads;*

Himat Lal says no unrestricted right but no blanket ban; Rangarajan needs a proximate link to harm.

BASIS AND LIMITS

Constitutional basis

→ derived mainly from **Art 19(1)(a)** (speech) and **19(1)(b)** (assembly); connected to **19(1)(c)** (association)

→ protests concern **life, livelihood, dignity**, so also linked to **Art 21**

→ since parent rights are subject to **reasonable restrictions**, so is protest; the task is balancing **peaceful protest** with **public order** and others' rights

AAA-21 — Protest roots: Art 19(1)(a) speech · 19(1)(**b**) assembly · 19(1)(c) association, plus Art 21. (own mnemonic)

LANDMARK CASES

Case	Held
Himat Lal K. Shah v. Commissioner of Police (1973)	assembly right is **not an unrestricted right to protest anywhere, any way**; State may **regulate meetings and processions**, but **no general or arbitrary ban** on peaceful assemblies in all public places
S. Rangarajan (1989)	expression cannot be suppressed on **illusory, imaginary or remote** threats to public order; need a **proximate connection** with anticipated harm
Amit Sahni v. Commissioner of Police (2020) (Shaheen Bagh)	protest must be balanced with public order and others' rights; **no indefinite occupation or blockage of public roads**; State may regulate **place and manner**

Criticism of Amit Sahni

→ **disruption is natural** to many protests; society must show **reasonable tolerance** of inconvenience, else the right becomes **hollow**

→ but **public inconvenience is not an extra ground** in Art 19(3); any restriction must be justified within the Constitution and law

Balance: assembly is a Fundamental Right; restrict only within constitutional limits; protect **democratic mobilisation and dissent** as well as public order.

CURRENT AFFAIRS TO ADD (VERIFY)

July 2026 magazine, "Right to Protest": the **NEET protest march**; the SC observed that **peaceful protest is guaranteed**. Cases listed there: **Ramlila Maidan (2012)**, **MKSS (2018)** (designated protest sites in Delhi), **Anuradha Bhasin** (internet access), **Shaheen Bagh (2020)**. Prelims fodder: **Art 19 is for citizens only**; **"public order" was inserted by the First Amendment, 1951**.

September 2026 magazine: the SC used **Art 142** to **quash FIRs** against students in the **NEET-UG 2026 protest**. PYQ 2019 on Art 142 and PYQs on free speech, hate speech and films are noted there. Check the order before quoting.

HRA-P — Case order: Himat Lal (1973) → Rangarajan (1989) → Amit Sahni (2020). (own mnemonic)

Recall drill: cover and answer

Protest rooted in	Art 19(1)(a), (b), (c) and Art 21	Himat Lal 1973	regulate, but no blanket ban on assemblies
Rangarajan 1989	proximate link needed; no illusory threats	Amit Sahni 2020	Shaheen Bagh; no indefinite road blockage
Critics say	tolerate inconvenience or the right is hollow	Art 19 holders	citizens only
First Amendment 1951 added	"public order" (verify)		

⚖ ARTICLE 19(1)(g) · DANCE BARS · ONLINE GAMING ACT 2025 ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 3-4

✎ *Citizens may practise any trade or profession, but Art 19(6) lets the State restrict it in the public interest, prescribe qualifications, or take over a trade. Dance bars show a blanket ban is disproportionate; online gaming shows skill vs chance and Union vs State power.*

ARTICLE 19(1)(g) AND 19(6)

Right and restrictions

→ **19(1)(g):** practise any **profession**, carry on any **occupation, trade or business**

→ **19(6):** reasonable restrictions in the **interests of the general public**

→ **State monopoly:** partial or complete State monopoly in a trade, business, industry or service

→ **professional qualifications:** State may prescribe minimum technical or professional qualifications

→ **public-interest limits** on trades like **liquor and arms**

State of Maharashtra v. Indian Hotel and Restaurants Association (2013): SC overturned the **Mumbai dance-bar ban** (adverse moral and social effects). Many women depend on the work for **livelihood. Regulation is fine, a discriminatory or disproportionate blanket ban is not.**

SKILL-BASED GAMING AND ONLINE GAMING

Framework

→ links **profession, public morality, technology and federalism**

→ **Art 19(1)(g)** and **19(6)**; **Entry 34, State List:** betting and gambling is a **State subject**

→ **R.M.D. Chamarbaugwala (1957):** competitions of **substantial skill** are not gambling; rummy and some fantasy formats were treated as **games of skill**; pure chance gets no protection

→ **Karnataka and Tamil Nadu High Courts** struck down blanket bans on online skill games as **disproportionate**; the position then changed with the **2025 central law**

Promotion and Regulation of Online Gaming Act, 2025 (verify)

→ national framework to **prohibit online money games** and promote **e-sports and online social games**

→ **three categories: e-sports · online social games** (no prohibited stakes) · **online money games** (money stakes for monetary gain, **whether skill or chance**)

→ **bans** offering, advertising and facilitating money games; **banks and payment gateways** cannot process them; an **Authority on Online Gaming**; **blocking** powers

→ **penalties:** offering: up to **3 years and ₹1 crore**; advertising: up to **2 years and ₹50 lakh**; search, seizure, corporate liability

Why the Act	Concerns
addiction and financial loss	**overbroad ban** may push users to offshore sites
youth vulnerability	**federalism:** betting is a State subject
fraud, rigged algorithms	**jobs and investment** hit
money laundering	**skill vs chance:** proportionality for games once held skill-based
State-by-State fragmentation	enforcement against offshore platforms and payment channels

Way forward: strengthen enforcement against offshore platforms; promote e-sports and social gaming; get judicial clarity on ***federalism and proportionality under 19(1)(g)***.

Recall drill: cover and answer

19(1)(g) right	profession, occupation, trade or business	Dance bar case 2013	blanket ban disproportionate; regulation allowed
Betting entry	Entry 34, State List	Chamarbaugwala 1957	skill vs gambling
Three game categories 2025	e-sports, online social, online money	Money-game penalty	3 years and ₹1 crore; advertising 2 years and ₹50 lakh

⚖ ARTICLE 20 · PROTECTION IN CONVICTION · SELF-INCRIMINATION ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 4–5

✎ *Art 20 has three shields against arbitrary punishment, for citizens and non-citizens, and cannot be suspended in an Emergency. Art 20(3) bars compelled testimony: Selvi (2010) says narco, polygraph and brain mapping cannot be forced, but blood, DNA and fingerprints can be taken.*

THREE SAFEGUARDS

Clause	Protection
20(1)	***ex post facto*** criminal laws
20(2)	***double jeopardy***
20(3)	***self-incrimination***

Art 20 applies to ***citizens and non-citizens*** and ***cannot be suspended even during a National Emergency***.

EDS — Art 20: **E**x post facto · **D**ouble jeopardy · **S**elf-incrimination (in clause order). (own mnemonic)

ARTICLE 20(3): SELF-INCRIMINATION

Meaning

→ "No person ***accused of any offence*** shall be compelled to be a witness against himself"

→ protects against ***compelled testimonial evidence***; no forced incriminating statements

Scientific techniques

→ ***narcoanalysis*** (sodium pentothal) · ***polygraph*** (lie detector) · ***brain mapping***

Selvi v. State of Karnataka (2010): these tests ***cannot be forcibly administered***; involuntary use violates ***Art 20(3)*** (where applicable) and ***Art 21***. With ***voluntary and informed consent*** and safeguards they may be done, but statements are ***not automatically admissible***; material discovered through them may be admissible under evidence rules.

Physical vs testimonial

→ lawful collection of ***blood, DNA, fingerprints, specimen signatures or handwriting, identification parades*** is generally allowed without consent

→ ***Key distinction:*** 20(3) bars ***compelled testimony***, not every collection of physical or identifying evidence

Recall drill: cover and answer

Art 20 three clauses	ex post facto, double jeopardy, self-incrimination	Suspended in Emergency?	No
Applies to	citizens and non-citizens	Selvi 2010	narco, polygraph, brain mapping not forced
Allowed without consent	blood, DNA, fingerprints, handwriting		

⚖ ARTICLE 21 · GOLDEN TRIANGLE · LIVELIHOOD · HEALTH · MENSTRUAL HEALTH ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 5–7

✎ *Arts 14, 19 and 21 are the Golden Triangle. Art 21 moved from procedure established by law (Gopalan) to fair, just and reasonable procedure (Maneka), and from a negative duty to positive duties: livelihood (Olga Tellis), health, menstrual health. A "canopy" of rights.*

FOUNDATION

Golden Triangle: Arts ***14, 19, 21***. Even if other Part III rights were removed, much protection could be deduced from these three (equality, freedom, life and personal liberty).

Text and early reading

→ "No person shall be deprived of his ***life or personal liberty*** except according to ***procedure established by law***"

→ first read as protection from ***executive***, not ***legislative***, tyranny; the law's ***reasonableness*** is not mentioned

1950

A. K. Gopalan: narrow reading of personal liberty and procedure established by law

1978

Maneka Gandhi: procedure must be ***fair, just and reasonable***, not arbitrary or oppressive

Later

livelihood, health, shelter, privacy, dignity, environment, access to justice

Negative to positive obligation

→ life once meant only physical existence; the State's duty has grown from ***not interfering*** to ***protecting and preserving life*** (health, shelter, education, environment)

→ ***rights read into 21:*** dignity, livelihood, shelter · health, emergency aid, menstrual health · clean environment and climate · privacy, autonomy, reputation · fair and speedy trial, legal aid · protection from custodial violence and inhuman prison conditions · peaceful sleep

→ Art 21 is a ***canopy of rights***

LIVELIHOOD AND SHELTER

Olga Tellis v. Bombay Municipal Corporation (1985): pavement and slum dwellers evicted as encroachers. Held: ***right to life includes right to livelihood***; eviction needs ***fair and lawful procedure***. It did ***not*** create an absolute right to alternative housing. Linked ***Part III with Part IV***, bridging civil-political and socio-economic rights.

HEALTH AND MENSTRUAL HEALTH

Right to health

→ access to ***healthcare and emergency medical aid*** is part of life and dignity

→ positive duty, extent depends on ***constitutional standards, laws and resources***

Right to menstrual health

→ manage menstruation ***safely, affordably, with dignity***: clean toilets, sanitary products, medical support, no stigma

→ linked to ***life, dignity, health, education***; SC stressed sanitary products, private clean toilets and safe disposal in ***schools***

→ ***mandatory menstrual leave***: the Court left it to ***policy***, not a nationwide judicial order

Policy dilemma	*Practical solutions*
severe pain (e.g. endometriosis): no one should be forced to work through it	flexible hours, work from home
mandatory employer-paid leave may cause ***hiring bias***	clean rest rooms, private sanitation, pain relief
	school sanitary products, running water, safe disposal

Recall drill: cover and answer

Golden Triangle	Arts 14, 19, 21	Gopalan vs Maneka	narrow vs fair, just, reasonable
Olga Tellis 1985	livelihood part of life; no absolute right to alternative housing	Art 21 role shift	negative to positive obligation
Menstrual leave	left to policy by the SC		

⚖ ARTICLE 21 · CLEAN ENVIRONMENT · CLIMATE RIGHT · RANJITSINH (2024) ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 7-8

✎ *Courts read a clean environment into Art 21 and added the polluter-pays, precautionary, public-trust and sustainable-development principles. M. K. Ranjitsinh (2024) recognised a right against climate change under Arts 14 and 21 and balanced bustard conservation with renewable energy.*

CLEAN ENVIRONMENT

1986
M. C. Mehta (Oleum gas leak)*: *absolute liability

1991
Subhash Kumar v. State of Bihar*: *pollution-free water and air under Art 21

1996
Vellore Citizens' Welfare Forum*: *precautionary principle and ***polluter pays*** part of sustainable development

Four principles

→ ***polluter pays***: the polluter bears the cost

→ ***precautionary***: anticipate and prevent harm

→ ***public trust***: natural resources are held in trust by the State for the public

→ ***sustainable development***: balance growth and protection

PPPS — Environment principles: **P**olluter pays · **P**recautionary · **P**ublic trust · **S**ustainable development. (own mnemonic)

Applications

→ firecracker air pollution

→ vehicular emissions in Delhi

→ river pollution oversight by courts and tribunals

RIGHT AGAINST CLIMATE CHANGE

M. K. Ranjitsinh v. Union of India (2024): case on the ***Great Indian Bustard*** hit by ***overhead power lines*** in Rajasthan and Gujarat. Recognised a ***fundamental right against adverse effects of climate change*** under ***Arts 14 and 21***; replaced blanket line restrictions with an ***expert-driven, calibrated*** approach balancing conservation and renewable energy.

Analysis

→ ***Green vs green dilemma:*** save an endangered bird or expand clean energy

→ renewables seen as ***environmental protection***, not mere commerce

→ ***targeted protection*** on expert assessment; ***institutional humility*** (experts demarcate)

Significance and criticism

→ ***constitutionalises climate rights***; recognises impact on health, food, water, dignity; ***climate equity*** (poor hit hardest); ***positive State duties***

→ ***criticism:*** little guidance on ***enforcing*** the new right; relaxing line restrictions may ***weaken bustard protection***

Shows the Constitution as a ***living document***: Art 21 keeps expanding with new environmental challenges.

Recall drill: cover and answer

Absolute liability case	M. C. Mehta 1986, Oleum gas leak	Subhash Kumar 1991	pollution-free air and water under Art 21
Vellore 1996	precautionary and polluter pays	Ranjitsinh 2024 right	against adverse effects of climate change, Arts 14 and 21
Green vs green	bustard vs renewable energy		

RIGHT TO PRIVACY · DPDP · RIGHT TO BE FORGOTTEN · DIGITAL ACCESS

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 8–10

✎ *Privacy became a Fundamental Right in Puttaswamy (2017), overruling the older view. It can be limited only by law, for a legitimate aim, if necessary and proportionate. Know surveillance (s.69, Pegasus), DPDP Act 2023, RTI vs privacy, right to be forgotten, personality rights and digital access.*

JUDICIAL EVOLUTION

1954 / 1962

M. P. Sharma and ***Kharak Singh:*** no general right to privacy; but Kharak Singh struck ***night visits*** by police

1997

PUCL: phone tapping violates privacy (Art 21) and 19(1)(a); safeguards: lawful authorisation, limited duration, review

2017

K. S. Puttaswamy: nine judges, unanimous: privacy is a Fundamental Right under ***Arts 14, 19, 21***

Puttaswamy holdings

→ ***personal autonomy:*** body, identity, food, relationships, sexual orientation

→ ***informational privacy:*** against unjustified collection, use, disclosure of data

→ ***dignity and equality:*** belongs to everyone, ***not an elitist privilege***

→ ***overruled*** earlier denial and the ***ADM Jabalpur (1976)*** position; base for data protection, LGBTQ+ rights and limits on surveillance

Restrictions: four tests

→ ***legality*** (basis in law) · ***legitimate aim*** · ***necessity*** · ***proportionality***

LLNP — Privacy test: **L**egality · **L**egitimate aim · **N**ecessity · **P**roportionality. (own mnemonic)

CONTEMPORARY ISSUES

Surveillance

→ **s.69, IT Act 2000:** interception, monitoring, decryption on specified grounds with safeguards

→ **Pegasus** raised surveillance, accountability and chilling-effect worries; surveillance must be **lawful, necessary, proportionate, overseen**

DPDP Act, 2023

→ protects digital personal data while allowing lawful processing; **consent**, data security, individual rights, grievance redressal; **DPDP Rules, 2025** give phased implementation

→ **concerns: broad State exemptions**, weak independent oversight

→ **RTI link: s.8(1)(j) RTI Act** personal-information exemption; the DPDP Act amends it: privacy vs transparency

International frame

→ **Art 17 ICCPR** (no arbitrary interference with privacy) · **Justice A. P. Shah Committee (2012)** on comprehensive privacy protection

RIGHT TO BE FORGOTTEN

Idea and status

→ seek **removal, masking or restricted access** to personal information whose public availability is no longer justified; a person should not be stigmatised for life by irrelevant past data

→ several **High Courts** examined it under informational privacy, dignity, reputation (de-indexing, masking identities); **not absolute**

GCPRR — Concerns: **G**lobal internet · **C**ensorship risk · **P**ublic records · **R**TI · **R**ewriting history. (own mnemonic)

Concerns spelt out

→ removed on one platform, available elsewhere

→ can suppress legitimate criticism

→ erodes completeness of public records

→ clashes with right to information

→ may rewrite history; balance privacy and rehabilitation with **expression, accountability, preserved records**

PERSONALITY RIGHTS AND DIGITAL ACCESS

Personality rights

→ protect **name, image, voice, likeness** from unauthorised commercial use; tied to privacy, reputation, publicity

→ **Anil Kapoor (2023)** and **Jackie Shroff (2024):** Delhi High Court protection

→ AI threats: **deepfakes, voice cloning**; but over-protection can hurt **satire, parody, art** (Art 19(1)(a))

2019

Faheema Shirin (Kerala HC): internet access linked to education and privacy under Art 21

2020

Anuradha Bhasin: expression and trade via the internet protected; restrictions need **legality and proportionality**; **indefinite shutdowns impermissible**

2025

Pragya Prasun and Amar Jain: digital accessibility part of right to life and dignity, esp. for persons with disabilities

Digital governance must **promote inclusion**, not create new barriers to rights. Digital exclusion can block access to ID, banking, scholarships and welfare.

Recall drill: cover and answer

Puttaswamy bench	nine judges, 2017	Overruled	ADM Jabalpur approach
Privacy test	LLNP	PUCL 1997	phone tapping safeguards
RTI exemption for personal info	section 8(1)(j)	Right to be forgotten	removal or masking when no longer justified; not absolute
Anuradha Bhasin 2020	no indefinite internet shutdown	Pragya Prasun 2025	digital accessibility part of life and dignity

PERSONAL AUTONOMY · LIFE PARTNER · MTP · LGBTQ+ RIGHTS

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 10–12

✎ *Art 21 protects the choice of partner (Hadiya), reproductive autonomy (MTP Act) and sexual and gender identity (NALSA, Navtej). Supriyo (2023) refused a right to same-sex marriage and left it to Parliament. Note the 2026 amendment to the Transgender Act and BNS dropping s.377.*

CHOICE OF PARTNER

Shafin Jahan v. Asokan K. M. (2018), Hadiya case: right to choose a ***life partner*** is protected by ***Art 21***; freedom of conscience and religion protected; neither the State nor ***patriarchal authority*** can override an adult's lawful choice.

Related

→ ***Lata Singh (2006):*** adults may marry outside caste or religion

→ ***Shakti Vahini (2018):*** measures against ***honour crimes***, protect couples

ABORTION AND REPRODUCTIVE AUTONOMY

Debate

→ woman's right over her ***body and reproductive agency*** vs State duty to protect life including ***foetal interests***; when does life begin (biology, morality, religion)

Cases

→ ***Suchita Srivastava (2009):*** reproductive choice is part of personal liberty

→ ***X v. Principal Secretary, Health (2022):*** ***unmarried women*** cannot be excluded from abortion access on marital status

MTP Act 1971 (amended 2021)	Rule
up to 20 weeks	on prescribed grounds, ***one*** registered medical practitioner
20 to 24 weeks	specified categories of women, ***two*** practitioners
beyond 24 weeks	***Medical Board*** for substantial foetal abnormalities, other recognised cases
confidentiality	identity and privacy protected

The law ***regulates when*** abortion is permitted; it is ***not an unrestricted right at any stage***. Issues: autonomy, safe treatment, foetal interests, unequal rural access.

LGBTQ+ RIGHTS (ARTS 14, 15, 16, 19, 21)

Transgender rights

→ **NALSA (2014):** transgender persons are the **Third Gender**; equality (14), non-discrimination (15, 16), expression, self-identification, dignity (19, 21); treat as **socially and educationally backward** with reservation; referred to the **Yogyakarta Principles (2006)**

→ **Transgender Persons (Protection of Rights) Act, 2019:** bars discrimination in education, jobs, health, services; **identity certificate via District Magistrate**; criticised for weak self-identification and low penalties

→ **Amendment Act, 2026** (handout; verify): **narrower definition**, **medical certification**, stronger penalty for forced assumption of transgender identity; raises **self-identification and NALSA** concerns

2009
Naz Foundation (Delhi HC): read down s.377 for consensual adult acts

2013
Suresh Kumar Koushal: SC reversed it

2018
Navtej Singh Johar: SC **decriminalised consensual same-sex acts** (violated Arts 14, 15, 19, 21); privacy, dignity, **constitutional morality over majoritarian morality**

1 Jul 2024
BNS does not retain s. 377: worry about protection against **non-consensual** acts

Marriage

→ **Arun Kumar (Madras HC, 2019):** "bride" in the Hindu Marriage Act includes a **transgender woman**

→ **Supriyo v. Union of India (2023): no general Fundamental Right to marry**; Special Marriage Act **not extended** to same-sex couples; transgender persons in heterosexual relationships can marry; dignity, autonomy, equality reaffirmed; wider recognition **left to the legislature**

NNS — LGBTQ+ case chain: **N**ALSA (2014) → **N**avtej (2018) → **S**upriyo (2023). (own mnemonic)

Recall drill: cover and answer

Hadiya case year	Shafin Jahan v. Asokan 2018	Lata Singh 2006	adults may marry outside caste or religion
MTP time limits	20 weeks one doctor; 20–24 two doctors; beyond 24 Medical Board	X v. Principal Secretary 2022	unmarried women included
NALSA 2014	Third Gender, reservation as backward class	Navtej 2018	consensual same-sex acts decriminalised
Supriyo 2023	no right to same-sex marriage; legislature to decide	BNS and s.377	not retained

⚖ RIGHT TO DIE · SUICIDE · EUTHANASIA · LIVING WILL ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 12–14

✎ Art 21 gives a right to die with dignity in recognised end-of-life situations, not a right to end life at will (Gian Kaur). Attempted suicide is now treated as a mental-health matter.

Passive euthanasia and living wills were recognised in Aruna Shanbaug and Common Cause; Harish Rana (2026) covers withdrawing nutrition.

SUICIDE AND DECRIMINALISATION

Why life is different

→ we can speak or not speak, move or not move; but ***death is irreversible***, so the logic does not carry over directly

Legal position

→ ***IPC s.309*** punished an unsuccessful attempt

→ ***Mental Healthcare Act, 2017, s.115: presumption of severe stress***; care, treatment, rehabilitation

→ ***BNS s.226:*** only an attempt ***to compel or restrain a public servant***; the general s.309 offence is ***not retained***

For decriminalisation

→ ***compassion***

→ odd to punish an attempt but not the act

→ encourages treatment

→ failure of social support

→ ***golden hour:*** fear of case delays aid

→ global trend to care

Against

→ ***social consequences*** for family and society

→ ***State duty*** to protect life

Gian Kaur v. State of Punjab (1996): upheld then-s.309; ***right to life does not include a right to die***; distinguished ending life from ***dignity in the natural process of dying. Law Commission:*** 42nd Report (1971) and 210th Report (2008) recommended repeal.

EUTHANASIA

Type	Meaning
Active	direct act, e.g. lethal drug, causes death
Passive	withholding or withdrawing life-sustaining treatment in legally recognised cases
Voluntary	patient's informed wish
Non-voluntary	patient cannot decide; legal decision process needed
Involuntary	against the patient's wishes

For

→ ends suffering

→ informal withdrawals already happen

→ financial burden

→ scarce ICU resources

Against

→ medical ethics (duty to preserve life)

→ abuse by vested interests

→ unexpected recovery

→ less research incentive

→ family convenience over patient interest

2011
Aruna Shanbaug: passive euthanasia allowed under strict conditions; High Court oversight and medical opinion

2016
Medical Treatment of Terminally Ill Patients Bill: ***not enacted***

2018
Common Cause: right to die with dignity part of Art 21; passive euthanasia and ***Advance Medical Directives (living wills)*** recognised; no general right to end life

2023
Modified Common Cause guidelines: simpler procedure, revised medical boards, ***no routine High Court approval***

2026
Harish Rana: Clinically Assisted Nutrition and Hydration (CANH) can be medical treatment capable of withdrawal; stress on best interests, medical opinion, family consultation, safeguards (verify)

Living will: a competent adult records wishes on future life-sustaining treatment if they lose capacity.
Key distinction: Art 21 protects dying with dignity in recognised end-of-life situations, ***not*** an unrestricted right to end life.

Recall drill: cover and answer

Mental Healthcare Act section	115, presumption of severe stress	BNS section on attempt	226, only to compel a public servant
Gian Kaur 1996	no right to die under Art 21	Aruna Shanbaug	2011, passive euthanasia
Common Cause 2018	dignity in dying; living wills	2023 change	no routine HC approval
Harish Rana 2026	CANH withdrawal (verify)		

⚖ SPEEDY TRIAL · LEGAL AID · UNDERTRIALS · CUSTODIAL VIOLENCE · D. K. BASU ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 14–15

✎ *Hussainara Khatoon made speedy trial and free legal aid part of Art 21. About three-quarters of prisoners are undertrials; BNSS s.479 gives early release. Sunil Batra: prisoners keep their rights. D. K. Basu laid down nine arrest safeguards against custodial violence.*

SPEEDY TRIAL AND LEGAL AID

Hussainara Khatoon v. State of Bihar (1979): undertrials jailed for years without trial. ***Speedy trial is part of Art 21***; prolonged detention without trial violates liberty; State must give ***free legal aid*** to indigent accused; led to release of many undertrials; ***the process must not become the punishment.***

Undertrial prisoners

→ accused kept in jail during investigation or trial, ***not convicted***; about ***three-fourths*** of India's prison population
→ ***reasons:*** overworked police · "***bail is the rule, jail the exception***" ignored · judicial pendency · weak prosecution · poverty and poor legal aid
→ ***BNSS s.479:*** release after ***half*** of the maximum sentence; ***one-third*** for eligible first-time offenders, with exceptions
→ ***Bhim Singh (2014):*** SC directed effective use of safeguards against long undertrial detention

OBJWP — Undertrial causes: **O**verworked police · **B**ail ignored · **J**udicial pendency · **W**eak prosecution · **P**overty. (own mnemonic)

Sunil Batra v. Delhi Administration (1978): prisoners ***keep their Fundamental Rights***; no arbitrary or inhuman treatment, torture or cruel punishment. Imprisonment limits liberty by law; it does not end ***dignity***.

CUSTODIAL VIOLENCE

Meaning and reasons

→ physical, mental or sexual abuse of persons in custody; ***not every custodial death is custodial violence***
→ ***reasons:*** overworked police · ***media and public pressure*** for quick results (forced confessions) · poor investigation tools · weak training · weak accountability

Safeguards

→ ***Art 20(3)*** · ***Art 21*** · ***Art 22***
→ ***BNSS s.53:*** medical examination of arrestee to record injuries
→ ***BNSS s.196:*** magisterial inquiry into custodial death, disappearance or rape

D. K. Basu v. State of West Bengal (1997): guidelines against arbitrary arrest and custodial violence.

#	D. K. Basu guideline
1	***police identification*** and name tags
2	***arrest memo***: date, time, witnessed and countersigned
3	***inform*** a relative, friend or nominated person
4	***police diary*** entry of arrest and person informed
5	***injury inspection*** memo with a copy
6	***medical examination*** at intervals
7	documents to ***Magistrate***
8	arrestee may ***meet a lawyer*** during interrogation (not throughout)
9	***police control room*** information

PAIPIMMLC — Nine steps: **P**olice ID · **A**rrest memo · **I**nform family · **P**olice diary · **I**njury memo · **M**edical check · **M**agistrate · **L**awyer · **C**ontrol room. (own mnemonic)

Recall drill: cover and answer

Hussainara Khatoon 1979	speedy trial and legal aid under Art 21	Undertrial share	about three-fourths of prisoners
BNSS section 479	release at half (one-third for first-time offenders)	Sunil Batra 1978	prisoners keep fundamental rights
D. K. Basu 1997	nine guidelines on arrest	BNSS 196	magisterial inquiry into custodial death

⚖ DEATH PENALTY · RAREST OF RARE · CLEMENCY · REMISSION ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 15–17

✎ *Capital punishment is constitutional but limited to the rarest of rare cases (Bachan Singh 1980, Machhi Singh 1983). Mercy lies with the President (Art 72) and Governor (Art 161). Life imprisonment normally means natural life; remission is regulated by BNSS and Sriharan (2015).*

POSITION AND ARGUMENTS

Art 21 allows deprivation of life only by a ***fair, just and reasonable*** procedure. SC upheld the death penalty but limited it by the ***Rarest of Rare*** doctrine.

For

- → ***deterrence***
- → ***retributive justice***
- → ***collective conscience*** on heinous crimes

Against

- → ***irreversible***, error kills the innocent
- → ***dignity***: cruel, inhuman
- → ***reform*** denied
- → ***class bias***: poor lack lawyers
- → deterrence ***unproven*** vs life term
- → ***extradition*** from abolitionist states; ICC does not use it

→ ***35th Report (1967)***: retain

Law Commission

→ **262nd Report (2015): abolish except terrorism and waging war**; plus police reform, witness protection, victim compensation

RAREST OF RARE

Bachan Singh v. State of Punjab (1980): upheld death penalty. **Life imprisonment is the rule, death the exception**; weigh **aggravating** (exceptional brutality) and **mitigating** factors (age, background, reform chance); **individualised sentencing**: crime and criminal.

Machhi Singh v. State of Punjab (1983): five factors

→ **manner** (brutality) · **motive** (moral depravity) · **anti-social nature** (caste hatred, bride burning) · **magnitude** (victims, scale) · **victim's vulnerability** (children, elderly)

→ proposed a **Balance Sheet approach**

MMAMV — Machhi Singh: **M**anner · **M**otive · **A**nti-social · **M**agnitude · **V**ulnerable victim. (own mnemonic)

1996
Ravji: over-weighed the crime, ignored the criminal

2009
Bariyar: Ravji inconsistent with Bachan Singh; mitigating factors restored

2012
Sangeet: criticised the mechanical balance sheet; weigh crime and criminal

Limits of the doctrine

→ **subjective** terms ("collective conscience")

→ **judge-centric:** similar crimes, different sentences

→ death sentences reversed on appeal: fairness doubts

CLEMENCY

Provisions

→ **Art 72:** President can **pardon** death sentences and use other clemency powers

→ **Art 161:** Governor can **suspend, remit, commute** death sentences but **cannot grant a full pardon** in death cases

→ both act on **aid and advice of the Council of Ministers**

Case	Held
Kehar Singh (1989)	President may re-examine evidence on mercy petitions; limited judicial review
Epuru Sudhakar (2006)	no mala fide, caste, religion, political favouritism or irrelevant considerations
Triveniben (1989)	undue delay may justify commutation
Shatrughan Chauhan (2014)	unexplained delay and serious mental illness may justify commutation; safeguards on notifying mercy rejection and execution

Clemency Board proposal

→ need: expertise, transparency, timely decisions

→ challenge: constitutional fit; binding or not

→ indicative **six-month** period, reasons for delay

REMISSION AND LIFE IMPRISONMENT

BNSS, 2023

→ **s.473** suspension and remission · **s.474** commutation · **s.475** minimum **14 years** before statutory release in specified life cases · **s.477** Central concurrence in specified cases

→ **Life imprisonment ordinarily means remainder of natural life**, not automatic release at 14 years

Union of India v. V. Sriharan (2015) (Rajiv Gandhi case): constitutional clemency is distinct from statutory remission; **Central concurrence** needed in specified cases; courts may impose **life without ordinary remission** for a fixed term over 14 years or natural life. **Later:** SC ordered release of **Perarivalan (May 2022)** and six others (Nov 2022).

Recall drill: cover and answer

Rarest of rare source	Bachan Singh 1980	Machhi Singh factors	manner, motive, anti-social, magnitude, vulnerability
262nd Report	abolish except terror and waging war	Art 161 limit	Governor cannot pardon in death cases
Shatrughan Chauhan 2014	delay and mental illness can justify commutation	BNSS 475	14 years minimum before release in specified cases
Sriharan 2015	clemency vs remission; special life term		

⚖ ARTICLE 21 · POSH · JALLIKATTU · ASSESSMENT · ARTICLE 21A ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 17-19

✎ *Vishakha led to the POSH Act 2013. Reputation is part of Art 21 (Swamy). Jallikattu balanced animal welfare and Art 29(1) culture (2023 upheld State laws). Art 21 is strong but invites overreach and weak implementation. Art 21A (86th Amendment) gives free education for 6 to 14.*

SEXUAL HARASSMENT: VISHAKHA TO POSH

Vishakha v. State of Rajasthan (1997): PIL on workplace harassment. Violates **Arts 14, 15, 19(1)(g), 21**; with no law, SC framed the **Vishakha Guidelines**, which became the base of the **POSH Act, 2013**.

POSH Act, 2013

→ **Internal Committee** mandatory for workplaces with **10 or more** employees
→ **Local Committee** where an IC is unavailable (incl. some unorganised sector)
→ time-bound inquiry; **confidentiality**
→ **concerns:** non-compliance, compromised committees, low awareness in informal and rural work

REPUTATION AND ANIMAL WELFARE

Reputation

→ **Subramanian Swamy (2016):** reputation is part of dignity under Art 21; criminal defamation upheld; balance with 19(1)(a)

Animals and Jallikattu

→ **Prevention of Cruelty to Animals Act, 1960; 2011:** bulls added to prohibited performing animals
→ **Animal Welfare Board v. A. Nagaraja (2014):** upheld bans on **Jallikattu and bullock-cart races**; animal dignity; **Art 51A(g)** compassion; shift from **anthropocentric to biocentric** view
→ **Five Freedoms:** from hunger and thirst · discomfort · pain, injury, disease · fear and distress · freedom to express normal behaviour
→ **2016** Centre notification allowed traditional bull events; **2017** Tamil Nadu law; **Art 29(1)** culture vs animal welfare

Animal Welfare Board v. Union of India (2023): five-judge bench ***upheld*** State amendments allowing ***Jallikattu (TN), Kambala (Karnataka), bullock-cart races (Maharashtra)*** with safeguards; within State competence; ***did not decide*** whether Jallikattu is an essential part of Tamil culture; no violation of Arts 14, 21, 51A(g).

CRITICAL ASSESSMENT OF ARTICLE 21

Strengths

→ from procedure to ***dignity***

→ ***positive obligations*** on State

→ protects the vulnerable through ***PIL***

→ a ***living document***

Concerns

→ ***judicial overreach***

→ weak implementation (resources, governance)

→ balancing liberty and public interest

ARTICLE 21A: RIGHT TO EDUCATION

Provision and features

→ "State shall provide ***free and compulsory education*** to all children aged ***six to fourteen***" as the State may by law determine

→ ***86th Amendment Act, 2002***; operational ***1 April 2010*** with the ***RTE Act, 2009***; needs a statute

→ ***NCRWC*** idea: extend to ***6–18*** for SCs, STs, girls (handout note)

→ ***Art 45*** (DPSP, not justiciable) now directs ***early childhood care and education for under-6s***; 21A covers elementary education

Recall drill: cover and answer

Vishakha 1997	harassment guidelines; POSH Act 2013	Internal Committee threshold	10 or more employees
Nagaraja 2014	Jallikattu ban upheld; biocentric view	2023 Jallikattu case	State amendments upheld by five judges
Art 21A inserted by	86th Amendment 2002; in force 1 April 2010	Art 45 now	early childhood care below six

⚖ ARTICLE 22 · ARREST SAFEGUARDS · PREVENTIVE DETENTION ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 19–22

✎ *Art 22(1)-(2) protect those arrested under ordinary law (grounds, lawyer, 24-hour Magistrate). Art 22(4)-(7) govern preventive detention: Advisory Board after three months, grounds and representation. Know the laws, the 44th Amendment never in force, and the 2026 cases.*

ORDINARY ARREST: 22(1) AND 22(2)

Rights

→ ***information*** of grounds

→ ***lawyer of choice***

→ ***produced before nearest Magistrate within 24 hours*** (excluding travel time)

→ custody beyond 24 hours needs a Magistrate's authority

ILPM — Four rights: **I**nformed · **L**awyer · **P**roduced within 24 hours · **M**agistrate authority beyond. (own mnemonic)

BNSS

→ ***s.47*** grounds and bail right · ***s.48*** inform relative or friend · ***s.58*** no detention beyond 24 hours

1994
***Joginder Kumar*:** arrest not routine, must be justified

1997
***D. K. Basu*:** arrest safeguards

2014
Arnesh Kumar*:** police must justify arrest, esp. offences up to ***seven years

2023
Pankaj Bansal*:** grounds in ***writing under PMLA

Jaskaran Jeet Singh Deol v. State of Punjab (2026) (verify): grounds in ***writing, in a language the accused understands***; violation of 22(1) makes the arrest ***unlawful*** and entitles release; ***re-arrest*** for the same offence needs ***prior judicial approval with reasons***; superior oversight, another officer to investigate, departmental action; ***High Courts may award compensation***.

Art 22(3) exceptions: enemy aliens (not every foreigner) and persons under ***preventive detention laws***.

PREVENTIVE DETENTION

	Punitive	*Preventive*
Purpose	punish after conviction	prevent anticipated harm
Basis	offence proved	material suggesting prejudicial activity
Procedure	after criminal trial	under preventive detention laws
Safeguards	ordinary criminal procedure	special constitutional safeguards

Legislative powers

→ ***Union List Entry 9*:** defence, foreign affairs, security of India

→ ***Concurrent List Entry 3*:** security of a State, public order, essential supplies and services

Safeguards 22(4)-(7)

→ ***22(4)*:** no detention beyond ***three months*** without ***Advisory Board*** (persons who are, were or are qualified to be High Court judges) finding sufficient cause

→ ***44th Amendment (1978)*** would cut it to two months but ***was never brought into force***; text still says three

→ ***22(5)*:** grounds communicated ***as soon as may be***; earliest chance of ***representation***; ***22(6)*:** facts may be withheld in ***public interest***

→ ***22(7)*:** Parliament may fix cases beyond three months without a Board, maximum periods, Board procedure

ABRP — Safeguards: **A**dvisory Board (3 months) · **B**asis (grounds) communicated · **R**epresentation · **P**arliament fixes limits. (own mnemonic)

Issues and NCRWC

→ no fixed time for giving grounds

→ broad ***public-interest secrecy***

→ Board of merely "qualified" persons

→ subjective satisfaction

→ ***NCRWC*:** only ***sitting High Court judges*** on Boards; cap at ***six months***; fixed time limits for grounds

Law	*Status*
Preventive Detention Act, 1950	expired 1969
MISA, 1971	repealed 1978
COFEPOSA, 1974	in force
National Security Act, 1980	in force
PBM and Essential Commodities Act, 1980	in force

UAPA (s.43D(5) bail limits) and ***PMLA*** raise arrest and bail concerns but are ***not*** ordinary preventive detention laws under 22(4)-(7).

Judicial safeguards

→ ***Rekha (2011)***: not a routine police shortcut; ordinary law first; real need shown even if already in jail

→ ***Ameena Begum (2023)***: ***public order*** differs from law and order; relevant material with ***rational probative value***

→ ***Mulla Afroz v. Union of India (2026)*** (verify): under ***NSA***, a ***police confession alone*** cannot justify detention; detention must address ***future threats***, not punish past offences; ordinary process cannot be bypassed; order quashed, ***₹10 lakh costs*** on Uttar Pradesh

Critique

→ liberty lost without conviction
→ arbitrary use against opponents and activists
→ no Art 22(1)-(2) protection
→ Art 21 still applies
→ must not bypass ordinary criminal justice

Recall drill: cover and answer

Ordinary arrest rights	ILPM	Time to Magistrate	24 hours
Arnesh Kumar 2014	police must justify arrest; up to seven years	Pankaj Bansal 2023	grounds in writing (PMLA)
22(3) exceptions	enemy aliens, preventive detainees	Advisory Board limit	three months
44th Amendment 1978 changes	two months, never in force	Entry for preventive detention	Union List 9 and Concurrent List 3
NCRWC cap	six months	Laws in force	COFEPOSA, NSA, PBM Act

RIGHT AGAINST EXPLOITATION · ARTICLES 23-24 · SEX WORK · CHILD LABOUR

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 22-26

✎ *Arts 23 and 24 bind both the State and private persons and cover citizens and non-citizens. PUDR and Bandhua Mukti Morcha widened forced labour. Buddhadev Karmaskar (2022) gave sex workers equal protection. The 2016 child-labour law bans work under 14, with family and entertainment exceptions.*

ARTICLE 23

Arts 23-24 are available to ***citizens and non-citizens*** and are enforceable against the ***State and private individuals***.

Provision

→ ***23(1)***: bans ***traffic in human beings, begar and similar forced labour***; punishable by law

→ ***23(2)***: State may impose ***compulsory service for public purposes*** without discrimination only on religion, race, caste or class

→ the Article is a ***prohibition***; offences come from ***statutes***

Judicial interpretation

→ ***Begar***: unpaid service by coercion; ***forced labour***: work against free will through physical, economic or other pressure

→ ***PUDR v. Union of India (1982)***: pay ***below minimum wage*** can be forced labour; ***economic compulsion*** counts; protects workers against public and private employers

→ ***Bandhua Mukti Morcha (1984)***: bonded labour; State must ***identify, release, rehabilitate***

Laws

→ ***Bonded Labour System (Abolition) Act, 1976***

→ ***Immoral Traffic (Prevention) Act (ITPA), 1956***

→ **BNS, 2023** on trafficking and exploitation

TRAFFICKING AND SEX WORK

ITPA 1956

→ prohibits **brothel keeping**, **living on earnings** of another's prostitution, **procuring or inducing**, **detaining** persons, **public solicitation**

→ **voluntary adult sex work is not itself an offence**; trafficking, exploitation, brothel activity and solicitation remain punishable

→ trafficking (recruitment, transport, harbouring, receipt by prohibited means for exploitation) must be **distinguished from voluntary adult sex work**

For legalisation / decriminalisation

→ better regulation

→ spot trafficking and coercion

→ lower STD and HIV risk

→ labour rights

→ access to justice against violence

→ remove middlemen

→ better living conditions

Against

→ may raise demand and trafficking

→ commodification of women

→ ethical concerns

→ prefer rehabilitation and livelihoods

→ poverty limits free choice

→ patriarchal police attitudes

Models cited

→ Germany, Denmark, New Zealand use different regulation or decriminalisation models

Budhadev Karmaskar v. State of West Bengal (2022): sex workers are entitled to **equal protection of law**; Art 21 dignity covers them and their children. Directions: **police must not interfere** with consenting adult sex work; take sexual-assault complaints seriously; **no physical or verbal abuse**; **protect identity** in raids; **children not separated** from mothers merely for occupation. Trafficking offences remain.

ARTICLE 24: CHILD LABOUR

Provision

→ "No child **below fourteen** shall be employed in any **factory or mine** or other **hazardous employment**"; applies to public and private employers

Child and Adolescent Labour (Prohibition and Regulation) Act, 1986

→ **original:** banned children only in listed hazardous work; permitted other work under rules: clashed with Art 21A

→ **2016 amendment:** bans work under **14 in all occupations**, with exceptions: **family enterprise** (non-hazardous, after school or in vacations) and the **audio-visual entertainment** industry (artists in ads, films, TV, sports; **not circus**)

→ new category **Adolescents (14–18)**: barred from **mines, inflammable substances or explosives, specified hazardous processes**

Issues

→ **family exception** hard to monitor

→ conflict with **education** where families need earnings

→ adolescents exposed to dangerous work outside the schedule

→ **poverty**: ban alone fails

→ enforcement: inspections, **rehabilitation and schooling** of rescued children

21A vs 24: 21A gives the right to **education (6–14)**; 24 protects against **hazardous work (under 14)**; the 2016 Act extends the statutory ban to all occupations with exceptions.

Recall drill: cover and answer

Arts 23 and 24 apply against	State and private persons	PUDR 1982	below minimum wage can be forced labour
Bandhua Mukti Morcha 1984	bonded labour release and rehabilitation	Bonded Labour Act year	1976
ITPA year	1956	Is voluntary adult sex work an offence?	not itself, under ITPA
Buddhadev Karmaskar 2022	equal protection, dignity for sex workers	Adolescent age band	14 to 18
Child labour exceptions 2016	family enterprise and audio-visual entertainment (not circus)		

ARTICLES 25-26 · CONVERSION · ESSENTIAL RELIGIOUS PRACTICES · TEMPLES

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 26-30

✎ *Art 25 protects conscience and the right to profess, practise and propagate, but propagation is not a right to convert (Stainislaus). Art 26 protects denominations. Courts use the Essential Religious Practices test, with Santhara, Sabarimala and temple control as live examples.*

FOUR ARTICLES AT A GLANCE

Art	Protects
25	freedom of conscience; ***profess, practise, propagate*** religion
26	freedom to ***manage religious affairs***
27	no tax for promoting a particular religion
28	religious instruction and worship in educational institutions

ARTICLE 25 AND CONVERSION

Art 25

→ subject to ***public order, morality, health*** and other Fundamental Rights

→ State may regulate ***economic, financial, political and other secular*** activity linked to religion and make ***welfare and reform*** laws

Rev. Stainislaus v. State of Madhya Pradesh (1977): right to ***propagate*** does ***not*** include a Fundamental Right to ***convert another person***; upheld laws against conversion by ***force, fraud or inducement.***

Criticisms

→ propagation becomes a ***hollow right***

→ religion is a matter of ***conscience***

→ ***allurement*** is hard to define

→ ***burden of proof*** on voluntariness

State laws

→ several States ban conversion by force, fraud, coercion, some inducement; some need ***notice or declaration***

→ ***Gujarat Freedom of Religion (Amendment) Act, 2021:*** linked conversion with interfaith marriage; reporting and investigation; ***Gujarat HC stayed*** parts on interfaith marriage without proof of force, fraud or allurement

→ ***Issue:*** State may stop forced conversion but not intrude on ***conscience, privacy, choice***

ARTICLE 26 AND ESSENTIAL RELIGIOUS PRACTICES

Art 26

→ denominations may ***establish and maintain institutions***, ***manage religious affairs***, and ***own and administer property*** as per law (26(c), (d))

ERP doctrine (Shirur Mutt, 1954)

→ is it ***essential or integral*** to the religion? within protected religious affairs? subject to ***public order, morality, health, other rights***? religious or really a ***secular*** activity the State can regulate?

EPSR — ERP test: **E**ssential part? · **P**rotected sphere? · **S**ubject to limits? · **R**eligious or secular? (own mnemonic)

Issues with ERP

→ courts lack ***theological competence***

→ may ***privilege*** some practices

→ ***black-and-white*** answers on diverse beliefs

→ reform vs autonomy; balance religious freedom, equality, constitutional morality, reform

LIVE EXAMPLES

Santhara (Nikhil Soni, 2015)

→ ***Rajasthan HC*** declared the Jain fast-to-death unlawful, not an ERP; supporters: spiritual discipline, ***not suicide***, autonomy

→ ***SC stayed*** the judgment in 2015, so the HC ban is ***not operative***

2016
Haji Ali Dargah: Bombay HC upheld women's right to enter the inner sanctum

2016
Shani Shingnapur: Bombay HC stressed women's access; women entered

2018
Sabarimala: SC ***4:1*** held exclusion of women of menstruating age unconstitutional

2019
review: larger questions on religious freedom and ERP ***referred to a larger Bench***

2026
nine-judge bench heard the reference; ***reserved judgment May 2026*** (verify)

Four competing dimensions

→ individual vs State

→ individual vs individual

→ group vs State

→ State regulation in public interest

Loudspeakers and Azaan (Allahabad HC, 2020)

→ Azaan is religiously significant but ***loudspeakers are not essential***; Azaan by human voice continues; loudspeakers can be ***regulated for noise pollution***

RELIGIOUS PROPERTY AND TEMPLE MANAGEMENT

Shirur Mutt principles

→ ***religious autonomy*** in protected affairs

→ State may regulate ***economic, financial, administrative*** activity

→ donations, accounts, property can be regulated

→ but no excessive interference (judicial review)

For regulation	Against excess regulation
financial transparency and accountability	weakens religious autonomy
stops misuse of donations and property	bureaucratisation, political interference
protects devotees, promotes reform	excessive State control

Models and cases

→ ***SGPC:*** historic Gurdwaras under the ***Sikh Gurdwaras Act, 1925***, with elected community participation

→ ***Char Dham Devasthanam Act, 2019*** (Uttarakhand): board over major shrines; ***repealed 2021*** after opposition

→ ***Sree Padmanabhaswamy (2020):*** SC upheld ***Travancore Royal Family's*** traditional management with court-set arrangement

→ temples with different arrangements: Tirupati, Jagannath, Vaishno Devi, Badrinath, Kedarnath

Property

→ ***26(c), (d)*** own and administer property per law

→ ***Art 300A:*** no deprivation of property except by authority of law

→ religious property is ***not immune*** from lawful acquisition for public purposes, but must respect religious character

Recall drill: cover and answer

Stainislaus 1977	propagation is not a right to convert	ERP doctrine origin	Shirur Mutt 1954
Santhara 2015	Rajasthan HC banned; SC stayed	Sabarimala 2018	4:1, exclusion unconstitutional
Sabarimala reference	nine judges, reserved May 2026 (verify)	Loudspeaker ruling 2020	not essential to Azaan; regulate noise
SGPC law	Sikh Gurdwaras Act 1925	Char Dham Act	2019, repealed 2021
Property protection article	Art 300A		

ARTICLES 27-28 · SECULARISM · COMMUNALISM

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 30-33

✎ *Art 27 bars taxes that promote a religion; Art 28 bars religious instruction in wholly State-funded schools. India follows principled distance, not strict separation. Communalism, narrow secularism and weak institutions threaten it; the cure is acceptance, scientific temper, rule of law and inclusive development.*

ARTICLES 27 AND 28

Art 27

→ no one compelled to pay ***taxes*** whose proceeds go to promote a ***particular religion***

→ a ***regulatory fee*** for administering religious institutions is not automatically barred

Institution (Art 28)	***Religious instruction***
wholly State-funded	prohibited, subject to 28(2)
State-administered but set up under a religious endowment or trust	permitted where the trust requires it
State-aided or recognised	permitted, but ***no compulsion*** without prescribed consent (28(3))

Education vs instruction

→ ***Aruna Roy (2002):*** ***religious education*** (about religions, philosophy, ethics) is not prohibited ***religious instruction*** (promoting adherence to one religion)

→ ***D. A. V. College (1971):*** teaching the life and teachings of ***Guru Nanak*** is not automatically prohibited instruction

Against compulsory prayers

→ freedom of conscience

→ Art 28

→ scientific temper

For

→ ethical values

→ Indian culture

→ value-based education

Way forward: inclusive, ***voluntary***, value-based practice without imposing one community's beliefs.

SECULARISM

Meaning

→ ***George Jacob Holyoake*** popularised the term

→ State not controlled by religion · freedom to follow, change or not follow a religion · no discrimination on religion

Indian model

→ "***Secular***" added to the Preamble by the ***42nd Amendment, 1976***; spirit present from the start

→ not strict separation: ***Principled Distance*** (***Rajeev Bhargava***): neither hostile to nor merged with religion; engages for welfare, equality, reform

→ features: ***no theocracy*** · religious freedom · equality of religions · ***principled intervention*** · protection of diversity

→ basis: ***Preamble, Arts 14-16, 25-28, 29-30, SIA***

Cases

→ ***S. R. Bommai (1994):*** secularism is part of the ***Basic Structure***

→ ***Balram Singh (2024):*** rejected challenges to "***Socialist***" ***and*** "***Secular***" in the Preamble

Country	Model
India	principled distance, equal freedom, intervention for reform
USA	constitutional ***separation of Church and State***
France	***laïcité***: secular public institutions, limits on public religious display (response to Church power)
UK	***established Church*** with broad religious freedom

Why secularism matters

→ ***J. S. Mill:*** harm principle, individual freedom

→ ***John Rawls:*** veil of ignorance, fairness

→ ***peace and harmony***

→ ***scientific temper and reform***

→ ***democracy***: equal participation

IFPMD — Importance: **I**ndividual freedom (Mill) · **F**airness (Rawls) · **P**eace · **M**odernity · **D**emocracy. (own mnemonic)

COMMUNALISM

Meaning and types

→ using religious identity to create ***divisions and competing political interests***; treats communities as ***homogeneous and conflicting***

→ ***majority communalism*** (may pose as nationalism) and ***minority communalism*** (separatism, polarisation); both threaten secularism and integration

Challenges to secularism

→ ***narrow conception:*** State-centric, tolerance not acceptance, ignores intra-religious (caste, sect) divides

→ ***extreme religiosity and polarisation:*** ritual and costume differences; mobilisation on religious identity; demonisation, mob violence

→ ***failure of institutions:*** family, education, political parties

→ ***weak law:*** no single Central law on communal violence, prevention, rehabilitation, compensation

→ ***developmental imbalances:*** insecurity from unequal opportunity

NEFLD — Challenges: **N**arrow concept · **E**xtreme religiosity · **F**ailing institutions · **L**aw gaps · **D**evelopment gaps. (own mnemonic)

Sachar Committee (2006): documented Muslims' disadvantages in ***education, employment, credit, public-sector representation***; urged equitable development. ***Amartya Sen:*** people have ***multiple identities***; a ***singular identity*** breeds hostility and blocks cooperation.

Measures

→ ***acceptance over tolerance***
→ ***scientific temper*** and constitutional morality
→ ***rule of law*** against violence and discrimination
→ ***inclusive development***
→ ***constructive social work*** like Gandhi's

Recall drill: cover and answer

Art 27	no tax to promote a religion	Art 28 fully State-funded	no religious instruction
Aruna Roy 2002	religious education is not religious instruction	Who popularised secularism	George Jacob Holyoake
"Secular" added by	42nd Amendment 1976	Indian secularism term	principled distance, Rajeev Bhargava
Bommai 1994	secularism is basic structure	Balram Singh 2024	Socialist and Secular words upheld
Sachar Committee	2006	Sen on identity	multiple identities

ARTICLES 29-30 · MINORITY EDUCATION · RTE · AMU

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 34-38

✎ *Art 29(1) protects any section's culture (not only minorities); 29(2) bars discrimination in admission. Art 30 lets minorities run their institutions but not maladminister. Minority status is State-wise (TMA Pai). Pramati exempted minority schools from RTE; AMU (2024) overruled Azeez Basha.*

ARTICLES 29 AND 30

Safeguards for minorities

→ ***common domain:*** Preamble, Arts 14-16, 25-28, 46, Fundamental Duties
→ ***special domain:*** Arts ***29, 30***; ***15(5)*** excludes Art 30(1) minority institutions from its special admission rules

Clause	Content
29(1)	any section of citizens with a distinct ***language, script or culture*** may conserve it; ***not only minorities***
29(2)	no denial of admission to State-maintained or aided institutions on ***religion, race, caste, language only***
30(1)	religious and linguistic minorities may ***establish and administer*** educational institutions of choice
30(1A)	protects the right on ***compulsory acquisition*** of property
30(2)	no discrimination in ***State aid*** because of minority management

Right to administer is not right to maladminister. State may regulate standards, qualifications, transparency.

WHO IS A MINORITY

T. M. A. Pai Foundation (2002): for Art 30, minority status (religious and linguistic) is determined ***State-wise***, not nationally. E.g. Hindus are a religious minority in ***Punjab, Nagaland, Mizoram***. The ***Centre's notified list*** is statutory, for schemes and institutions.

→ Muslims · Christians · Sikhs · Buddhists · Zoroastrians (Parsis) · ***Jains (notified 2014)***

Six notified religious minorities

MCSBZJ – Six minorities: **M**uslims · **C**hristians · **S**ikhs · **B**uddhists · **Z**oroastrians · **J**ains. (own mnemonic)

Linguistic minorities

→ ***Art 347:*** President may direct recognition of a language on substantial demand
→ ***Art 350A: mother-tongue instruction*** at primary stage
→ ***Art 350B: Special Officer*** appointed by the President; report laid before Parliament and sent to States

Institutions

→ ***NCM:*** statutory, ***National Commission for Minorities Act, 1992***
→ ***NCMEI: NCMEI Act, 2004***, on minority status and educational rights

REGULATION AND RTE

29(2) vs 30(1)

→ aided minority institutions may give ***reasonable preference*** to their community but cannot exclude all others; State may regulate admission for ***merit and transparency***; ***unaided*** institutions have more flexibility with fair, non-exploitative admission

Sk. Md. Rafique (2020): West Bengal Madrasah Service Commission Act: teacher selection through a statutory commission is ***not automatically unconstitutional*** for minority institutions; regulation must not extinguish Art 30 rights.

Pramati Educational and Cultural Trust (2014): RTE s.12(1)(c) (25% entry seats for weaker sections) cannot be applied to minority institutions in a way that impairs Art 30(1); ***aided and unaided minority institutions exempted. Critics:*** RTE aims at ***social inclusion***; exemption reduces opportunity. ***Suggestion:*** admit weaker children from their own community.

Anjuman Ishaat-e-Taleem Trust (Sept 2025) (verify): SC doubted the ***blanket exemption***; read ***Arts 21A and 30 harmoniously***; RTE need not destroy minority character; called for ***larger Bench***. ***Pramati stays binding*** until altered.

ALIGARH MUSLIM UNIVERSITY

1877
Muhammadan Anglo-Oriental College (Sir Syed Ahmad Khan); ***AMU Act, 1920*** makes it a university

1967
S. Azeez Basha: not a minority institution because ***established by statute***

1981
AMU Amendment Act recognises the Muslim community's role

2005-06
Allahabad HC rejected the minority-based reservation

2019
SC refers issue to ***seven judges***

8 Nov 2024
AMU v. Naresh Agarwal: 4:3; statutory incorporation does not remove minority status; test = ***origin, purpose, community role***; pre-1950 institutions can claim Art 30; national importance does not exclude. ***Azeez Basha overruled*** but AMU's status ***left to a regular Bench***

MINORITY WELFARE SCHEMES AND SIGNIFICANCE

Against minority-specific schemes

→ Art 15(1) religion-only basis
→ welfare should follow deprivation
→ other protections exist

For

→ socio-economic disadvantage
→ ***Art 14*** reasonable classification
→ ***Art 46***
→ national integration

Minority schemes are ***not automatically unconstitutional***; validity depends on legal basis, objective, eligibility, equality. ***Significance of 29-30:*** identity, equality, minority autonomy, inclusive education, integration.

Recall drill: cover and answer

29(1) holders	any section of citizens, not only minorities	29(2) protects against	discrimination in admission
Minority unit	State-wise, TMA Pai 2002	Jains notified	2014
Art 350B	Special Officer for linguistic minorities	NCM Act	1992
Pramati 2014	minority schools exempt from RTE	2025 doubt on Pramati	Anjuman Ishaat-e-Taleem, larger Bench (verify)
Azeez Basha 1967	AMU not minority; overruled 2024	AMU 2024 bench	seven judges, 4:3, test: origin, purpose, community role

WAQF (AMENDMENT) ACT, 2025 · NAZUL LAND

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 38-39

✎ *The 2025 amendment changes Waqf registration, boards and dispute handling. The SC in September 2025 refused a full stay but paused the five-year Muslim requirement, executive decisions on government-land disputes, and capped non-Muslim members. The final ruling on validity is pending. Nazul land is government land under lease.*

BACKGROUND AND KEY CHANGES

Waqf

→ ***permanent dedication of property*** for religious, charitable or other purposes under Muslim law: mosques, dargahs, graveyards, schools
→ ***Waqf Act, 1995*** was the main framework; the ***Waqf (Amendment) Act, 2025*** (also linked to the ***UMEED*** framework) changes registration, management and oversight

Provision	***Change***
Non-Muslim representation	non-Muslim members in the ***Central Waqf Council*** and ***State Waqf Boards***
Waqf by user	restricts ***future*** recognition based only on long religious use; protects existing registered Waqfs
Five-year requirement	person creating a Waqf must have professed ***Islam for at least five years***
Government oversight	government-designated officer in disputes over ***government property claimed as Waqf***

For

→ ***transparency*** and accountability
→ ***property protection*** against fraudulent claims
→ ***modernisation*** of records
→ better supervision

Against

→ ***Art 26*** autonomy hit by non-Muslim members
→ ***waqf by user*** hurts undocumented religious properties
→ five-year rule intrudes on religious freedom
→ ***separation of powers:*** executive deciding property rights

Constitutional questions

→ ***Art 14*** equality · ***Art 25*** (five-year rule) · ***Art 26*** (denominational administration) · ***separation of powers***

SUPREME COURT INTERIM ORDER, SEPTEMBER 2025

SC ***refused to stay the whole Act*** but suspended parts (verify against the order):

Three directions

→ ***five-year practising Muslim rule:*** stayed until States set a ***mechanism*** to decide who qualifies
→ ***government property disputes:*** stayed executive power to change Waqf status and ***revenue records*** before adjudication; disputes go to the ***Waqf Tribunal*** and courts
→ ***non-Muslim members:*** not suspended but capped at ***four in the Central Waqf Council*** and ***three in State Waqf Boards***

FGN — Interim order: **F**ive-year rule paused · **G**overnment-land disputes to tribunal · **N**on-Muslim members capped (4 and 3). (own mnemonic)

Interim relief is ***not*** a final ruling on validity; keep the two apart in answers.

NAZUL LAND

What it is

→ government-owned land leasable to persons or institutions; many came under government ownership in the ***colonial period***; government keeps ***ownership***, others hold ***leasehold***; uses: housing, schools, hospitals
→ ***leasehold:*** right to use for a period · ***freehold:*** ownership

Link to Waqf

→ dispute: can ***long religious use*** create Waqf status over land claimed by government? The interim order stops executives from altering disputed status ***before proper adjudication***
→ ***Core issue:*** balance protection of religious endowments, property rights, transparency and lawful oversight

Recall drill: cover and answer

Waqf Act original	1995	Amendment year	2025, UMEED framework
Waqf by user change	restricts future recognition by long use alone	Five-year rule	must profess Islam five years; stayed pending mechanism
Non-Muslim caps	four in Central Council, three in State Boards	Where disputes go	Waqf Tribunal and courts
Nazul land	government-owned, leased out		

⚖ DPSP · CLASSIFICATION · FUNDAMENTAL RIGHTS VS DPSP ⚖

PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 1-3

✎ *DPSPs (Part IV, Articles 36-51) are goals the State must follow to build a welfare State. Courts cannot enforce them, but use them to interpret Fundamental Rights. Courts first put Fundamental Rights above DPSPs (Champakam 1951), then moved step by step to the present view that the two must be balanced and harmonised (Minerva Mills 1980): two wheels of one chariot.*

WHAT ARE DPSPs?

The Directive Principles of State Policy are in Part IV, Articles 36 to 51. They aim to set up a Welfare State based on social, economic and political justice.

→ ***Why they are non-justiciable (cannot be enforced in court):***
→ ***Financial constraints:*** socio-economic rights need large resources.
→ ***Administrative capacity:*** some principles need institutions and infrastructure first.
→ ***Social conditions:*** reforms like the Uniform Civil Code need careful thought about social diversity.
→ ***Nature of the principles:*** some, such as international peace, are broad policy aims and not individual rights that a court can enforce.
→ ***Important:*** being non-justiciable does ***not*** make DPSPs legally irrelevant. Courts use them to ***interpret Fundamental Rights*** and to examine the constitutional purpose of laws.

CLASSIFICATION OF DPSPs

DPSPs are commonly sorted into Socialist, Gandhian and Liberal-Intellectual principles. This is an academic classification, not written in the Constitution, and some Articles fit more than one group.

Classification	Articles	Main objective
Socialist	38, 39, 39A, 41, 42, 43, 43A	Social and economic justice, welfare and protection of labour
Gandhian	40, 43, 43B, 46, 47, 48	Village self-government, cottage industries, weaker sections and rural welfare
Liberal-Intellectual	44, 45, 48A, 49, 50, 51	Civil reform, education, environment, heritage, judicial independence and international peace

→ ***38:*** promote a social order based on justice and reduce inequalities. ***39:*** equal right to livelihood, fair distribution of resources, no concentration of wealth, equal pay, protection of workers and children. ***39A:*** equal justice and free legal aid. ***40:*** village panchayats. ***41:*** right to work, education and public assistance. ***42:*** just working

What the main Articles say (general knowledge, verify)

conditions and maternity relief. **43:** living wage; cottage industries. **43A:** workers' participation in management. **43B:** cooperative societies. **44:** Uniform Civil Code. **45:** early childhood care and education. **46:** promote the interests of SCs, STs and weaker sections. **47:** nutrition, public health and prohibition of intoxicants. **48:** modern agriculture and animal husbandry, cow protection. **48A:** protect environment, forests and wildlife. **49:** protect monuments of national importance. **50:** separate judiciary from executive. **51:** promote international peace and respect for international law.

FUNDAMENTAL RIGHTS vs DPSP: JUDICIAL EVOLUTION

The relationship between Part III (Fundamental Rights) and Part IV (DPSP) has been shaped by court decisions.

State of Madras v. Champakam Dorairajan (1951)

The Supreme Court held that ***Fundamental Rights prevail over DPSPs*** in a direct conflict. DPSPs cannot override enforceable Fundamental Rights.

Golaknath v. State of Punjab (1967)

The Court held that ***Parliament could not amend Fundamental Rights***. This limited Parliament's power to amend rights in order to carry out DPSPs.

Kesavananda Bharati v. State of Kerala (1973)

Parliament ***can amend Fundamental Rights to implement DPSPs***, but an amendment ***cannot violate the Basic Structure***.

Minerva Mills v. Union of India (1980)

The Court held that ***harmony and balance between Fundamental Rights and DPSPs is part of the Basic Structure***. Giving absolute priority to either Part III or Part IV would upset the constitutional balance. The two are ***complementary and supplementary***, not inherently in conflict.

Present constitutional position

→ Parliament may amend Fundamental Rights to implement DPSPs, ***subject to the Basic Structure doctrine***.

→ Courts try ***harmonious construction*** between Parts III and IV.

→ DPSPs help courts interpret the scope of Fundamental Rights, especially ***Article 21***.

→ ***Article 31C*** gives special protection to qualifying laws that implement ***Articles 39(b) and 39(c)***.

Core principle: Fundamental Rights and DPSPs are like ***two wheels of a chariot***. Both are needed to reach the Constitution's goal of a social revolution.

Recall drill: cover and answer

DPSP articles	Part IV, Articles 36–51	Why DPSPs are not justiciable	Financial limits, administrative capacity, social conditions, broad nature
Three academic groups of DPSP	Socialist, Gandhian, Liberal-Intellectual	Champakam Dorairajan 1951	Fundamental Rights prevail over DPSPs
Golaknath 1967	Parliament cannot amend Fundamental Rights	Kesavananda Bharati 1973	Can amend FRs to implement DPSPs, but not the basic structure
Minerva Mills 1980	Balance of FRs and DPSPs is basic structure	Article 31C protects	Laws implementing Art 39(b) and 39(c)
Core image	Two wheels of a chariot		

⚖ ARTICLE 39(b)(c) · RIGHT TO PROPERTY · EMINENT DOMAIN · NINE-JUDGE VERDICT 2024 ⚖

PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 3-4

✎ *Article 39(b) wants community resources shared for the common good and 39(c) wants wealth not concentrated. The right to property is no longer fundamental (44th Amendment 1978); it is a constitutional right under Article 300A. In Property Owners Association (5 Nov 2024) a nine-judge Bench said not every private property is a community resource, but some can be, and Article 31C continues to protect qualifying laws.*

ARTICLE 39(b) AND (c)

Article 39(b): the State should ensure that the ownership and control of the material resources of the community are distributed so as to serve the common good.

→ ***Article 39(c):*** the economic system should not result in the ***concentration of wealth and means of production*** to the common detriment.

→ Together they aim at ***economic justice*** and at preventing too much concentration of economic power.

RIGHT TO PROPERTY UNDER THE CONSTITUTION

The Right to Property was first a Fundamental Right under Articles 19(1)(f) and 31. The 44th Constitutional Amendment Act, 1978 removed its Fundamental Right status. It is now a constitutional right under Article 300A: no person shall be deprived of property except by authority of law.

→ ***Important features***

→ ***Constitutional right:*** no longer a Fundamental Right.

→ ***Authority of law:*** the executive cannot take away property by a mere administrative order without legal authority.

→ ***Public purpose:*** compulsory acquisition must serve a genuine public purpose.

→ ***Compensation:*** the protection does not guarantee market-value compensation in every case, but compensation and acquisition procedures remain open to constitutional scrutiny.

→ ***Judicial review:*** property acquisition laws and actions can be challenged in court.

Eminent domain is the State's power to acquire private property for a

→ ***Key issues:*** balancing private ownership and public interest; fair compensation and rehabilitation; protection against arbitrary acquisition; distributing resources for social and economic justice.

public purpose under a valid law.

Kolkata Municipal Corporation v. Bimal Kumar Shah (2024)

→ The Supreme Court listed ***seven procedural safeguards*** for lawful property acquisition:

→ 1. ***Right to notice:*** the owner must be told of the proposed acquisition.

→ 2. ***Right to be heard:*** objections must be properly considered.

→ 3. ***Reasoned decision:*** authorities must explain the acquisition decision.

→ 4. ***Public purpose:*** acquisition must serve a legitimate public purpose.

→ 5. ***Fair compensation:*** the framework must provide fair compensation or restitution.

→ 6. ***Timely process:*** efficient procedure without unreasonable delay.

→ 7. ***Conclusion of proceedings:*** the process must reach a lawful end.

→ ***Significance:*** Article 300A protects more than the formal need for a law. It also needs safeguards against arbitrary deprivation.

NHRP-FTC — **N**otice · **H**earing · **R**easons · **P**ublic purpose · **F**air compensation · **T**imely · **C**onclusion (the seven safeguards) (own mnemonic)

PROPERTY OWNERS ASSOCIATION v. STATE OF MAHARASHTRA (2024)

Background: the case concerned provisions of the Maharashtra Housing and Area Development Act, 1976 on acquiring certain properties for redevelopment. The central question: can privately owned property be treated as a material resource of the community under Article 39(b)?

→ ***Judgment:*** on ***5 November 2024*** a ***nine-judge Constitution Bench*** gave a ***7:2 majority*** judgment.

→ ***Key holdings***

→ ***1. Not every private property is a community resource.*** Not all privately owned resources qualify as material resources of the community under Article 39(b), though ***some may***.

→ ***2. No automatic State claim.*** The State cannot treat all private property as a community resource just because redistribution may serve a public purpose.

→ ***3. Criteria for identifying community resources:*** the ***nature and characteristics*** of the resource; its ***impact on community welfare***; its ***scarcity***; and the ***consequences of it being concentrated*** in private hands.

→ ***4. Constitutional flexibility.*** The Constitution does not prescribe a single economic model; governments may adopt different economic policies within constitutional limits.

→ ***5. Article 31C continues to operate.*** It still protects qualifying laws that implement Articles 39(b) and 39(c) from challenge under Articles 14 and 19. But this does not remove every constitutional limit or stop scrutiny of whether a law truly satisfies Article 31C.

Significance of the judgment

→ ***Protection of property rights:*** stops every private resource being automatically labelled a community resource.

→ ***Economic justice:*** allows redistribution where resources genuinely satisfy Article 39(b).

→ ***Judicial clarity:*** gives criteria to identify material resources of the community.

→ ***Balanced economic model:*** recognises both public welfare and private ownership.

→ ***Constitutional balance:*** reinforces the relationship between DPSPs and constitutional rights.

Core principle: Article 39(b) promotes distribution of resources for the common good, but public welfare cannot justify treating every privately owned resource as community property.

Recall drill: cover and answer

Article 39(b) / 39(c)	Distribute community resources for common good / avoid concentration of wealth	Property right earlier / now	FR under 19(1)(f) and 31 / constitutional right under Article 300A (44th Amendment, 1978)
Article 300A	No deprivation of property except by authority of law	Eminent domain	State power to acquire private property for public purpose under valid law
Bimal Kumar Shah 2024	Seven procedural safeguards in land acquisition	Property Owners Association date / bench / majority	5 Nov 2024; nine judges; 7:2
Main holding	Not every private property is a community resource, but some can be	Factors to decide	Nature, community welfare impact, scarcity, concentration in private hands
Article 31C status	Continues to protect qualifying laws on 39(b) and 39(c)		

⚖ UNIFORM CIVIL CODE · ARTICLE 44 · PERSONAL LAWS · UTTARAKHAND ⚖

PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 4–7

✎ *Article 44 asks the State to try for a Uniform Civil Code, one set of civil laws on marriage, divorce, maintenance, adoption and succession for all religions. India has separate personal laws, so the debate is equality and gender justice against religious freedom and diversity. Key cases: Shah Bano, Danial Latifi, Shayara Bano, Sarla Mudgal, Abdul Samad. The 21st Law Commission (2018) preferred gradual reform. Uttarakhand has a State UCC since 27 January 2025.*

ARTICLE 44 AND PERSONAL LAWS

Article 44 directs the State to endeavour to secure a Uniform Civil Code (UCC) throughout India.

→ A UCC would give ***common civil laws*** on marriage, divorce, maintenance, adoption, succession and inheritance, ***irrespective of religion***.

→ India has different personal laws on these matters. That creates a debate between ***equality, religious freedom, gender justice and cultural diversity***.

Community / framework	*Important legislation*
Hindus, Buddhists, Jains and Sikhs	Hindu Marriage Act 1955; Hindu Succession Act 1956; Hindu Adoptions and Maintenance Act 1956; Hindu Minority and Guardianship Act 1956
Muslims	Muslim Personal Law (Shariat) Application Act 1937; Dissolution of Muslim Marriages Act 1939; other applicable laws
Christians	Indian Christian Marriage Act 1872; Indian Divorce Act 1869
Parsis	Parsi Marriage and Divorce Act 1936
Religion-neutral civil marriage	Special Marriage Act 1954

Special Marriage Act, 1954

→ Provides a ***civil marriage*** framework irrespective of religion or caste.

→ Lets ***interfaith couples*** marry without religious conversion.

→ Contains provisions about ***public notice and objections***.

→ ***Concern:*** the notice procedure can expose couples to family pressure, harassment or threats.

JUDICIAL DEVELOPMENTS ON PERSONAL LAWS

Shah Bano (1985)

The question was whether a divorced Muslim woman could claim maintenance under **Section 125 CrPC, 1973**. The Supreme Court held that Section 125 is **religion-neutral**, so she could claim maintenance if she met the statutory conditions, and payment of **Mahr** did not automatically end the husband's maintenance duty.

Muslim Women (Protection of Rights on Divorce) Act, 1986

Created a separate statutory framework for the rights of divorced Muslim women. Widely seen as a **response to the Shah Bano judgment**.

Danial Latifi v. Union of India (2001)

The Supreme Court **upheld the validity** of the 1986 Act and held that the husband must make a **reasonable and fair provision** for the divorced wife within the Iddat period, and this is **not limited** to her needs during Iddat alone.

Shayara Bano v. Union of India (2017)

By a **3:2 majority** the Supreme Court set aside **instant Triple Talaq (Talaq-e-Biddat)**.

Muslim Women (Protection of Rights on Marriage) Act, 2019

Declared instant Triple Talaq **void and illegal** and made pronouncing it a **criminal offence** with up to **three years** imprisonment.

Mohd. Abdul Samad v. State of Telangana (2024)

The Supreme Court reaffirmed that divorced Muslim women can claim maintenance under **Section 144 BNSS**, alongside remedies under the 1986 Act.

Criticism of the 2019 Act

→ **Criminalisation:** critics say a marital issue already made legally ineffective need not mean imprisonment.

→ **Family welfare:** imprisonment can hurt the financial security of women and children where the husband is the sole earner.

→ **Abandonment:** the law does not directly address abandonment of spouses across all communities.

→ **Significance of Abdul Samad:** maintenance rights are not defeated merely because a personal law exists (secular protection); it strengthens financial protection of divorced Muslim women (gender justice); personal-law legislation and general maintenance provisions can work together (harmonious interpretation).

Polygamy and personal laws

→ **Polygamy** is having more than one spouse at the same time.

→ Hindu marriage law generally **prohibits a second marriage** during the lifetime of an existing spouse.

→ Traditional Muslim personal law allows a Muslim man up to **four wives**, subject to applicable legal conditions. The position differs across communities and statutes.

→ **Sarla Mudgal v. Union of India (1995):** a Hindu husband cannot escape the law against bigamy merely by **converting to Islam** without dissolving the first marriage.

→ **Issue:** the debate is about religious autonomy, equality before law and women's rights.

FOR AND AGAINST A UNIFORM CIVIL CODE

Arguments in favour

→ **1. Gender justice.** Many personal laws grew in patriarchal conditions. A UCC may remove discriminatory practices in marriage, divorce, maintenance and inheritance. Example: the debate on Triple Talaq and maintenance for divorced Muslim women.

→ **2. National integration.** Separate personal laws mean separate legal frameworks for communities; supporters say a common civil framework promotes equal citizenship and national consolidation.

→ **3. Secularism.** A religion-neutral civil framework may lessen the role of religious identity in deciding legal rights and duties.

→ **4. Simplification of laws.** A common framework can reduce procedural differences and simplify disputes on marriage, divorce and succession.

→ **5. Equality before law.** Similar civil matters should be governed by common principles whatever the religion.

Arguments against

→ **1. Religious and cultural diversity.** India has many religions, denominations and communities with different customs; a single code may fail to fit them all.

→ **2. Minority apprehensions.** Minorities may see a UCC as imposing the personal laws or culture of the majority, causing distrust and opposition.

→ **3. Freedom of religion.** Personal laws may involve religious practice; reform must balance **Articles 25 and 26** with equality, dignity and other rights.

→ **4. Difficulty framing uniform rules.** Communities follow different rules on marriage, divorce, inheritance and adoption; finding common rules acceptable to all is hard.

→ **5. Selective reform.** Critics question the heavy focus on Article 44 when other DPSPs on employment, health, education and social security remain poorly implemented.

→ **6. Uniformity vs equality.** Uniform rules do not automatically give substantive equality. The aim should be to remove discrimination without needlessly destroying cultural diversity.

21st Law Commission consultation paper (2018) observed that a UCC was neither necessary nor desirable at that stage. It preferred reforming discriminatory provisions within existing family laws while keeping legitimate diversity.

→ **Suggestions:** remove discriminatory practices from personal laws; strengthen equality and dignity, especially for women; reform family laws gradually through consultation; avoid treating diversity itself as a problem.

UTTARAKHAND UNIFORM CIVIL CODE

The Uniform Civil Code of Uttarakhand, 2024 came into force on 27 January 2025. Uttarakhand became the first State in independent India to adopt such a comprehensive State-level UCC.

→ ***Features:*** a ***common legal framework*** on marriage, divorce, maintenance and succession for persons covered; ***compulsory marriage registration***; ***polygamy prohibited*** within the framework; ***registration and legal requirements for live-in relationships***; ***Scheduled Tribes*** and certain constitutionally protected customary rights are ***excluded***.

→ ***2026 development:*** Uttarakhand amended its UCC framework through the ***UCC Amendment Ordinance, 2026***, followed by the ***UCC Amendment Act, 2026***. (current affairs; verify)

→ ***Concerns:*** privacy (mandatory live-in registration raises personal-autonomy questions); administrative oversight (more State involvement in private relationships); cultural diversity (exemptions raise questions about what uniformity means); implementation (needs public awareness and easy procedures).

→ ***Significance:*** an important State-level example to study the benefits and difficulties of a UCC.

Way forward

→ ***Gradual reform:*** remove discriminatory provisions through consultation with the affected communities.

→ ***Gender justice:*** equality in marriage, divorce, maintenance and inheritance.

→ ***Optional civil framework:*** strengthen accessible, religion-neutral alternatives under civil law.

→ ***Stakeholder consultation:*** women, legal experts, minority communities and civil society.

→ ***Constitutional balance:*** protect equality and dignity without needless interference in religious and cultural freedom.

Conclusion: the aim of a UCC should be equality and gender justice, not uniformity for its own sake. Reform should be gradual, inclusive and consistent with constitutional values.

Recall drill: cover and answer

Article 44 asks for	A Uniform Civil Code throughout India (endeavour)	Shah Bano 1985	Section 125 CrPC is religion-neutral; divorced Muslim woman can claim maintenance
Law after Shah Bano	Muslim Women (Protection of Rights on Divorce) Act 1986	Danial Latifi 2001	Upheld the 1986 Act; fair provision beyond Iddat
Shayara Bano 2017	Instant triple talaq set aside, 3:2	2019 Act	Triple talaq void and illegal; up to 3 years
Sarla Mudgal 1995	Conversion to Islam does not allow bigamy	21st Law Commission 2018	UCC neither necessary nor desirable at that stage
Uttarakhand UCC in force	27 January 2025; ST excluded; live-in registration		

DPSP SIGNIFICANCE AND CRITICISM · FUNDAMENTAL DUTIES · ARTICLE 51A

PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 7–10

✎ *DPSPs give long-term direction to every government and a yardstick for citizens, but they are non-justiciable, costly and unevenly implemented. Fundamental Duties (Article 51A, Part IVA) were added by the 42nd Amendment (1976) on the Swaran Singh Committee's*

advice; the 86th Amendment (2002) made them eleven. They are non-justiciable, so courts use them to support rights and policies rather than to punish citizens directly.

SIGNIFICANCE OF DPSPs

1. Welfare State: DPSPs deepen the Preamble's commitment to social and economic justice.

→ 2. ***Policy direction:*** a common framework for Central and State governments even when political leadership changes.

→ 3. ***Complement to Fundamental Rights:*** Part III protects individual liberty; Part IV creates the social conditions needed to enjoy those rights.

→ 4. ***Democratic accountability:*** a yardstick for citizens to judge government policy.

→ 5. ***Continuing relevance:*** inequality, environmental damage, unemployment and social exclusion make DPSPs more important.

CRITICISM OF DPSPs

1. Non-justiciable nature. Courts cannot enforce DPSPs directly, so implementation depends on political will and State capacity. Critics called them "pious superfluities" and compared them to a cheque that cannot be cashed until resources become available.

→ ***2. Financial and administrative constraints.*** Employment, health, education and social security need large public spending. States differ in financial and administrative capacity, which affects implementation.

→ ***3. Unsystematic enumeration.*** The Constitution mixes broad objectives such as justice and equality with specific policies such as prohibition and cattle protection. This causes differences of scope and interpretation.

→ ***4. Lack of clarity.*** Some principles are broadly worded and leave much discretion to governments. But this flexibility also lets them adapt to changing social and economic conditions.

→ ***5. Tension between individual freedom and public welfare.*** Some directives can clash with liberty, religious freedom and economic choice. Examples: prohibition (Article 47), cattle slaughter (Article 48) and the Uniform Civil Code (Article 44).

→ ***6. Uneven implementation.*** Directives on labour welfare, social security, weaker sections and equal opportunity are only partly fulfilled. The problem is not just missing laws but ***weak implementation and unequal access to benefits***.

Conclusion: DPSPs remain essential to India's vision of a Welfare State. Success depends on sustained political commitment, enough resources and effective implementation. The goal is social and economic justice without weakening Fundamental Rights.

FUNDAMENTAL DUTIES: ARTICLE 51A

Fundamental Duties are in Part IVA, Article 51A. They were added by the 42nd Constitutional Amendment Act, 1976 on the recommendation of the Swaran Singh Committee. The 86th Amendment Act, 2002 added one more duty, so there are now 11 Fundamental Duties.

→ ***Rationale:*** to reduce indifference to nation-building and larger public interests; to balance individual freedom with social responsibility; to encourage citizens to take an active part in national development.

The 11 duties (general knowledge, verify wording): to (a) respect the Constitution, its ideals, the National Flag and the National Anthem; (b) cherish the noble ideals of the freedom struggle; (c) uphold and protect the sovereignty, unity and integrity of India; (d) defend the country and render national service when called; (e) promote harmony and brotherhood and renounce practices derogatory to the dignity of women; (f) value and preserve the rich heritage of our composite culture; (g)

protect and improve the natural environment and have compassion for living creatures; (h) develop scientific temper, humanism and the spirit of inquiry and reform; (i) safeguard public property and abjure violence; (j) strive towards excellence in individual and collective activity; (k) the parent or guardian to provide opportunities for education to a child aged 6-14 years (added in 2002).

Rights and duties: two sides of one coin. Rights protect individual freedom; duties remind citizens of their responsibilities to society.

Fundamental Right	Related Fundamental Duty
Article 15: prohibition of discrimination	Article 51A(e): promote harmony and renounce practices derogatory to women
Article 19: freedom of speech and expression	Article 51A(h): develop scientific temper and the spirit of inquiry
Article 21: right to life	Article 51A(g): protect the environment and living creatures
Article 21A: right to education	Article 51A(k): parents must provide educational opportunities to children aged 6-14

Gandhi's view: *citizens should give importance to performing their duties; rights and duties are closely connected.*

Constitutional position

→ ***Fundamental Rights:*** mainly protect individuals against arbitrary State action.

→ ***Fundamental Duties:*** encourage responsible behaviour towards society and the nation.

→ ***DPSPs:*** direct the State toward social and economic justice.

→ Together, Parts III, IV and IVA support the vision of individual dignity and collective welfare.

JUDICIAL INTERPRETATION OF FUNDAMENTAL DUTIES

1. Bijoe Emmanuel v. State of Kerala (1986): freedom of conscience. Three students of the Jehovah's Witnesses refused to sing the National Anthem because of their religious beliefs, though they stood respectfully while it was sung. The Supreme Court held that students cannot be forced to sing the Anthem against genuine religious belief. Their conduct was protected under Articles 19(1)(a) and 25. Respect for national symbols does not require compulsory singing in every case. Significance: Fundamental Duties cannot override freedom of conscience and religion.

→ ***2. M. C. Mehta v. Union of India: environment.*** The Court used ***Article 51A(g)*** to stress citizens' duty to protect the environment, and directed steps to promote environmental education, including teaching environmental awareness in educational institutions. Significance: duties can support judicial directions for environmental protection.

→ ***3. Vellore Citizens Welfare Forum v. Union of India (1996).*** The Court recognised key environmental principles: the ***Precautionary Principle***, the ***Polluter Pays Principle*** and ***Sustainable Development***, strengthening environmental protection under ***Articles 21, 48A and 51A(g)***.

→ ***4. National Anthem in cinema halls: Shyam Narayan Chouksey.*** In ***2016*** the Court directed cinema halls to play the Anthem before films. In ***2018*** it modified this and made playing the Anthem ***optional***, keeping safeguards for respectful conduct and persons with disabilities.

→ ***Important:*** the ***Prevention of Insults to National Honour Act, 1971*** punishes specified acts of disrespect. It does ***not*** create a general duty to sing the National Anthem.

Laws that give effect to Fundamental Duties. Duties are non-justiciable, but several laws support them.

Fundamental Duty	Related law or framework
Respect for National Flag and Anthem: 51A(a)	Prevention of Insults to National Honour Act 1971; Flag Code of India

Protect the environment: 51A(g)	Environment (Protection) Act 1986; Wildlife (Protection) Act 1972
Preserve cultural heritage: 51A(f)	Ancient Monuments and Archaeological Sites and Remains Act 1958
Dignity of women: 51A(e)	Dowry Prohibition Act 1961; Protection of Women from Domestic Violence Act 2005
Safeguard public property: 51A(i)	Prevention of Damage to Public Property Act 1984
Education of children: 51A(k)	Right of Children to Free and Compulsory Education Act 2009

Important distinction: these laws give effect to related constitutional objectives. Not every breach of a Fundamental Duty automatically becomes a criminal offence.

COMMITTEE RECOMMENDATIONS

Justice J. S. Verma Committee (1999) studied how duties can be promoted through education and awareness. It recommended: include Fundamental Duties in school curricula and civic education; use educational material and mass media; train teachers in constitutional values; identify existing laws that give effect to the duties.

→ ***NCRWC (2002)*** recommended: a ***duty to vote*** (encourage participation in elections); a ***duty to pay taxes*** as a civic responsibility; ***responsible parenthood***; and stronger civic education on duties. These were recommendations and ***have not all been put into Article 51A***.

RIGHTS vs DUTIES: THE DEBATE

For greater emphasis on duties	*For prioritising rights*
Promote ***responsible citizenship*** and social discipline	Fundamental Rights are ***enforceable***; duties are generally non-justiciable
Strengthen ***national unity*** and public welfare	Too much emphasis on duties may weaken protection against arbitrary State action
Encourage protection of the ***environment and public property***	Governments may use duties to justify needless limits on dissent
Build a culture of ***active democratic participation***	The State must fulfil its own constitutional obligations and not shift responsibility to citizens

Balanced position. Rights and duties are complementary, not competing. Citizens should respect their duties, but duties must

→ ***Way forward:*** teach duties alongside rights (civic education); promote constitutional values through schools, media and community programmes; use specific laws where necessary, subject to Fundamental Rights; governments must fulfil their own constitutional duties; encourage voting, environmental protection, public service and community cooperation.

not become an excuse to weaken individual liberty, equality or constitutional safeguards.

Conclusion: Fundamental Duties make citizens active participants in nation-building. Their purpose is to strengthen constitutional responsibility, not weaken individual freedom. A healthy democracy needs both enforceable rights and responsible citizens.

Recall drill: cover and answer

Fundamental Duties part / article	Part IVA, Article 51A	Added by / on whose advice	42nd Amendment 1976 / Swaran Singh Committee
86th Amendment 2002 added	Duty of parents to educate children aged 6–14 (now 11 duties)	Bijoe Emmanuel 1986	Students cannot be forced to sing the Anthem against religious belief
Vellore Citizens 1996 principles	Precautionary, polluter pays, sustainable development	Anthem in cinemas	2016 mandatory; 2018 made optional (Shyam Narayan Chouksey)
Verma Committee 1999	Teach duties in schools; train teachers; identify laws	NCRWC 2002 duties suggested	Vote, pay taxes, responsible parenthood
DPSP critics' phrase	"Pious superfluities"; a cheque that cannot be cashed		

NCSC AND NCST · ARTICLES 338, 338A · FUNCTIONS · ACHIEVEMENTS · CRITIQUE · REFORMS

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 3–8

✎ *The National Commission for Scheduled Castes (Article 338) and the National Commission for Scheduled Tribes (Article 338A) are constitutional watchdogs. They check whether the safeguards given to SCs and STs are really working, inquire into complaints and advise the government on development. They can summon people and documents like a civil court, but they can only recommend, not order. Delays, vacancies, weak independence and thin staff reduce their impact.*

NATIONAL COMMISSION FOR SCHEDULED CASTES (NCSC): THE BASICS

Article	What it does
338	Creates the NCSC and lays down its composition, powers and functions. Because it sits in the Constitution, it is a constitutional body, not a mere statutory one.
341	The President, after consulting the Governor of the State concerned, specifies which castes are to be treated as Scheduled Castes in that State or Union Territory. A caste is therefore an SC only through this notification.
366(24)	Defines "Scheduled Castes" for constitutional purposes (the castes, races or tribes, or parts of them, that are notified under Article 341).

Functions: what the NCSC actually does

→ **1. Investigation and monitoring.** It examines the constitutional and legal safeguards meant for SCs, evaluates how well they work and points out where implementation is failing. Example: reviewing reservation in education, jobs and promotions in central and State services.

→ **2. Inquiry into complaints.** It looks into cases where SCs are denied their rights, face atrocities or are discriminated against, and recommends remedies. Example: violence against Dalits that falls under the SC/ST (Prevention of Atrocities) Act.

→ **3. Advice on development planning.** It takes part in, and advises on, the planning of socio-economic development for SCs so that policy is inclusive. Example: inputs on targeted schemes like the Scheduled Castes Sub-Plan.

→ **4. Annual and special reports.** It reports to the President on how the safeguards are being implemented and on the SCs' socio-economic progress.

→ **5. Recommendations to governments.** It suggests policy measures so that safeguards, welfare schemes and development programmes are implemented effectively.

→ **6. Extra role.** It also performs similar functions for the Anglo-Indian community. Until the **102nd Constitutional Amendment Act, 2018** the NCSC also handled matters relating to OBCs; that work now belongs to the NCBC.

NCSC: AN ANALYTICAL LOOK

Where the NCSC has worked (strengths)

→ **Service safeguards.** It has scrutinised recruitment, promotion and reservation practices across government services. It encouraged SC/ST employee associations, liaison officers and special grievance cells in ministries and PSUs to deal with discrimination. It has intervened where reservation benefits were denied in central universities and UPSC recruitment.

→ **Education.** It focuses on literacy and access to higher education, with special attention to female literacy. It monitors scholarships and pushes for better schools and hostels for SC students. Its review of the Post-Matric Scholarship Scheme found poor disbursement of funds and recommended Direct Benefit Transfer (DBT).

→ **Atrocities and civil rights.** It monitors atrocity cases, especially custodial violence and police excesses. NCRB data for 2021 shows crimes against SCs make up nearly **89%** of all atrocity cases against SCs and STs combined, which shows the scale of the problem. However, it tracks numbers and procedures more than it pushes wider social reform.

→ **Land and economic issues.** It recognises that SCs depend heavily on agriculture and argues for land reform and protection against land alienation. Its proposals on redistribution and tenancy rights usually meet political resistance. Land disputes in Tamil Nadu and Bihar show that Dalits remain vulnerable to land grabbing.

Where it falls short (limitations)

→ **Non-binding recommendations:** despite civil-court-like investigative powers, its findings have no legal force, so governments can ignore them.

→ **Procedural delay:** inquiries drag on, so justice becomes slow and often ineffective.

→ **Perceived closeness to government:** appointments and alignment with government positions raise doubts about its independence.

→ **Late reports:** annual reports arrive late and are often not discussed in Parliament. The 12th Report (for 2018-20) was tabled only in 2022.

→ **Elite bias:** priorities tend to favour better-off SC groups, while the poorest Dalits are under-represented.

→ **Reactive style:** it rarely uses its suo motu power to start action on its own.

Reforms suggested

→ **Autonomy:** appoint members through a bipartisan process so the executive cannot control them.

→ **Timely reporting:** make annual submission and discussion in Parliament mandatory for accountability.

→ **Inclusion:** concentrate on the most marginalised sub-groups inside the SC category rather than letting a few groups capture benefits.

→ **Data-driven work:** use qualitative and quantitative studies and involve social scientists in policy advice.

→ **Clear roles:** sort out overlaps with the Ministry of Social Justice.

→ **Proactive role:** use suo motu powers in atrocities, land disputes and denial of reservation.

Concluding thought: caste identities are slowly weakening in cities because of education and mobility, but caste inequality persists, especially in rural India. Leaders such as B. R. Ambedkar, K. R. Narayanan and Ram Nath Kovind show progress, yet they also show why institutional safeguards are still needed. The NCSC has to change from a procedural watchdog into a proactive reformist body.

NATIONAL COMMISSION FOR SCHEDULED TRIBES (NCST): BACKGROUND

Who is a "Scheduled Tribe"?

→ A "tribe" generally means a community with shared culture, language and territory, often living in relative isolation. A ***Scheduled Tribe (ST)*** is a constitutional category: communities ***notified under Article 342*** for special protection.

→ The Constitution neither defines "tribe" nor gives criteria for inclusion. Tribal communities are recognised by distinct cultural traditions, remoteness and socio-economic disadvantage.

→ ***Census 2011:*** India has ***10.42 crore STs, about 8.6%*** of the population. They live on over ***15% of the country's area*** and sit on nearly ***20% of natural resources***.

→ They are concentrated in Central India (Madhya Pradesh, Chhattisgarh, Jharkhand, Odisha, Gujarat, Maharashtra, Rajasthan) and the North-East.

→ Development levels vary widely: Mizoram has near-universal literacy, while groups such as the ***Jarawas and Shompens*** of the Andaman and Nicobar Islands are highly vulnerable.

→ The NCST is created under ***Article 338A*** (inserted when the single SC/ST commission was split).

Functions of the NCST

→ ***1. Investigation.*** Examines how constitutional and legal safeguards for STs are implemented. Example: monitoring the PESA Act in Scheduled Areas.

→ ***2. Complaint redressal.*** Inquires into specific complaints of denial of rights or discrimination. Example: land alienation disputes in Jharkhand and Odisha.

→ ***3. Planning advice.*** Gives inputs on socio-economic policy, evaluates schemes and suggests reforms. Example: recommending focus on tribal education and livelihood under the Tribal Sub-Plan.

→ ***4. Reporting.*** Submits annual and special reports to the President on tribal rights and welfare.

→ ***5. Policy recommendations.*** Advises the Union and States on protection, welfare and development of STs.

Additional functions under the 2005 Rules

→ Securing the rights of tribals over ***minor forest produce***.

→ Protecting tribal ownership over land, water and mineral resources.

→ Making sure tribals ***displaced by development projects*** are rehabilitated.

→ Preventing land alienation and helping restore land that has already been alienated.

→ Promoting tribal participation in forest management and social afforestation.

→ Helping implement ***PESA, 1996*** in Scheduled Areas.

→ Encouraging a shift from ***jhum (shifting) cultivation*** to sustainable livelihoods.

NCST: ACHIEVEMENTS AND CRITIQUE

Achievement	What happened
Land safeguards (2023)	Issued a notice over the Great Nicobar project, questioning the diversion of **84.1 sq km** of tribal reserve land and **130 sq km** of forest land without proper consultation.
Forest rights	Its opposition to the **2019 amendments to the Forest Rights Act (FRA)** helped stall proposals that would have diluted community rights over forests.
Displacement oversight (2017)	A Special Report showed that **28%** of displaced tribal households in Chhattisgarh mining projects had not been rehabilitated, which led the government to review.
Education advice (2020)	Its input on Eklavya Model Residential Schools pushed for expansion to **452 new schools** in under-served tribal belts.
Complaint redressal	Using civil-court powers it summoned State officials in the **Pathalgadi** cases (Jharkhand, 2016), which brought national attention to the misuse of sedition-type laws against tribals.
Reservation monitoring	The 2018-19 Annual Report recorded a **4.5% shortfall** in ST representation in central PSU jobs and pushed ministries to correct it.

Critique and limitations

→ **Dysfunction:** parliamentary reports show the NCST has been largely inactive for about four years and has not submitted reports to Parliament, which undermines its mandate of monitoring safeguards.

→ **Weak regional reach:** it works with only **six regional offices**, many understaffed. Requests for offices in tribal-heavy States such as Andhra Pradesh and Maharashtra remain unmet.

→ **Lack of independence:** the Ministry of Tribal Affairs overshadows it, which blurs the line between an advisory commission and an executive department.

→ **Exclusion from policy-making:** it has complained of inadequate consultation on key laws such as the Forest Rights Act, which directly affect tribal welfare.

→ **Underfunding:** chronic budget shortages limit inquiries, outreach and monitoring, and reduce operational independence. A 2022 parliamentary committee noted it was working with **under 50% of sanctioned strength**.

Way forward for the NCST

→ **Fill vacancies quickly** so a fully functional body with expert members restores credibility and timely monitoring.

→ **Expand regional presence** with more, properly staffed offices, so it can talk to tribal communities directly.

→ **Reinforce autonomy** from the Ministry of Tribal Affairs through structural reform, so it acts as a neutral protector.

→ **Formal consultation:** make it mandatory to consult the Commission on policies that affect STs, so tribal voices are built into law-making.

→ **Better budget** and financial autonomy for investigations, outreach and monitoring.

Concluding thought: the NCST was meant to be the guardian of tribal rights under Article 338A. Staff shortages, limited independence, weak outreach and poor funding have blunted it. Its effectiveness depends on timely reporting, government responsiveness and proactive suo motu action, especially because tribals are over 8% of the population and still face marginalisation.

Recall drill: cover and answer

NCSC is under which Article?	Article 338	NCST is under which Article?	Article 338A
Who specifies the SCs of a State?	The President, after consulting the Governor (Art 341)	Under which Article are STs notified?	Article 342
Until when did the NCSC also handle OBC matters?	Until the 102nd Amendment Act, 2018	STs in Census 2011	10.42 crore, 8.6% of the population
NCST regional offices	Six, many understaffed	NCSC 12th Report (2018-20) tabled in	2022 (late)
Which law did NCST help protect in 2019?	Forest Rights Act, by opposing its amendments		

NCBC · ROHINI COMMISSION · CHALLENGES OF SC-ST-OBC COMMISSIONS · TYPES OF RIGHTS

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 8-11

✎ *The NCBC got constitutional status in 2018, so it can no longer be changed at the executive's will and it has civil-court powers in inquiries. All three commissions (SC, ST, OBC) suffer from similar problems: vacancies, advisory-only powers, delays and low awareness. The chapter also explains the four kinds of rights (natural, moral, legal, human) and how Fundamental Rights differ from other constitutional rights.*

NATIONAL COMMISSION FOR BACKWARD CLASSES (NCBC)

Why backwardness is a caste question in India

→ Backward classes in India are rooted in systemic disadvantage tied to ***caste, occupation and social hierarchy***.

→ Social "class" is fluid (a person can move up), but caste-based backwardness carries ***intergenerational barriers*** in education, jobs and representation.

→ To address this, constitutional and statutory mechanisms were created. They ended in the NCBC.

→ Once the NCBC was given ***constitutional status (2018)***, it no longer depends on executive discretion. It works as an autonomous constitutional body, giving it autonomy while keeping it accountable to the highest constitutional office.

Justice Rohini Commission (OBC sub-categorisation)

→ Set up in ***2017 under Article 340*** to examine sub-classification of the ***27% OBC quota***.

→ It proposed dividing OBC castes into ***four groups*** so that benefits reach the less-advantaged castes, not only the dominant ones.

→ ***Proposed split:*** Group 1 gets 2%, Group 2 gets 6%, Group 3 gets 9% and Group 4 gets 10% (total 27%).

→ The final report was still awaited as per the handout.

Powers of the NCBC (civil-court powers)

→ It can ***summon and enforce the attendance*** of any person from anywhere in India and examine them on oath.

→ It can require the ***discovery and production*** of official or private documents.

→ It can receive evidence on ***affidavits*** and requisition public records from courts or government offices.

→ It can issue summons for witnesses and documents, and has any other powers the President gives it.

→ These quasi-judicial powers let it investigate independently and hold institutions accountable.

Benefits of constitutional status (with examples)

→ ***1. More authority.*** Civil-court powers in inquiries make officials accountable. It can summon officers, demand records and take affidavits while probing OBC grievances.

→ ***2. Wider mandate.*** Earlier it only revised the OBC list; now it also monitors welfare schemes and safeguards. It can probe denial of scholarships or weak enforcement of reservation.

→ ***3. Parliamentary oversight.*** Its reports are tabled in Parliament, which forces an executive response. Its 2022 report on under-use of OBC welfare funds made ministries explain corrective steps.

→ ***4. Independence.*** Tenure and service safeguards stop arbitrary changes to how it works.

→ ***5. Stronger social-justice role.*** It acted on the reservation backlog in central PSUs and pushed recruitment drives for OBC candidates.

→ **6. Symbolic and political value.** Constitutional status in 2018 reassured the roughly **40%** of India that is OBC of the State's commitment to equity.

Note on the handout: the table on the NCBC's composition and Articles (338B and related provisions) was an image in the PDF and could not be read. Add it from the handout by hand.

CHALLENGES FACED BY SC, ST AND OBC COMMISSIONS

Seven shared problems

→ **1. Vacancies and resource gaps.** Persistent understaffing and small budgets weaken them. A 2022 Parliamentary Committee noted the NCST was running on less than 50% of sanctioned strength, which hurt its inquiries.

→ **2. Erosion of autonomy.** Politics influences appointments and recommendations are not binding, which reduces credibility. NCBC's 2020 reports on OBC reservation backlog in central universities were ignored by ministries.

→ **3. Weak statutory powers.** They cannot enforce compliance or fix structural problems. The NCBC cannot define "backwardness", as clarified in the Maratha Quota judgment (2021).

→ **4. Case backlog and delayed reporting.** Thousands of complaints are pending and annual reports reach Parliament late, which blunts accountability.

→ **5. Opaque functioning.** Little transparency in how members are selected and limited disclosure of outcomes lower public trust.

→ **6. Representation deficit.** Retired bureaucrats dominate instead of experts, academics or community representatives, so perspectives are narrow.

→ **7. Low outreach and awareness.** Target communities often do not know how to complain. NCRB 2020 showed rising SC/ST atrocity cases but few complaints reached the commissions because people did not know the procedure.

Pathways for reform

→ ***Independence:*** redo appointment processes with clear criteria, expert representation and less political interference.

→ ***Wider powers:*** consider making recommendations binding; let the NCBC define backwardness parameters; harmonise powers across the SC, ST and OBC commissions.

→ ***Efficiency:*** fill vacancies quickly, give adequate budgets and modernise case-handling infrastructure.

→ ***Transparency:*** digital case tracking, fixed timelines for resolving complaints and regular public disclosures.

→ ***Data and research:*** build full caste/tribe databases and commission impact studies of welfare schemes (like post-NFHS style surveys).

→ ***Collaboration:*** structured coordination with ministries, State commissions and NGOs, and partnerships with academic institutions.

→ ***Capacity:*** a dedicated cadre for these commissions, with training for members and staff in rights, technology and emerging challenges.

Conclusion: strengthening the SC, ST and OBC commissions needs autonomy, resources and binding powers. With transparency, data-driven policy and collaboration, they can become credible constitutional watchdogs that deliver substantive equality.

TYPES OF RIGHTS

What is a right? A justified claim that allows individuals to live with dignity and freedom. Rights are broadly of four types.

Type	Meaning and key features	Examples
Natural rights	Belong to every person by birth. They are ***not granted by the government***. Considered universal and inalienable.	Right to life, liberty and property
Moral rights	Based on moral values, conscience and social acceptance. Generally ***not legally enforceable***.	Right to respectful and fair treatment
Legal rights	Recognised and protected by law and ***enforceable through courts***.	Civil rights (life, liberty, equality); Political rights (voting, contesting elections); Economic rights (work, fair wages, social security)
Human rights	Universal and inalienable rights available to all individuals: civil, political, economic, social and cultural. Recognised under the ***UDHR, 1948***.	Right to life, dignity, equality, education and freedom

FUNDAMENTAL RIGHTS vs CONSTITUTIONAL RIGHTS

Both are categories of legal rights. The difference is where they sit and how they are enforced.

Basis	Fundamental Rights	Other constitutional rights
Meaning	Basic rights guaranteed under ***Part III*** of the Constitution	Rights given by the Constitution but ***outside Part III***
Provisions	Articles 12–35	Various provisions, such as Article 300A and Article 326
Examples	Right to Equality, Freedom, Life and Personal Liberty	Right to Property (Art 300A) and Right to Vote (Art 326)
Enforcement	Directly enforceable through ***Article 32 (Supreme Court)*** and ***Article 226 (High Court)***	Enforceable through appropriate legal remedies, depending on the right

Key point: all Fundamental Rights are constitutional rights, but not all constitutional rights are Fundamental Rights.

Recall drill: cover and answer

When did the NCBC get constitutional status?	2018 (102nd Amendment)	Under which Article was the Rohini Commission set up?	Article 340, in 2017
Rohini proposal for the 27% OBC quota	4 groups: 2%, 6%, 9%, 10%	Which judgment said NCBC cannot define backwardness?	Maratha Quota judgment, 2021
Four types of rights	Natural, moral, legal, human	Which rights can be enforced directly under Art 32?	Fundamental Rights (Part III)
Right to property is under which Article now?	Article 300A (a constitutional right, not fundamental)	Right to vote is under which Article?	Article 326

⚖ NATIONAL HUMAN RIGHTS COMMISSION (NHRC) · COMPOSITION · WORKING · FUNCTIONS · ROLE · REFORMS ⚖

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 11–16

✎ *The NHRC was set up in 1993 under the Protection of Human Rights Act after worries about custodial violence and encounter deaths. It inquires into violations (suo motu or on complaint), visits jails, reviews safeguards and spreads awareness. Its recommendations are only advisory, it cannot touch the armed forces except to ask for reports, and GANHRI has criticised its independence. Reforms aim to give it binding force, transparent appointments and more staff.*

WHY AND HOW THE NHRC WAS CREATED

Background

→ Human rights are the inherent and inalienable rights of every person, ensuring dignity, equality and freedom regardless of race, caste, gender or belief.

→ In the 1980s and early 1990s, concern about ***custodial violence, encounter deaths and systemic discrimination*** pushed India to build an institution to protect rights. This led to the NHRC under the ***Protection of Human Rights Act, 1993***.

→ Parliament built a ***three-tier structure***: the NHRC at the national level, ***State Human Rights Commissions (SHRCs)*** in States, and ***Human Rights Courts*** in districts. This aims for both accountability and access.

→ It works in line with the UN-endorsed ***Paris Principles (1993)***, which call for autonomy, independence and accountability of national human rights institutions.

COMPOSITION AND STRUCTURE

Aspect	Details
Established	**12 October 1993**, under the Protection of Human Rights Act, 1993
Composition	A Chairperson, **5 full-time Members** and **7 ex-officio Members**
Selection committee	Prime Minister (chair); Home Minister; Speaker of Lok Sabha; Deputy Chairman of Rajya Sabha; Leader of Opposition in Lok Sabha; Leader of Opposition in Rajya Sabha
Appointing authority	The **President of India**
Eligibility: Chairperson	A retired Chief Justice of India or a retired Judge of the Supreme Court
Eligibility: Members	One Member who is or was a Supreme Court Judge; one who is or was a **Chief Justice of a High Court**; **three** with knowledge or experience of human rights (at least one must be a woman)
Ex-officio Members	Chairpersons of the National Commissions for SCs, STs, Women and Minorities; Chairperson of the National Commission for Backward Classes; Chairperson of the NCPCR; Chief Commissioner for Persons with Disabilities
Term	**3 years or until age 70**, whichever is earlier. Eligible for reappointment.
Removal	By the President on grounds of misbehaviour or incapacity, **after an inquiry by the Supreme Court**
Salary and allowances	Fixed by the Central Government but **cannot be changed to their disadvantage**
Powers	Powers of a civil court during inquiries; can call for information from government and authorities; can recommend compensation or prosecution; can use the services of officers and investigation agencies; expanded role in Union Territories, and the Secretary-General has administrative and financial powers

PM-HM-LS-DCh-LoP – NHRC selection panel = **PM, Home Minister, Speaker, RS Deputy Chairman, and the two Leaders of Opposition** (six people). (own mnemonic)

HOW THE NHRC WORKS (PROCEDURE)

Step by step (governed by the 1993 Act and the NHRC (Procedure) Regulations, 1994)

→ **1. Complaint.** Individuals, NGOs or the Commission itself (suo motu) can start a case. It should generally relate to violations within **one year** of occurrence. The Law Division first screens it before it is admitted.

→ **2. Inquiry.** After admission the NHRC can either investigate itself through its **Investigation Division** (headed by an officer of Director General of Police rank) or ask the concerned authority or police for a report. It then decides whether the act is a "violation" under the law.

→ **3. Hearings and recommendations.** In serious matters (custodial deaths, bonded labour, encounter killings) it holds open hearings or field visits. It then recommends compensation, disciplinary action or a policy change.

→ **4. Follow-up.** The ministry or State must submit an **Action Taken Report (ATR) within one month**. The NHRC reviews compliance and may publish non-compliance in its annual report, which is tabled in Parliament, so there is public accountability.

→ **5. Coordination and research.** It works through specialised divisions (Research, Training, Policy, Awareness) to build institutional knowledge.

FUNCTIONS (SECTION 12 OF THE 1993 ACT)

Eleven functions

→ ***1. Inquiry into violations*** (Sections 17–18): into violations, or negligence in preventing them, by a public servant, suo motu, on a petition, or on a court's reference. This is its core function.

→ ***2. Intervening in court proceedings*** that involve allegations of human rights violations, with the court's approval.

→ ***3. Inspecting detention centres*** (jails, juvenile homes, psychiatric facilities) to study living conditions and suggest reform, in line with the UN ***Mandela Rules (2015)***.

→ ***4. Reviewing legal safeguards***: Fundamental Rights, criminal procedure, prison laws and police manuals, and advising on effective enforcement.

→ ***5. Addressing factors that inhibit rights***: terrorism, displacement, communal violence, environmental damage; suggesting preventive or remedial steps.

→ ***6. International alignment***: studying treaties like the ***UDHR 1948, ICCPR 1966 and CEDAW 1979*** and recommending domestic alignment; coordinating with the UN Human Rights Council and other national institutions under the Paris Principles.

→ ***7. Research and policy*** on themes like gender violence, bonded labour and climate justice.

→ ***8. Human rights literacy***: publications, training for police and officials, campaigns in schools and universities with NCERT and UGC.

→ ***9. Working with civil society***: supporting NGOs and rights defenders as partners in advocacy and victim assistance.

→ ***10. Miscellaneous***: any other function needed for promoting rights, including setting up human rights courts, monitoring bonded labour and overseeing women and child protection.

→ ***11. Added by practice and amendment***: monitoring Supreme Court orders on custodial deaths, manual scavenging and police reforms, and overseeing the National Action Plan on Business and Human Rights (NAP-BHR) started by the Ministry of Corporate Affairs.

GANHRI (Global Alliance of National Human Rights Institutions) accredits national human rights bodies. It has repeatedly raised concerns about India's NHRC. Recent reports (2024–25) say the selection process is ***non-transparent*** (vacancies not publicly advertised; vague application, screening and appointment procedures), follow-up on serious violations is weak, independence from the executive is limited and civil society participation is thin. These critiques contributed to the recommendation to ***downgrade the NHRC from "A" grade*** accreditation. (verify current status)

ROLE PLAYED BY THE NHRC

Main contributions

→ ***Guidelines and legal oversight.*** It issued detailed guidelines on custodial deaths, which later shaped Supreme Court law (***D. K. Basu v. State of West Bengal, 1997***). It criticised misuse of special security laws such as POTA and TADA and recommended safeguards against arbitrary detention.

→ ***Socio-economic rights and marginalised groups.*** It took up the starvation deaths in Odisha (2001–02), leading to stronger monitoring of food-security schemes in Kalahandi and Bolangir. In 2022 it flagged large-scale displacement of tribals in Chhattisgarh due to mining and told the State to ensure rehabilitation.

→ ***Complementing the judiciary.*** In ***NHRC v. State of Arunachal Pradesh (1996)*** the Supreme Court upheld the NHRC's standing to move the court to protect Chakma refugees. Its prison reports (2017–18) fed into the ***Justice Amitava Roy Committee*** recommendations on decongesting prisons.

→ ***Policy advocacy and awareness.*** Its recommendations helped shape the ***Juvenile Justice Act (2000)*** and the ***Mental Healthcare Act (2017)***. It launched open online courses on human rights in 2020.

Case (year)	NHRC's role
Gujarat riots (2002)	Took suo motu notice of mass graves, pressed the State to report on measures and moved the Supreme Court on behalf of victims
Punjab mass cremations (1995–2012)	Directed **Rs 1.75 lakh** compensation each to **1,051 families** whose kin were cremated unlawfully; a landmark for dignity rights
Silicosis deaths in Gujarat (2011–ongoing)	Investigated unsafe working conditions for tribal labourers; pressed for State action and compensation
Rohingya refugees in Jammu (2017)	Asked the government to ensure basic humanitarian facilities and non-discriminatory treatment
Farmers' suicides in Maharashtra (2018)	Issued notices to the State over agrarian distress and the lack of institutional support for farmers' families
Manipur extra-judicial killings (2013–16)	After petitions, monitored the SC-appointed SIT on **1,528** alleged fake encounters; it also showed NHRC's limits, with the SC calling it a "**toothless tiger**"
COVID-19 migrant crisis (2020)	Intervened in migrant deaths from hunger or exhaustion; sought reports from States and railways; pressed for relief
Hathras case (2020)	Took cognisance of the alleged gang-rape of a Dalit woman and the hurried cremation; sought accountability of UP authorities
Manipur violence (2023)	Issued notices to the Centre and State on large-scale displacement and sexual violence against women during ethnic clashes

CHALLENGES AND WHERE THE NHRC HAS FAILED

Six challenges

→ **1. No enforcement power.** Recommendations are advisory, so compliance is poor. It cannot impose penalties or directly award compensation. In 2016, then NHRC Chairperson Justice H. L. Dattu himself called it a "toothless tiger" in an interview.

→ **2. Limited jurisdiction.** In cases involving the armed forces it can only seek a report from the government. It cannot take up cases older than one year, or violations by private individuals unless State complicity is proved.

→ **3. Structure and composition.** Too many retired judges make it more judicial than human-rights-centred. There is limited diversity: SCs, STs, women and civil society activists are under-represented. Critics call it a "post-retirement" home for judges and bureaucrats.

→ **4. Operations and resources.** A heavy backlog from excess caseload; inadequate staffing, especially in investigation and research (many on deputation); scarce funds that hamper outreach, especially at State level.

→ **5. Independence and credibility.** The executive dominates appointments, raising doubts about impartiality; reliance on government resources reduces perceived autonomy. GANHRI downgraded its accreditation in 2017, citing political interference and lack of pluralism.

→ **6. Accessibility and awareness.** Many citizens, especially from marginalised groups, do not know the NHRC's mandate. Procedural complexity and urban-centred working limit access.

Case (year)	What went wrong
G. N. Saibaba case (2024–25)	Despite repeated pleas from the imprisoned academic about prison conditions and health, the NHRC was criticised for dismissing complaints and not ensuring protection and medical care
"Nata Pratha" minor girl suicide case (2024)	The girl, allegedly sold by her father after police ignored her complaint, died by suicide in 2020. The NHRC enquiry found police inaction, but justice has been slow and accountability partial
District Mineral Foundation (DMF) funds, Odisha (2025)	The NHRC asked for reports on delay or misuse of DMF funds meant for mining-affected areas, but actual corrective action and relief to affected people remain uncertain

WAY FORWARD: REFORMING AND STRENGTHENING THE NHRC

Six reform directions

→ ***1. Powers and jurisdiction.*** Make recommendations binding in grave violations, with a statutory duty on governments to respond. Extend jurisdiction to violations by private actors and security forces, with independent investigation wings.

→ ***2. Transparent, inclusive appointments.*** Publicly advertise vacancies with clear application, screening and shortlisting steps. Add diversity: women, SC/ST, minorities and rights activists alongside judges.

→ ***3. Resources and decentralisation.*** A dedicated budget and permanent staff instead of deputation. Regional benches and stronger SHRCs for faster handling.

→ ***4. Accountability and follow-up.*** An online tracker for the status of recommendations and government responses; periodic independent audits and parliamentary review of annual reports.

→ ***5. Awareness and victim support.*** Targeted outreach in rural, tribal and marginalised areas; multilingual online complaint portals; free legal and medical aid for victims.

→ ***6. Regular legal and institutional review.*** Amend the Protection of Human Rights Act periodically to meet global standards like the Paris Principles; evaluate performance through external committees and civil society consultation.

Recall drill: cover and answer

NHRC established on	12 October 1993, under the Protection of Human Rights Act, 1993	NHRC members	Chairperson + 5 full-time + 7 ex-officio
Who can be NHRC Chairperson?	A retired Chief Justice of India or SC judge	NHRC term	3 years or age 70, whichever is earlier
Who removes an NHRC member?	The President, after a Supreme Court inquiry	Time limit to file a complaint	Generally within one year of the violation
ATR must be submitted within	One month	NHRC and armed forces	Can only seek a report from the government
International standards for national human rights bodies	Paris Principles (1993)	Who accredits national human rights institutions?	GANHRI

⚖ UDHR 1948 AND THE CONSTITUTION · STATE HUMAN RIGHTS COMMISSIONS · HUMAN RIGHTS COURTS ⚖

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 16–19

✎ *The UDHR (1948) set the moral base for human rights, and many of its ideas appear in India's Preamble, Fundamental Rights, DPSP and Fundamental Duties. State Human Rights Commissions (SHRCs) are the State-level counterparts of the NHRC, and Human*

Rights Courts (Section 30) try human rights offences in districts. The 2019 amendment changed tenure and eligibility. Both SHRCs and these courts are weak in practice.

UNIVERSAL DECLARATION OF HUMAN RIGHTS (UDHR), 1948

What it is

→ Adopted by the UN General Assembly on ***10 December 1948***. It was the ***first international document*** to recognise that all human beings are born free and equal in dignity and rights.

→ Drafted after the Second World War to prevent future atrocities by setting common standards of justice, freedom and peace.

→ It rests on four principles: ***Dignity, Liberty, Equality and Brotherhood***.

→ It has ***30 Articles***, broadly grouped into civil-political rights and socio-economic rights.

How the Indian Constitution reflects the UDHR

→ ***Preamble:*** promises Justice, Liberty, Equality and Fraternity, reflecting the UDHR's commitment to dignity and freedom.

Indian provision	Matching idea	UDHR link
Articles 14–18 (Fundamental Rights)	Equality and non-discrimination	UDHR Arts 1, 7
Articles 19–22	Freedom, life and personal liberty	UDHR Arts 3, 9, 19, 20
Articles 23–24	Protection against exploitation	UDHR Art 4
Articles 25–28	Freedom of religion	UDHR Art 18
Articles 29–30	Cultural and educational rights	UDHR Arts 26, 27
Article 32	Constitutional remedies	UDHR Art 8
DPSP: Art 38	Social and economic justice	UDHR Arts 22–25 (socio-economic rights)
DPSP: Art 39	Adequate livelihood and equal pay	same
DPSP: Art 41	Right to work, education and public assistance	same
DPSP: Art 42	Humane working conditions and maternity relief	same
DPSP: Art 47	Nutrition and public health	same
Duty 51A(e)	Promote harmony; respect women's dignity	UDHR emphasis on dignity
Duty 51A(f)	Preserve composite culture	cultural rights
Duty 51A(h)	Develop scientific temper and humanism	social responsibility

Other constitutional provisions that echo the UDHR

→ ***Article 21A:*** free and compulsory education for children aged 6 to 14 (UDHR Art 26).

→ ***Article 45:*** early childhood care and education for children below 6.

→ ***Article 300A:*** right to property (UDHR Art 17).

→ ***Article 326:*** adult suffrage, reflecting the right to political participation (UDHR Art 21).

Conclusion: the Indian Constitution gives legal and institutional form to many UDHR principles by protecting dignity through Fundamental Rights, DPSP and Fundamental Duties.

STATE HUMAN RIGHTS COMMISSIONS (SHRCs)

Role

→ Working inside a State's boundaries, SHRCs monitor prisons, handle custodial violence, review safeguards and create awareness.

→ They are the ***first line of institutional redress*** for citizens and complement the NHRC in building a nationwide human rights architecture based on constitutional morality and accountability.

Aspect	Provision (after the 2019 amendment)
Composition	A Chairperson and ***2 Members***. Chairperson: a retired Chief Justice or Judge of a High Court (after 2019, even a retired HC judge is eligible, not only a Chief Justice). Members: (i) a serving or retired HC judge or a District Judge with 7 years' experience; (ii) an expert in human rights.
Appointing authority	The ***Governor***, on the recommendation of a committee headed by the ***Chief Minister***, with the Speaker of the Assembly, the State Home Minister and the Leader of Opposition in the Assembly. If the Legislature has two Houses, the Chairman and Leader of Opposition of the Legislative Council are also included.
Consultation	If a sitting HC judge or District Judge is to be appointed, ***prior consultation with the Chief Justice of the High Court*** is mandatory.
Tenure	***3 years or until age 70*** (reduced from 5 years by the 2019 Amendment). Eligible for reappointment.
Removal	Only the ***President*** can remove them (not the Governor), on grounds like insolvency, infirmity, conviction or misbehaviour, proved by a Supreme Court inquiry (similar to the NHRC).
After tenure	Cannot take employment under the State or Central Government.
Conditions of service	Decided by the State Government but cannot be changed to their disadvantage after appointment.
Administration	The Secretary holds administrative and financial powers, subject to the Chairperson's control (2019 amendment).

Powers and functions (Section 29 of the 1993 Act) — preventive, corrective and advisory

→ ***1. Inquiry into violations*** (suo motu, on petition or on a court's direction): custodial deaths, police excesses, bonded labour, discrimination by State authorities.

→ ***2. Intervening in judicial proceedings*** involving human rights allegations, so State agencies follow constitutional and legal safeguards.

→ ***3. Inspecting and monitoring*** jails, detention centres and mental health institutions, and recommending humane treatment, medical care and legal aid.

→ ***4. Reviewing legal safeguards*** and recommending legislative or policy changes.

→ ***5. Examining structural causes*** such as terrorism, communal violence and systemic exclusion.

→ ***6. Engaging with international norms*** by studying treaties and advising the State to align local laws.

→ ***7. Research, education and awareness*** through drives, school curricula, workshops and tie-ups with NGOs and universities.

→ ***8. Collaborating with civil society***, acting as a bridge between NGOs and the State.

Working mechanism and inquiry procedure

→ ***1. Complaint and admissibility.*** Any person, NGO or public authority can complain (online, by post or in person); the Commission also takes suo motu notice of media reports. Cases ***older than one year*** are ordinarily not admitted unless there are exceptional circumstances.

→ ***2. Preliminary scrutiny (Section 17).*** It may seek information or a report from the State Government or a subordinate authority within a set time. If there is no reply it proceeds on its own. If it is satisfied that remedial action has already been taken, it may close the matter and inform the complainant.

→ **3. Inquiry and hearing.** It inquires directly or through its investigation division with civil-court powers under the **Code of Civil Procedure, 1908** (summoning witnesses, requisitioning documents, recording evidence on oath). Hearings are open and follow natural justice.

→ **4. Recommendations (Section 18).** On finding a violation it may recommend **compensation or damages**, advise **disciplinary or criminal proceedings** against erring officials, and suggest policy or administrative reform. The State Government must send an **Action Taken Report within one month**.

→ **5. Special procedure for armed forces (Section 19).** For the armed or paramilitary forces it can only call for a report from the **Central Government** and make recommendations on that basis. The Centre must report back **within three months**, so oversight exists, though limited.

→ **6. Documentation and follow-up.** Inquiries, decisions and compliance updates are published in the Annual Report tabled in the **State Legislature**. Persistent non-compliance is publicly highlighted, which adds moral and political pressure.

→ **7. Coordination and outreach.** It works with the NHRC, Human Rights Courts and civil society to harmonise standards and avoid duplication, with field visits and training especially in rural and tribal areas.

Key challenges

→ **Non-binding:** State governments often ignore recommendations.

→ **Resource constraints:** staff shortages and no financial autonomy in many SHRCs.

→ **Limited jurisdiction:** cannot revisit cases already before the NHRC, and cannot take up violations older than one year.

→ **Implementation gap:** reports laid before legislatures often see delays or minimal follow-up.

HUMAN RIGHTS COURTS (SECTION 30 OF THE 1993 ACT)

Idea: to give speedy justice and real enforcement, the Act requires Human Rights Courts in every district. They are the grassroots judicial mechanism.

→ **Establishment (Section 30):** the State Government, with the **concurrence of the Chief Justice of the High Court**, notifies a Human Rights Court for each district to try offences from human rights violations. In most States, the **Sessions Court** is designated.

→ **Jurisdiction:** they try human rights violations or negligence by public servants that amount to criminal offences. The aim is expeditious trial, because such cases would otherwise face delays in ordinary courts.

→ **Special Public Prosecutor (Section 31):** the State must appoint one for every Human Rights Court; a practising advocate with at least **7 years'** experience.

→ **Link with SHRC/NHRC:** SHRCs and the NHRC investigate and recommend; Human Rights Courts actually **try offences and punish**. This bridges the gap between recommendation and enforcement.

Limitations and recent developments

→ In practice these courts are used rarely. Many States have designated Sessions Courts only on paper, with no separate infrastructure, exclusive judges or funds. Victims are unaware, and SHRCs refer few cases.

→ Tamil Nadu, Kerala and Maharashtra have started exclusive benches or pilot human rights courts.

→ The Supreme Court (2018, **Re: Inhuman Conditions in 1382 Prisons**) directed States to make these courts operational to deal with custodial violence and prison abuse.

Recall drill: cover and answer

UDHR adopted on	10 December 1948 (UN General Assembly)	UDHR has how many Articles?	30
UDHR Article 21 corresponds to which Indian Article?	Article 326 (adult suffrage, political participation)	SHRC members	Chairperson + 2 Members
Who appoints SHRC members?	The Governor, on a committee led by the Chief Minister	Who can remove SHRC members?	Only the President, after a Supreme Court inquiry
SHRC and NHRC tenure after 2019	3 years or age 70	SHRC and armed forces (Section 19)	Can only seek a Centre report; Centre responds in 3 months
Human Rights Courts under which Section?	Section 30 (Special Public Prosecutor: Section 31)	Supreme Court case on prison conditions and HR courts	Re: Inhuman Conditions in 1382 Prisons, 2018

NATIONAL COMMISSION FOR WOMEN (NCW) · COMPOSITION · POWERS · RECENT WORK · CONSTITUTIONAL STATUS · PMLA

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 19-23

✎ *The NCW is a statutory body (1992, under the NCW Act 1990) that watches over women's rights, inquires into violations and advises the government. It has civil-court powers during inquiries but its recommendations are only advisory. There is a long-running demand to give it constitutional status like the NCSC and NCST, for autonomy, binding force and parity. The Parivarik Mahila Lok Adalat gives women a fast, informal way to settle family disputes.*

WHAT THE NCW IS

Introduction

→ Set up in **1992** under the ***National Commission for Women Act, 1990***. It is the apex statutory body that monitors constitutional safeguards for women, investigates violations and advises the government on legal and policy reform.

→ It was set up to promote gender justice in line with India's commitments under ***CEDAW (1979)***.

→ It acts as a ***watchdog and catalyst*** for women's rights, empowerment and participation in governance.

Aspect	*Provision*
Composition	Chairperson + ***5 Members*** + a Member-Secretary. Chairperson: an eminent woman committed to women's welfare. Members: experts from law, administration, management, the women's movement or social work (***one from SC/ST***). Member-Secretary: an expert in management or research, or a senior government officer.
Appointing authority	The ***Central Government*** appoints all members under the NCW Act, 1990.
Tenure	3 years (or as prescribed by the Government); eligible for reappointment.
Resignation and removal	Members can resign to the Central Government; they can be removed for insolvency, conviction or incapacity.
Service conditions	Set by the Central Government and not to be altered to their disadvantage during tenure.
Headquarters	New Delhi; may set up regional offices as needed.

FUNCTIONS AND POWERS

Functions (legal review, policy coordination, awareness, grievance redress)

→ ***1. Review of constitutional and legal safeguards:*** checks whether constitutional provisions and laws protect women enough and recommends amendments.

→ ***2. Investigation and inquiry:*** looks into specific complaints and suo motu cases of deprivation of women's rights, non-implementation of protective laws, or failures of the administration.

→ ***3. Advice to government:*** advises the Centre and States on policy, legal reform and effective implementation of women's welfare programmes.

→ ***4. Monitoring custodial and institutional facilities:*** inspects jails, remand homes and women's shelters to ensure humane, lawful treatment.

→ ***5. Research and documentation:*** studies on trafficking, workplace harassment, domestic violence and the declining sex ratio to support evidence-based policy.

→ ***6. Public awareness and legal literacy:*** campaigns and workshops on women's rights and remedies.

→ ***7. Collaboration with NGOs and civil society.***

→ ***8. Intervention in court cases*** involving serious violations of women's rights, especially where public interest is involved or legal aid is needed.

Powers (quasi-judicial: investigative, recommendatory, advisory)

→ ***Civil-court powers*** under the Code of Civil Procedure, 1908, while investigating: summon witnesses, examine them on oath, demand documents and receive affidavits.

→ ***Power to inquire*** suo motu or on petition, including non-enforcement of protective laws and maladministration.

→ ***Power to call for reports*** from any central or State department or agency on women's rights and welfare.

→ ***Power to recommend prosecution, compensation or disciplinary action*** after an inquiry.

→ ***Power to visit custodial institutions*** such as jails, remand homes and shelters.

→ ***Power to hold public hearings*** and consultations on issues like sexual violence, trafficking and workplace discrimination.

→ ***Advisory and recommendatory power:*** recommendations are ***not legally binding***, but its reports often guide reform, for example to the Dowry Prohibition Act and the Sexual Harassment at Workplace Act.

RECENT INTERVENTIONS (2020-2025)

The NCW has gone beyond its statutory functions to deal with cybercrime, workplace safety, digital awareness and gender-sensitive governance, a shift from redressal to empowerment.

→ ***Online harassment (2020-24):*** launched the ***Digital Shakti Campaign*** (Phase IV, 2022) with Meta and Cyber Peace Foundation to train women in online safety and digital literacy. Over ***3 lakh*** women sensitised on cyber hygiene and legal recourse.

→ ***Economic empowerment:*** the ***She Is a Changemaker*** programme (2021) to build leadership among women in politics, PRIs and social sectors. Skill and entrepreneurship workshops for over ***12,000*** grassroots women leaders.

→ ***Legal awareness and counselling:*** expanded the ***One Stop Centres*** network and strengthened the 24x7 ***Women Helpline (181)*** for counselling, legal aid and rehabilitation. Launched the ***"We Think Digital"*** campaign for cyber-legal literacy among college students.

→ ***High-profile cases:*** suo motu cognisance of the ***Hathras gang-rape (2020)***, ***Manipur ethnic violence (2023)*** and the ***Kallakurichi school suicide case (2022)***, issuing notices and ensuring time-bound reporting and victim assistance.

→ ***Law reform:*** recommended amendments to the Indecent Representation of Women (Prohibition) Act, pushed gender-budgeting audits and monitored implementation of POSH guidelines in workplaces.

→ ***Gender sensitisation:*** with the Bureau of Police Research and Development (BPR&D) trained over ***30,000*** police personnel on gender sensitivity and victim handling.

→ ***Marginalised women:*** initiatives for trafficking survivors, migrant women and transgender women, with health outreach and livelihood schemes (2023).

DEMAND FOR CONSTITUTIONAL STATUS FOR THE NCW

The idea: since 1992 the NCW has been statutory. There is a consistent demand to give it constitutional status like the NCSC (Art 338) and NCST (Art 338A), to strengthen its authority and independence.

→ ***Why it is demanded***

→ ***Limited enforcement:*** its recommendations are advisory, so governments and police often do not comply.

→ ***Executive dependence:*** appointment and funding are controlled by the Ministry of Women and Child Development, hurting autonomy and credibility.

→ ***Rising gender-based violence:*** growing crimes against women, online abuse and systemic discrimination need a stronger body with direct accountability.

→ ***International commitments:*** constitutional status would match global standards such as the UN Paris Principles (1993) on independent national human rights institutions.

→ ***Parity:*** SCs and STs already have constitutional commissions; similar status for women would improve institutional equality.

Expected benefits

→ ***More autonomy:*** independent appointments, secure tenure and money charged to the ***Consolidated Fund of India***.

→ ***Binding recommendations*** on women's rights, workplace safety and law enforcement.

→ ***Continuity:*** protection from political or administrative interference across governments.

→ ***Stronger policy impact*** on domestic violence, cyber safety and reproductive rights.

→ ***Better global standing*** in compliance with CEDAW.

Challenges the NCW faces today

→ ***Limited autonomy and perceived political bias.*** As a statutory body it is less independent than constitutional bodies like the EC or CAG. Allegations of bias came up during the Manipur crisis in 2023.

→ ***Inadequate resources.*** A Parliamentary Committee on Empowerment of Women (2022) said staff were too few for all-India coverage.

→ ***High crime despite oversight.*** NCRB 2022 recorded over ***4.45 lakh*** cases of crimes against women; conviction rates remain low, so deterrence is weak.

→ ***Marginalised women neglected.*** Concerns of tribal, Dalit and migrant women seldom reach the NCW; women sugarcane cutters in Maharashtra stayed under-reported despite petitions.

→ ***Advisory nature.*** Governments can ignore or delay action; many reports (for example after the Kathua rape case, 2018) saw slow State responses.

→ ***Overlapping jurisdictions*** with State Commissions, the NHRC and Lokpal; the Committee on Empowerment of Women has repeatedly asked for a clearer delineation of powers.

→ ***Slow grievance redress.*** It gets ***20,000+*** complaints a year (2022 data), many resolved late. There is no real-time, technology-based monitoring.

Way forward

→ ***Constitutional status*** for independence, as suggested by the ***Justice Verma Committee (2013)*** after the Delhi gang-rape.

→ ***Transparent, inclusive appointments*** including women activists and academics, not only government nominees. The Supreme Court in the ***Anjali Bhardwaj case (2019)*** stressed transparency in appointments.

→ ***Reach marginalised women***: Dalit, tribal, migrant and rural.

→ ***More staff, funds and digital infrastructure*** including tech-based grievance redress.

→ ***Binding power*** to enforce key recommendations.

→ ***New challenges:*** gig-economy work, cyber abuse and workplace harassment (NCW surveys in 2023 highlight gig women's vulnerabilities).

→ ***Stronger collaboration*** with civil society and State commissions.

PARIVARIK MAHILA LOK ADALAT (PMLA)

Launched by the NCW with State Legal Services Authorities as an informal, conciliatory forum for women-related disputes, mainly family and matrimonial ones. It works under the Legal Services Authorities Act, 1987, aiming at speedy, friendly and low-cost justice.

→ It handles ***domestic violence, maintenance, divorce, dowry, property disputes and custody***. Proceedings are women-friendly and non-adversarial.

→ The stress is on ***mediation, empathy and rehabilitation*** rather than punishment, so women can seek justice without fear or delay.

→ It works with NGO support in resolving family disputes.

Recall drill: cover and answer

NCW established in	1992, under the NCW Act, 1990	NCW members	Chairperson + 5 Members + Member-Secretary
Who appoints NCW members?	Central Government	NCW tenure	3 years
Is the NCW constitutional?	No, statutory; there is a demand to make it constitutional	Which committee suggested constitutional status (2013)?	Justice Verma Committee
Digital Shakti Campaign was in partnership with	Meta and Cyber Peace Foundation	Women Helpline number	181
PMLA works under which Act?	Legal Services Authorities Act, 1987		

NCPCR · STATE COMMISSIONS FOR CHILD RIGHTS (SCPCR) · CHILDREN'S COURTS

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 23–30

✎ *The NCPCR (2007, under the CPCR Act 2005) is the national watchdog for children's rights; each State may set up a similar SCPCR, and the Act also provides Children's Courts for speedy, child-friendly trials. It has civil-court powers and monitors the RTE, POCSO and JJ laws. Its advice is not binding, POCSO pendency is high and digital threats are growing, so reform aims at binding powers, fast-track courts and better tech.*

NATIONAL COMMISSION FOR PROTECTION OF CHILD RIGHTS (NCPCR)

Introduction

→ A statutory body set up in **2007** under the ***Commissions for Protection of Child Rights (CPCR) Act, 2005***. It functions under the ***Ministry of Women and Child Development (MWCD)*** and is the apex national institution to protect, promote and monitor children's rights.

→ Its moral and legal base is the ***UN Convention on the Rights of the Child (UNCRC), 1989***, which India ratified in **1992**. The UNCRC defines a child as any human being ***below 18***.

→ Its mandate covers review of child-related laws, investigation of violations, monitoring of laws like the ***RTE Act (2009), POCSO Act (2012) and JJ Act (2015)***, and promoting awareness and accountability.

Objectives

→ ***Protection and redress:*** take notice of cases where child rights are denied or violated and ensure redress by inquiry or legal action.

→ ***Policy and law review:*** examine laws, policies and programmes concerning children for alignment with the Constitution and international obligations.

→ ***Child-centric governance:*** integrate child-rights concerns in all government decisions and planning.

→ ***Monitor implementation*** of the Right to Education, Juvenile Justice and POCSO laws.

→ ***Research and awareness:*** studies, reports and outreach to make the public sensitive to child protection.

→ In essence it is a ***watchdog*** that keeps the State accountable to every child's rights to survival, development, protection and participation.

Initiatives to meet its mandate

→ ***POCSO e-Box:*** an online complaint box where children can directly report sexual abuse, confidentially, with quick redress and mandatory action under the POCSO Act. Used widely since 2016 so school children can complain without fear.

→ ***Samvardhan programme:*** vulnerability mapping to combat child trafficking, tied to district mechanisms and anti-trafficking units. Piloted in high-trafficking districts in Bihar and West Bengal.

→ ***MASI App (Monitoring App for Seamless Inspection):*** a digital tool for real-time inspection of Child Care Institutions (CCIs) to ensure compliance with JJ Act norms. It flagged serious gaps in shelter homes after the Muzaffarpur case.

→ ***GHAR-GO Portal (Go Home and Re-Unite):*** a digital platform to track and help restore or repatriate children in institutional care to their families or guardians. Used during COVID-19 to restore stranded migrant children.

Aspect	Provision
Legal basis	Commissions for Protection of Child Rights Act, 2005
Composition	1 Chairperson + ***6 Members*** (at least ***two must be women***)
Chairperson	A person of eminence who has made outstanding contributions to child welfare and development
Members (six fields)	Eminent persons experienced in: (1) education, (2) child health, care or welfare, (3) juvenile justice or child rehabilitation, (4) eliminating child labour or helping children in distress, (5) child psychology or sociology, (6) laws relating to children
Appointing authority	Central Government
Selection committee	3 members, chaired by the Union Minister of Women and Child Development, with senior officials of the ministry and one independent expert
Tenure	3 years, renewable once (maximum two terms)
Age limit	Chairperson up to ***65***; Members up to ***60***
Removal	On grounds of insolvency, incapacity, moral turpitude, misuse of office, absence from three consecutive meetings, etc.
Nature	Statutory, autonomous, recommendatory; has civil-court powers during inquiries

FUNCTIONS OF THE NCPCR

Core functions under the CPCR Act, 2005

→ ***1. Legal and institutional review*** of safeguards for child rights and recommending effective implementation (example: reviewing JJ Act implementation against UNCRC).

→ ***2. Monitoring and reporting:*** annual and special reports to the Central Government, tabled in Parliament with an ***Action Taken Memorandum***.

→ ***3. Inquiry and investigation*** into violations suo motu, on complaint or on court direction. It may summon witnesses, gather evidence and recommend prosecution or remedial action.

→ ***4. Addressing vulnerabilities:*** displacement, trafficking, child labour, conflict, HIV/AIDS, disasters and domestic violence.

→ ***5. Children in special circumstances:*** those in conflict with law, orphans, children of prisoners and children in institutions; recommending rehabilitation.

→ ***6. Inspection and oversight:*** visiting juvenile homes, observation homes and child-care institutions and directing remedial action.

→ ***7. Research and policy advocacy.***

→ ***8. Awareness and education*** of the public, parents, teachers and institutions (example: Child Rights Week initiatives).

→ ***9. Engagement with civil society***: NGOs, child welfare organisations and community groups.

→ ***10. A limit:*** it cannot inquire into any matter already pending before a State Commission (SCPCR) or another statutory body, to avoid overlap.

Extra functions under other child laws

→ ***RTE Act, 2009:*** review safeguards for the right to education; inquire into complaints of denial of free and compulsory education; use civil-court powers in such inquiries.

→ **POCSO Act, 2012:** monitor implementation nationwide; run awareness drives and training for law enforcement and the judiciary; include POCSO work in its annual report to Parliament.

→ **JJ Act, 2015:** oversee implementation including **Child Welfare Committees (CWCs)** and **Juvenile Justice Boards (JJBs)**; recommend improvements in rehabilitation, adoption and foster care; report compliance in its annual submission.

POWERS AND WORKING PROCEDURE

Inquiry process (Sections 14–17)

→ **1. How it takes notice:** suo motu, on a written complaint from an individual, NGO or child-rights organisation, or on court direction.

→ **2. Calling for reports:** it can seek information or a report from the Central or State Government or a subordinate authority within a fixed time. If reports are delayed it can go ahead on its own; if satisfied that adequate action has been taken it may close the case and inform the complainant.

→ **3. On-spot inquiry:** field visits, recording statements and inspecting institutions such as juvenile homes, schools or shelters.

→ **4. Full investigation:** if a preliminary review shows a prima facie violation, it starts a full inquiry, directly or through an authorised team.

Civil-court powers (Section 14)

→ Summon and examine witnesses on oath; demand discovery and production of documents; receive evidence on affidavits; requisition public records from any court or office; issue summons for examination of persons or papers; **authorise search and inspection of any premises or institution housing children**.

→ These give it procedural authority and independence from executive interference.

Actions after an inquiry (Sections 15–17)

→ **Recommend** that the government begin prosecution or disciplinary action, and recommend compensation, rehabilitation or damages for the victim.

→ **Approach higher courts:** move the Supreme Court or High Court for writs, orders or directions when legal enforcement is needed.

→ **Interim relief:** suggest rescue, shelter or medical care at once.

→ **Follow-up:** the government must submit an Action Taken Report within a set period; the NCPCR can publish findings and monitor compliance.

→ **Reports:** annual and special reports go to the Central and State Governments and are laid before Parliament and State Legislatures with memoranda on actions taken and reasons for non-implementation.

Working procedure

→ **Sittings** are held regularly with a minimum quorum; decisions are by majority.

→ A **Secretariat and Investigation Division** with legal, research and field officers (on deputation or direct recruitment).

→ **Coordination with SCPCRs** for jurisdictional clarity and information exchange.

→ **Child-friendly procedure:** confidential hearings, anonymity of child victims and non-adversarial questioning, as per POCSO guidelines (2012).

→ **Technology:** since 2020 online complaint portals and digital tracking through the **Baal Swaraj** e-monitoring system.

Challenges faced by the NCPCR

→ **Non-binding recommendations:** limits enforceability. The 2021 child-labour advisories were ignored by several States.

→ **Judicial pendency:** over **1.6 lakh** POCSO cases pending, which weakens deterrence and faith in child protection.

→ **Resource and staff deficit:** too few people to inspect child care institutions. MASI found gaps in CCIs, but follow-up is poor.

→ **Perceived political influence:** perceived bias weakens trust in its independence; its response to the Manipur violence drew criticism for delay.

→ **Online child sexual exploitation:** NCRB 2022 reports rising cybercrimes against children including grooming; the COVID-19 lockdown worsened online abuse and child pornography.

→ ***Digital trafficking networks:*** traffickers use gaming apps and the dark web to recruit children (UNODC 2021).

→ ***Rural awareness gap:*** NFHS-5 shows only ***36%*** of rural households know about child rights laws, so reporting is slow.

Way forward

→ ***Binding powers:*** amend the CPCR Act so that recommendations bind; the NHRC's stronger powers could be a model.

→ ***Fast-track mechanisms:*** special benches for POCSO and JJ Act cases (the Delhi High Court's 2023 directive shows the need for speedier hearings).

→ ***AI and digital tools*** to detect child sexual abuse material online (the EU's INHOPE network is an example of global cooperation).

→ ***Cyber-safety education*** in the NCERT curriculum (MeitY's 2022 child-safety toolkit is a baseline).

→ ***More money and staff***, including psychologists for child care institutions.

→ ***Independent appointments:*** add child-rights activists and legal experts to the selection panel (the Supreme Court's 2019 CIC judgment stressed transparent appointments).

→ ***Partner with tech firms:*** mandatory child-safety audits for gaming and social media companies (the UK Online Safety Bill 2023 offers lessons).

STATE COMMISSION FOR PROTECTION OF CHILD RIGHTS (SCPCR)

Each State Government can set up an SCPCR by notification in the Official Gazette under the CPCR Act, 2005 (Section 17). It is the State-level counterpart of the NCPCR, giving decentralised monitoring, investigation and promotion of child rights in line with national laws and UN conventions. It ensures State laws, policies and administration match child welfare principles in the Constitution, the UNCRC and national child-protection laws.

Aspect	Provision
Composition	Chairperson + 6 Members (at least 2 women)

Chairperson	A person of eminence with outstanding service in promoting child welfare and development
Members (six fields)	Education; child health, welfare or development; juvenile justice or care of marginalised children; eliminating child labour; child psychology or sociology; laws relating to children
Appointing authority	State Government
Selection committee	Chaired by the Minister-in-charge of the department dealing with children
Tenure	3 years; reappointment once (maximum two terms)
Age limit	Chairperson up to 65; Members up to 60
Removal	Can resign to the State Government; can be removed for misbehaviour, incapacity, insolvency or abuse of office
Nature	Statutory, quasi-judicial and recommendatory

Functions of the SCPCR (like the NCPCR, but limited to the State)

→ Examine State laws, welfare schemes and administrative mechanisms and recommend reform to the State Government.

→ Inquire into violations (suo motu or on complaint) and recommend prosecution or departmental action.

→ Inspect juvenile homes, observation homes and shelter homes run by the State or NGOs, ensuring JJ Act standards.

→ Examine problems of children affected by communal violence, trafficking, disasters, HIV/AIDS or domestic abuse and recommend protection.

→ Promote awareness and research on State-specific issues like dropout rates, trafficking or malnutrition.

→ Coordinate with the NCPCR and submit reports for nationwide consistency.

→ Advise the State on rules, policies or schemes under the RTE, JJ and POCSO Acts.

Powers and working procedure

→ Civil-court powers under the CPC, 1908: summon and examine witnesses on oath, require production of documents, receive affidavits, requisition public records, issue summons for witnesses and documents.

→ Same inquiry mechanism as the NCPCR: receive complaints, call for government reports, do field inspections.

→ After the inquiry it may recommend prosecution, relief to victims, or file writ petitions before the ***State High Court or the Supreme Court***.

→ It reports annually and specially to the State Government, which lays the report before the State Legislature with an action-taken memorandum; the State informs the Commission of action taken within a set time.

CHILDREN'S COURTS

Why: to ensure speedy trials and child-friendly justice, the CPCR Act, 2005 requires Children's Courts at State or district level. They deal with offences against children or violations of child rights in a way that respects the child's age, psychology and dignity. They complement the NCPCR and SCPCRs.

Aspect	Provision
Legal basis	**Section 25** of the CPCR Act, 2005
Establishment	The State Government, with the **concurrence of the Chief Justice of the High Court**, may specify a Court of Session or set up a separate Children's Court in each district
Jurisdiction	To try offences against children or violations of child rights under any law (for example JJ Act, POCSO Act)
Public Prosecutor	The State appoints a Public Prosecutor or Special Public Prosecutor (minimum **7 years** in criminal law)
Objective	Speedy, child-sensitive justice with protection from intimidation, trauma and secondary victimisation

Functions and role

→ **Speedy trial** of child abuse, trafficking, exploitation or denial of statutory rights, in time-bound proceedings.
→ **Child-friendly procedure: in-camera hearings** to protect privacy; **no direct cross-examination** of child victims; psychological support or a child counsellor; minimal exposure to the accused during testimony.
→ **Enforcement:** offences under the POCSO Act 2012, the Juvenile Justice Act 2015 and any other law on child welfare or exploitation.
→ **Coordination** with CWCs and JJBs for holistic rehabilitation and social reintegration after the trial.
→ **Restorative orientation:** correction, rehabilitation and victim-centred outcomes over punishment, reflecting the **best interest of the child** principle from the UNCRC (1989).

Recall drill: cover and answer

NCPCR established in	2007, under the CPCR Act 2005	Ministry under which NCPCR works	Ministry of Women and Child Development
NCPCR composition	1 Chairperson + 6 Members (at least 2 women)	Age limits at NCPCR	Chairperson 65, Members 60
NCPCR tenure	3 years, renewable once	UNCRC adopted / India ratified	1989 / 1992; child = below 18
POCSO e-Box	Online complaint box for children	MASI App	Monitoring App for Seamless Inspection of Child Care Institutions
Children's Courts under which Section?	Section 25 of the CPCR Act	Pending POCSO cases mentioned	Over 1.6 lakh

MINORITY RIGHTS · COMMON AND SEPARATE DOMAIN · NATIONAL COMMISSION FOR MINORITIES (NCM)

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 30–34

✎ *The Constitution never defines "minority", but protects them in two ways: rights that every citizen has (the common domain) and rights meant only for minorities (the separate domain, Articles 29, 30, 347, 350A and 350B). The Minorities Commission began in 1978 and became the statutory NCM in 1992. It evaluates progress, monitors safeguards, looks into complaints and recommends to governments, but only for the six notified religious communities.*

CONSTITUTIONAL RIGHTS AND SAFEGUARDS FOR MINORITIES

Starting point: the Constitution does not define "minority", but it recognises communities based on religion or language who may need special protection to keep their identity and have equality. It gives a detailed framework of rights, which shows India's commitment to pluralism and inclusion.

→ These provisions divide into two domains: the ***Common Domain*** (rights open to all citizens, ensuring equality, liberty and justice) and the ***Separate Domain*** (protections meant exclusively for minorities to guard their identity, language, culture and educational institutions).

→ This dual framework keeps equality before law universal while protecting minority identities within a secular democracy. The Preamble, which declares India a ***secular*** State and guarantees liberty of thought, expression, belief, faith and worship, reflects this spirit.

I. COMMON DOMAIN (RIGHTS OF ALL CITIZENS)

(A) Directive Principles (Part IV) — not justiciable, but fundamental to governance under Article 37

→ ***Article 38(2):*** the State must try to eliminate inequalities in status, facilities and opportunities among individuals and groups living in different areas or in different occupations.

→ ***Article 46:*** the State must promote with special care the educational and economic interests of weaker sections, in addition to SCs and STs.

→ Minority groups often fall within weaker sections, so these Articles give them targeted State attention.

(B) Fundamental Duties (Part IVA, Article 51A)

→ The duty to promote ***harmony and the spirit of common brotherhood*** among all Indians, rising above religious, linguistic, regional or sectional diversities.

→ The duty to ***value and preserve the rich heritage of India's composite culture***.

→ These strengthen social cohesion and mutual respect among the groups that make up the nation.

Fundamental Right (Part III) in the common domain	What it gives
Article 14	Equality before law and equal protection of the laws
Articles 15(1), 15(2)	No discrimination on grounds of religion, race, caste, sex or place of birth
Article 15(4)	State may make special provisions for socially and educationally backward classes of citizens, including minorities
Articles 16(1), 16(2)	Equality of opportunity in public employment; no discrimination on those grounds
Article 16(4)	Reservation in State services for backward classes not adequately represented
Article 25(1)	Freedom of conscience and the right to freely profess, practise and propagate religion, subject to public order, morality and other Fundamental Rights
Article 26	Every religious denomination can manage its own affairs in religion, set up and maintain institutions, and own and administer property
Article 27	No one can be compelled to pay taxes for promoting a particular religion
Article 28	Freedom to attend or not attend religious instruction or worship in educational institutions wholly maintained, recognised or aided by the State

II. SEPARATE DOMAIN (RIGHTS ONLY FOR MINORITIES)

Provision	What it gives
Article 29(1)	Any section of citizens with a distinct language, script or culture has the right to conserve it
Article 29(2)	No denial of admission to any State-aided educational institution on grounds only of religion, race, caste or language
Article 30(1)	All religious and linguistic minorities can establish and administer educational institutions of their choice
Article 30(2)	The State cannot discriminate against minority-managed institutions when giving aid
Article 347	The President can recognise a language spoken by a section of a State's population for official purposes
Article 350A	The State must provide facilities for instruction in the ***mother tongue at the primary stage*** for linguistic minorities
Article 350B	A ***Special Officer for Linguistic Minorities*** to investigate safeguards and report to the President
Explanation I to Article 25	Recognises the Sikh community's right to wear and carry ***kirpans*** as part of freedom of religion

India's pluralistic vision: the Constitution treats India as multi-religious, multi-lingual and multi-cultural. The framers saw the Indian nation not as a mere collection of individuals but as a ***two-tier commonwealth***: of citizens, and of the cultural, religious and linguistic groups they belong to. Each group, like each citizen, has equal Fundamental Rights and equal Fundamental Duties, so diversity enriches the national identity instead of dividing it.

Protecting weaker sections in a plural society: weakness can come from small numbers or from social, economic or educational disadvantage. So there are special provisions for religious and linguistic minorities, and also for SCs, STs and backward classes. This reaffirms India's model of secularism and inclusive development, where equality goes hand in hand with diversity and every group, majority or minority, gets both protection and participation.

NATIONAL COMMISSION FOR MINORITIES (NCM): HISTORY

1978
The ***Ministry of Home Affairs Resolution*** proposed a permanent institution. Despite many safeguards, minorities felt unequal and discriminated against; the Government said the enforcement of safeguards deserved "the highest importance". The ***Minorities Commission*** was set up in 1978 under the Home Ministry.

1984
Transferred to the newly created ***Ministry of Welfare***, a shift from law and order to welfare and development.

1988
By a Welfare Ministry Resolution, ***linguistic minorities were excluded*** from its jurisdiction, so the Commission looked only at religious minorities.

1992
The ***National Commission for Minorities Act, 1992*** gave statutory status. The first statutory Commission was constituted on ***17 May 1993***.

1993 *notification*
Five religious communities notified as minorities under ***Section 2(c)***: ***Muslims, Christians, Sikhs, Buddhists and Zoroastrians (Parsis)***.

2014
Jains added by another notification.

Religion (Census 2011)	Population (crore)	Percentage
Muslims	17.22	14.2
Christians	2.78	2.3
Sikhs	2.08	1.7
Buddhists	0.84	0.7
Jains	0.45	0.4
Total	23.37	19.30

Definition under the Act: Section 2(c) of the NCM Act, 1992 defines "minority" as "a community notified as such by the Central Government." So all the Commission's statutory functions apply only to the ***six notified religious communities***.

MCSBZJ – Notified minorities: **M**uslims, **C**hristians, **S**ikhs, **B**uddhists, **Z**oroastrians (1993) and **J**ains (2014). (own mnemonic)

NCM: COMPOSITION AND FUNCTIONS

Parameter	Details
Composition	Chairperson, Vice-Chairperson and ***5 Members*** (multi-member body)
Eligibility	Persons of eminence, ability and integrity from diverse fields
Minority representation	At least ***5*** members, including the Chairperson, must belong to the notified minority communities
Appointing authority	Nominated by the Central Government (Ministry of Minority Affairs)
Tenure	3 years; can resign at any time; the Central Government can remove them on specified grounds
Removal grounds	Insolvency, moral turpitude, unsound mind, misuse of office, absence from 3 consecutive meetings, incapacity or refusal to act

Functions (Section 9(1) of the NCM Act, 1992)

→ ***Evaluating development progress:*** assessing how minorities fare under Union and State programmes.

→ ***Monitoring safeguards:*** overseeing implementation of constitutional and legal safeguards, including ***Articles 29 and 30*** on cultural and educational rights.

→ ***Advice and recommendations*** to the Centre and States on better implementation and improving minorities' condition.

→ ***Addressing complaints*** of deprivation of rights and safeguards and taking them up with the relevant authorities.

→ ***Research and studies*** on the causes and impact of discrimination against minorities and ways to remove it.

→ ***Studying socio-economic and educational conditions*** of minority communities.

→ ***Policy suggestions*** to the Union and States for minority welfare.

→ ***Reports:*** periodic and special reports to the Central Government on problems minorities face.

→ ***Other matters*** referred by the Central Government.

Complaints and redress

→ Common complaints: ***police excesses or atrocities***, ***service matters*** in public employment, issues of ***minority educational institutions***, and ***encroachment or disputes over religious properties***.

→ On a complaint, the NCM asks for detailed reports from the Union or State authorities, reviews the findings and recommends redress. So it acts as a statutory watchdog.

Recall drill: cover and answer

Does the Constitution define "minority"?	No	Articles in the separate domain	29, 30, 347, 350A, 350B (and Explanation I to Art 25)
Article that lets minorities run educational institutions	Article 30(1)	Special Officer for Linguistic Minorities	Article 350B
Minorities Commission first set up in	1978, under the Home Ministry	Statutory NCM from	NCM Act 1992; first Commission 17 May 1993
Who defines "minority" under the Act?	The Central Government, by notification (Section 2(c))	Six notified minorities	Muslims, Christians, Sikhs, Buddhists, Zoroastrians, Jains
When were Jains notified?	2014	NCM composition	Chairperson, Vice-Chairperson and 5 Members

⚖ NATIONAL INVESTIGATION AGENCY (NIA) · FUNCTIONS · PROCESS · SPECIAL COURTS · CRITICISM · ANKUSH VIPAN KAPOOR (2024) ⚖

PYQ None quoted in the handout · Constitutional and Statutory Bodies handout pp. 34–38

✎ *The NIA was created by the NIA Act, 2008 after the 26/11 attacks as a central agency to investigate terrorism and other scheduled offences across India without needing State consent. Cases go to special courts and appeals lie to the High Court. Critics point to federalism worries, UAPA detentions, thin staff and low conviction in some cases. In Ankush Vipan Kapoor (2024) the Supreme Court said the NIA may also probe linked non-scheduled offences, after informing the Centre.*

WHAT THE NIA IS

Introduction

→ Established through the ***NIA Act, 2008***, after the ***26/11 Mumbai terror attacks***, to create a specialised federal body for counter-terrorism.

→ Headquartered in New Delhi, it can investigate ***scheduled offences without State consent***, giving a swift and centralised response to terrorism, cross-border crime and offences that affect national security.

→ It works under the ***Ministry of Home Affairs*** and is headed by a ***Director General (IPS rank)***.

Aspect	Details
Legal basis	NIA Act, 2008; ***amended in 2019*** to widen its jurisdiction
Trigger for creation	2008 Mumbai terror attacks; the need for a federal counter-terror mechanism
Headquarters	New Delhi; branch offices in Mumbai, Hyderabad, Kolkata, Guwahati, Kochi, Lucknow, Raipur and Jammu
Leadership	Director General (IPS rank)
Jurisdiction	Concurrent jurisdiction across India; extended ***outside India*** after the 2019 amendment
Scheduled offences	UAPA, Explosives Act, Atomic Energy Act, WMD Act, IPC Chapter VI (waging war, sedition/ offences against the State), counterfeit currency, hijacking, cyber-terrorism
Special courts	Set up by the Centre or States; presided by Sessions Judges appointed in consultation with the High Court Chief Justice
Appeals	Lie to the High Court; disposal targeted within 3 months

FUNCTIONS AND POWERS

Eight functions, with examples

→ ***1. Counter-terror investigation across States*** without State permission, so the anti-terror response is uniform. Example: the Pulwama attack (2019) probe led to a high conviction rate.

→ ***2. Jurisdiction outside India:*** widened in 2019 to probe offences against Indians abroad. Example: Indian assets targeted in Kabul (2021) were monitored under the wider powers.

→ ***3. Exclusive authority on scheduled offences*** under UAPA, the WMD Act, the Explosives Act and IPC Chapter VI. Example: a fake currency racket under IPC Sections 489A to 489E.

→ ***4. Concurrent jurisdiction with State police:*** it can take over cases from State police within ***15 days*** of referral. Example: the Kerala gold smuggling case moved from State police in 2020.

→ ***5. Civil-court-like powers during inquiry:*** summon witnesses, demand records, ***attach property***. Example: asset attachment in ISIS recruitment cases under UAPA.

→ ***6. Specialised cells for terror financing:*** the TFFC Cell monitors terror financing and counterfeit circulation. Example: Rs 2000 counterfeit notes traced to Pakistan-based networks.

→ ***7. International collaboration*** with Interpol, FBI and Europol on global terror cases. Example: Dawood Ibrahim's networks flagged through FATF information sharing.

→ ***8. Supervision through Special Courts*** for speedy trial. Example: the Ajmer Dargah blast trial concluded in an NIA Special Court.

Category	Acts and offences covered (scheduled offences)
Terrorism and security	Unlawful Activities (Prevention) Act, 1967; Atomic Energy Act, 1962; WMD Act, 2005
Explosives and arms	Explosive Substances Act, 1908; Anti-Hijacking Act, 2016; manufacture and sale of prohibited arms
Counterfeit and smuggling	IPC Sections 489A-489E (counterfeit currency and notes)
IPC Chapter VI	IPC Sections 121-130 (waging war, sedition, offences against the State)
Cyber and trafficking (2019 amendment)	Human trafficking, cyber-terrorism, counterfeit currency, prohibited arms trade
International dimension	SAARC Convention Act, 1993; offences outside India involving Indians or Indian assets

HOW THE NIA WORKS (PROCESS)

Eight steps

→ **1. Initial reporting:** local police send the FIR to the State and then to the Centre within **24 hours**.

→ **2. Central screening within 15 days:** the Centre decides whether it is a scheduled offence fit for the NIA. Example: the 2022 Ludhiana blast was quickly handed over.

→ **3. Transfer from State:** once the NIA takes over, State police stop all investigation. Example: the West Bengal coal scam probe moved from CID to NIA.

→ **4. Preliminary inquiry and registration:** the DG approves the FIR and an inquiry wing begins fact-finding.

→ **5. Investigation with nationwide powers:** NIA officers act as station house officers across India. Example: nationwide raids against the PFI in September 2022.

→ **6. Trial in Special Courts:** before Sessions Judges appointed on the High Court Chief Justice's recommendation. Example: the Samjhauta Express blast case in Panchkula.

→ **7. Appeals to the High Court within 30 days:** a two-judge bench is required to dispose of them within three months.

→ **8. State coordination during trial:** States must give cooperation, logistics and witnesses.

Special Courts under the NIA Act

→ Notified by the **Central Government** to try only scheduled offences investigated by the agency.

→ Presided over by a **Sessions Judge or Additional Sessions Judge** nominated by the Chief Justice of the High Court.

→ They can sit outside their normal seat if needed, which gives flexibility for sensitive trials.

→ Appeals go **directly to the High Court**; timelines are stressed to avoid delays in terror trials.

CHALLENGES AND CRITICISMS

Eight criticisms

→ **Federalism:** States say the Centre overrides their policing powers. The Kerala CM criticised the NIA takeover of the gold smuggling case.

→ **Human rights:** allegations of coercive interrogation and prolonged detention under UAPA. Amnesty International flagged arrests after the Bhima Koregaon case.

→ **Manpower:** only about **1,200** personnel against a rising caseload of 300+ cases a year. A CAG report (2021) flagged staff shortage in regional offices.

→ **Overreach and misuse:** perceived selective targeting of NGOs and minority-linked groups; Greenpeace India flagged misuse of foreign-funding scrutiny.

→ **Low convictions in some high-profile cases:** the Samjhauta Express blast verdict acquitted all accused (2019), which weakens deterrence and credibility.

→ **Technology lag:** no AI-driven monitoring of the dark net and encrypted networks; Europol reports highlight India's vulnerability to cyber-radicalisation.

→ **Coordination gaps with State agencies:** delayed intelligence sharing reduces efficiency (the 2016 Pathankot attack probe saw jurisdictional disputes).

→ **Perceived political bias:** criticism that NIA cases often match the ruling party's narrative; opposition flagged selective raids against NGOs in 2021.

Way forward

→ **Federal cooperation:** a Centre-State coordination council for security issues, on the Inter-State Council model.

→ **More staff and regional presence:** recruitment and new offices in the North-East and border regions (a 2022 parliamentary panel recommended more branch offices).

→ **Digital and cyber capability:** AI, blockchain and forensic tools for dark-net monitoring (lessons from the US FBI's Joint Terrorism Task Force).

→ ***Human rights compliance:*** NHRC oversight in custodial interrogation and trials; UN guidelines on counter-terror measures.
→ ***Efficient special courts:*** digital courts for faster terror trials (e-Courts Phase III, 2023).
→ ***Accountability and audits:*** annual CAG audit of the NIA for budget and impartiality.
→ ***Global cooperation:*** stronger MLATs and Interpol red notices for fugitives abroad (cooperation with the UAE sped up extradition of gangsters).
→ ***Awareness and citizen participation:*** reporting channels, helplines and civic awareness.

SUPREME COURT: ANKUSH VIPAN KAPOOR v. NIA (2024)

The Supreme Court widened the scope of NIA investigation by reading Section 8 of the NIA Act holistically.

→ ***1. Linked offences:*** the NIA may investigate ***non-scheduled offences connected with a scheduled offence***. Example: if terror financing involves IPC fraud charges, the NIA can probe both.
→ ***2. Central approval:*** the agency must ***inform the Central Government before widening the investigation***. This gives executive oversight and prevents arbitrary extension of powers.
→ ***3. Joint investigation:*** linked offences must be investigated together with the scheduled offence, to avoid duplication, keep consistency and strengthen prosecution.
→ ***4. Significance:*** the ruling widens the NIA's jurisdiction and reinforces India's anti-terror architecture. It helps tackle ***hybrid crimes*** where terror links overlap with economic and cyber offences.

Conclusion: the NIA is India's federal answer to terrorism and national security threats. Its wide jurisdiction and international reach make it indispensable, but federal friction, resource gaps and digital challenges need fixing. With transparency, modern technology and Centre-State synergy it can become a global-standard counter-terror agency.

Recall drill: cover and answer

NIA created by which Act and when?	NIA Act, 2008, after the 26/11 attacks	Which year did the Act widen NIA jurisdiction?	2019 (including offences outside India)
NIA is headed by	Director General (IPS rank)	Ministry under which NIA works	Ministry of Home Affairs
Centre screens a case within	15 days	Special Court judges are	Sessions Judges appointed in consultation with the High Court Chief Justice
Appeals from NIA Special Courts go to	The High Court (two-judge bench; 3 months)	Case that widened NIA scope in 2024	Ankush Vipan Kapoor v. NIA
What did that case allow?	Probing linked non-scheduled offences, after informing the Centre	Staff mentioned in the handout	About 1,200 personnel vs 300+ cases a year

THE PRESIDENT · ELECTION · NOMINAL HEAD · BINDING ADVICE · DISCRETION · RUBBER STAMP DEBATE

PYQ None quoted in the handout · Executive and Legislature handout pp. 2–4

✎ *The President is the head of State and the nominal (de jure) executive, while the Prime Minister and Council of Ministers are the real (de facto) executive. The President must act on their advice (Article 74), but can send it back once. In a hung Parliament and in a few*

other situations the President has real discretion. So the office is neither a rubber stamp nor an active ruler.

THE UNION EXECUTIVE AND THE PRESIDENT

Union Executive (Part V, Chapter I, Articles 52 to 78)

→ The Union Executive is the branch that implements laws and runs the day-to-day administration of the country.

→ It consists of: (1) the ***President***, (2) the ***Vice-President***, (3) the ***Council of Ministers headed by the Prime Minister***, and (4) the ***Attorney-General of India***.

→ Among these the President holds the highest constitutional position. He is the ***head of the State*** and all executive actions of the Union are taken in his name.

Why is the President elected indirectly? The Constituent Assembly debated this deeply before finalising Articles 54 and 55.

→ ***Parliamentary system logic:*** since the President is only a nominal head and not the real executive, a direct election like that of the US President seemed unnecessary.

→ ***Avoiding political rivalry:*** a direct national election could create conflict between the President and the Prime Minister, both claiming a popular mandate.

→ ***Cost and complexity:*** a direct election over so large an electorate would be slow and expensive, especially for a largely ceremonial office.

→ ***Federal representation:*** including elected members of both Parliament and the State Assemblies means the President represents both the Union and the States.

POSITION AND ROLE: REAL HEAD vs NOMINAL HEAD

Constitutional position

→ ***Article 52*** creates the office of the President. ***Article 53*** vests the executive power of the Union in the President, to be used directly or through subordinate officers, in accordance with the Constitution.

→ The President holds ***three roles***: ***Head of State*** (first citizen and symbol of national unity); ***Supreme Commander*** of the Armed Forces; and ***constitutional or nominal head***, the de jure executive but not the real executive.

Binding nature of ministerial advice (Article 74)

→ ***Article 74(1):*** the President acts on the aid and advice of the Council of Ministers headed by the Prime Minister, and this advice is binding.

→ ***42nd Amendment (1976)*** made it explicit that the President must act on ministerial advice, removing any doubt about discretionary power.

→ ***44th Amendment (1978)*** allowed the President to send the advice back ***once*** for reconsideration. But if the Council reconsiders and repeats the advice, it is binding.

→ ***Article 74(2)*** bars courts from inquiring into what advice ministers gave the President. But in ***S. R. Bommai v. Union of India (1994)*** the Supreme Court clarified that while the advice itself is non-justiciable, the ***material on which it is based can be examined*** by courts.

Why have a nominal head at all?

→ ***Continuity and stability:*** the President stays in office even when a government falls, so there is no constitutional vacuum.

→ ***Non-partisan head:*** a symbol of national unity above party politics.

→ ***Prevents concentration of power:*** separates the Head of State from the Head of Government.

→ ***Constitutional safeguard:*** can return advice for reconsideration and use limited discretion, for example during a hung Parliament.

→ The difference between the ***de jure executive (President)*** and the ***de facto executive (PM and Council of Ministers)*** is a defining feature of India's parliamentary democracy.

DISCRETIONARY POWERS OF THE PRESIDENT

Situations where the President can act without being bound by the Council's advice

→ ***Appointing the PM when no party has a clear majority*** in the Lok Sabha: the President uses personal judgment to invite the leader most likely to command confidence.

→ ***Dismissing a PM*** who has lost the Lok Sabha majority but refuses to resign (Article 75(2): ministers hold office during the President's pleasure).

→ ***Returning a Bill for reconsideration*** (suspensive veto): can be done once.

→ ***Refusing dissolution of the Lok Sabha*** if a PM who has lost the majority advises it.

→ ***If the PM dies suddenly*** the Council of Ministers is automatically dissolved; the President can act until a new PM is formed and then appoint a new PM who can command a majority.

→ ***Pocket veto:*** keeping a Bill pending without formal return or assent.

K. R. Narayanan (1997): he returned the Cabinet's advice to impose President's Rule in Uttar Pradesh. This is an example of the President using ***moral authority*** even without formal legal power.

ASSESSMENT: RUBBER STAMP OR CONSTITUTIONAL GUARDIAN?

Arguments: rubber stamp

→ Article 74 makes Cabinet advice binding; the President "acts on advice" with no formal right to deviate.

→ Vast executive, legislative, financial and military powers are used entirely on ministerial advice.

→ India has no history of a President formally overriding a Cabinet decision.

Arguments: more than a rubber stamp

→ The ***suspensive veto*** lets the President send a matter back once, forcing the government to rethink.

→ The ***pocket veto*** (unique to India) allows indefinite delay, as shown by President ***Zail Singh***.

→ Discretion in hung-assembly situations is real: choosing who forms the government is not trivial.

→ Narayanan's return of the UP President's Rule advice shows moral authority can be used within conventions.

→ In a majoritarian democracy the President's non-partisan role is a ***legitimising check*** on arbitrary parliamentary action.

→ R. Venkataraman in My Presidential Years noted that the ability to ask questions, point out concerns and require reconsideration, even once, gives the office real constitutional weight.

Balanced view: the President is neither a mere rubber stamp nor an active ruler. Normally he acts on the aid and advice of the Council of Ministers, but in crises (hung Parliament, unstable government, emergency) he can play an important role through limited discretion and moral authority to protect the Constitution.

PRESIDENTIAL ELECTIONS

Criticism of the election system

→ It is a highly complex system.

→ The value of an MLA's vote differs from State to State.

→ It is neither true proportional representation nor a plain single transferable vote system. Calling it "proportional representation" is a constitutional misnomer because a ***single office cannot be divided proportionally***, so the process is really an ***alternative vote*** and not a true PR-STV system.

Feature	*USA*	*India*	*France*
Type of election	Indirect, through the Electoral College	Indirect, through elected MPs and MLAs	Direct election by citizens
Electors / voters	538 electors, selected through State elections	Elected MPs of both Houses and elected MLAs of States, plus Delhi and Puducherry	Citizens aged 18+ with voting rights
Voting method	Winner-take-all in 48 States and DC; Maine and Nebraska use district allocation	Proportional representation by Single Transferable Vote (STV), secret ballot; votes have weighted values	Two-round system: top two candidates go to a runoff if nobody has a majority in round 1
Winning requirement	270 of 538 electoral votes; if none, the House of Representatives elects	More than half of the total valid weighted votes, using an electoral quota	More than 50% of valid votes, in round 1 or round 2
Eligibility	Natural-born citizen, minimum 35 years, 14 years' US residence	Indian citizen, minimum 35 years, qualified for Lok Sabha membership, no disqualifying office of profit	French citizen, minimum 18 years, voting rights and 500 endorsements from elected officials
Term	4 years	5 years	5 years
Term limits	Maximum 2 elections (22nd Amendment)	No term limit (Article 57)	Maximum 2 consecutive terms
Election disputes / oversight	State administration, Congressional counting, judicial review	Supreme Court decides disputes (Article 71)	Constitutional Council supervises and validates elections

Recall drill: cover and answer

Union Executive consists of	President, Vice-President, Council of Ministers with the PM, and Attorney-General	Which Articles deal with executive power of the Union?	Article 52 (office), 53 (executive power), 74 (advice), 75 (ministers)
Which amendment made ministerial advice binding?	42nd Amendment, 1976	Which amendment allowed one reconsideration?	44th Amendment, 1978
Can courts inquire into advice given by ministers?	No (Art 74(2)), but the material behind it can be examined (Bommai)	Who returned advice for President's Rule in UP in 1997?	K. R. Narayanan
Pocket veto is associated with	President Zail Singh	Is the Presidential election true PR-STV?	Not exactly; critics call it an alternative vote, since one office cannot be divided
Who decides Presidential election disputes?	Supreme Court (Article 71)		

⚖ ORDINANCE-MAKING POWER (ARTICLE 123) · CONDITIONS · LIMITS · CASES · TRENDS · EXAMPLES ⚖

PYQ None quoted in the handout · Executive and Legislature handout pp. 4–7

✎ *Under Article 123 the President can issue an ordinance when Parliament is not in session and immediate action is needed. It has the force of an Act but is temporary: it must be laid before both Houses and lapses six weeks after Parliament reassembles unless replaced by an Act. Courts have said repeated re-promulgation is a fraud on the Constitution (D. C. Wadhwa) and that the power is open to judicial review.*

WHAT IS THE ORDINANCE POWER?

Meaning

→ The ordinance-making power is an ***exceptional feature*** of the Indian Constitution. Under ***Article 123***, the President can promulgate an ordinance when ***either House or both Houses of Parliament are not in session*** (for example when the Lok Sabha is prorogued or dissolved while the Rajya Sabha is sitting, or vice versa).

→ Ordinary legislation needs the approval of both Houses. An ordinance lets the Executive take ***immediate legislative action*** when Parliament cannot make a law through the normal process.

→ ***Legal status:*** it has the ***same force and effect as an Act of Parliament***, but it is a ***temporary law***.

→ ***Not an Emergency power:*** ordinances can be issued in peacetime, without declaring an Emergency under Part XVIII.

→ ***Global comparison:*** such power is unusual in major democracies. The UK and the USA have no equivalent presidential ordinance-making power.

→ ***Constituent Assembly view:*** Dr. B. R. Ambedkar defended it as a way to deal with "a situation which may suddenly and immediately arise" when existing laws are not enough and Parliament is not in session.

CONSTITUTIONAL CONDITIONS AND LIMITATIONS

1. Parliament must not be in session

→ An ordinance can be issued only when ***either or both Houses*** are not in session. If ***both are in session***, an ordinance cannot be promulgated.

→ It is an ***interim*** legislative power, not a parallel substitute for Parliament.

2. Immediate necessity must be satisfied

→ The President must be satisfied that circumstances require immediate action, and he acts on the aid and advice of the Council of Ministers (Article 74).

→ ***38th Amendment (1975)*** made the President's satisfaction final, conclusive and non-justiciable. ***44th Amendment (1978)*** removed this protection, bringing back judicial review.

→ ***Judicial scrutiny today:*** courts can examine whether the satisfaction rests on relevant material or is tainted by ***mala fide*** intent or an improper purpose. They do not judge the wisdom of the policy or the adequacy of the material.

3. Legislative competence and subject matter

→ The ordinance power is ***co-extensive with Parliament's ordinary legislative power***, subject to constitutional limits.

→ ***Subject matter:*** generally the ***Union List and Concurrent List***, plus matters on which Parliament can legislate under special provisions.

→ ***Effect:*** it can amend or repeal existing laws and operate retrospectively, subject to limits like Article 20(1).

→ ***Limits:*** it cannot violate ***Fundamental Rights*** or other constitutional restrictions. It ***cannot amend the Constitution***, which needs the Article 368 procedure.

4. Parliamentary approval and duration

→ ***Mandatory laying:*** every ordinance must be placed before ***both Houses*** after they reassemble.

→ ***Duration:*** it ceases to operate ***six weeks after Parliament reassembles***, unless replaced by an Act.

→ ***Earlier end:*** it ends sooner if ***both Houses pass resolutions disapproving it.***

→ ***If the Houses reassemble on different dates***, the six weeks are counted from the ***later*** date.

→ ***Maximum life:*** normally ***six months and six weeks***, because the gap between two sessions can be at most six months (Article 85(1)).

→ ***Withdrawal:*** the President can withdraw it at any time on ministerial advice.

→ ***Procedural safeguard:*** under ***Rule 71(1) of the Lok Sabha Rules***, a Bill replacing an ordinance must come with a statement explaining why immediate legislation was needed.

SINE-LAPSE — Ordinance checklist: **S**ession off · **I**mmediate need · **N**o amendment of the Constitution / no FR violation · **E**ffect like an Act · **L**aid before both Houses · **A**pproval or lapse in 6 weeks · **P**resident may withdraw · **E**xpiry max 6 months + 6 weeks. (own mnemonic)

JUDICIAL CONTROL AND LAPSED ORDINANCES

Case	What the Court held
R. C. Cooper v. Union (1970)	The ordinance power is subject to constitutional limits. Ordinances can be challenged in court for violating Fundamental Rights or other constitutional provisions.
A. K. Roy v. Union (1982)	Ordinance-making is a ***legislative*** power, subject to constitutional limits. An ordinance has the same force and effect as parliamentary legislation and is subject to judicial review, especially when it violates constitutional rights.
D. C. Wadhwa v. State of Bihar (1987)	Between 1967 and 1981 Bihar re-promulgated ***256 ordinances***, keeping some alive for up to ***14 years*** without legislative consideration. The Court held that ***repeated re-promulgation to bypass the legislature is a "fraud on the Constitution"*** and that the Executive cannot replace the regular legislative process with ordinances.
Krishna Kumar Singh v. State of Bihar (2017, seven-judge bench)	Bihar repeatedly issued ordinances to take over private Sanskrit schools. When they expired, the question was whether rights created under them continued. The Court held: ***re-promulgation without legislative scrutiny is impermissible***; ***every ordinance must be laid*** before the legislature (failure is a serious violation); rights and benefits created under an ordinance ***do not automatically continue after it expires***, although some effects may continue if reversing them is impossible, impractical or against compelling public interest; and courts can examine whether the power was used for a genuine purpose or misused.

HISTORY AND TRENDS

Evolution

→ ***Nehru era (1952-64):*** 66 ordinances during the first three Lok Sabhas.

→ ***1978:*** demonetisation was carried out through the High Denomination Bank Notes (Demonetisation) Ordinance, 1978.

→ ***1990s:*** coalition politics and legislative delays increased reliance on ordinances.

Period	Ordinances promulgated
1952–2014	Over 660 (around 10 a year)
16th Lok Sabha (2014–19)	45
17th Lok Sabha (2019–24)	29

CRITICAL DEBATES AND ISSUES

Constitutional principles at stake

→ ***Separation of powers:*** ordinances let the Executive temporarily exercise legislative power, which upsets the institutional balance.
→ ***Parliamentary accountability:*** they bypass debate, committee scrutiny and public consultation.
→ ***Fait accompli:*** the Executive can take irreversible decisions through an ordinance (asset transfers, restructuring) that Parliament may find hard to undo later.
→ ***Federal balance:*** Governors have a similar power under ***Article 213***, which raises concerns over executive misuse and Centre-State relations.

The Seervai debate

→ ***H. M. Seervai's defence:*** the ordinance power is essential because Indian courts have strong judicial review and can strike down an existing law immediately. In such a case an ordinance avoids an administrative or legal vacuum while Parliament is in recess.
→ ***Counter-argument:*** the USA has equally strong judicial review without giving the President decree powers; it relies on emergency legislative sessions instead.

Important ordinance	What it did
Government of NCT of Delhi (Amendment) Ordinance, 2023	Created the NCCSA and increased the Lieutenant Governor's control over services in Delhi
CVC (Amendment) and DSPE (Amendment) Ordinances, 2021	Allowed up to three one-year extensions for ED and CBI Directors, raising their maximum tenure to five years
Essential Defence Services Ordinance, 2021	Restricted strikes and lockouts in essential defence services during restructuring of 41 ordnance factories
Tribunals Reforms Ordinance, 2021	Abolished appellate bodies like IPAB and FCAT and moved their functions to existing courts and authorities
Commission for Air Quality Management in NCR Ordinance, 2021	Set up the CAQM to control air pollution and stubble burning in Delhi and nearby areas
Farm Sector Reform Ordinances, 2020	Allowed agricultural trade outside APMC mandis and set a contract-farming framework; the resulting Acts were repealed in 2021

Way forward: strengthening safeguards

→ ***Timely parliamentary scrutiny:*** a convention to convene Parliament within one or two weeks of promulgating a major ordinance, so debate happens early.
→ ***More assertive Presidential oversight:*** use the proviso to Article 74(1) to return questionable ordinance recommendations for Cabinet reconsideration.
→ ***Reversible actions:*** as far as possible, actions under an ordinance should be reversible if Parliament does not pass the replacing law, in line with Krishna Kumar Singh (2017).

Conclusion: ordinance-making is a necessary mechanism for urgent legislation but must remain the exception. Parliamentary scrutiny, judicial review and responsible executive conduct are needed to prevent misuse.

Recall drill: cover and answer

Article for the President's ordinance power	Article 123 (Governor: Article 213)	When can an ordinance be issued?	When either or both Houses are not in session and immediate action is needed
Life of an ordinance	Lapses 6 weeks after Parliament reassembles; maximum 6 months + 6 weeks	Which amendment removed the bar on reviewing satisfaction?	44th Amendment, 1978 (the 38th had made it final)
Can an ordinance amend the Constitution?	No, only Article 368 can	Case: repeated re-promulgation is fraud on the Constitution	D. C. Wadhwa v. State of Bihar, 1987 (256 ordinances)
2017 seven-judge case on lapsed ordinances	Krishna Kumar Singh v. State of Bihar	Ordinances in 16th and 17th Lok Sabha	45 and 29
Farm ordinances 2020 — outcome	Resulting Acts repealed in 2021		

⚖ COMPARISONS · PRESIDENT: INDIA vs GERMANY · VICE-PRESIDENT: INDIA vs USA · PM vs US PRESIDENT ⚖

PYQ None quoted in the handout · Executive and Legislature handout pp. 7–10

✎ *Three comparison tables the handout gives for quick revision: how the Indian President differs from Germany's head of state, how the Indian Vice-President differs from the American one, and how the Indian Prime Minister differs from the US President. Learn the contrasts: nominal vs real executive, fusion vs separation of powers, fixed tenure vs confidence.*

PRESIDENT OF INDIA vs PRESIDENT OF GERMANY

Basis	India	Germany
Constitutional position	Nominal Head of State; the PM is the real executive	Nominal Head of State; the Chancellor is the real executive
Election	Indirect election by an Electoral College	Indirect election by the Federal Convention
Electoral college	Elected MPs of both Houses and elected MLAs of States, Delhi and Puducherry	All Bundestag members and an equal number of delegates elected by State Parliaments (delegates need not be State legislators)
Voting method	Proportional Representation by Single Transferable Vote with weighted votes, secret ballot	Secret ballot; absolute majority in the first two rounds; most votes wins in the third round
Minimum age	35 years	40 years
Eligibility	Indian citizen, qualified for Lok Sabha membership, no disqualifying office of profit	German citizen eligible to vote in Bundestag elections
Tenure	5 years	5 years
Re-election	No term limit (Article 57)	Only one consecutive re-election (Article 54)
Executive powers	Executive power vested in the President (Article 53), used mainly on ministerial advice	Mainly representative and constitutional functions; the Chancellor heads the government
Ministerial advice	Binding advice of the Council of Ministers; can seek reconsideration once (Art 74)	Presidential orders generally need countersignature by the Chancellor or a Minister, with exceptions (Art 58)
Appointment of head of government	Appoints the PM, normally the leader who commands a Lok Sabha majority	Proposes the Chancellor, who is elected by the Bundestag; the President formally appoints
Veto powers	Absolute, suspensive and pocket veto over ordinary Bills, within constitutional limits (Article 111)	No general political or pocket veto; may refuse to sign laws on constitutional grounds (Article 82)
Ordinance power	Can issue ordinances under Article 123	No equivalent power
Dissolving the lower House	Can dissolve the Lok Sabha (Article 85), ordinarily on ministerial advice	Can dissolve the Bundestag only in specified circumstances (Articles 63 and 68)
Military command	Supreme Commander of the Defence Forces (Article 53)	Defence Minister commands in peacetime; the Chancellor during a state of defence
Pardoning power	Article 72, including death sentences and other specified cases	Article 60, for individual federal cases
Removal	Impeachment by Parliament for violation of the Constitution (Article 61)	Bundestag or Bundesrat can bring charges; the Federal Constitutional Court decides removal (Article 61)

Key distinctions

→ ***India:*** the President has wider formal powers in ordinances, emergencies and legislative assent.

→ ***Germany:*** the President mainly performs constitutional and representative functions; the Chancellor has stronger executive authority.

→ ***Major difference:*** in India the President formally appoints the PM; in Germany the ***Bundestag elects the Chancellor***, who is then appointed by the President.

VICE-PRESIDENT OF INDIA vs VICE-PRESIDENT OF THE USA

Aspect	Vice-President of India	Vice-President of the USA
Basis / model	An office modelled on the American Vice-President but adapted to the Indian parliamentary framework	Original executive institution under the US presidential system
Legislative role	Ex officio ***Chairman of the Rajya Sabha*** (Upper House)	President of the Senate (Upper House of Congress)
Executive role	No real executive authority; functions are largely legislative and ceremonial	Significant executive importance as the immediate successor to the President
Succession to Presidency	Acts as President temporarily when a vacancy arises; an election for a new President must be held within six months	Automatically becomes President on the death, resignation or removal of the President and serves the remaining term
Tenure after succession	Acts only till the new President takes office	Continues as President for the unexpired term of the predecessor
Nature of position	Parliamentary and largely legislative in function	Executive and constitutional successor in nature

PRIME MINISTER OF INDIA vs PRESIDENT OF THE USA

> *Sir Ivor Jennings: "The Prime Minister is the keystone of the Constitution. All roads in the Constitution lead to the Prime Minister."*

In India's parliamentary system the President is the nominal (de jure) executive and Head of State, while the Prime Minister is the real (de facto) executive, Head of the Government, responsible for administration and policymaking.

Dimension	Prime Minister of India	President of the United States
System of government	Parliamentary (Westminster) system: fusion of executive and legislative powers	Presidential system: separation of powers with checks and balances
Nature of office	Head of Government (de facto executive); the President of India remains the nominal Head of State	Both Head of State and Head of Government
Election and appointment	Appointed by the President; must command majority support in the Lok Sabha	Indirectly elected through the Electoral College (538 electors)
Legislative membership	Mandatory: must be a member of either House (or become one within six months)	Prohibited: cannot be a member of Congress (Article I, Section 6)
Cabinet structure	Council of Ministers drawn generally from Parliament, functioning on collective responsibility (primus inter pares)	Presidential Cabinet: department secretaries are appointed by the President with Senate confirmation and are executive officials and advisers, not collectively responsible
Tenure and stability	Flexible: no fixed personal term; continues while the government keeps Lok Sabha confidence	Fixed 4-year term, limited to a maximum of two elections (22nd Amendment)

Legislative influence	Direct and significant: guides government Bills, legislative priorities and the agenda	Indirect: cannot directly introduce Bills; relies on members of Congress to sponsor legislation
Veto powers over Bills	No personal veto; assent is handled by the President of India, ordinarily on the Council's advice	Has a regular veto (overridable by two-thirds in both Houses) and a pocket veto
Dissolution of legislature	Can advise the President to dissolve the Lok Sabha before its five-year term ends	Has no power to dissolve the House or the Senate
Military command	Directs military policy de facto through the Cabinet Committee on Security; the Indian President remains constitutional Supreme Commander	Direct constitutional Commander-in-Chief of the US Armed Forces (Article II, Section 2)
Removal	A successful no-confidence motion by a simple majority of members present and voting in the Lok Sabha requires the entire Council of Ministers to resign	Removed through impeachment: simple majority in the House and conviction by two-thirds of Senators present

Recall drill: cover and answer

Minimum age: President of India / Germany	35 / 40	Re-election limit in Germany	Only one consecutive re-election (Art 54)
Who elects the German Chancellor?	The Bundestag; the President formally appoints	Indian VP is ex officio	Chairman of the Rajya Sabha
When the Indian President's office is vacant, VP acts till	A new President is elected within six months	US VP succeeding the President	Serves the unexpired term
PM must be a member of Parliament?	Yes, or become one within six months	US President as a member of Congress?	Prohibited
Removal of PM vs US President	No-confidence motion vs impeachment (two-thirds Senate conviction)		

⚖ PARLIAMENTARY SYSTEM · FEATURES · vs PRESIDENTIAL · MERITS AND LIMITS · WHY INDIA CHOSE IT · INDIA vs BRITAIN ⚖

PYQ None quoted in the handout · Executive and Legislature handout pp. 10–12

✎ *India follows a parliamentary system at both Union (Articles 74 and 75) and State (Articles 163 and 164) level: the executive is accountable to the legislature, with a nominal head and a real head. It gives harmony, accountability and flexibility but can bring instability and cabinet dominance. India chose it because of historical familiarity and the*

wish for responsible government. It differs from Britain in being a republic with a written constitution and judicial review.

WHAT IS A PARLIAMENTARY SYSTEM?

Meaning

→ The Indian Constitution sets up a parliamentary system at the ***Union level (Articles 74 and 75)*** and the ***State level (Articles 163 and 164)***.

→ ***Parliamentary system:*** the executive is politically accountable to the legislature. Examples: India, Britain, Japan, Canada.

→ ***Presidential system:*** the executive has a fixed tenure and does not depend on legislative confidence. Examples: USA, Brazil.

→ It is also called ***Cabinet Government, Responsible Government or the Westminster Model***. Ivor Jennings called it a "cabinet system" because the Cabinet holds real executive authority.

→ Traditionally the PM was "***primus inter pares***" (first among equals). But the PM's growing dominance led scholars like Crossman and Mackintosh to call it "***prime ministerial government***".

KEY FEATURES IN INDIA

Eight features

→ ***1. Nominal and real executive.*** The President is the nominal (de jure) executive and Head of State; the PM is the real (de facto) executive and Head of Government. Under Article 74 the President acts on aid and advice but may seek reconsideration once.

→ ***2. Majority party rule.*** The President appoints as PM a leader who can command majority support in the Lok Sabha. In a hung Parliament, a party or coalition that can secure a majority forms the government.

→ ***3. Collective responsibility (Article 75(3)).*** The Council of Ministers is collectively responsible to the Lok Sabha. A successful no-confidence motion forces the entire Council to resign.

→ ***4. Political cohesion.*** Ministers generally follow common policies and collective decisions. In coalitions, unity depends on cooperation and consensus.

→ ***5. Dual membership.*** Ministers belong to both the executive and the legislature, a fusion of powers. Under ***Article 75(5)*** a non-MP minister must become a member of either House within six months.

→ ***6. Leadership of the PM.*** The PM heads the Council, coordinates policy and is the central link between the President, Cabinet and Parliament.

→ ***7. Dissolution of the lower House (Article 85).*** The President may dissolve the Lok Sabha, ordinarily on the advice of the Council of Ministers headed by the PM, allowing fresh elections before the term ends.

→ ***8. Secrecy (Article 75(4)).*** Ministers take an oath of office and of secrecy, administered by the President. Cabinet discussions stay confidential, so there can be free debate and collective decisions.

Basis	Parliamentary system (India)	Presidential system (USA)
Executive	Dual: President (nominal) and PM (real)	Single: the President is both Head of State and Government
Executive and legislature	Fusion of powers	Separation of powers
Tenure	Depends on legislative confidence	Fixed tenure of 4 years
Responsibility	Collective responsibility to the Lok Sabha	Cabinet is accountable to the President
Removal	No-confidence motion	President removable through impeachment
Dissolution	Lok Sabha can be dissolved early	President cannot dissolve Congress

Membership	Ministers normally belong to Parliament	Cabinet members cannot simultaneously serve in Congress

ADVANTAGES (MERITS)

Five advantages

→ **1. *Executive-legislative harmony*:** fusion promotes coordination and smoother lawmaking.

→ **2. *Responsible government*:** Article 75(3) ensures accountability through Question Hour, debates, committees and no-confidence motions.

→ **3. *Checks on arbitrary power*:** collective responsibility and parliamentary scrutiny help prevent misuse of executive authority.

→ **4. *Alternative government*:** another party or coalition can form a government ***without fresh elections*** if it can win a majority. Jennings: the Leader of the Opposition serves as an "alternative Prime Minister".

→ **5. *Broad representation*:** the Council of Ministers can include different regions, communities and political groups, reflecting India's diversity.

LIMITATIONS (DEMERITS)

Six limitations

→ **1. *Political instability*:** coalition disputes and loss of majority can cause frequent changes. Examples: the short-lived governments of Charan Singh, V. P. Singh, Chandra Shekhar and I. K. Gujral.

→ **2. *Lack of policy continuity*:** a change of government may reverse policies. Example: the Janata Government (1977–79) reversed several policies of the earlier Congress government.

→ **3. *Cabinet dictatorship*:** a strong majority lets the PM and Cabinet dominate Parliament and weakens scrutiny. H. J. Laski and Ramsay Muir warned of the "dictatorship of the cabinet". Example: concentration of power during the Emergency (1975–77).

→ **4. *Fusion of powers*:** close links weaken checks and balances. Walter Bagehot: "the cabinet is a hyphen that joins the buckle that binds the executive and legislative departments together."

→ **5. *Governance by non-experts*:** ministers are chosen mostly on political considerations, so technical expertise may be limited.

→ **6. *Coalition compulsions*:** policy compromises, conflicting priorities and slower decisions.

WHY INDIA ADOPTED THE PARLIAMENTARY SYSTEM

Six reasons

→ **1. *Historical familiarity*:** India had experience with parliamentary institutions under British rule; the Government of India Acts of 1919 and 1935 gradually introduced responsible government, especially in the provinces.

→ **2. *Preference for responsible government*:** B. R. Ambedkar stressed balancing stability and responsibility. The Constituent Assembly preferred more executive accountability over the fixed tenure of a presidential system.

→ **3. *Preventing deadlocks*:** the fusion of executive and legislature was expected to reduce conflict and ease lawmaking.

→ **4. *Accommodating diversity*:** the system allows regions, communities and parties to be represented in the executive; coalitions can accommodate regional interests.

→ **5. *Flexibility*:** a government can be replaced without fresh elections if another leader gets a majority.

→ **6. *Swaran Singh Committee (1976)*:** recommended ***keeping*** the parliamentary system rather than shifting to a presidential form.

INDIAN vs BRITISH PARLIAMENTARY SYSTEM

Basis	India	Britain
Nature of State	Republic	Constitutional monarchy
Head of State	Elected President	Hereditary monarch
Supremacy	Constitutional supremacy	Parliamentary sovereignty
Constitution	Written	Uncodified
Judicial review	Courts can strike down unconstitutional laws	Courts generally cannot invalidate Acts of Parliament
Prime Minister	May belong to either House	Conventionally belongs to the House of Commons
Ministers	Non-MPs allowed for six months	Ministers normally belong to either House
Legal responsibility	No general requirement of ministerial countersignature of presidential acts	Certain royal acts need ministerial countersignature
Shadow Cabinet	No formal shadow cabinet	Established opposition institution
Political structure	Federal system	Predominantly unitary system with devolution

Conclusion: India's parliamentary system combines executive accountability, political flexibility and representative governance. Its success depends on strong parliamentary scrutiny, collective responsibility and respect for constitutional institutions.

Recall drill: cover and answer

Articles on the parliamentary system: Union / State	74–75 / 163–164	Collective responsibility article	Article 75(3), to the Lok Sabha
Non-MP minister must become an MP within	Six months (Art 75(5))	Oath of secrecy for ministers	Article 75(4)
Who called PM the keystone of the Constitution?	Ivor Jennings	Who warned of "dictatorship of the cabinet"?	H. J. Laski and Ramsay Muir
Committee that recommended keeping the parliamentary system (1976)	Swaran Singh Committee	Examples of unstable governments	Charan Singh, V. P. Singh, Chandra Shekhar, I. K. Gujral
India vs Britain: supremacy	Constitutional supremacy vs parliamentary sovereignty		

COUNCIL OF MINISTERS · CABINET · COMMITTEES · CABINET SECRETARIAT · PMO · CENTRAL SECRETARIAT

PYQ None quoted in the handout · Executive and Legislature handout pp. 13–18

The Council of Ministers is the full ministry (Cabinet Ministers, Ministers of State, Deputy Ministers), capped at 15% of the Lok Sabha by the 91st Amendment. The Cabinet is its small inner core that takes the real policy decisions. It is supported by Cabinet Committees, the Cabinet Secretariat (headed by the Cabinet Secretary), the PMO and the Central Secretariat. Each is useful but also raises issues like centralisation and delays.

COUNCIL OF MINISTERS: COMPOSITION AND SIZE

Composition

→ The Council of Ministers is a large body that includes ***all ministers*** of the Union Government. Its composition is decided by the Prime Minister, who considers seniority, political experience, regional balance and coalition needs.

→ The Constitution does not rank ministers, but three broad categories have grown by convention.

Category	Role
Cabinet Ministers	The core policy-making body and the most powerful subset. Senior ministers with key portfolios such as Defence, Home Affairs, Finance and External Affairs. Chaired by the PM; takes decisions on major national policies.
Ministers of State (Attached)	Assist a Cabinet Minister and handle specific areas or departments within that ministry.
Ministers of State (Independent Charge)	Head ministries or departments independently. Not regular Cabinet members but may attend Cabinet meetings when invited.
Deputy Ministers	Assist Cabinet Ministers or Ministers of State in administrative and parliamentary work. No independent charge. The rank has lost significance and is rarely used now.

Size: the 91st Amendment (2003)

→ It introduced a **ceiling**: under **Article 75(1A)** the total number of ministers, including the PM, **cannot exceed 15% of the Lok Sabha's strength**.

→ With 543 seats, the maximum is **81 ministers** including the PM.

Arguments for a smaller Council	Arguments for a larger Council
Clearer decision-making and less overlap	India's scale needs functional coverage across ministries
Lower public expenditure	Ensures regional and community representation
Avoids rewarding political allies	Accommodates coalition partners
Easier individual accountability	Specialised portfolios need dedicated ministers

First ARC (1966) recommendations

→ The Union Cabinet should normally have **16 ministers** including the PM.

→ The Council of Ministers should normally have **40** members and never exceed **45**.

→ A Deputy Prime Minister could help with coordination and administrative reform.

→ A Cabinet Committee on Administration, with support in the Cabinet Secretariat, should help in reforms.

THE CABINET

What it is

→ The Cabinet is the smaller and more powerful body inside the Council of Ministers and the **principal policy-making and decision-making authority** of the Union Government. Ramsay Muir called it the "**steering wheel of the ship of the State**".

→ **Constitutional status:** the word "Cabinet" was formally put into the Constitution by the **44th Amendment, 1978**. Under **Article 352(3)**, a National Emergency cannot be proclaimed unless the written decision of the Union Cabinet is communicated to the President. The Cabinet consists of the PM and ministers of Cabinet rank as specified under Article 352.

Basis	Council of Ministers	Cabinet
Composition	All categories of ministers	PM and Cabinet Ministers
Size	Larger body	Smaller body
Role	Implements policies and exercises executive responsibility	Principal policy-making and decision-making body
Meetings	Rarely meets as a whole	Meets regularly
Constitutional mention	Articles 74 and 75	Article 352(3)
Responsibility	Collectively responsible to the Lok Sabha	Maintains policy unity and Cabinet solidarity

Functions of the Cabinet

→ **Policy formulation:** the main policy-making body of the government.

→ **Legislative management:** decides the legislative agenda, major Bills and proposals about parliamentary sessions.

→ **Financial functions:** directs Budget preparation, expenditure and economic policy.

→ ***Administrative coordination:*** coordinates ministries and settles major policy differences.

→ ***Appointments and crisis management:*** oversees major appointments and takes key decisions in national emergencies and crises.

Cabinet dominance and checks on it

→ Because the Cabinet comes from Parliament yet strongly influences its agenda, it is said that "***the creation dominates the creator***". A strong majority can lead to Cabinet dominance and weaker scrutiny.

→ ***Judicial checks:*** judicial review of executive actions.

→ ***Legislative checks:*** questions, debates, motions and committees.

→ ***Institutional checks:*** oversight by the Election Commission, CAG and other independent bodies.

→ ***Political checks:*** public opinion, media scrutiny, opposition parties and pressure within the party.

Kitchen Cabinet (Inner Cabinet)

→ A smaller, informal group of the PM and a few trusted colleagues. It discusses sensitive or urgent political matters before formal Cabinet meetings.

→ It brings speed and confidentiality, but may dilute the authority of the formal Cabinet.

→ Example: during Indira Gandhi's leadership, advisers like P. N. Haksar and D. P. Dhar had considerable influence.

CABINET COMMITTEES

What they are — small groups of ministers formed to deal with specific policy areas or administrative functions. They reduce the Cabinet's workload by examining issues in detail before decisions are taken.

→ ***Extra-constitutional:*** not mentioned in the Constitution. They work under the ***Government of India (Transaction of Business) Rules, 1961***, framed under ***Article 77(3)***.

→ ***Formation:*** their number, names and composition are decided by the Prime Minister.

→ ***Membership:*** generally senior Cabinet Ministers; Ministers of State may be included or invited.

→ ***Chair:*** the PM or a designated senior minister.

→ ***Types:*** ***Standing*** committees work on a continuing basis; ***Ad hoc*** committees are formed for specific purposes.

Cabinet Committee	Major functions
1. Political Affairs (CCPA)	Political coordination, Centre-State relations and major policy disputes. Often called the "***Super Cabinet***".
2. Economic Affairs (CCEA)	Major economic and industrial policies, investment approvals, pricing and subsidies
3. Security (CCS)	Defence, national security, strategic planning and major defence procurement
4. Appointments (ACC)	Important senior appointments, postings and personnel decisions
5. Parliamentary Affairs	Coordination of government business in Parliament and legislative priorities
6. Investment and Growth	Promotes investment and infrastructure and removes policy bottlenecks
7. Skill, Employment and Livelihood	Employment generation, skill development and workforce participation
8. Accommodation	Allocation and management of government accommodation

Functions and significance

→ ***Efficient decisions:*** smaller committees examine proposals and decide faster.

→ ***Specialisation:*** ministers with relevant experience go into details.

→ ***Inter-ministerial coordination:*** resolve disputes and prevent delays.

→ ***Collective responsibility:*** encourages consultation and limits arbitrary decisions by individual ministers.
→ ***PM leadership:*** helps the PM supervise important policy areas.

Issues with Cabinet Committees

→ Irregular meetings in some committees.
→ Limited participation: junior ministers can be included but may have little say.
→ Political considerations: membership can reflect political stature rather than expertise.
→ Centralisation: the PM chairing several key committees may reduce independent ministerial deliberation.
→ Weak Cabinet scrutiny: committee decisions may get limited discussion in the full Cabinet.

CABINET SECRETARIAT AND CABINET SECRETARY

Cabinet Secretariat

→ The organisation created specifically to support the Cabinet, Cabinet Committees and the Prime Minister. It works directly under the PM and is the ***chief coordinating agency*** of the Government of India.
→ ***1. Secretarial assistance:*** prepares and circulates agendas and background papers for Cabinet meetings; records and circulates minutes; monitors implementation of Cabinet decisions.
→ ***2. Implementing the Rules of Business:*** the Government of India (Transaction of Business) Rules, 1961 and the (Allocation of Business) Rules, 1961.
→ ***3. Inter-ministerial coordination:*** resolves differences between ministries; promotes policy coordination and prevents duplication; uses ***Committees of Secretaries*** for inter-ministerial issues.
→ ***4. Administrative monitoring:*** collects information on ministries' major activities, monitors decisions and implementation, and coordinates responses in major crises.
→ ***5. Policy support:*** promotes new policy initiatives and gives administrative support for coherent governance.

Cabinet Secretary

→ Heads the Cabinet Secretariat and is regarded as the ***senior-most civil servant*** in the Government of India.
→ ***Head of civil services:*** senior-most administrative coordinator and ex-officio Chairman of the Civil Services Board.
→ ***Adviser:*** gives high-level administrative advice to the PM and Cabinet.
→ ***Coordinator:*** resolves disputes among Secretaries.
→ ***Link:*** a buffer between the political executive and the civil services, protecting both from undue interference.
→ ***Leader:*** often called the "***conscience keeper of the civil services***" because his conduct influences the whole system.
→ ***Facts:*** ***N. R. Pillai*** was the first Cabinet Secretary of independent India. ***T. V. Somanathan*** is the current Cabinet Secretary as per the handout (verify).
Extensions may be given in public interest under service rules, generally within a four-year ceiling, with a possible further extension of up to three months.

PRIME MINISTER'S OFFICE (PMO)

What it is — a non-constitutional administrative body that gives secretarial assistance to the Prime Minister.

→ ***Evolution:*** set up as the Prime Minister's Secretariat (PMS) on ***15 August 1947***; renamed the Prime Minister's Office (PMO) on ***28 March 1977***. It has become a major centre of policy coordination and monitoring.

→ ***Functions:*** policy advice (briefing notes, analysis, recommendations); coordination between ministries and an interface between PM and bureaucracy; monitoring of major programmes and decisions; direct responsibilities such as helping the PM in departments under his charge (Atomic Energy and Space) and NITI Aayog; public relations, important correspondence and diplomatic engagements.

Why a strong PMO is needed

→ ***Continuity*** of administrative support and advice to the PM.

→ ***Coordination*** of issues involving many ministries.

→ ***Policy monitoring*** of important decisions and implementation.

→ ***International engagement:*** helps coordinate communication with foreign governments and leaders.

Centralisation of power in the PMO

→ It has grown from a secretariat-style support body into a major coordinating centre of governance, especially under politically strong PMs. ***Reasons:*** strong electoral mandates demanding coordination; need for a single point of inter-ministerial coordination; leadership styles that prefer central control.

→ ***Concerns:*** (1) ***weak Cabinet deliberation***, as major decisions may be taken in the PMO before they reach the Cabinet; (2) ***reduced ministerial autonomy***, so ministers become implementers; (3) a ***parallel power structure*** of unelected officials with influence but no parliamentary accountability; (4) ***delays*** from too many approvals moving upwards; (5) ***weak federal consultation***, States feeling sidelined.

→ ***Way forward:*** the PMO must work through the established administrative system and not bypass it; strong coordination should strengthen, not weaken, collective Cabinet responsibility.

CENTRAL SECRETARIAT

What it is — the headquarters of Union ministries and departments, which assists the political executive in policy formulation, legislation, budgeting and administrative supervision.

→ ***Split system:*** the Government of India broadly follows a split between ***policy formulation*** (mainly the Secretariat and ministries) and ***policy implementation*** (attached offices, subordinate offices and field agencies). Example: the Health Ministry frames policy, while implementing agencies and field institutions carry out programmes.

Functions of the Central Secretariat

→ ***Policy formulation:*** gives ministers background information, facts, data and advice, and examines the legal and administrative impact of proposals.

→ ***Legislative functions:*** prepares draft Bills, rules and regulations; helps ministers answer parliamentary questions and debates.

→ ***Financial functions:*** prepares Budget proposals and monitors departmental spending.

→ ***Administrative supervision:*** general supervision over implementation, ordinarily without day-to-day field work.

→ ***Coordination:*** a channel between ministries, Union and State governments, and bodies like CAG and UPSC.

→ ***Institutional memory:*** keeps records of earlier decisions for continuity and consistency.

Issues and reforms

→ ***Issues:*** administrative delay (too many file layers); generalist bias (limited domain expertise); technology gaps; overlapping functions; weak coordination with State governments.

→ ***Reforms:*** the ***Second ARC*** recommended flatter structures, fewer levels and more delegation; strengthen domain expertise, including ***lateral entry*** where suitable; expand e-Office and digital file movement; merge or reorganise ministries with overlapping functions; ***Mission Karmayogi*** to build the capacity and skills of Secretariat staff.

→ The aim: a leaner, more specialised, digital and better-coordinated Secretariat that makes policymaking faster and citizen-focused.

Recall drill: cover and answer

Ceiling on the Council of Ministers	15% of Lok Sabha strength (Art 75(1A), 91st Amendment 2003); 81 for 543 seats	First ARC suggested Cabinet size	16 ministers; Council normally 40, never above 45
Which amendment introduced the word "Cabinet"?	44th Amendment, 1978 (Art 352(3))	Cabinet Committees work under which rules?	Transaction of Business Rules, 1961, framed under Art 77(3)
Which committee is called the "Super Cabinet"?	Cabinet Committee on Political Affairs	Who heads the Cabinet Secretariat?	Cabinet Secretary (first: N. R. Pillai)
PMO became PMO on	28 March 1977 (PMS since 15 Aug 1947)	Which reform body suggested flatter Secretariat?	Second ARC
Who coined "steering wheel of the ship of the State"?	Ramsay Muir		

⚖ CONSTITUTION (130th AMENDMENT) BILL, 2025 · REMOVAL OF MINISTERS · BASIC STRUCTURE QUESTIONS ⚖

PYQ None quoted in the handout · Executive and Legislature handout pp. 18–20

✎ *The 130th Amendment Bill (introduced 20 August 2025, sent to a Joint Parliamentary Committee) would remove the PM, Union Ministers, CMs and State ministers who stay in custody for 30 consecutive days for offences punishable by 5 years or more. Supporters see it as closing a gap and stopping "governing from jail". Critics say it clashes with presumption of innocence, federalism and parliamentary democracy. It has not become law.*

THE BILL

Basics

→ The Constitution (One Hundred and Thirtieth Amendment) Bill, 2025 was introduced in the ***Lok Sabha on 20 August 2025*** by the Minister of Home Affairs and referred to a ***Joint Parliamentary Committee (JPC)***.

→ It proposes the removal of the ***Prime Minister, Union Ministers, Chief Ministers and State/UT Ministers*** who remain in custody for ***30 consecutive days*** in connection with serious criminal offences.

→ ***Status:*** the Bill remains under parliamentary examination and has not become law (current affairs; verify).

Key provisions

→ ***Threshold:*** applies to ministers accused of offences punishable with imprisonment that may extend to ***five years or more***, who stay arrested and detained for ***30 consecutive days***.

→ ***Union and State ministers:*** the President (on the PM's advice) or the Governor (on the CM's advice) must remove the minister. Advice must be given by the ***31st day*** of custody. Without advice the minister ***automatically ceases to hold office from the 32nd day***.

→ ***PM and CMs:*** must resign by the 31st day of custody; if not, they automatically cease to hold office from the 32nd day.

→ ***Reappointment:*** a removed minister, PM or CM may be reappointed after release from custody.

→ ***Companion legislation:*** similar provisions are proposed for Puducherry and Jammu and Kashmir through separate amendment Bills. Delhi is covered by the proposed amendment to ***Article 239AA***.

RATIONALE

Why the Bill is proposed

→ ***Closing a constitutional gap:*** the Constitution has no separate general criminal disqualification standard for ministers beyond existing constitutional and legislative rules.

→ ***Criminalisation of politics:*** under ***Section 8 of the Representation of the People Act, 1951***, criminal disqualification generally follows ***conviction***, which can take years.

→ ***Administrative continuity:*** to stop ministers from continuing in executive office during long custody, addressing the concern of "***governing from jail***".

CONSTITUTIONAL CHALLENGES: BASIC STRUCTURE

The Bill raises concerns under the Basic Structure doctrine (Kesavananda Bharati, 1973) because removal can happen before conviction or even before charges are framed.

→ ***1. Parliamentary democracy.*** In ***P. V. Narasimha Rao v. State (1998)*** the Supreme Court recognised parliamentary democracy as part of the basic structure, and under Article 75(3) the Council of Ministers is responsible to the Lok Sabha. In ***Manoj Narula v. Union of India (2014)*** the Court recognised the constitutional prerogative of the PM and CM to select ministers, which automatic removal may restrict. Concern: investigative action could end the tenure of elected governments without a no-confidence vote.

→ ***2. Federal balance.*** Under ***S. R. Bommai (1994)*** federalism is part of the basic structure. Central agencies such as the ED, CBI or NIA arresting a State CM could trigger removal, raising fears of Union interference. State agencies acting against Union ministers or another State's CM could cause inter-governmental confrontation.

→ ***3. Rule of law and presumption of innocence.*** Under ***Section 35 of the BNSS, 2023***, arrests can be made on grounds including reasonable suspicion, subject to safeguards; arrest does not prove guilt. ***Section 187 BNSS*** provides default bail after 60 or 90 days, so 30 days of custody can pass before charges are framed. Strict bail conditions in ***PMLA Section 45*** and ***UAPA Section 43D(5)*** apply in specified cases. Concern: removal before a judicial finding on the merits raises questions of arbitrariness, due process and presumption of innocence under ***Articles 14 and 21***.

Mechanism	Authority / process	Trigger
Legislator disqualification (Articles 103/192)	President/Governor, acting on the Election Commission's opinion	Constitutional and statutory disqualifications such as office of profit
Defection (Tenth Schedule)	Speaker/Chairman, subject to judicial review	Defection or violation of party whip, subject to exceptions
Criminal disqualification (Section 8, RPA 1951)	Criminal conviction by a competent court	Specified convictions, including 2+ years' imprisonment under Section 8(3)
Proposed 130th Amendment	President/Governor on advice, or automatic cessation	30 consecutive days of custody for an offence punishable with 5+ years

Spot the difference: existing rules disqualify ***after conviction***; the proposal acts ***after 30 days of custody*** without conviction. That is the heart of both the support and the criticism.

Recall drill: cover and answer

130th Amendment Bill introduced on	20 August 2025 in Lok Sabha; referred to a JPC	Custody period that triggers removal	30 consecutive days
Offence threshold	Punishable with 5 years or more	When does a minister automatically cease to hold office?	From the 32nd day if no advice is given by the 31st
Which Article is amended for Delhi?	Article 239AA	Basic structure cases cited	Kesavananda Bharati; P. V. Narasimha Rao (1998); Manoj Narula (2014); S. R. Bommai (1994)
Criminal disqualification today is based on	Conviction (Section 8, RPA 1951)	Default bail BNSS section	Section 187 (60 or 90 days)
Status as per handout	Under parliamentary examination; not law (verify)		

SPEAKER OF THE LOK SABHA · POWERS · INDEPENDENCE · "ONCE A SPEAKER, ALWAYS A SPEAKER" · REFORMS

PYQ None quoted in the handout · Executive and Legislature handout pp. 20–22

✎ *The Speaker presides over the Lok Sabha, decides if a Bill is a Money Bill, rules on anti-defection disqualification and guards members' privileges. Safeguards protect the office, but real neutrality is doubted because the Speaker usually stays in a party and decides disqualification cases. Reforms include bipartisan selection, an independent tribunal for anti-defection and the convention "Once a Speaker, always a Speaker".*

POWERS AND FUNCTIONS OF THE SPEAKER

1. Presiding and disciplinary powers

→ Presides over the Lok Sabha and over ***joint sittings*** of Parliament (***Article 108***).

→ Maintains order and decorum and can direct disorderly members to withdraw or take action under House rules.

→ Decides points of order and interprets procedural rules and precedents.

→ Can adjourn or suspend a sitting in grave disorder or when there is no ***quorum (one-tenth of total membership)***.

2. Legislative and procedural powers

→ Decides the admissibility of questions, motions and resolutions.

→ Regulates debates, decides who speaks and for how long.

→ Can ***expunge*** objectionable remarks or unparliamentary language from House records.

→ Can allow a ***secret sitting*** under the rules.

3. Money Bill certification (Article 110)

→ The Speaker decides whether a Bill is a ***Money Bill***. ***Article 110(3)*** says the Speaker's decision is final.

→ But certification is subject to judicial review where a constitutional violation is alleged. In ***Rojer Mathew v. South Indian Bank (2019)*** the Supreme Court recognised that Money Bill certification is not completely immune from judicial review.

4. Anti-defection powers (Tenth Schedule)

→ The Speaker decides disqualification of Lok Sabha members on grounds of defection.

→ In ***Kihoto Hollohan v. Zachillhu (1992)*** the Supreme Court held that the Speaker's decisions under the Tenth Schedule are ***subject to judicial review***.

5. Committees and privileges

→ Guardian of the rights and privileges of the Lok Sabha, its committees and members.

→ Appoints chairpersons of several Lok Sabha committees and supervises them.

→ Chairs the ***Business Advisory Committee, Rules Committee and General Purposes Committee***.

→ Ex-officio President of the Indian Parliamentary Group and chairs the Conference of Presiding Officers of Legislative Bodies in India.

6. Voting (Article 100)

→ Does ***not vote in the first instance*** in ordinary proceedings. Uses a ***casting vote*** in case of a tie. This helps keep the Chair neutral.

INDEPENDENCE AND IMPARTIALITY

Safeguards — the Speaker is expected to stay apart from daily party politics and protect all members whatever their party.

→ ***1. Security of tenure:*** removal needs an effective majority and ***14 days' notice***, protecting against sudden removal.

→ ***2. Financial independence:*** salary and allowances are charged on the Consolidated Fund of India and are not voted annually.

→ ***3. Limited judicial interference:*** under ***Article 122***, courts cannot question parliamentary proceedings for mere procedural irregularity; constitutional violations remain reviewable.

→ ***4. Casting vote only on a tie:*** supports neutrality.

→ ***5. Anti-defection exemption:*** under the Tenth Schedule the Speaker may voluntarily give up party membership on election to the office without being disqualified, if conditions are met.

→ ***6. High status:*** 7th rank in the Table of Precedence, alongside the Chief Justice of India.

→ ***7. Parliamentary protection:*** the Speaker's conduct is not normally discussed in the House except on a substantive motion.

Challenges to independence

→ ***Political affiliation:*** the Speaker generally keeps party membership, raising neutrality concerns.

→ ***Anti-defection decisions:*** delays and alleged partisan decisions raise doubts about impartiality.

→ ***Money Bill certification:*** disputes have raised concerns about the Rajya Sabha's rights.

→ ***Procedural discretion:*** decisions on admission of motions, debate and discipline can look pro-government.

→ ***Dependence on a majority:*** pressure from a ruling party with a strong majority.

"ONCE A SPEAKER, ALWAYS A SPEAKER"

Meaning and origin

→ A person elected Speaker should stay politically neutral even after the term ends. In the ***UK*** the Speaker resigns from party affiliation and generally gets re-elected without opposition from major parties.

→ ***Indian precedent: Vithalbhai Patel (1925)*** resigned from the Swaraj Party after becoming President of the Central Legislative Assembly and later contested as an independent.

→ ***V. S. Page Committee (1967)*** recommended conventions to strengthen neutrality: the Speaker should ***sever party connections***; parties should seek consensus on keeping an impartial Speaker; major parties should avoid contesting the Speaker's constituency where such consensus exists; an elected Speaker should not seek ministerial or other political executive office at the same time.

Arguments in favour	Challenges
Ensures impartiality: less dependence on the ruling party, fair treatment of all MPs	***Career disincentive:*** permanent political detachment may discourage capable politicians from taking the post
Protects parliamentary democracy: Speaker guards both government and opposition	***Weak conventions:*** unlike the UK, neutrality conventions are not firmly established in India

Better anti-defection decisions: detachment reduces claims of partisan rulings	**Limited accountability:** permanent detachment may reduce political accountability
Institutional credibility: public confidence in the dignity of the Chair	**Incomplete reform:** quitting a party alone may not ensure neutrality without changes to anti-defection adjudication and procedures

Example (2025): the Supreme Court directed the Telangana Assembly Speaker to decide pending disqualification petitions against defecting MLAs within a specified period, highlighting concern over delays in anti-defection decisions. (verify)

Reforms and way forward

→ **Bipartisan selection:** consultation between ruling party and Opposition before choosing the Speaker.
→ **Independent anti-defection adjudication:** consider moving the power from the Speaker to an independent tribunal or other impartial authority.
→ **Strengthen neutrality conventions** such as "Once a Speaker, always a Speaker", with safeguards against an immediate return to partisan office.
→ **Better procedures:** transparent and consistent decisions on motions, debates, Money Bills and discipline.
→ **Capacity building:** training in constitutional law, parliamentary procedure and impartial decision-making.

Country	Practice
United Kingdom	Speaker resigns from party affiliation; major parties generally do not contest the Speaker's constituency
Canada	Speaker is elected through a secret ballot of MPs
Australia	Speaker generally keeps political affiliation but is expected to preside impartially

> *G. V. Mavalankar: "Once a person is elected Speaker, he is expected to be above parties, above politics. In other words, he belongs to all the members or belongs to none. He holds the scales of justice evenly, irrespective of party or person."*

Recall drill: cover and answer

Speaker presides over joint sittings under	Article 108	Quorum of the Lok Sabha	One-tenth of total membership
Money Bill certification	Article 110(3): Speaker's decision final, but reviewable (Rojer Mathew 2019)	Speaker's anti-defection decisions are	Subject to judicial review (Kihoto Hollohan 1992)
Speaker's vote	Casting vote only on a tie (Article 100)	Notice for removing the Speaker	14 days, effective majority
Speaker's rank in Table of Precedence	7th, with the Chief Justice of India	First Indian Speaker-type precedent for neutrality	Vithalbhai Patel (1925)
Committee on Presiding Officers' neutrality (1967)	V. S. Page Committee		

PARLIAMENTARY PRIVILEGES · ARTICLE 105 · COLLECTIVE AND INDIVIDUAL · BREACH vs CONTEMPT · JUDGMENTS · CODIFICATION

PYQ None quoted in the handout · Executive and Legislature handout pp. 22–24

✎ *Parliamentary privileges are special rights and immunities of the Houses, committees and members (Article 105 for Parliament; Article 194 for State legislatures). They protect free functioning, not personal comfort. They are not codified. The Supreme Court has held*

that they are not beyond judicial review (Raja Ram Pal, 2007) and that MPs cannot claim immunity for bribery linked to speeches or votes (Sita Soren, 2024).

WHAT ARE PRIVILEGES?

Meaning

→ Special ***rights, immunities and exemptions*** enjoyed by the two Houses of Parliament, their committees and their members. They protect the independence, dignity and effective working of Parliament and shield members from outside interference.

→ ***Article 105:*** privileges at the Union level. ***Article 194:*** similar privileges for State Legislatures.

→ They also extend to persons who are entitled to take part in parliamentary proceedings, such as ***Union Ministers and the Attorney General***.

→ They do ***not*** extend to the ***President***, even though the President is an integral part of Parliament.

Sources of privileges

→ ***Laws:*** Parliament may define privileges by law, but no comprehensive law codifying all privileges has been made.

→ ***Rules of procedure*** governing business and privilege matters.

→ ***Parliamentary conventions*** (established practices).

→ ***Judicial interpretations:*** Supreme Court judgments on scope and limits.

COLLECTIVE PRIVILEGES (OF EACH HOUSE)

Eight collective privileges

→ ***1. Publication of proceedings:*** each House can publish and regulate its proceedings. ***Article 361A*** protects substantially true reports, except those of secret sittings, subject to conditions.

→ ***2. Secret sittings:*** each House can exclude strangers and hold secret proceedings.

→ ***3. Internal regulation:*** can frame rules and regulate its own proceedings.

→ ***4. Punishment for contempt:*** can punish members and outsiders by reprimand, admonition, suspension, imprisonment or expulsion, as applicable.

→ ***5. Information on arrest:*** the House must be told about the arrest, detention, conviction or imprisonment of its members.

→ ***6. Summoning powers:*** committees can summon witnesses and demand documents, subject to rules.

→ ***7. Judicial protection (Article 122):*** courts cannot question proceedings for mere procedural irregularity, but constitutional violations are reviewable.

→ ***8. Protection within the precincts:*** arrest or service of legal process inside parliamentary precincts needs the Presiding Officer's permission, subject to rules.

INDIVIDUAL PRIVILEGES (OF MEMBERS)

Four individual privileges

→ ***1. Freedom of speech (Article 105):*** immunity from court proceedings for speeches and votes in Parliament, subject to constitutional limits.

→ ***2. Freedom from civil arrest:*** during sessions and ***40 days before and after***. It does ***not*** apply to criminal cases or preventive detention.

→ ***3. Exemption from court attendance:*** members are generally not compelled to appear as witnesses during sessions, subject to rules.

→ ***4. Exemption from jury service:*** traditionally exempt, though jury trials are no longer part of India's ordinary criminal justice system.

Nature: privileges are ***functional protections, not personal privileges***. They are also called the "***indirect rights of citizens***" because they let MPs represent the people freely.

BREACH OF PRIVILEGE vs CONTEMPT OF THE HOUSE

Breach of privilege	Contempt of the House
Violation of a ***specific right or privilege*** of the House, its committees or members	Any act that obstructs or undermines the ***functioning, authority or dignity*** of the House
Example: obstructing an MP in performing parliamentary duties	Example: disobeying a lawful order of the House
Narrower concept	Broader concept, may include breach of privilege

Every breach of privilege may amount to contempt, but every contempt need not involve breach of a specific privilege.

Procedure for breach of privilege

→ ***1. Notice:*** a member raises a question of privilege with the permission of the Speaker or Chairman.

→ ***2. Preliminary examination:*** the Presiding Officer checks whether a ***prima facie*** case exists.

→ ***3. Committee of Privileges:*** the matter may be sent to the Committee to investigate and recommend.

→ ***4. Decision:*** the House may accept, modify or reject the Committee's recommendations and decide the action.

IMPORTANT SUPREME COURT JUDGMENTS

Case	Background and holding
Raja Ram Pal v. Speaker, Lok Sabha (2007)	MPs were expelled after the ***Cash-for-Query scandal (2005)***. The Supreme Court upheld Parliament's power to expel members for misconduct under its privilege jurisdiction, but held that privileges are ***not completely immune from judicial review***: courts can examine constitutional violations and substantive illegality, not mere procedural irregularities.
Sita Soren v. Union of India (2024)	A ***seven-judge*** Constitution Bench ruled that MPs and MLAs ***cannot claim immunity from prosecution for bribery*** linked to their speeches or votes. It ***overruled P. V. Narasimha Rao v. State (1998)***. Principle: privileges protect legislative independence, not corruption or criminal misconduct.

Significance of privileges

→ ***Legislative independence*** from undue influence by the executive, judiciary and outside agencies.

→ ***Freedom of representation:*** MPs can raise public concerns without fear of legal harassment for protected parliamentary speech.

→ ***Institutional dignity*** and authority of Parliament.

→ ***Effective oversight:*** supports debates, inquiries and scrutiny of the government.

CODIFICATION DEBATE

Arguments for codification	Arguments against codification
Legal clarity: removes doubt about the scope of privileges	***Loss of flexibility:*** impossible to define every breach or contempt
Prevents misuse: clear limits on parliamentary punishment	***Political influence:*** the ruling majority might shape privileges to its interest
Judicial harmony: fewer clashes between legislature and judiciary	***More litigation:*** codified provisions may draw more legal challenges
Protects Fundamental Rights: clear safeguards against arbitrary action	***Reduced autonomy:*** may restrict the House's ability to handle new situations

Key concerns: undefined powers (breach vs contempt); uncertain limits of imprisonment, suspension and expulsion;

→ ***Way forward: selective codification*** of major privileges and punishments while keeping procedural flexibility; ***due process*** (fair hearing, reasoned decisions, proportionate punishment); ***judicial balance***; transparent and impartial Committees of Privileges.

balance with Articles 14, 19 and 21; distinction between internal procedure and constitutional violations.

Conclusion: privileges are essential for legislative independence and democratic accountability, but must stay consistent with constitutional supremacy, fundamental rights and the rule of law.

Recall drill: cover and answer

Articles on privileges: Parliament / State legislatures	105 / 194	Do privileges extend to the President?	No
Freedom from civil arrest period	During sessions and 40 days before and after	Does it apply to criminal arrest?	No
Article protecting substantially true reports of proceedings	Article 361A	Article barring courts from questioning proceedings	Article 122 (procedural irregularity only)
Cash-for-Query case	Raja Ram Pal v. Speaker, 2007	Case that overruled P. V. Narasimha Rao (1998)	Sita Soren v. Union of India, 2024 (seven judges)
Which body examines breach of privilege?	Committee of Privileges		

BICAMERALISM · RAJYA SABHA vs LOK SABHA · POWERS · SIGNIFICANCE · LIMITATIONS

PYQ None quoted in the handout · Executive and Legislature handout pp. 24–28

✎ *Parliament has the President, Rajya Sabha and Lok Sabha (Article 79). India chose two Houses for federal voice, deliberation, expertise and continuity. Rajya Sabha is equal to the Lok Sabha on ordinary Bills and constitutional amendments, weaker on Money Bills and government accountability, and has special powers (Articles 249 and 312, VP removal). It is neither as weak as the House of Lords nor as strong as the US Senate.*

CONSTITUTIONAL FRAMEWORK AND RATIONALE

Structure

→ **Article 79**: Parliament = the **President + Rajya Sabha (Council of States) + Lok Sabha (House of the People)**.

→ The President is not a member of either House but is part of Parliament. He summons and prorogues, dissolves the Lok Sabha, addresses Parliament and gives assent to Bills.

Why India adopted bicameralism

→ **Federal representation:** the Rajya Sabha gives States a voice at the national level.

→ **Better deliberation:** a second chamber reconsiders what the Lok Sabha passes and reduces the risk of hasty or ill-considered laws.

→ **Diverse representation:** experts come in through Presidential nomination, State representatives through indirect election.

→ **Continuity:** the Rajya Sabha never dissolves, giving institutional memory even when the Lok Sabha is dissolved.

→ **Constitutional safeguard:** a second chamber helps stop unilateral constitutional change by a Lok Sabha majority.

→ **Delay:** Bills need approval from both Houses.

Arguments against bicameralism

→ ***Duplication:*** both Houses discuss the same issues, increasing time and cost.

→ ***Indirect election:*** Rajya Sabha members are not directly elected, which raises questions of accountability.

→ ***Weak federal role:*** members often vote on party lines instead of defending State interests.

→ ***Political accommodation:*** the Upper House may be used to accommodate defeated politicians or loyalists.

Bicameralism adds a layer of deliberation, and the Constitution gives tools to settle disagreements: ***Joint Sitting (Article 108)*** and the ***Money Bill*** procedure.

LOK SABHA vs RAJYA SABHA

Basis	Lok Sabha	Rajya Sabha
Constitutional basis	Article 81	Article 80
Nature	House of the People, directly elected	Council of States, indirectly elected
Membership	543 elected seats	Maximum 250; present sanctioned strength 245, including 12 nominated members
Election	First-Past-the-Post, universal adult suffrage	Proportional Representation by Single Transferable Vote
Representation	Population-based	State/UT-based representation, with unequal allocation
Tenure	5 years, unless dissolved earlier	Permanent House. Members serve 6 years, about one-third retiring every 2 years
Presiding officers	Speaker and Deputy Speaker	Vice-President as Chairman, and a Deputy Chairman
Executive accountability	Council of Ministers is collectively responsible to the Lok Sabha	Can question ministers but cannot remove the government by a no-confidence motion
Money Bills	Exclusive power to introduce, and final decision on recommendations	Can only recommend changes within 14 days
Special powers	No-confidence motion; voting on Demands for Grants	Articles 249 and 312; initiation of the Vice-President's removal
Joint sitting	Usually has a numerical advantage	Participates with equal voting rights for individual members
Women's representation	106th Amendment provides reservation, subject to implementation requirements	No constitutional women's reservation

POSITION AND POWERS OF THE RAJYA SABHA

A. Areas of parity (equal powers)

→ ***1. Ordinary legislation:*** equal power to introduce, amend and pass ordinary Bills, subject to the joint sitting mechanism.

→ ***2. Constitutional amendments (Article 368):*** both Houses must separately pass the Bill by the special majority; ***no joint sitting*** is available.

→ ***3. Election and removal of authorities:*** takes part in the election and impeachment of the President; the election and removal of the Vice-President (the removal resolution starts in the Rajya Sabha); parliamentary removal of Supreme Court and High Court judges, CAG and Chief Election Commissioner, as per their provisions.

→ ***4. Ordinances and Emergencies:*** both Houses ordinarily approve ordinances (Article 123) and Emergency proclamations (Articles 352, 356, 360).

→ ***5. Other:*** discusses reports of CAG, UPSC, Finance Commission and other constitutional bodies; takes part in legislation on the jurisdiction of the Supreme Court and other Union institutions; ministers including the PM can belong to either House.

B. Areas of inferior powers

→ ***1. Money Bills (Articles 109-110):*** introduced ***only in the Lok Sabha***. The Rajya Sabha can only ***recommend amendments within 14 days***; the Lok Sabha may accept or reject them. If the Rajya Sabha does not return the Bill within 14 days it is deemed passed in the form passed by the Lok Sabha.

→ **2. Financial control:** can discuss the Budget but ***cannot vote on Demands for Grants***.

→ **3. Executive accountability:** under Article 75(3) the Council of Ministers is responsible only to the Lok Sabha; a no-confidence motion cannot be moved in the Rajya Sabha.

→ **4. Joint sitting (Article 108):** the Lok Sabha's numerical strength usually prevails. Example: the ***Prevention of Terrorism Bill, 2002*** was passed in a joint sitting.

C. Special powers exclusive to the Rajya Sabha

→ **1. Legislation on a State List subject (Article 249):** the Rajya Sabha can authorise Parliament to legislate on a State List subject in the national interest, by a resolution backed by ***two-thirds of members present and voting***. Valid for ***one year***, renewable one year at a time. Laws made this way lapse ***six months*** after the resolution ceases, except for things already done.

→ **2. Creating All-India Services (Article 312):** by a two-thirds majority of members present and voting. Existing: IAS, IPS and Indian Forest Service.

→ **3. Removal of the Vice-President (Article 67):** the resolution can begin ***only in the Rajya Sabha***; it needs a majority of all the then members and the Lok Sabha's agreement.

→ **4. Emergency proclamations:** if the Lok Sabha is dissolved, the Rajya Sabha may approve proclamations under Articles 352, 356 and 360, ensuring continuity until the new Lok Sabha considers it within the set period.

SIGNIFICANCE AND LIMITATIONS OF THE RAJYA SABHA

Significance

→ **House of Elders:** senior statesmen, experienced politicians and experts can contribute.

→ **Revisory chamber:** prevents hasty or ill-considered laws and promotes informed debate.

→ **Guardian of the Constitution:** helps prevent constitutional change based only on a Lok Sabha majority.

→ **Federal chamber:** allows States to take part in Union decisions.

→ **Intellectual representation:** 12 nominated members with special knowledge in literature, science, art and social service.

→ It is sometimes called the "***House of Corrections***", and the Lok Sabha the "***House of Passions***".

Limitations and criticism

→ **1. Weak federal character:** States are ***not equally represented*** (unlike the US Senate); the ***2003 removal of the domicile requirement*** means a Rajya Sabha member from a State need not live there; representation of Union Territories and nominated members adds non-federal features.

→ **2. Limited financial powers:** weak control over Money Bills. Controversies over Money Bill certification, including the ***Aadhaar legislation***, raised fears of bypassing the Upper House.

→ **3. Doubtful effectiveness as a revisory chamber:** Parliament has held only ***three joint sittings***; the Rajya Sabha could not stop major constitutional changes like the ***42nd Amendment (1976)***.

→ **4. Political accommodation:** critics say it becomes a platform for defeated politicians, retired bureaucrats and loyalists; nominating former constitutional functionaries has raised concerns about independence.

→ **5. Declining quality of debate:** frequent disruptions and walkouts. Vice-President ***Hamid Ansari*** in 2013 used the expression "***federation of anarchists***".

Why are States unequally represented?

→ **Population differences:** Indian States differ greatly in population and size.

→ **Nature of the federation:** India was not formed by an agreement among previously independent States, unlike the USA.

→ **Small-State dominance:** equal representation would give small States disproportionate influence over national law.

Overall position: the Rajya Sabha is neither as weak as the British House of Lords nor as powerful as the US Senate. Its worth lies in combining federal representation, legislative review and institutional continuity.

Recall drill: cover and answer

Article for Parliament's composition	Article 79	Rajya Sabha size	Maximum 250; now 245 including 12 nominated
Rajya Sabha election system	PR by Single Transferable Vote; 6-year term, one-third retire every 2 years	Rajya Sabha time for Money Bill	14 days to recommend
Can a no-confidence motion be moved in RS?	No	Article 249 vote	Two-thirds present and voting; valid 1 year
Article 312	Creation of All-India Services by RS resolution	Removal of Vice-President starts in	Rajya Sabha (Article 67)
Domicile requirement removed in	2003	Number of joint sittings held	Three (per handout); example POTA Bill 2002

WOMEN IN PARLIAMENT · 106th AMENDMENT · 131st AMENDMENT BILL 2026 · DELIMITATION ISSUES

PYQ None quoted in the handout · Executive and Legislature handout pp. 28-30

✎ *Women are about half of India's population but only about 14% of the Lok Sabha. The Nari Shakti Vandan Adhiniyam (106th Amendment, 2023) promises one-third reservation, but only after the Census and delimitation. The 131st Amendment Bill (16 April 2026) tried to expand the Lok Sabha and speed this up but was defeated. The delimitation debate is mainly about South vs North, federal balance and fairness.*

WOMEN'S REPRESENTATION IN PARLIAMENT

Where we stand — women are nearly half the population but have limited representation.

- → **15th Lok Sabha:** around 11% women MPs.
- → **16th Lok Sabha:** around 11.4%.
- → **17th Lok Sabha:** 78 women MPs, about 14%.
- → **18th Lok Sabha (2024):** 74 women MPs, about 14% at the time of election.

Constituent Assembly

Reservation for women was debated, but many women members preferred social and economic empowerment over legislative quotas.

1996, 1998, 1999

Women's Reservation Bills were introduced but could not be enacted.

2008

The **108th Constitutional Amendment Bill**, passed by the Rajya Sabha in 2010, **lapsed** with the dissolution of the 15th Lok Sabha.

2023

The **106th Constitutional Amendment Act** brought in one-third reservation for women.

NARI SHAKTI VANDAN ADHINIYAM, 2023 (106th AMENDMENT)

Key provisions

→ ***One-third reservation:*** 33% in the ***Lok Sabha, State Legislative Assemblies and the Delhi Legislative Assembly***.

→ ***Constitutional changes:*** inserted ***Articles 330A, 332A and 334A*** and amended ***Article 239AA***.

→ ***SC/ST women:*** one-third of the seats reserved for SCs and STs go to women from those communities.

→ ***Implementation:*** takes effect after the required ***Census figures are published and delimitation is done***.

→ ***Rotation and duration:*** seats rotate after later delimitation exercises. A ***15-year*** period is provided, subject to Parliament's power to decide continuation.

→ ***Exclusion:*** does ***not*** apply to the Rajya Sabha or State Legislative Councils.

Arguments in favour	Concerns and challenges
Political equality: corrects the historical under-representation of women	***Proxy representation:*** male relatives may control elected women
Policy priorities: women-led Panchayats give more attention to water supply, sanitation and local services	***Rotation of seats:*** weakens constituency continuity and long-term political investment
Leadership development: encourages women's participation in parties and decision-making	***Tokenism:*** a quota alone may not fix patriarchal structures and party-level discrimination
Inclusive governance: more diverse perspectives in debates and policy	***Delayed implementation:*** dependence on Census and delimitation creates uncertainty

Alternative reform proposals

→ ***Party ticket quotas:*** parties must give at least one-third of tickets to women (through electoral law). Limit: parties may field women in seats where their chance of winning is low.

→ ***Dual-member constituencies:*** some constituencies elect one man and one woman. Limit: needs big changes to the electoral system and may create unequal influence between the two representatives.

→ ***Long-term empowerment:*** women's education, financial independence, safety and political training; internal party democracy; less criminalisation of politics.

CONSTITUTION (131st AMENDMENT) BILL, 2026

What was introduced

→ Three connected Bills were introduced in the Lok Sabha on ***16 April 2026***: the ***Constitution (131st Amendment) Bill***, the ***Delimitation Bill*** and the ***Union Territories Laws (Amendment) Bill***.

→ ***Expansion of the Lok Sabha:*** raise its maximum strength from 550 to ***850***, with up to ***815*** from States and ***35*** from Union Territories.

→ ***Population-based delimitation:*** reallocate seats so constituencies across States have roughly equal populations.

→ ***Census basis:*** let Parliament decide by law which Census is used for delimitation; the accompanying Bill would have allowed use of the ***2011 Census***.

→ ***Women's reservation:*** remove the need to wait for the first Census after the 106th Amendment Act, 2023, allowing earlier implementation.

Outcome: the Constitution (131st Amendment) Bill was ***defeated in the Lok Sabha on 17 April 2026***; the two connected Bills became infructuous. (current affairs; verify the date and numbers)

ISSUES RELATED TO DELIMITATION

Six issues

→ ***1. North-South federal imbalance.*** Southern States (Tamil Nadu, Kerala, Karnataka, Andhra Pradesh) slowed population growth through health, education and family planning; Northern States (Uttar Pradesh, Bihar, Madhya Pradesh) grew faster. A strictly population-based redistribution would raise Northern States' share and cut Southern States' political weight.

→ ***2. Reduced constitutional certainty.*** The proposed framework would let Parliament decide the timing of delimitation and the Census used by ordinary law, raising fears of more political discretion over representation.

→ ***3. Gerrymandering risk.*** Gerrymandering is deliberately drawing boundaries to favour a party or dilute a community's influence. Delimitation in Jammu and Kashmir and Assam has faced allegations of politically motivated changes.

→ ***4. Judicial review concerns.*** Under the present law, Delimitation Commission orders have the force of law and are generally protected from direct court challenge; the proposals raised concerns about the scope of judicial scrutiny and accountability.

→ ***5. Weakening the Rajya Sabha.*** A large rise in Lok Sabha seats without a matching rise in Rajya Sabha seats reduces the Upper House's relative weight in joint sittings.

→ ***6. Link with women's reservation.*** Delay or dispute over delimitation also delays women's reservation under the current framework.

Basis	India	USA	United Kingdom
Term	Delimitation	Redistricting	Boundary Review
Authority	Delimitation Commission constituted under law	State legislatures or independent commissions, depending on the State	Four independent Boundary Commissions
Frequency	Linked to Census, subject to constitutional freezes	Generally after every decennial Census	Generally every 8 years
Legal basis	Articles 81, 82, 170 and Delimitation Acts	US Constitution and federal/ State election laws	Parliamentary Constituencies Act 1986, as amended
Judicial review	Commission orders generally protected from direct challenge, subject to constitutional limits	Racial discrimination claims reviewable; purely partisan gerrymandering claims not justiciable in federal courts	Courts may review legality but not the merits of independent boundary recommendations
Lower House seats	543 elected seats	435 voting members	650 members
Political influence	Commission-based process	Varies by State, considerable partisan influence in some	Independent and rules-based

Way forward for India

→ ***National consensus:*** consult States and parties before large changes in seat allocation.

→ ***Safeguard federalism:*** balance population-based representation with regional equity.

→ ***Independent Commission:*** strengthen its autonomy and transparency.

→ ***Judicial safeguards:*** clear remedies against constitutional violations and arbitrary boundary changes.

→ ***Phased implementation:*** avoid sudden changes that may harm any region's representation.

Recall drill: cover and answer

Women MPs in 17th / 18th Lok Sabha	78 (about 14%) / 74 (about 14%)	Women's reservation Act of 2023	Nari Shakti Vandan Adhiniyam, 106th Amendment
Articles inserted by it	330A, 332A, 334A (and 239AA amended)	Does it apply to Rajya Sabha?	No
Duration of reservation	15 years, subject to Parliament	When does it take effect?	After Census figures and delimitation
131st Bill introduced / outcome	16 April 2026 / defeated in Lok Sabha on 17 April 2026 (verify)	Proposed Lok Sabha maximum	850 (815 States + 35 UTs)
Why South worries about delimitation	Slower population growth would reduce its share of seats		

⚖ FUNCTIONING OF PARLIAMENT · REPRESENTATION · SALARIES · REFORMS · MPLADS · SUPREME BUT NOT SOVEREIGN ⚖

PYQ None quoted in the handout · Executive and Legislature handout pp. 30–35

✎ *Parliament's effectiveness has declined: fewer sitting days, disruptions, rushed Bills, delegated legislation, cabinet dominance, guillotine, ordinances, criminalisation and weak research support. Reforms include more sittings, stronger committees, a looser whip, ethics and fair delimitation. MPLADS (Rs 5 crore per MP per year) is controversial though upheld in Bhim Singh (2010). Parliament is supreme in law-making and accountability, but not sovereign, because the Constitution is supreme.*

DECLINING PARLIAMENTARY EFFECTIVENESS

Seven problems

→ **1. *Inadequate sitting days.*** Sitting days have fallen sharply since the early decades after Independence. Fewer sittings mean less debate, scrutiny and opposition accountability, and the government has great control over the timing and length of sessions.

→ **2. *Disruptions and adjournments.*** Slogan shouting, walkouts and disruptions reduce productive time. They can draw attention to issues, but repeated adjournments also weaken government accountability. Example: the 15th Lok Sabha (2009–14) had heavy disruptions and low productivity.

→ **3. *Declining quality of debate.*** Bills are sometimes passed with little discussion or committee examination. The Anti-Defection Law, party discipline and big majorities reduce independent thinking. Technical complexity makes it hard for MPs to scrutinise specialised laws.

→ **4. *Delegated legislation.*** Parliament often passes broad laws and leaves the executive to frame detailed rules, which reduces control if delegated legislation gets little scrutiny.

→ **5. *Cabinet dominance.*** The executive controls much of the legislative agenda while Parliament plays a limited part in starting major legislation: "the creation dominates the creator".

→ **6. *Increasing use of the guillotine.*** It puts outstanding Demands for Grants to a vote at the scheduled time without further discussion. Needed for timely Budget approval, but too much use cuts financial scrutiny.

→ **7. *Frequent ordinances.*** Repeated use of Article 123 weakens debate and scrutiny; ordinances must stay exceptional.

PROBLEMS OF REPRESENTATION AND ACCOUNTABILITY

Five problems

→ **1. Criminalisation of politics.** 16th Lok Sabha (2014): about **34%** of MPs declared criminal cases. 17th (2019): **233 MPs (43%)**. 18th (2024): **251 MPs (46%)**, including **170 (31%)** with serious cases. These are cases declared in election affidavits, not findings of guilt.

→ **2. An ageing Parliament.** The share of younger MPs has fallen. In the 18th Lok Sabha only about **11%** were aged 40 or below at the time of election.

→ **3. Inadequate representation.** The population each Lok Sabha MP represents has risen a lot since the 1971 Census. With 543 seats, MPs represent very different population sizes, which raises concerns about equal representation and workload.

→ **4. Declining political conduct.** Cash-for-Query, Cash-for-Vote allegations and MPLADS irregularities have raised ethical concerns; stronger ethics committees, transparency and electoral reform are needed.

→ **5. Weak research support.** Modern laws need technical, economic, scientific and legal expertise; parliamentary research and committee support must be strengthened.

MPs' salaries and resources (Article 106)

→ Article 106 lets Parliament fix members' salaries and allowances by law: the ***Salary, Allowances and Pension of Members of Parliament Act, 1954***.

→ ***Basic salary:*** Rs 1.24 lakh per month (from 1 April 2023). ***Constituency allowance:*** Rs 87,000 per month. ***Office expense allowance:*** Rs 75,000 per month. ***Daily allowance:*** Rs 2,500, subject to rules.

→ ***Debate:*** pay should not be so high that it becomes the main attraction of politics, nor so low that good candidates stay away. An independent mechanism like the UK's ***Independent Parliamentary Standards Authority*** may improve public confidence.

REFORMS FOR STRENGTHENING PARLIAMENT

Eight reform areas

→ **1. More sittings:** a fixed legislative calendar and minimum sitting days. Proposals suggest ***120 days for the Lok Sabha and 100 for the Rajya Sabha***.

→ **2. Stronger committees:** make sure major Bills get adequate committee examination, with technical experts and research support.

→ **3. Reform the Anti-Defection Law:** consider limiting whips mainly to confidence votes and essential government business, so MPs can deliberate independently while governments stay stable.

→ **4. Strengthen the Opposition's role:** adequate opportunities for debates, motions and scrutiny; consider dedicated days for Opposition-chosen business, drawing on the UK model.

→ **5. Electoral and ethical reforms:** better disclosure of criminal antecedents and political funding; stronger enforcement of parliamentary ethics.

→ **6. Better representation:** implement women's reservation through a fair constitutional process; delimit by national consensus, federal consultation and transparent procedure.

→ **7. Greater parliamentary independence:** stronger autonomy of parliamentary institutions, a neutral Speaker and less executive control over business.

→ **8. Research and deliberation:** expand research services and train MPs so Parliament is a forum for analysis, scientific reasoning and informed policy.

Conclusion: Parliament is not merely a law-making body. It is the base of representative democracy, executive accountability and federal cooperation. Strengthening it needs effective scrutiny, fair representation, political accountability and respect for constitutional institutions.

MPLADS (MEMBERS OF PARLIAMENT LOCAL AREA DEVELOPMENT SCHEME)

Key features

→ Launched in **1993** under the **P. V. Narasimha Rao** government so MPs can recommend local development works based on their constituencies' needs.
→ **Nodal ministry:** Ministry of Statistics and Programme Implementation (MoSPI).
→ **Allocation: Rs 5 crore per MP per year**; funds are **non-lapsable** and unspent balances carry forward.
→ **Nature of work:** durable community assets in drinking water, sanitation, education, health and roads.
→ **Implementation:** MPs **recommend**; the **District Authority sanctions and implements** through eligible agencies.
→ **COVID-19:** suspended for 2020-21 and initially for 2021-22, then restored during 2021-22.

Area of operation

→ **Lok Sabha MP:** within their own constituency.
→ **Rajya Sabha MP:** any district in the State they represent.
→ **Nominated MP:** any district or districts in one State chosen by the MP.
→ **Restrictions:** funds cannot ordinarily be used for religious buildings, routine maintenance of official buildings or assets named after individuals, subject to guidelines.
→ **Audit:** Chartered Accountants, Local Fund Auditors or Statutory Auditors, on the Accountant General's recommendation.

Criticism of MPLADS

→ **Separation of powers:** legislators influence executive work by choosing projects.
→ **Federalism:** health, sanitation and roads largely fall under State and local governments.
→ **Corruption and misuse:** reports of diversion of funds, irregular sanctioning and delays.
→ **Non-lapsable funds:** may encourage hoarding and spending near elections.
→ **Poor utilisation (unspent amounts):** 14th Lok Sabha Rs 176 crore; 15th Rs 551 crore; 16th Rs 1,734 crore.
→ **Weak asset maintenance:** focus on creating assets, not maintaining them.
→ **Unequal distribution:** overlapping recommendations from Lok Sabha, Rajya Sabha and nominated MPs can leave districts unequal.
→ **Weakening local bodies:** projects ideally belong to Panchayats and Municipalities, which already lack funds.

Body / case	View on MPLADS
NCRWC (2002)	Recommended discontinuing it, citing federalism and distribution of powers
Second ARC	Recommended abolishing it, saying it weakens separation of powers between legislature and executive
Election Commission of India	Opposes it because it gives sitting MPs an unfair advantage, disturbing the level playing field
Parliamentary Committee on MPLADS	Supported continuing the scheme with procedural reforms, including changing its name
Bhim Singh v. Union of India (2010)	A five-judge bench upheld its constitutionality: MPs have only a **recommendatory** role, and district and local authorities sanction and implement, so it does not violate separation of powers

Way forward: stronger monitoring to stop diversion and ensure

timely completion; better coordination to avoid duplication and unequal spread; more involvement of Panchayats and Municipalities; accountability through better utilisation, independent audits, asset maintenance and transparency.

PARLIAMENT IS SUPREME BUT NOT SOVEREIGN

Why Parliament is supreme

→ ***Highest legislative body*** at the Union level; legislates on Union and Concurrent List subjects.

→ ***Residuary powers*** (Article 248): exclusive power on subjects in no list.

→ ***Constitutional amendment*** (Article 368), though some amendments need State ratification.

→ ***Control over the executive:*** the Council of Ministers is collectively responsible to the Lok Sabha (Article 75), which can remove the government by no-confidence.

→ ***Authority over judicial structure:*** can raise the number of Supreme Court judges (Article 124) and create tribunals, within limits.

→ ***Financial supremacy:*** controls Union taxation and spending; no money leaves the Consolidated Fund without its authority.

→ ***Impeachment and removal powers:*** can impeach the President and remove judges of the Supreme Court and High Courts.

Why it is not sovereign

→ ***Constitutional supremacy:*** Parliament gets its powers from the Constitution and must act within it.

→ ***Judicial review:*** courts can strike down laws that violate the Constitution.

→ ***Basic Structure doctrine:*** Parliament cannot destroy the basic structure (Kesavananda Bharati, 1973).

→ ***Federal structure:*** cannot ordinarily legislate on State List subjects except in constitutionally specified conditions.

→ ***Fundamental Rights:*** laws must respect them and other constitutional limits.

Conclusion: the Indian Parliament is supreme in its law-making and in holding the executive to account at the Union level, but not sovereign, because the Constitution is supreme. Unlike the British Parliament, its powers are limited by the Constitution.

Recall drill: cover and answer

Minimum sittings proposed	120 days Lok Sabha, 100 days Rajya Sabha	MPs with declared criminal cases: 17th / 18th Lok Sabha	233 (43%) / 251 (46%), of which 170 (31%) serious
Article on MPs' salaries	Article 106 (1954 Act)	MPLADS started / by whom	1993, P. V. Narasimha Rao government
MPLADS allocation	Rs 5 crore per MP per year, non-lapsable	Nodal ministry for MPLADS	MoSPI
Case that upheld MPLADS	Bhim Singh v. Union of India, 2010 (five judges)	Bodies that wanted MPLADS ended	NCRWC 2002, Second ARC, Election Commission
Why Parliament is not sovereign	Constitution is supreme: judicial review, basic structure, federalism, Fundamental Rights		

FEDERALISM IN INDIA · FEATURES · DEBATE · EVOLUTION · FORMS OF FEDERALISM

PYQ None quoted in the handout · Centre State Relations handout pp. 3-7

✎ *Federalism means powers are divided by the Constitution between the Centre and the States, and neither can take the other's share away at will. India is a "holding together" federation: a large country that gave power to regions to keep unity. It has real federal features and strong unitary features, so scholars call it quasi-federal, cooperative or sui generis. In practice it has moved through centralised, regional, judicially corrected, coalition and cooperative-competitive phases.*

WHAT IS FEDERALISM?

Meaning

→ Federalism is a political system in which powers are ***constitutionally divided*** between a Central Government and regional governments. Both levels get their authority from the Constitution and use power within their own spheres.

→ Merely having regional governments does not make a system federal. A system is truly federal when regional governments have ***constitutionally guaranteed powers that the Centre cannot take away at will.***

Basis	Coming Together Federation	Holding Together Federation
Origin	Independent political units unite to form a federation	A larger political entity distributes power among regional units
Objective	Mutual security and common interests	Accommodate regional diversity while keeping national unity
Distribution of powers	Constituent units generally enjoy stronger constitutional autonomy	The Centre generally enjoys greater powers
Examples	USA, Switzerland, Australia	India, Spain, Belgium

India's position: India follows the ***holding together*** model, combining regional autonomy with a strong constitutional Union.

FEDERAL FEATURES OF THE INDIAN CONSTITUTION

Despite the strong Centre, several provisions make India a federation:

→ **1. Dual polity:** the Constitution sets up Union and State governments, each with constitutionally assigned powers. States are not merely administrative agents of the Union.

→ **2. Written Constitution:** clearly defines the powers, functions and limits of both levels.

→ **3. Division of powers:** the **Seventh Schedule** distributes subjects among the Union List, State List and Concurrent List.

→ **4. Supremacy of the Constitution:** both Union and State governments must act within it; neither has unlimited legislative power.

→ **5. Rigid amendment procedure:** under Article 368, amendments touching specified federal provisions need ratification by at least half of the State Legislatures.

→ **6. Independent judiciary:** the Supreme Court settles constitutional disputes between Union and States under **Article 131**, subject to constitutional conditions.

→ **7. Bicameralism:** the Rajya Sabha represents States and Union Territories in Parliament and has special powers under Articles 249 and 312.

UNITARY FEATURES OF THE INDIAN CONSTITUTION

The Constitution also gives the Centre a dominant position:

→ **1. Strong Centre:** the Union List holds subjects of national importance, and Parliament has **residuary powers** under Article 248.

→ **2. Single Constitution and single citizenship** (no separate State constitutions or State citizenship, unlike some federations).

→ **3. Parliament's power over States (Article 3):** Parliament can alter State boundaries, names and areas without the concerned State's consent.

→ **4. Union supremacy over the Concurrent List (Article 254):** a Union law ordinarily prevails over a conflicting State law, subject to exceptions.

→ **5. Emergency provisions:** in a National Emergency (Article 352) the Union gets extra legislative and executive powers over States.

→ **6. President's Rule (Article 356):** the Union can take over State administration when constitutional machinery fails, subject to parliamentary and judicial safeguards.

→ **7. Governor's office:** appointed by the President (Article 155); may reserve State Bills for the President under Article 200.

→ **8. Integrated institutions:** a single judiciary, All-India Services, Election Commission and CAG give uniformity across the country.

→ **9. Fiscal centralisation:** the Union controls important revenue sources while States depend on tax devolution and Central grants.

Why these centralising features? They were designed to protect national unity, administrative coordination and constitutional stability, especially during political or security crises (the Constituent Assembly was working in the shadow of Partition).

NATURE OF INDIAN FEDERALISM: THE DEBATE

Views of scholars

→ **K. C. Wheare:** "**quasi-federal**". He described India's Constitution as federal in structure but with a strong unitary bias.

→ **Granville Austin:** "**cooperative federalism**". He stressed that the Centre and States must work together to reach national development and constitutional goals.

→ **Sui generis** means "of its own kind". India's federal system does not fit fully into the traditional federal or unitary models. It combines constitutional autonomy for States with a Centre strong enough to keep national unity.

"India has a federal Constitution but

→ **Constitutional centralisation:** residuary powers, emergency provisions and Union supremacy on the Concurrent List favour the Centre.

a strong-Centre government" — arguments for the statement:

→ ***Political centralisation:*** national parties and centralised party leadership can reduce State governments' autonomy.

→ ***Financial dependence:*** States rely heavily on Central transfers and Centrally Sponsored Schemes.

→ ***Administrative control:*** Governors, All-India Services and Union directions can strengthen Central influence over State administration.

Counterarguments

→ ***Constitutional autonomy:*** States have independent legislative and executive powers in their own sphere.

→ ***Judicial protection:*** in ***S. R. Bommai (1994)*** the Supreme Court recognised federalism as part of the Basic Structure and restricted arbitrary use of Article 356.

→ ***Regional political assertion:*** regional parties and coalition politics have raised the bargaining power of States.

→ ***Shared institutions:*** the GST Council, Finance Commission and Inter-State Council provide ways to cooperate and negotiate.

Conclusion: India is neither purely federal nor purely unitary. It is a federal system with a strong Centre, designed to combine national integration with regional autonomy.

EVOLUTION OF INDIAN FEDERALISM

Indian federalism has never been static. Its working has changed with political developments, economic reforms, regional movements and court decisions.

1950–1967: Centralised federalism

One-party dominance: Congress governed the Centre and most States, so there was little political confrontation. **Planning Commission (1950):** centralised planning and resource allocation strengthened Union influence. **Article 356** was used against State governments, including the Communist government in **Kerala in 1959**. Nature: the Centre dominated; States had limited bargaining power.

1967–1980: Regionalism and friction

1967 elections: non-Congress governments came to power in several States. **Regional parties** such as the DMK grew and demanded autonomy. The **Rajamannar Committee (1969)** was set up by the Tamil Nadu government to study Centre-State relations. The **Emergency (1975–77)** showed how far the Constitution can centralise power. Nature: the old consensus weakened and State autonomy became a major demand.

1980s–1990s: Assertive States, judicial correction

Regional movements in Punjab, Assam, Andhra Pradesh and other States. The **Sarkaria Commission (1983)** recommended more consultation, restraint in using Article 356 and stronger cooperative institutions. In **S. R. Bommai (1994)** the Supreme Court made President's Rule subject to judicial review and affirmed federalism as basic structure. Nature: States became more assertive and the judiciary built safeguards against arbitrary central intervention.

1990s–2014: Coalitions and economic federalism

Coalition governments: regional parties became partners at the Union level and gained bargaining power. **1991 liberalisation:** States began competing for investment and shaping their own economic development. **73rd and 74th Amendments (1992)** strengthened Panchayats and Municipalities. The **Inter-State Council (1990)** was set up on the Sarkaria Commission's advice. Nature: political bargaining and economic competition increased the role of States.

2014 onwards: Cooperative and competitive federalism

NITI Aayog (2015) replaced the Planning Commission. **GST Council (2017)** enabled shared decisions on indirect taxes under Article 279A. States compete for investment and governance rankings. Fiscal tensions continue over GST compensation, cesses, surcharges and Centrally Sponsored Schemes. After 2024, greater dependence on coalition partners at the Union level has renewed the relevance of regional bargaining. Nature: cooperation, competition and bargaining together, while the Centre's constitutional position stays strong.

DIFFERENT FORMS OF INDIAN FEDERALISM

India's federalism does not follow a single model. Several overlapping forms describe how it works.

1. Asymmetric federalism

→ **Meaning:** different States or regions have different constitutional arrangements to suit their history, geography and culture.

→ **Special provisions:** Articles 371 to 371J give special arrangements for certain States. The **Sixth Schedule** gives autonomous arrangements for specified tribal areas in the North-East.

→ **Significance:** it accommodates regional diversity without weakening national unity (details in the Inter-State chapter).

→ **Meaning:** continuous negotiation between the Centre and States over resources, powers and policies.

→ **Political bargaining:** regional parties negotiate with the Union on policy priorities and State-specific demands.

2. Bargaining federalism (associated with W. H. Morris-Jones)

→ ***Fiscal bargaining:*** States seek greater tax devolution, grants and financial flexibility.

→ ***Institutional bargaining:*** earlier through the Planning Commission and National Development Council; today through the GST Council and other forums.

→ ***Significance:*** it lets States influence national decisions, but too much political bargaining can weaken consistent policymaking.

3. Cooperative federalism

→ ***Meaning:*** collaboration and partnership between the Centre and States to reach common national goals.

→ ***Mechanisms:*** ***GST Council*** (shared decisions on GST); ***NITI Aayog Governing Council*** (PM and Chief Ministers consult); ***Finance Commission*** (recommends financial transfers); ***Inter-State Council*** (coordination); ***joint implementation*** of programmes such as MGNREGA and the Right to Education Act.

→ ***It works best when*** institutions create space for dialogue, fiscal transfers reduce dependence, and legislation shares responsibility.

→ ***Challenges:*** strong Union powers limit State autonomy; different parties ruling at the Centre and States can sharpen confrontation; coordination bodies meet rarely and have little authority; conditional grants reduce States' freedom to set priorities; centralised party leadership can influence State decisions.

4. Competitive federalism

→ ***Meaning:*** States compete to attract investment, resources and economic opportunity by improving governance and infrastructure.

→ ***Instruments:*** Ease of Doing Business reforms; NITI Aayog indices (State Health Index, School Education Quality Index, SDG India Index, India Innovation Index); investment summits such as Vibrant Gujarat and Magnetic Maharashtra.

→ ***Significance:*** encourages policy innovation and administrative efficiency, better infrastructure and service delivery, and helps States respond to globalisation.

→ ***Challenges:*** poorer States lack resources to compete with developed States; investment concentrates in already developed regions; excess rivalry can weaken cooperation and create regional tensions.

→ ***Way forward:*** competitive federalism should work within a framework of cooperative federalism, with adequate support for economically weaker States.

5. Conflictual federalism

→ ***Meaning:*** prolonged disputes between the Centre and States over constitutional powers, financial resources or administrative authority.

→ ***Areas of conflict:*** legislative (Union intervention in State subjects, Concurrent List laws); administrative (Governor's office, CBI jurisdiction, Central forces, All-India Services); financial (tax devolution, GST compensation, borrowing limits, conditional grants); inter-State (river waters, boundaries, resources).

→ ***Significance:*** some disagreement is normal in a working federation, but prolonged confrontation weakens institutional trust and governance.

Overall understanding: cooperation, competition, bargaining and conflict are not mutually exclusive. They exist together in Indian federalism. The challenge is to make sure political disagreements do not undermine constitutional autonomy and cooperative governance.

Recall drill: cover and answer

India: coming together or holding together?	Holding together (like Spain, Belgium); USA, Switzerland, Australia are coming together	Who called India quasi-federal?	K. C. Wheare
Who stressed cooperative federalism?	Granville Austin	Meaning of sui generis	Of its own kind
Case that made federalism basic structure	S. R. Bommai, 1994	Article for Parliament altering State boundaries	Article 3 (State consent not mandatory)
Rajamannar Committee	1969, set up by Tamil Nadu	Bargaining federalism is associated with	W. H. Morris-Jones
Articles for special State provisions	371 to 371J; Sixth Schedule for tribal areas		

⚖ CENTRE-STATE LEGISLATIVE RELATIONS · LISTS · RESIDUARY · 42nd AMENDMENT · DOCTRINES ⚖

PYQ None quoted in the handout · Centre State Relations handout pp. 7–9

✎ *Legislative power is divided by territory (Article 245) and by subject (Article 246, Seventh Schedule). The Union List beats the State List; on the Concurrent List the Union law prevails in a clash. Residuary powers go to Parliament. The 42nd Amendment moved five subjects to the Concurrent List. When Union and State laws overlap, courts use doctrines such as pith and substance, colourable legislation, harmonious construction, federal supremacy and ancillary powers.*

DISTRIBUTION OF LEGISLATIVE POWERS

The Constitution distributes legislative power on two bases.

→ ***1. Territorial jurisdiction (Article 245).*** Parliament can make laws for the ***whole or any part of India***. A State Legislature can make laws for the ***whole or any part of the State***. A law made by Parliament is not invalid merely because it operates ***outside India*** (extra-territorial operation).

→ ***Doctrine of Territorial Nexus:*** a State law may affect persons, property or activities outside the State if there is a ***real and sufficient connection*** between the State and the subject of the law. Case: ***State of Bihar v. Charusila Dasi (1959)*** upheld the application of State legislation where a sufficient territorial connection existed.

→ ***Key distinction:*** Parliament has wider territorial authority; State legislation ordinarily operates within the State, subject to territorial nexus.

2. Distribution of subjects (Article 246). The Seventh Schedule divides subjects into three lists.

Union List (List I)	State List (List II)	Concurrent List (List III)
Parliament has ***exclusive*** legislative authority	State Legislatures ordinarily have exclusive authority	Both Parliament and State Legislatures can make laws
Subjects of ***national importance***	Subjects of ***regional and local importance***	Subjects needing ***national uniformity and regional flexibility***
Defence, foreign affairs, banking, currency, atomic energy	Police, public order, public health, agriculture, prisons	Education, forests, criminal law, marriage, electricity

Constitutional position

→ The ***Union List prevails*** where legislative fields overlap and cannot be reconciled.

→ Parliament may legislate on State List subjects for ***Union Territories*** (Article 246(4)).

→ On the Concurrent List, under ***Article 254*** a Union law ordinarily prevails over a conflicting State law, subject to constitutional exceptions.

RESIDUARY POWERS (ARTICLE 248)

Residuary subjects are matters not listed in the Union, State or Concurrent Lists.

→ Parliament has ***exclusive*** authority to legislate on them, including ***residuary taxation powers***.

→ This is an important ***centralising feature*** of Indian federalism.

→ ***Contrast with the USA:*** there, undelegated powers generally remain with the States or the people.

TRANSFER OF SUBJECTS TO THE CONCURRENT LIST

The 42nd Constitutional Amendment Act, 1976 moved five subjects from the State List to the Concurrent List:

→ 1. ***Education***

→ 2. ***Forests***

→ 3. ***Weights and Measures***

→ 4. ***Protection of Wild Animals and Birds***

→ 5. ***Administration of Justice***, including the constitution and organisation of courts other than the Supreme Court and High Courts

EFWWA — **E**ducation · **F**orests · **W**eights and measures · **W**ild animals and birds · **A**dministration of justice (own mnemonic)

Rationale for the transfer	***Concerns***
National uniformity: common standards in education, justice and weights and measures	***Erosion of State autonomy:*** States lost exclusive legislative authority over important subjects
Cross-border issues: forests and wildlife need coordinated national policy	***Union supremacy:*** conflicting Central legislation may override State laws under Article 254
Cooperative legislation: both Centre and States can legislate to meet national and local needs	***Loss of local responsiveness:*** national policy may not reflect regional languages, resources and needs
	Inadequate consultation: the transfer happened during the ***Emergency (1975–77)***, raising concern about unilateral centralisation

Sarkaria and Punchhi Commissions: stressed consulting States before Parliament legislates on Concurrent List subjects.

PRINCIPLES OF INTERPRETATION OF LEGISLATIVE POWERS

Disputes arise when a Union law and a State law seem to cover the same subject. Courts use several doctrines to decide validity.

1. Doctrine of Pith and Substance

→ ***Meaning:*** courts look at the ***true nature and main purpose*** of a law, not its incidental effects.

→ A law is not automatically invalid just because it ***incidentally*** enters another legislature's field. If its pith and substance is within the legislature's competence, incidental encroachment can be allowed.

→ Case: ***State of Bombay v. F. N. Balsara (1951)*** upheld major provisions of the Bombay Prohibition Act despite incidental overlap with Union subjects.

2. Doctrine of Colourable Legislation

→ ***Meaning:*** what cannot be done directly cannot be done indirectly.

→ It stops a legislature from indirectly using a power the Constitution does not give it. Courts look at the ***substance*** of the law, not just its title or form.

→ Case: ***K. C. Gajapati Narayan Deo v. State of Orissa (1953)*** explained the doctrine in relation to legislative competence.

3. Doctrine of Harmonious Construction

→ ***Meaning:*** entries in different lists should be read together so that each has meaning.

→ Courts try to ***reconcile*** apparently conflicting entries; one entry should not needlessly make another redundant.

→ Case: ***Calcutta Gas Company v. State of West Bengal (1962)*** applied harmonious interpretation to overlapping entries.

4. Principle of Federal Supremacy

→ ***Meaning:*** where entries genuinely conflict and cannot be reconciled, the ***Union List prevails over the State List***. This follows the scheme of Article 246.

→ On Concurrent List subjects, conflicts between valid Union and State laws are governed by ***Article 254***.

→ ***Significance:*** protects national legislative priorities, but limits State autonomy.

5. Doctrine of Ancillary Powers

→ ***Meaning:*** the power to legislate on a subject includes powers ***reasonably necessary*** to make the law effective.

→ Example: the power to impose a tax ordinarily includes the power to lay down its assessment, collection and prevention of evasion.

6. Limits on delegated legislation

→ Parliament and State Legislatures may delegate detailed rule-making to the executive.

→ But ***essential legislative functions***, especially deciding legislative policy, cannot be delegated completely.

→ ***Significance:*** stops legislatures from surrendering their core lawmaking job to the executive.

How to remember the order: Pith and substance (what is it really about?) → Colourable legislation (is it a disguise?) → Harmonious construction (can the entries live together?) → Federal supremacy (if not, Union List wins) → Ancillary powers (what comes with the power?).

Recall drill: cover and answer

Article for territorial extent of laws	Article 245	Article for the three lists	Article 246 (Seventh Schedule)
Residuary powers	Article 248: Parliament, including residuary taxation	Five subjects moved to the Concurrent List in 1976	Education, forests, weights and measures, wild animals and birds, administration of justice
Doctrine of territorial nexus case	State of Bihar v. Charusila Dasi (1959)	Pith and substance case	State of Bombay v. F. N. Balsara (1951)
Colourable legislation meaning	What cannot be done directly cannot be done indirectly	Harmonious construction case	Calcutta Gas Co. v. State of West Bengal (1962)
If entries truly conflict, which list wins?	Union List		

⚖ PARLIAMENT ON STATE LIST · REPUGNANCY (Art 254) · MODEL LAWS · FARM LAWS · ASSENT TO BILLS ⚖

PYQ None quoted in the handout · Centre State Relations handout pp. 9-13

✎ *Parliament can legislate on State List subjects in specific cases: Rajya Sabha resolution (249), National Emergency (250), request by States (252), treaties (253), Union Territories and President's Rule. Article 254 settles repugnancy on the Concurrent List. Model laws, the Farm Laws 2020 and the Governor's delay in giving assent (Tamil Nadu 2025 and the November 2025 Presidential Reference) show where federal friction lies.*

PARLIAMENT'S POWER TO LEGISLATE ON STATE LIST SUBJECTS

Although the State List is normally for State Legislatures, the Constitution lets Parliament legislate on State subjects in specified circumstances.

Article 249: Legislation in the national interest

→ The ***Rajya Sabha*** may authorise Parliament to legislate on a State List subject in the national interest.

→ It needs a resolution backed by ***not less than two-thirds of members present and voting***.

→ The resolution stays valid for a ***maximum of one year*** and can be renewed for one year at a time.

→ A law made this way ceases to operate ***six months*** after the resolution expires, except for things already done.

→ ***Federal significance:*** the Rajya Sabha, which represents States, enables temporary Union legislation on matters normally reserved to States.

→ ***GST:*** Article 249 also allows such a resolution on Goods and Services Tax under Article 246A.

Article 250: During a National Emergency

→ Parliament can legislate on State List subjects while a ***National Emergency*** (Article 352) is in force.

→ Laws made this way cease to operate ***six months*** after the Emergency ends, subject to protection of past actions.

→ ***Rationale:*** coordinated national action in extraordinary circumstances.

Article 251: Inconsistency between Union and State laws under Articles 249 and 250

→ State Legislatures ***do not lose*** their legislative powers when Parliament legislates under Article 249 or 250.

→ But if the State law and the Union law conflict, the ***Union law prevails***.

→ The conflicting State law is inoperative only while the parliamentary law continues to have effect.

Article 252: At the request of States

→ ***Two or more States*** may request Parliament to legislate on a State List subject.

→ The State Legislatures must pass resolutions (in a bicameral State, both Houses must approve).

→ Parliament may then make a law applying to those States. Other States can ***adopt*** it by passing similar resolutions.

→ Once made, the law can be ***amended or repealed only by Parliament***, not by the State Legislature.

→ Example: the ***Water (Prevention and Control of Pollution) Act, 1974*** was made using Article 252.

→ ***Federal significance:*** States can seek common legislation without permanently moving the whole subject to the Union List.

Article 253: Implementing international agreements

→ Parliament can make laws to implement ***international treaties and agreements***, ***conventions with foreign countries***, and ***decisions of international conferences and organisations***.

→ This power extends even to matters in the ***State List***.

→ ***Federal concern:*** international agreements increasingly affect agriculture, environment, health, education and development, which are State responsibilities.

→ ***Punchhi Commission:*** recommended more State involvement in treaty negotiations where agreements directly affect State List subjects.

Other circumstances

→ ***Union Territories (Article 246(4)):*** Parliament can legislate on State List subjects for territories not part of a State.

→ ***President's Rule (Article 356):*** Parliament may exercise the State Legislature's legislative powers when authorised during President's Rule.

EMERGENCY-REQUEST-TREATY — Art **249** RS resolution · **250** Emergency · **251** inconsistency (Union wins) · **252** States request · **253** treaties. Numbers run in order, so just remember what each one is for. (own mnemonic)

REPUGNANCY BETWEEN UNION AND STATE LAWS (ARTICLE 254)

Repugnancy arises when a valid State law conflicts with a valid parliamentary law on a Concurrent List subject.

→ ***Article 254(1): general rule.*** If a State law conflicts with a Central law, the ***Central law prevails*** and the State law is ***void to the extent of the inconsistency***. The rule applies whether the parliamentary law was made before or after the State law.

→ ***Article 254(2): exception through Presidential assent.*** A State law on a Concurrent List subject can prevail ***within that State***, even if it conflicts with an earlier parliamentary law, provided the State Bill was ***reserved for the President's consideration and got Presidential assent***. But Parliament can later ***amend, vary or repeal*** the State law or make a conflicting law on the same matter.

→ ***Federal significance:*** Article 254(2) gives States limited flexibility to adopt laws suited to local needs.

How courts decide repugnancy

→ Mere differences in wording or approach do not automatically show repugnancy.

→ Courts ask: do the two laws contain ***directly conflicting provisions***? Would obeying one mean ***violating the other***? Did Parliament intend to ***occupy the entire field***?

→ ***Significance:*** avoids needless invalidation of State laws while respecting constitutional supremacy.

OTHER INSTRUMENTS OF LEGISLATIVE RELATIONS

Model laws on State subjects

→ **What:** draft laws prepared by the Union Government for States to **adopt, modify or reject voluntarily**. They promote common standards without Parliament legislating directly on State List subjects.

→ **Examples:** Model Agricultural Land Leasing Act, 2016 (leasing reforms); Model Agricultural Produce and Livestock Marketing Act, 2017 (market reforms); Model Tenancy Act, 2021 (tenancy regulation and disputes); Model Prisons and Correctional Services Act, 2023 (prison reforms).

→ **Advantages:** national uniformity while preserving State autonomy; States can adapt reforms to local conditions; promotes cooperative federalism and policy innovation.

→ **Concerns:** uneven adoption across States; Central funding incentives may indirectly steer State choices; model laws can become a tool of "soft centralisation" if States are not truly consulted.

Case study: the Farm Laws, 2020

→ The three Farm Laws became a major controversy over how legislative powers are divided.

→ **Constitutional position:** State List Entry 14 (**agriculture**); State List Entry 28 (**markets and fairs**); Concurrent List Entry 33 (**trade and commerce** in specified goods, including foodstuffs).

→ **Union's argument:** Parliament could legislate under **Entry 33** of the Concurrent List on trade and commerce in foodstuffs.

→ **States' objections:** (1) legislative encroachment, as agricultural markets ordinarily fall in State jurisdiction; (2) loss of **APMC** revenue, as trade outside regulated mandis could cut State market fees; (3) fear for **MSP**, as farmers feared marketing changes could gradually weaken procurement (the laws did not abolish MSP); (4) inadequate consultation.

→ **State response:** Punjab and some other States passed legislation to modify the operation of the Central laws in their territory, raising questions under **Article 254**.

→ **Outcome:** the three laws were **repealed in 2021** after sustained protests. The Supreme Court **did not finally decide** their legislative constitutionality.

→ **Federal lesson:** reforms touching State responsibilities need consultation, consensus and constitutional clarity, even if Parliament has a plausible source of competence.

RESERVATION OF STATE BILLS AND ASSENT (ARTICLES 200 AND 201)

Article 200: when a Bill passed by the State Legislature is presented to the Governor, he may

→ 1. **Grant assent.**

→ 2. **Withhold assent**, with the constitutional procedure of returning a non-Money Bill for reconsideration.

→ 3. **Reserve the Bill** for the President's consideration.

→ The Governor **must reserve** a Bill if it would so reduce the powers of the High Court as to endanger the position the Constitution gives it.

→ **Article 201:** the President may grant or withhold assent to a reserved Bill and may direct reconsideration of a non-Money Bill.

→ **Federal concern:** delay in giving assent or reserving Bills can block State legislation and create uncertainty over the powers of elected State governments.

Supreme Court developments on assent

→ **1. Tamil Nadu Governor case (April 2025).** A two-judge Bench examined the Governor's long delay in acting on Bills passed by the Tamil Nadu Legislature. It held that the Governor **cannot indefinitely withhold assent** or use inaction to obstruct legislation (no pocket veto or absolute veto); it **set specific time limits** for the Governor and President to act under Articles 200 and 201; and using **Article 142** it declared **10 Bills deemed assented**, finding the Governor's actions unconstitutional.

→ **2. 16th Presidential Reference (November 2025).** A **five-judge Constitution Bench**, in advisory jurisdiction under **Article 143**, clarified the position: (a) **three options** under Article 200 (assent; withhold and return a non-Money Bill with comments; reserve for the President) and the Governor has discretion to choose among them; (b) **no judicial timelines**: courts cannot fix deadlines, as the Constitution gives none; (c) **no deemed assent**: courts cannot use Article 142 for it, as that would replace a constitutional function and breach separation of powers; (d) **limited judicial intervention**: in prolonged, unexplained and indefinite inaction, courts may issue a limited **mandamus** to act within a reasonable time, without dictating the decision; (e) **limited justiciability**: decisions under Articles 200 and 201 cannot ordinarily be challenged on merits before the Bill becomes law.

Effect on the Tamil Nadu judgment

→ The November 2025 opinion did **not formally set aside** the specific relief given to Tamil Nadu in April 2025: the **10 Bills kept their legal validity**.

→ But the larger Bench's reading **superseded** the earlier reasoning on judicially imposed timelines and deemed assent, which can no longer be treated as binding precedent.

→ **Constitutional significance:** the Court tried to balance State legislative autonomy, gubernatorial discretion, separation of powers and judicial oversight, while making clear that **indefinite inaction is not constitutionally acceptable**. (current affairs; verify)

COMMISSION RECOMMENDATIONS ON LEGISLATIVE RELATIONS

Sarkaria Commission (1983-88)

→ **Strong Centre without over-centralisation:** it accepted the need for a strong Union but warned against excessive interference in State autonomy.

→ **Concurrent List:** the Centre should legislate only where national uniformity is necessary, after consulting States.

→ **Residuary powers:** keep residuary taxation powers with the Union; place other residuary matters in the Concurrent List.

→ **Article 249:** it opposed deleting or amending Article 249, as existing safeguards were enough; suggested procedural safeguards in the Rajya Sabha to build consensus.

→ **Reservation of Bills:** the Governor should behave like constitutional machinery, and the Centre should decide on a Bill reserved for the President within **four months**.

→ **Other measures:** liberal use of Article 254(2) for State-specific laws; **framework legislation** by the Union on Concurrent List subjects, leaving details to States; pre-legislative consultation through the Inter-State Council and sectoral forums; stronger parliamentary committee scrutiny of laws raising federal questions.

Way forward

→ **1. Respect legislative autonomy:** Parliament should avoid needless intervention in State List subjects.

→ **2. Strengthen consultation:** consult States before laws on Concurrent List subjects and international agreements.

→ **3. Reform assent procedures:** more transparency and accountability in handling State Bills.

→ **4. Strengthen the Rajya Sabha:** give more attention to State interests.

→ **5. Encourage model laws:** voluntary, adaptable model legislation where coordination is needed without binding uniformity.

→ **6. Promote cooperative federalism:** use the Inter-State Council, GST Council and other forums to settle legislative disagreements through dialogue.

Conclusion: Centre-State legislative relations combine State autonomy with a strong Union framework. This keeps national unity, but excessive centralisation weakens federal trust. The way forward is constitutional restraint, meaningful consultation and respect for State legislative powers.

Recall drill: cover and answer

Article 249 majority and validity	Two-thirds of RS members present and voting; one year, renewable; law lapses six months after	Article 250	Parliament legislates on State List during National Emergency
Article 252	Two or more States request Parliament; only Parliament can amend or repeal	Act made under Article 252	Water (Prevention and Control of Pollution) Act, 1974
Article 253	Laws to implement international treaties, even on State List	Article 254(2)	State law on Concurrent List prevails in that State with Presidential assent; Parliament can still override later
Farm Laws Union entry	Concurrent List Entry 33 (trade and commerce in foodstuffs)	Farm Laws outcome	Repealed 2021; Supreme Court did not decide constitutionality
Presidential Reference Nov 2025 on timelines	No judicial timelines, no deemed assent; limited mandamus for indefinite inaction (verify)		

CENTRE-STATE ADMINISTRATIVE RELATIONS · DIRECTIONS · AIS · COUNCILS · BSF · COMMISSIONS

PYQ None quoted in the handout · Centre State Relations handout pp. 13–18

✎ *Executive power follows legislative power. The Union can give binding directions to States (Articles 256, 257, 339(2), 347, 350A, and in emergencies), and States and the Union can delegate functions to each other (258, 258A). All-India Services bind the administration together. Coordination bodies (Inter-State Council, Zonal Councils, NEC, NITI Governing Council, GST Council) exist but are weak. Flashpoints are broad directions, BSF jurisdiction and Centrally Sponsored Schemes.*

DISTRIBUTION OF EXECUTIVE POWERS

The general principle is that executive power follows legislative power. The government that can make laws on a subject ordinarily also has the job of implementing them.

→ The Constitution also lets the Union issue ***binding administrative directions*** to States on certain matters, in normal times and in emergencies.

Directions in normal times

→ ***Article 256:*** every State must use its executive power to ***ensure compliance with laws made by Parliament***. The Union may give directions to States for implementing such laws.

→ ***Article 257:*** States must use their executive power ***without impeding or prejudicing*** the Union's executive power. The Union may give directions about (a) building and maintaining ***communications*** declared important for national or military purposes and (b) ***protection of railways*** within a State. The Union must ***compensate*** States for specified extra costs of following such directions.

→ **Article 339(2):** the Union may direct States on preparing and carrying out **schemes essential for the welfare of Scheduled Tribes**.

→ **Article 347:** the President may direct a State to officially recognise a language spoken by a **substantial section of its population**, for specified purposes.

→ **Article 350A:** States and local authorities should provide **mother-tongue instruction at the primary stage** for linguistic minority children; the President may give directions to ensure this.

Directions during emergencies

→ **National Emergency (Article 352):** the Union may direct States on how they use their executive power, even on matters ordinarily in the State sphere.

→ **President's Rule (Article 356):** the President may take over specified executive functions of the State when its constitutional machinery fails.

→ **Financial Emergency (Article 360):** the Union may give directions on financial propriety, salary reductions and reservation of State financial Bills for the President.

→ **Consequence of non-compliance (Article 365):** if a State fails to comply with **constitutionally valid** Union directions, the President may hold that the State government cannot be carried on according to the Constitution. But non-compliance **does not automatically justify** President's Rule: action under Article 356 stays subject to constitutional safeguards and judicial review.

MUTUAL DELEGATION OF EXECUTIVE FUNCTIONS

The Constitution lets the Union and States hand administrative functions to each other for efficient governance.

→ **Article 258 (Union to States):** the President may, **with the State Government's consent**, entrust Union executive functions to State authorities. Parliament may also confer specified powers and duties on State authorities by law. The Union must compensate for specified extra administrative costs.

→ **Article 258A (States to Union):** the Governor may, **with the Union Government's consent**, entrust State executive functions to Union authorities.

→ **Significance:** gives administrative flexibility and coordination, supports cooperative federalism, and does not permanently alter legislative powers.

ALL-INDIA SERVICES AND ADMINISTRATIVE FEDERALISM

All-India Services (AIS) are common to the Union and States and promote administrative integration and uniform standards of governance.

→ **Constitutional basis: Article 312** lets Parliament create new All-India Services after a **Rajya Sabha resolution passed by two-thirds of members present and voting**.

→ **Existing services:** Indian Administrative Service (**IAS**), Indian Police Service (**IPS**), Indian Forest Service (**IFoS**).

→ **Significance:** administrative unity (common standards across Union and States); national integration (officers serve in different States and with the Union); professional expertise (continuity and specialised experience); policy coordination (helps carry out Union and State programmes).

Issues in managing All-India Services

→ **1. Dual control:** officers work under State governments but are governed by Central service rules, creating tension over accountability and control.

→ **2. Central deputation:** disagreements over releasing officers for Union assignments.

→ **3. Political interference:** frequent transfers and postings hurt independence and continuity.

→ **4. Cadre shortages:** shortages weaken State administrative capacity and discourage deputation.

→ **5. Federal autonomy:** States argue that too much Central control over officers reduces their ability to run their own administration.

→ **Reform:** better Union-State consultation, cadre planning, professional independence and transparent transfer policies.

INSTITUTIONS FOR CENTRE-STATE COORDINATION

Effective federalism needs institutions that encourage consultation, cooperation and settlement of differences.

Inter-State Council (Article 263)

→ **Basis:** Article 263 lets the President set up an Inter-State Council if it serves the public interest. It was set up in **1990** on the **Sarkaria Commission's** recommendation.

→ **Composition:** the **Prime Minister** is Chairperson; **Chief Ministers of all States**; Chief Ministers of Union Territories with Legislative Assemblies; Administrators of other UTs; specified Union Ministers and other participants under applicable provisions.

→ **Functions:** (1) inquire into and advise on **disputes between States**; (2) investigate and discuss **matters of common interest** to Union and States; (3) make recommendations for better **coordination of policy and administrative action**.

→ **Nature:** advisory and recommendatory; it cannot enforce its decisions.

→ **Issues:** (1) meets infrequently and is not a regular forum; (2) recommendations are **not binding**; (3) weak follow-up and monitoring; (4) States need not be consulted through the Council before every important Union decision that affects them; (5) the **GST Council and NITI Aayog Governing Council** have taken over some consultation.

→ **Sarkaria Commission:** recommended a **permanent** Inter-State Council. **Punchhi Commission:** favoured strengthening its authority, consultation and dispute-resolution role.

Zonal Councils

→ Five Zonal Councils were set up under the **States Reorganisation Act, 1956**.

→ **Composition:** the **Union Home Minister** is Chairperson; Chief Ministers of member States are members and rotating Vice-Chairpersons; two other Ministers from each member State; representatives of the UTs concerned.

→ **Objectives:** prevent acute State consciousness and regionalism; develop the habit of cooperative working; resolve inter-State and Centre-State problems; promote regional economic and social development; handle issues of linguistic minorities, infrastructure and administrative coordination.

→ **Significance:** a regional platform to settle common problems by dialogue.

North Eastern Council (NEC)

→ Set up under the **North Eastern Council Act, 1971**. It covers the **eight North-Eastern States** and gives a platform for regional planning, infrastructure development and inter-State coordination, with representation of the member States and the Union Government.

→ **Significance:** addresses the North-East's distinctive geographic, developmental and security challenges.

Other coordination mechanisms

→ **NITI Aayog Governing Council:** consultation on national development policy and State priorities.

→ **GST Council (Article 279A):** joint decisions on GST.

→ **Empowered Committee of State Finance Ministers:** helped the move to VAT and GST.

→ **National Integration Council:** forum for national integration and communal harmony.

→ ***Chief Secretaries' and DGP conferences:*** administrative coordination, information-sharing and policy implementation.

ISSUES IN CENTRE-STATE ADMINISTRATIVE RELATIONS

1. Broad powers under Articles 256 and 257

→ ***Concern:*** these Articles give the Centre wide authority to give binding directions to States.

→ ***Issues:*** the vague wording gives the Union much discretion; frequent directions can interfere with States' own administrative duties; they can become a source of confrontation when different parties rule the Centre and States; and ***Article 365*** non-compliance can be used to justify action over breakdown of constitutional machinery.

→ ***Punchhi Commission:*** Articles 256 and 257 should be safeguards of ***last resort***; formal directions should usually follow consultation and warnings.

2. BSF jurisdiction

→ The ***Border Security Force*** works under the ***BSF Act, 1968***. ***Section 139*** lets the Union Government confer specified powers on BSF personnel by notification.

→ ***Extension (2021):*** the Union changed the area within which the BSF may use specified powers (arrest, search and seizure under certain laws).

State	Earlier limit	Revised limit
Punjab	15 km	50 km
West Bengal	15 km	50 km
Assam	15 km	50 km
Gujarat	80 km	50 km
Rajasthan	50 km	50 km

The notification also covered the entire territory of specified North-Eastern States and the Union Territories of Jammu and Kashmir and Ladakh.

→ ***Important distinction:*** the wider area is about ***specified statutory powers***. It does ***not*** transfer general responsibility for police and public order from States to the BSF.

→ ***Union's justification:*** better response to cross-border infiltration and organised crime; better action against narcotics, weapons and other smuggling; uniform operational area across border States; quicker coordination with State Police against trans-border offences.

→ ***States' concerns:*** (1) ***federal encroachment***, as police and public order are State subjects; (2) ***inadequate consultation*** (Punjab and West Bengal objected); (3) ***overlapping jurisdiction*** may cause BSF-State Police conflict; (4) ***civil liberties***, since wider search and arrest powers need safeguards; (5) a larger area does not improve security unless capacity and cooperation improve too.

→ ***Way forward:*** stronger BSF-State Police coordination, intelligence-sharing, operating protocols and human-rights safeguards.

3. Union ministries on State List subjects

→ Subjects like agriculture, public health, police and local government mostly fall in the State List, yet the Union runs ministries and programmes in several of these areas. This creates a debate between ***national coordination and State autonomy***.

→ ***In favour:*** (1) ***national standards*** keep minimum service levels across States; (2) ***inter-State problems*** such as pandemics, pollution and disease outbreaks need coordinated response; (3) ***Centrally Sponsored Schemes*** give resources to fiscally weaker States; (4) ***technical expertise*** of Union institutions. Example: during COVID-19 national coordination was needed for vaccine procurement, distribution and public health measures.

→ ***Against:*** (1) ***encroachment*** blurs the constitutional division of duties; (2) ***one-size-fits-all*** schemes ignore regional needs; (3) ***fiscal dependence***: conditional funding pushes States to adopt Union priorities; (4) ***political centralisation***: control over grants and programmes raises the Centre's influence. Example: the creation of the ***Ministry of Cooperation*** raised concern about Union involvement in a subject mainly assigned to States.

→ **Way forward:** the **NITI Aayog Sub-Group of Chief Ministers on Centrally Sponsored Schemes** favoured rationalising schemes and more State flexibility: focus Union support on core national priorities, give States flexibility in implementation, consult before launching programmes touching State subjects, and balance national goals with State needs.

COMMISSION RECOMMENDATIONS ON ADMINISTRATIVE RELATIONS

Sarkaria Commission (1983–88)

→ 1. **Restrained use** of Union directions: use Articles 256 and 257 carefully, respecting State autonomy.
→ 2. **Inter-State Council:** set up a permanent council under Article 263.
→ 3. **Prior consultation:** consult States widely before Union executive action or legislation on Concurrent List subjects.
→ 4. **President's Rule:** Article 356 only as a last resort, with safeguards.

Punchhi Commission (2007–10)

→ 1. **Articles 256 and 257:** Union directions should be safety valves, not tools of routine administrative control.
→ 2. **Inter-State Council:** strengthen its authority, dispute-resolution role and capacity.
→ 3. **Zonal Councils:** meet regularly and follow up on recommendations.
→ 4. **Sectoral coordination:** a **Forum of Chief Ministers**, chaired by a Chief Minister on rotation, to coordinate policy in sectors such as energy, food, education, environment and health.
→ 5. **Central forces:** consult States better when deploying them.
→ 6. **Administrative federalism:** balance national security, effective governance and State autonomy.

Way forward

→ 1. **Strengthen intergovernmental institutions:** revive the Inter-State Council and Zonal Councils with regular meetings and follow-up.
→ 2. **Respect State autonomy:** use binding Union directions only where constitutionally necessary, preferably after consultation.
→ 3. **Investigative coordination:** clear procedures for **CBI consent**, inter-State investigations and information-sharing.
→ 4. **Reform All-India Service management:** better cadre management, deputation procedures and professional independence.
→ 5. **Security cooperation:** BSF, Central forces and State Police should coordinate without needless jurisdictional conflict.
→ 6. **Rationalise Centrally Sponsored Schemes:** more State flexibility in planning, implementing and using funds.
→ 7. **Promote cooperative federalism:** replace needless confrontation with dialogue, trust and shared administrative responsibility.

Conclusion: administrative relations aim at effective implementation of laws and national coordination while preserving State autonomy. Success depends on constitutional restraint, administrative cooperation and mutual trust; stronger intergovernmental institutions can balance a strong Union with the rights of States.

Recall drill: cover and answer

Executive power follows	Legislative power	Article 256 / 257	States must comply with Union laws / must not impede Union executive power
Article 258 / 258A	Union entrusts functions to States (State consent) / States to Union (Union consent)	Article 312	New All-India Services by RS two-thirds present and voting
Inter-State Council set up / basis	1990, Sarkaria; Article 263; PM chairs	Zonal Councils chaired by	Union Home Minister; 5 councils under States Reorganisation Act 1956
NEC set up under	North Eastern Council Act, 1971	BSF Act and section	BSF Act 1968, Section 139; 2021 notification set 50 km in Punjab, West Bengal, Assam
Punchhi on Articles 256-257	Safeguards of last resort; consult and warn first		

OFFICE OF THE GOVERNOR · PRESIDENT'S RULE · ARTICLE 356 · BOMMAI · FINANCIAL EMERGENCY

PYQ None quoted in the handout · Centre State Relations handout pp. 18-23

✎ *The Governor is the State's constitutional head but is appointed by the President and holds office at his pleasure, so he is both a constitutional head and a link between Centre and State. Controversies: Governor as Centre's agent, hung Assemblies, delayed assent, summoning the House. Article 356 was often misused; Bommai (1994) subjected it to judicial review and the floor test. Commissions favour reforming the office rather than abolishing it.*

CONSTITUTIONAL POSITION OF THE GOVERNOR

The Governor is the constitutional head of the State, like the President at the Union level. But unlike the elected President, the Governor is appointed by the President and holds office during the President's pleasure.

→ He performs two roles: (1) ***constitutional head***, acting normally on the aid and advice of the elected Council of Ministers; (2) ***link between Union and State***, performing functions that connect State administration with the Union.
→ This ***dual role*** is a major source of controversy, especially when different parties govern the Centre and the State.

Article	Provision
153	There shall be a Governor for each State. One person may be Governor of two or more States.
155	Appointed by the President by warrant under his hand and seal.
156	Holds office during the pleasure of the President; normal term ***five years***.
157	Must be an Indian citizen and at least ***35 years*** old.
158	Cannot be a member of Parliament or a State Legislature, or hold any other office of profit.

159	Takes the oath before the Chief Justice of the High Court (or the senior-most available judge).

Why appointed and not elected? The Constituent Assembly preferred appointment by the President because:

→ ***Avoid dual political authority:*** an elected Governor might claim an independent mandate and clash with the Chief Minister.

→ ***Parliamentary government:*** the Governor was meant to be a constitutional head, with real power in the elected government.

→ ***National integration:*** appointment keeps a constitutional link between the Centre and States.

→ ***Administrative simplicity:*** separate elections for a mainly nominal office would cost needlessly.

→ ***Concern:*** appointment can create political dependence on the Union Government, especially because of the ***Doctrine of Pleasure***.

DISCRETIONARY POWERS OF THE GOVERNOR

Article 163: the Council of Ministers aids and advises the Governor, except where the Constitution requires him to act in his discretion.

→ The Governor does ***not*** have unlimited discretion. It must have a ***constitutional basis*** and stays subject to judicial safeguards.

→ ***Constitutional discretion:*** (a) ***reserving Bills*** for the President (Article 200) in permitted circumstances; (b) ***administering a Union Territory*** (Article 239): a Governor made Administrator of an adjoining UT acts in that role independently of the State Council of Ministers; (c) ***special provisions***: some Governors have specified functions under the Sixth Schedule and Articles 371 to 371J.

→ ***Situational discretion*** arises from political circumstances where the Constitution requires the Governor to use judgment: (a) ***hung Assembly***: choosing a Chief Minister when no party has a clear majority; (b) ***loss of majority***: requiring a floor test when there are credible doubts about the government's majority; (c) ***government formation***: finding an alternative government when the incumbent loses majority support; (d) ***President's Rule***: reporting circumstances suggesting failure of constitutional machinery under Article 356.

→ ***Important:*** these decisions must respect the elected Legislature, parliamentary conventions and constitutional limits.

MAJOR ISSUES WITH THE OFFICE OF GOVERNOR

Governor as agent of the Centre

→ The Governor is often criticised for acting as an agent of the Centre instead of a neutral constitutional head.

→ ***1. Political appointments:*** Governors may come from the ruling party at the Centre.

→ ***2. Doctrine of Pleasure:*** possible removal before the five-year term can weaken independence.

→ ***3. Interference in State governance:*** disputes over appointing Chief Ministers, summoning Assemblies and administrative decisions.

→ ***4. Delay in assent to Bills:*** long inaction can block legislation passed by elected State Legislatures.

→ ***5. Recommending President's Rule:*** the Governor's reports can become politically controversial.

→ ***Federal implication:*** two competing centres of authority within a State weaken responsible government.

→ ***Counterargument:*** the Governor has legitimate duties in hung Assemblies, constitutional breakdowns and Bills raising constitutional concerns. Not every intervention is political misuse.

Doctrine of Pleasure and security of tenure

→ Under Article 156 the Governor holds office during the President's pleasure. ***Issues:*** no guarantee against early removal; perceived dependence on the Union; frequent transfers and removals affect continuity and neutrality.

→ ***B. P. Singhal v. Union of India (2010)***: the Supreme Court held that (1) the Governor may be removed ***without giving reasons publicly***; (2) but removal ***cannot be arbitrary, capricious or unreasonable***; (3) a ***mere change of government at the Centre is not, by itself, enough*** reason for removal.

→ ***Significance***: the Doctrine of Pleasure is not an unrestricted power.

Appointing a Chief Minister in a hung Assembly

→ A hung Assembly arises when no party or alliance has a clear majority.

→ ***Issues***: the Governor's choice of whom to invite may favour one formation; delays or discretionary decisions encourage bargaining and defections; his personal assessment of majority may differ from the will of the elected House.

→ ***Constitutional principle***: a government's majority should ordinarily be proved by a ***floor test*** in the Assembly.

→ ***Reform***: follow objective government-formation conventions and hold prompt floor tests where needed.

Summoning and proroguing the State Legislature

→ ***Article 174*** empowers the Governor to summon, prorogue and dissolve the Legislative Assembly.

→ ***Nabam Rebia v. Deputy Speaker (2016)***: the Governor cannot ordinarily use these powers ***independently of the aid and advice of the Council of Ministers***; he cannot interfere in legislative proceedings merely because of political disagreement; his discretion remains subject to constitutional limits and judicial review.

→ ***Significance***: strengthened the elected State government's authority over legislative business.

PRESIDENT'S RULE (ARTICLE 356)

Article 356 lets the President issue a proclamation when the government of a State cannot be carried on in accordance with the Constitution. It may be based on the Governor's report or other relevant information.

→ ***Procedure***: the proclamation must be approved by ***both Houses of Parliament within two months*** (subject to constitutional exceptions). Once approved it normally lasts ***six months***. It can be extended with parliamentary approval, up to a ***maximum of three years***, with additional conditions beyond one year.

→ ***Effects***: the President may take over specified executive functions of the State; the State Council of Ministers ordinarily ceases to hold office; Parliament may exercise the State Legislature's legislative powers; the Assembly may be suspended or dissolved, subject to safeguards.

→ ***Important***: the powers of the ***High Court cannot be taken over or suspended*** under Article 356.

Misuse of Article 356 — historically criticised as a tool of political interference in State governments.

→ ***Concerns***: (1) ***political dismissal*** of governments because of differences with the Centre; (2) ***Governor's reports*** influenced by politics rather than real constitutional breakdown; (3) ***no floor test***, with majority judged outside the Assembly; (4) ***erosion of federalism*** and democratic accountability.

→ ***Historical examples***: ***Kerala (1959)***, dismissal of the Communist government; ***1977***, dismissal of several State governments after the change of government at the Centre; ***1980***, similar dismissals after another change at the Centre; ***1992***, dismissal of BJP-led State governments after the demolition of the Babri Masjid.

Judicial safeguards

→ ***S. R. Bommai v. Union of India (1994)***: a ***nine-judge Bench*** delivered the landmark judgment limiting misuse of President's Rule. Principles: (1) ***federalism is part of the Basic Structure***; (2) a proclamation under Article 356 is subject to ***judicial review***; (3) majority should ordinarily be tested by a ***floor test*** in the Assembly, not by the Governor's subjective view; (4) the President's satisfaction must rest on ***constitutionally relevant material***; (5) courts may ***restore*** a dismissed government and Assembly if the proclamation is unconstitutional.

→ ***Rameshwar Prasad v. Union of India (2006):*** concerned the ***dissolution of the Bihar Assembly in 2005***. The Court held the dissolution ***unconstitutional*** and reaffirmed that the Governor's recommendations and Union decisions cannot rest on unsupported assumptions about political developments. It strengthened judicial scrutiny of Governors' reports and premature dissolution.

FINANCIAL EMERGENCY (ARTICLE 360)

The President may proclaim a Financial Emergency if the financial stability or credit of India, or any part of its territory, is threatened.

→ ***Provisions:*** needs parliamentary approval within ***two months*** (subject to constitutional exceptions); once approved, it continues ***until revoked***. ***No Financial Emergency has ever been proclaimed in India.***

→ ***Effect on Centre-State relations:*** the Union may direct States to (a) observe specified principles of ***financial propriety***; (b) ***reduce salaries and allowances*** of specified persons serving in connection with State affairs; (c) ***reserve Money Bills and other Financial Bills*** for the President after the State Legislature passes them.

→ ***Significance:*** allows strong Central control over State finances during a severe financial crisis.

REFORMS IN THE OFFICE OF GOVERNOR AND EMERGENCY POWERS

Sarkaria Commission (1983-88)

→ ***Appointment:*** an ***eminent person from outside the State***, ***detached from active politics***; avoid appointing politicians linked to the ruling party at the Centre to opposition-ruled States; ***consult the Chief Minister***.

→ ***Tenure and removal:*** the normal five-year tenure should not be disturbed except in exceptional circumstances; avoid arbitrary removal and communicate reasons through proper procedures.

→ ***Article 356:*** use only as a ***last resort***; give the State government a chance to correct constitutional violations where practicable; prefer a ***floor test*** to decide legislative majority.

Punchhi Commission (2007-10)

→ ***Appointment and tenure:*** greater consultation and political neutrality; a ***fixed five-year tenure***; delete the words "during the pleasure of the President" from Article 156.

→ ***Removal:*** an ***impeachment-type procedure*** by the State Legislature, with a chance for the Governor to be heard.

→ ***Discretion:*** clearly define its scope; prevent needless interference with elected State governments; reduce political controversy from the Governor's statutory functions, including the Chancellor's role.

→ ***Articles 200 and 201:*** clearer procedures and a ***six-month period*** to decide reserved Bills (needs constitutional change).

→ ***Article 356:*** limited and proportionate Union intervention; explore ***localised emergency*** arrangements instead of taking over a whole State when trouble is confined to one area.

NCRWC (2002)

→ A ***consultative appointment mechanism*** involving the Prime Minister, Union Home Minister, Lok Sabha Speaker and the Chief Minister of the State.

→ Greater security of tenure and clear procedures for removal.

→ Stress on the ***neutrality and constitutional independence*** of the Governor's office.

REFORM OR ABOLISH THE OFFICE OF GOVERNOR?

For abolition or major curtailment	For retention
Colonial legacy: the office came from a structure designed for Central control	**Constitutional link:** an institutional connection between Union and States
Political interference: Governors may be used to influence opposition-ruled States	**Neutral umpire:** may play an important role in hung Assemblies and constitutional crises
Lack of accountability: not directly accountable to the State electorate	**National integration:** special responsibilities in sensitive and tribal regions
Unnecessary discretion: controversies over Bills, sessions and government formation harm democracy	**Constitutional continuity:** keeps important institutions working during political uncertainty

Preferred approach: reform, not abolition. Major commissions have generally favoured reforming the office. The emphasis should be on:

→ 1. **Consultative appointment:** involve the State Chief Minister; transparent selection norms.

→ 2. **Security of tenure:** prevent arbitrary removal and political transfers.

→ 3. **Limited discretion:** clearly define where independent gubernatorial judgment is needed.

→ 4. **Legislative accountability:** no needless delay in acting on State Bills, within the constitutional framework.

→ 5. **Academic autonomy:** reduce political conflict over universities and other statutory duties.

→ 6. **Restrained emergency powers:** Article 356 as an exceptional measure, subject to judicial safeguards.

Conclusion: the Governor and emergency provisions reflect the attempt to combine State autonomy with national unity. Misuse weakens responsible government, democratic accountability and federal trust. Political restraint, stronger conventions and implementing the commissions' recommendations are essential for cooperative federalism.

Recall drill: cover and answer

Governor appointed under / term	Article 155 / Article 156 (five years, at the President's pleasure)	Governor eligibility	Indian citizen, at least 35 years (Art 157)
Governor takes oath before	Chief Justice of the High Court (Art 159)	B. P. Singhal 2010 held	Governor can be removed without reasons but not arbitrarily; change of Centre alone is not enough
Nabam Rebia 2016	Governor cannot summon or dissolve independently of ministers' advice	President's Rule approval and duration	Both Houses within 2 months; 6 months, extendable to max 3 years
Bommai 1994: bench / key points	Nine judges; judicial review, floor test, federalism basic structure	Rameshwar Prasad 2006	Bihar Assembly dissolution 2005 held unconstitutional
Financial Emergency proclaimed so far?	Never (Art 360)		

FISCAL FEDERALISM · DIVISIBLE POOL · CESS · FINANCE COMMISSION · 15th AND 16th FC

PYQ None quoted in the handout · Centre State Relations handout pp. 23-26

✎ *The Union raises most big taxes while States do most spending, so money must flow from Centre to States (vertical imbalance), and richer and poorer States differ (horizontal imbalance). The Finance Commission (Art 280) recommends the States' share of the*

divisible pool (41% under both the 15th and 16th FC) and how to split it among States. Cesses and surcharges are outside the pool, which is a major grievance.

MEANING AND NATURE OF FISCAL FEDERALISM

Fiscal federalism is the constitutional arrangement for dividing financial powers, taxation authority and resources between the Union and States.

→ In India the Union controls several major revenue sources, while States spend heavily on health, education, agriculture, infrastructure and social welfare. This creates a need for ***tax devolution, grants-in-aid and institutional coordination*** to keep fiscal balance.

Types of fiscal imbalance

→ ***Vertical fiscal imbalance:*** the mismatch between the revenue-raising powers and the spending duties of the Union and States. The Union collects a large share of national tax revenue; States carry major responsibility for public services; so States depend on Central transfers.

→ ***Horizontal fiscal imbalance:*** differences in revenue capacity and spending needs ***among States*** (income, population, geography, infrastructure). Poorer States generally need more help. The Finance Commission tries to reduce these gaps through horizontal tax devolution.

Divisible pool of Central taxes (Article 270)

→ The ***divisible pool*** is the shareable part of Union tax revenue that is shared between the Centre and States.

→ It generally includes shareable Union taxes after excluding: ***cesses*** for specific purposes; ***surcharges***; certain taxes assigned separately by the Constitution; and the ***cost of tax collection***.

→ The Finance Commission recommends the ***States' share*** of this pool.

→ ***Important:*** a recommendation of 41% devolution does ***not*** mean States get 41% of the Centre's ***gross*** tax revenue.

Cesses and surcharges (Article 271)

→ ***Surcharge:*** an additional charge on an existing tax, levied for Union purposes. ***Cess:*** a tax for a ***specific purpose***, such as funding a particular programme.

→ Their proceeds are generally ***excluded from the divisible pool***. This lets the Union keep revenue that is not shared with States. Growing use of these instruments is a major issue in Centre-State finances.

Grants-in-aid

→ ***Article 275:*** grants from the Union to States under constitutional provisions, including those based on the Finance Commission's recommendations.

→ ***Article 282:*** the Union and States may give grants for ***any public purpose***, even on a subject outside their normal legislative competence.

→ ***Federal significance:*** grants help fill fiscal gaps, but too much dependence on conditional and discretionary transfers reduces State autonomy.

FINANCE COMMISSION (ARTICLE 280)

The Finance Commission is a constitutional body under Article 280 that recommends how financial resources are shared between the Union and States.

→ ***Composition and appointment:*** constituted by the ***President every five years*** or earlier if needed; a ***Chairperson and four other members***. Qualifications and selection follow the ***Finance Commission (Miscellaneous Provisions) Act, 1951***.

→ ***Qualifications:*** the Chairperson must have experience in public affairs; the other members are chosen from persons with expertise in law, government finance and accounts, financial administration or economics, as prescribed.

Functions

→ 1. ***Vertical tax devolution:*** the share of the divisible pool that goes from the Union to States.

→ 2. ***Horizontal tax devolution:*** how the States' collective share is distributed among individual States.

→ 3. ***Grants-in-aid:*** principles for Union grants to States.

→ 4. ***Local body financing:*** measures to add to the resources of Panchayats and Municipalities, based on State Finance Commission recommendations.

→ 5. ***Other matters*** referred by the President.

Vertical devolution	***Horizontal devolution***
Distribution of the divisible pool between the Union and States ***collectively***	Distribution of the States' share ***among individual States***
Addresses vertical fiscal imbalance	Addresses horizontal fiscal imbalance
Example: 41% share for States under the 16th Finance Commission	Uses criteria such as income distance, population, area and forest cover

15th FINANCE COMMISSION (2021-26)

Chairperson: N. K. Singh. Major recommendations

→ 1. ***Vertical devolution: 41%*** of the divisible pool for States. The fall from 42% reflected the changed status of Jammu and Kashmir as a Union Territory.

→ 2. ***Horizontal distribution:*** used ***2011 population***, income distance, area, forest and ecology, demographic performance and tax effort.

→ 3. ***Revenue deficit grants*** for ***17 States*** over the award period.

→ 4. ***Local body grants:*** stronger transfers to Panchayats and Municipalities, including grants linked to essential services.

→ 5. ***Disaster management:*** a corpus of about ***Rs 1.6 lakh crore***.

→ 6. ***Sectoral and performance grants:*** support for health, education, agriculture and other priorities.

16th FINANCE COMMISSION (2026-31)

Chairperson: Dr. Arvind Panagariya. The Commission submitted its report on 17 November 2025, and it was tabled in Parliament on 1 February 2026. (current affairs; verify)

→ ***Vertical devolution:*** it kept the States' share of the divisible pool at ***41%***. The Union Government ***accepted*** it. For 2026-27 the Union Budget provided ***Rs 1.4 lakh crore*** as Finance Commission grants to States.

Criterion	15th FC	16th FC
Income distance	45%	42.5%
Population (2011)	15%	17.5%
Demographic performance	12.5%	10%
Area	15%	10%
Forest	10%	10%
Tax and fiscal effort	2.5%	—
Contribution to GDP	—	10%
Total	100%	100%

What the revised formula means

→ ***Income distance*** still has the highest weight, to support States with lower per capita income.
→ ***Population*** weight rose, recognising the spending needs of more populous States.
→ ***Demographic performance*** still counts population control, but with lower weight.
→ ***Contribution to GDP*** is new, recognising States' contribution to national output.
→ ***Federal implication:*** the formula tries to balance equity, population needs and economic contribution, but debate over relative State shares continues.

Grants-in-aid: about Rs 9.47 lakh crore recommended for 2026-31.

Purpose	Recommended amount
Rural Local Bodies	Rs 4,35,236 crore
Urban Local Bodies	Rs 3,56,257 crore
Disaster Management Grants	Rs 1,55,916 crore
Total	***Rs 9,47,409 crore***

Important changes

→ It ***discontinued*** the separate revenue deficit, sector-specific and State-specific grants of the 15th FC.
→ It strengthened ***local body financing*** through basic and performance-linked grants.
→ It recommended a ***Rs 2,04,401 crore disaster management corpus***, including the States' contribution.
→ It stressed fiscal discipline and transparent accounting of ***off-budget borrowings***.

→ **Fiscal roadmap:** reduce the Union fiscal deficit to **3.5% of GDP by 2030-31**; a State fiscal deficit limit of **3% of GSDP** a year; bring off-budget borrowings onto government budgets.
→ **Significance:** more emphasis on local government financing, economic contribution and fiscal transparency.

All 16th FC figures above come from the handout and are current-affairs items; verify before quoting in the exam.

Recall drill: cover and answer

Article for the Finance Commission	Article 280 (every five years; chairperson + four members)	Divisible pool article	Article 270; excludes cesses, surcharges and collection costs
Cess and surcharge article	Article 271	Grants articles	Article 275 (FC grants), Article 282 (any public purpose)
Vertical vs horizontal imbalance	Union-States gap vs gap among States	15th FC chair and share	N. K. Singh; 41% (from 42% after J&K became a UT)
16th FC chair and share	Dr Arvind Panagariya; 41% retained (verify)	New criterion in 16th FC	Contribution to GDP (10%); tax effort dropped
16th FC fiscal roadmap	Union deficit 3.5% of GDP by 2030-31; States 3% of GSDP		

⚖ GST COUNCIL · NITI AAYOG · SPECIAL CATEGORY STATUS · FISCAL ISSUES · COMMISSIONS ⚖

PYQ None quoted in the handout · Centre State Relations handout pp. 26-31

✎ *GST (101st Amendment, 1 July 2017) is shared taxation run by a GST Council in which the Union has one-third of the votes and States two-thirds; decisions need three-fourths, so neither side can decide alone. The Mohit Minerals case (2022) held Council recommendations are not binding. NITI Aayog replaced the Planning Commission as a think tank. Special Category Status lost meaning after 2015. Fiscal grievances: cesses, CSS conditions, borrowing limits, off-budget borrowing and population-based devolution.*

GOODS AND SERVICES TAX AND FISCAL FEDERALISM

The 101st Constitutional Amendment Act, 2016 created a new framework of shared taxation between the Union and States. GST came into effect on 1 July 2017.

→ **Article 246A:** gives Parliament and State Legislatures the power to make laws on GST, subject to its provisions.
→ **Article 269A:** levy, collection and apportionment of **IGST** (Integrated GST) on inter-State supplies.
→ **Article 279A:** sets up the **GST Council**.

GST Council: composition	GST Council: voting
Union Finance Minister is Chairperson	**Union Government:** one-third of the weighted votes
Union Minister of State in charge of Revenue or Finance is a member	**States together:** two-thirds of the weighted votes

Finance or Taxation Ministers nominated by State Governments are members	A decision that needs a vote must get at least ***three-fourths*** of the weighted votes of members present and voting

Why this matters: with one-third and two-thirds, neither the Union nor the States together can force a decision alone. Three-fourths means the Union needs some States, and the States need the Union.

Benefits of GST for federalism

→ 1. ***Cooperative decision-making:*** a constitutional forum where the Centre and States jointly discuss indirect taxes.
→ 2. ***Common national market:*** fewer tax barriers and less fragmentation of inter-State trade.
→ 3. ***Tax harmonisation:*** common rules and rates across States.
→ 4. ***Revenue coordination:*** a framework for sharing IGST and handling tax administration issues.

Issues with GST federalism

→ 1. ***Loss of tax autonomy:*** States gave up several independent indirect-tax powers.
→ 2. ***Dependence on the GST Council:*** big rate or structure changes need Union-State negotiation.
→ 3. ***Unequal revenue capacity:*** States with different economies may see different revenue results under one uniform tax.
→ 4. ***Union influence:*** the Centre's voting weight and fiscal powers still matter in negotiations.

Union of India v. Mohit Minerals Pvt. Ltd. (2022)

→ The Supreme Court held that ***GST Council recommendations are not binding*** on Parliament and State Legislatures as a matter of constitutional law.
→ Both levels have constitutionally recognised legislative powers over GST.
→ The Council reflects ***cooperative federalism***, based on dialogue and negotiation, not absolute command.
→ ***Significance:*** protects States' legislative authority while recognising the need for a coordinated GST system.

NITI AAYOG

The National Institution for Transforming India (NITI Aayog) was set up on 1 January 2015, replacing the Planning Commission. It is a non-constitutional and non-statutory policy think tank.

→ ***Features:*** (1) ***policy think tank*** giving strategic and technical advice to Union and States; (2) ***cooperative federalism*** through its Governing Council; (3) ***competitive federalism*** through performance assessment, innovation and competition among States; (4) ***bottom-up planning*** that brings State priorities into national strategy; (5) ***research and innovation*** for evidence-based policy.

Basis	Planning Commission	NITI Aayog
Established	1950	2015
Nature	Central planning institution	Policy think tank
Approach	Top-down planning	Bottom-up consultation
Primary role	Five-Year Plans and resource allocation	Policy advice, monitoring and coordination
Financial powers	Influenced Plan-related transfers	Does not directly allocate Plan funds
Federal approach	Relatively centralised	Cooperative and competitive federalism

Significance: a platform for Centre-State consultation; involves States in national development priorities; encourages innovation through State indices and performance assessments; supports programmes such as the Aspirational Districts Programme.

→ ***Limitations:*** (1) ***no independent financial authority***, unlike the Planning Commission; (2) ***advisory role***, not binding on ministries or States; (3) ***limited State influence***: States take part in consultation without necessarily deciding final policy; (4) ***institutional overlap*** with Union ministries and other intergovernmental bodies.

→ ***Way forward:*** strengthen its role in evidence-based policy, State consultation, programme evaluation and cooperative federalism.

SPECIAL CATEGORY STATUS OF STATES

Special Category Status (SCS) came under the planning framework to give preferential Central assistance to States with geographic, economic and infrastructure disadvantages. It has no independent constitutional or statutory basis.

→ ***Criteria historically considered:*** hilly and difficult terrain; low population density or large tribal population; strategic location on international borders; economic and infrastructural backwardness; non-viable State finances.

→ ***Earlier benefits:*** preferential ***Normal Central Assistance***; ***90:10 grant-loan ratio*** for certain Plan assistance (general States got less favourable terms); higher Central support for specified schemes; tax concessions and other incentives under applicable policies.

Changes after 2015

→ The Planning Commission was replaced by NITI Aayog.

→ The system of ***Normal Central Assistance was discontinued***.

→ The ***14th Finance Commission*** increased ***untied tax devolution*** to States.

→ So the old planning-based difference between Special Category and general States lost much of its meaning.

→ ***Important distinction:*** SCS is different from the special constitutional provisions in ***Articles 371 to 371J***.

Raghuram Rajan Committee (2013) recommended replacing the old classification with a Composite Development Index, classing States as

→ ***Contemporary relevance:*** demands for SCS continue because of worries about regional inequality and State fiscal capacity.

relatively developed, less developed and least developed, so assistance matches development need and backwardness.

ISSUES IN CENTRE-STATE FINANCIAL RELATIONS

1. Vertical fiscal imbalance. The Union controls a large share of tax revenue while States do major spending on health, education, infrastructure and welfare. Implications: dependence on Central transfers and grants; limited freedom to fund State priorities; difficulty meeting rising spending commitments. Way forward: more predictable tax devolution, untied transfers and State revenue mobilisation.

→ **2. Rising cesses and surcharges.** The Union increasingly relies on them, and their proceeds are generally outside the divisible pool. Implications: reduces the effective shareable revenue; weakens the effect of higher nominal devolution; increases Union discretion over spending. Way forward: rationalise cesses and surcharges and improve transparency.

→ **3. Unequal fiscal capacity among States.** Richer States have stronger revenue bases; poorer States have higher needs but lower capacity; hilly, forested and sparsely populated States face higher costs of delivering services. Way forward: keep equalisation-based transfers while recognising geography, demographic performance and economic contribution.

→ **4. Conditional grants and Centrally Sponsored Schemes.** Funds often come with matching contributions, spending conditions and guidelines. Implications: less flexibility on State priorities; fiscal pressure on weaker States; duplication of Union and State programmes. The **NITI Aayog Sub-Group of Chief Ministers** recommended rationalising CSS and giving States more flexibility. Way forward: more untied assistance and freedom in implementation.

5. GST and loss of revenue autonomy. GST replaced several independent State taxes with a common framework. Implications: less freedom to change rates; dependence on GST Council decisions; revenue uncertainty when collections fall

→ **6. State borrowing restrictions (Article 293).** States may borrow within India subject to constitutional conditions. States with outstanding Union loans or Union guarantees generally need **Central consent** for more borrowing. Fiscal deficit limits also operate through fiscal responsibility frameworks. Issues: restrictions reduce the ability to respond to slowdowns and emergencies; disputes over the treatment of off-budget borrowing and State-owned entities; uniform limits ignore different fiscal capacity. Way forward: transparent and predictable borrowing rules with discipline and reasonable flexibility.

→ **7. Off-budget borrowings and hidden liabilities.** States may borrow through public enterprises, guarantees and special purpose vehicles, keeping some liabilities out of their ordinary budgets. Implications: understates the true fiscal burden; less transparency and accountability; future debt-servicing risk. The **16th FC** recommended stricter accounting and counting them in fiscal indicators.

→ **8. Uncertainty and delays in transfers.** Late or short Central transfers upset State budgeting and programmes. Implications: welfare and infrastructure disruption; more short-term borrowing; weak long-term planning. Way forward: timely release, predictable schedules and transparent reporting.

short. Way forward: stronger consultation, better compliance, predictable revenue-sharing.

9. Finance Commission and population-based distribution. More reliance on the 2011 Census worries States that slowed their population growth.

→ ***States' argument:*** successful family planning should not reduce financial support; demographic performance reflects investment in health, education and women's empowerment; population-based distribution can shift the balance between equity and performance.

→ ***Counterargument:*** more populous States also have greater spending needs and more people to serve.

→ ***Way forward:*** balance population, income distance, demographic performance and development needs.

→ ***10. Fiscal competition and populist spending.*** States face pressure to give subsidies, welfare benefits and electoral promises while keeping fiscal discipline. Concerns: rising subsidies squeeze capital expenditure and essential services; persistent revenue deficits raise borrowing; differences in fiscal capacity mean unequal ability to fund welfare. Way forward: better spending efficiency, separate productive welfare spending from poorly targeted subsidies, and strengthen medium-term fiscal planning.

COMMISSION RECOMMENDATIONS ON FISCAL FEDERALISM

Sarkaria Commission: fair and predictable transfers to States; restraint in using non-shareable revenue (cess, surcharge); the Finance Commission's constitutional role in resource distribution; dialogue with States on fiscal matters affecting them.

→ ***Punchhi Commission:*** concern at growing reliance on cesses and surcharges in the divisible pool; stronger institutional support and State participation in financial decisions; rationalise Centrally Sponsored Schemes with more State flexibility; support State-specific fiscal approaches in borrowing; stronger consultation on transfers and national fiscal policy.

→ ***Raghuram Rajan Committee (2013):*** a Composite Development Index; allocate resources by development need, not old State classifications; assist less developed States.

Way forward

→ 1. ***Strengthen fiscal autonomy:*** predictable tax devolution and untied grants.

→ 2. ***Rationalise cesses and surcharges:*** transparency and protect States' effective share.

→ 3. ***Improve horizontal equity:*** balance population, income distance, geographic disadvantage and demographic performance.

→ 4. ***Reform Centrally Sponsored Schemes:*** more State flexibility in design and implementation.

→ 5. ***Strengthen fiscal institutions:*** better coordination among the Finance Commission, GST Council, NITI Aayog and State Finance Commissions.

→ 6. ***Ensure responsible borrowing:*** discipline with State-specific needs recognised.

→ 7. ***Promote transparency:*** bring off-budget borrowing and contingent liabilities into fiscal reporting.
→ 8. ***Strengthen local governments:*** predictable grants and more financial capacity for Panchayats and Municipalities.

Conclusion: fiscal federalism balances national development with State autonomy. The aim is equitable distribution, fiscal discipline and more State flexibility. Stronger financial institutions and cooperative decision-making can cut regional disparities and strengthen India's federal structure.

Recall drill: cover and answer

GST amendment and start date	101st Amendment, 2016; 1 July 2017	GST articles	246A (power), 269A (IGST), 279A (Council)
GST Council voting weights	Union one-third; States two-thirds; decisions need three-fourths	Mohit Minerals 2022	GST Council recommendations not binding
NITI Aayog set up	1 January 2015; non-constitutional, non-statutory think tank	SCS benefit before 2015	90:10 grant-loan ratio and Normal Central Assistance
What ended SCS's practical meaning?	Planning Commission replaced, NCA discontinued, 14th FC raised untied devolution	Rajan Committee 2013	Composite Development Index: relatively developed, less developed, least developed
Article for State borrowing	Article 293		

INTER-STATE RELATIONS · WATER DISPUTES · BOUNDARIES · LANGUAGE · ARTICLES 371-371J

PYQ None quoted in the handout · Centre State Relations handout pp. 31-36

✎ *Inter-State relations cover how States deal with each other: courts and records (Art 261), rivers (Art 262), boundaries (Art 3, Art 131), trade (Arts 301-307), language (Arts 343-351) and special regional provisions (Arts 371-371J, Sixth Schedule). Water disputes (Cauvery, Krishna, Ravi-Beas) and boundary disputes (Belagavi, Assam-Meghalaya) are the main problems and tribunals alone do not solve them.*

CONSTITUTIONAL FRAMEWORK

Inter-State relations are the constitutional, political and administrative relationships among States. They matter because States share rivers, transport networks, markets, natural resources and cultural links.

Article	Provision
131	Supreme Court's original jurisdiction in specified Union-State and inter-State disputes

261	Full Faith and Credit Clause
262	Adjudication of inter-State river water disputes
263	Inter-State Council
301-307	Freedom of trade, commerce and intercourse
3	Formation of new States and alteration of boundaries

Full Faith and Credit Clause (Article 261)

→ Full faith and credit must be given throughout India to the ***public acts, records and judicial proceedings*** of the Union and States.
→ ***Public acts and records:*** official acts and records are recognised across the country.
→ ***Judicial proceedings:*** final judgments and orders of civil courts can be executed anywhere in India, as per law.
→ ***Significance:*** legal uniformity, mutual recognition and administrative integration.

INTER-STATE WATER DISPUTES

River disputes are among the most lasting challenges to cooperative federalism. They arise over water allocation, dam construction, irrigation, drinking water and competing development needs.

→ ***Article 262:*** Parliament may provide for adjudication of disputes about the waters of inter-State rivers and river valleys. It may also ***exclude*** the jurisdiction of the Supreme Court and other courts over such disputes, to the extent the law provides.
→ ***Inter-State River Water Disputes Act, 1956:*** provides for ***Water Disputes Tribunals***; a State may ask the Union to refer a dispute for adjudication; if negotiation fails and statutory conditions are met, a tribunal may be constituted; decisions published under the Act have ***binding legal effect***.
→ ***River Boards Act, 1956:*** provides for River Boards to regulate and develop inter-State rivers and support integrated development. But the statutory River Board mechanism ***has not been effectively operationalised***.

Dispute	*States involved*	*Major issue*
Cauvery	Karnataka, Tamil Nadu, Kerala, Puducherry	River water allocation and seasonal releases
Krishna	Maharashtra, Karnataka, Telangana, Andhra Pradesh	Allocation and redistribution of river waters
Ravi-Beas	Punjab, Haryana, Rajasthan	Water sharing and the Sutlej-Yamuna Link Canal
Mahadayi	Goa, Karnataka, Maharashtra	Water diversion and competing regional needs
Mahanadi	Odisha, Chhattisgarh	Upstream use and downstream availability

Why are these disputes so hard to settle?

→ 1. ***Delay in tribunal proceedings:*** complex investigation, litigation and procedure prolong disputes.
→ 2. ***Weak enforcement:*** even after an award, disagreement continues over actual releases.
→ 3. ***Politicisation:*** water becomes linked to regional identity, elections and State autonomy.
→ 4. ***Poor data sharing:*** disputes over rainfall, river flows and reservoir storage reduce trust.
→ 5. ***Fragmented river management:*** States plan irrigation and dams separately instead of using a ***river-basin approach***.
→ 6. ***Climate change:*** irregular rain, drought and water stress sharpen competing demands.

Example: the Cauvery dispute

→ It concerns sharing of Cauvery waters among Karnataka, Tamil Nadu, Kerala and Puducherry.

→ The **Cauvery Water Disputes Tribunal** gave its final award in **2007**.

→ In **2018** the Supreme Court modified parts of the allocation, keeping the overall framework of **740 TMC ft in a normal water year**.

→ The **Cauvery Water Management Authority (CWMA)** and **Cauvery Water Regulation Committee (CWRC)** help implement it.

→ **Federal significance:** tribunal awards alone are not enough without institutional coordination, reliable data and political cooperation.

Proposed reforms: Inter-State River Water Disputes (Amendment) Bill, 2019

→ **Disputes Resolution Committee:** try negotiation before a tribunal.

→ **Single tribunal:** a permanent tribunal with several benches instead of a separate tribunal for each dispute.

→ **Time-bound resolution:** measures to cut procedural delay.

→ **Data management:** better collection and upkeep of river-basin data.

→ **Important:** these are **proposals in the 2019 Bill**, not an already working permanent tribunal system.

→ **Way forward:** early dialogue and mediation; time-bound adjudication; transparent flow and reservoir monitoring; integrated river-basin management; climate adaptation in allocation; better coordination to implement awards.

INTER-STATE BOUNDARY DISPUTES

Boundary disputes come from historical claims, linguistic identities, administrative boundaries and competing territorial demands.

→ **Article 3:** Parliament may alter the area, boundaries and names of States by law. The affected State Legislature must be **given an opportunity to express its views**, but its **consent is not constitutionally mandatory**.

→ **Article 131:** the Supreme Court has original jurisdiction in specified disputes between the Union and States or between States, where legal rights are involved.

Major disputes

→ **Maharashtra-Karnataka:** centres on areas including **Belagavi**, with linguistic and territorial claims; shows the continuing effect of linguistic reorganisation and regional identity.

→ **Assam-Meghalaya:** long-standing disputes on several stretches of the shared boundary. A **Memorandum of Understanding (2022)** settled **six of twelve** areas of difference; the rest need negotiation and demarcation.

→ **Assam-Arunachal Pradesh:** historical boundary disputes affecting many villages. A **2023 MoU** sought to settle disputes about **123 villages**.

→ **Major issues:** different readings of colonial-era boundaries; territorial demands based on language and culture; competing claims over policing, land records and services; boundary disputes can inflame regional sentiment; settlement can take decades.

→ **Way forward:** bilateral negotiation between States; the Union facilitates without needless interference; scientific demarcation using reliable maps, surveys and land records; stronger Zonal Councils; protect the interests of people living in disputed areas.

LANGUAGE AND INDIAN FEDERALISM

Language has shaped India's territorial reorganisation, regional identity and Centre-State relations. The Constitution tries to balance national communication with linguistic diversity.

Article	Provision
343	Hindi in Devanagari script is the official language of the Union
345	Official language or languages of a State
346	Language for communication between States and the Union
347	Recognition of a language spoken by a substantial section of a State's population
350	Right to submit representations for redress of grievances in a language used in the Union or State
350A	Mother-tongue instruction at the primary stage for linguistic minority children
350B	Special Officer for Linguistic Minorities
351	Directive for the development of the Hindi language

Important: India has ***no constitutionally declared national language***. Hindi is the official language of the Union, while English continues for Union official purposes under the applicable legal framework.

Issues in language federalism

→ 1. ***Hindi imposition concerns:*** several States, especially in the south, oppose what they see as imposing Hindi.

→ 2. ***Educational autonomy:*** disputes on language policy, school education and medium of instruction.

→ 3. ***Linguistic minorities:*** small language communities may lack education and public services in their mother tongue.

→ 4. ***Administrative barriers:*** language differences affect recruitment, public communication and access to government.

→ 5. ***Regional identity:*** language is tied to culture, political mobilisation and demands for autonomy.

→ ***Way forward:*** respect linguistic diversity and protect language rights; flexible education policy; protect linguistic minorities; multilingual administration; consult before unilateral decisions on State language policy.

→ ***Federal significance:*** accommodating language turns regional diversity into a source of national integration rather than conflict.

ASYMMETRIC FEDERALISM: ARTICLES 371 TO 371J

Asymmetric federalism means different States or regions have different powers, protections or administrative structures. India adopted it to accommodate historical, cultural, tribal and geographic diversity.

Article	State(s)	Major provision
371	Maharashtra, Gujarat	Special responsibilities for development boards and regional development
371A	Nagaland	Protection of specified customary, social and land-related matters
371B	Assam	Committee of the Legislative Assembly for specified tribal areas
371C	Manipur	Special arrangements for administration of hill areas
371D	Andhra Pradesh, Telangana	Equitable opportunities in public employment and education
371F	Sikkim	Special constitutional protections after its integration
371G	Mizoram	Protection of specified customary and land-related matters
371H	Arunachal Pradesh	Governor's special responsibility for law and order
371I	Goa	Minimum size of the Legislative Assembly
371J	Karnataka	Special provisions for the development of the Kalyana Karnataka region

Sixth Schedule: provides Autonomous District and Regional Councils in specified tribal areas of Assam, Meghalaya, Tripura and Mizoram. They exercise specified powers on local administration, customary practices, land and community affairs, subject to the Constitution.

→ ***Significance:*** (1) ***protects diversity*** of cultural, tribal and historical identities; (2) ***regional autonomy*** with governance arrangements suited to local needs; (3) ***national integration*** by accommodating regional aspirations within the Union; (4) ***conflict management*** of sensitive regional demands through constitutional means.

→ ***Challenges:*** (1) ***unequal powers*** may spark demands for similar benefits from other States; (2) ***administrative complexity*** from overlap among elected governments, Governors and autonomous institutions; (3) special arrangements do ***not automatically ensure better development***; (4) changes to special provisions may raise fears about identity and autonomy.

→ ***Way forward:*** keep the aim of regional accommodation while strengthening democratic accountability, institutional coordination and equitable development.

MAJOR CHALLENGES IN INTER-STATE RELATIONS AND WAY FORWARD

Challenges

→ 1. ***Competition over natural resources:*** rivers, forests and energy.
→ 2. ***Regionalism and linguistic tensions:*** cultural and territorial disputes can turn political.
→ 3. ***Unequal development:*** intensifies competition for investment and Central aid.
→ 4. ***Weak dispute resolution:*** delays in negotiation and adjudication.
→ 5. ***Limited institutional coordination:*** infrequent meetings and weak follow-up of inter-State forums.
→ 6. ***Migration and labour mobility:*** different regional opportunities and policies can cause social tension involving migrant workers.
→ 7. ***Climate change:*** shared environmental risks need neighbouring States to coordinate.

Way forward

→ 1. ***Strengthen the Inter-State Council*** for dialogue and early settlement.
→ 2. ***Revitalise Zonal Councils*** for boundary disputes, infrastructure planning and shared administrative concerns.
→ 3. ***Reform water dispute resolution:*** data-sharing, tribunal efficiency, implementation of awards.
→ 4. ***Promote economic integration:*** free and non-discriminatory inter-State trade.
→ 5. ***Protect linguistic and cultural diversity*** within constitutional guarantees.
→ 6. ***Strengthen regional autonomy*** under asymmetric arrangements.
→ 7. ***Promote cooperative federalism:*** solve shared problems by negotiation instead of prolonged confrontation.

Conclusion: inter-State cooperation matters as much as Centre-State coordination for Indian federalism. Effective institutions, respect for regional diversity and fair dispute resolution can strengthen national integration without weakening State autonomy.

Recall drill: cover and answer

Full Faith and Credit	Article 261	River disputes article / Act	Article 262; Inter-State River Water Disputes Act 1956
River Boards Act	1956, not effectively operationalised	Cauvery tribunal award / SC modification	2007 / 2018 (740 TMC ft in a normal year)
2019 Bill proposed	Disputes Resolution Committee, single permanent tribunal with benches, time limits, data management	Assam-Meghalaya MoU 2022	Settled six of twelve areas
Assam-Arunachal MoU 2023	123 villages	National language?	None declared; Hindi is official language of the Union (Art 343)
Article 371J / 371A / 371D	Karnataka (Kalyana Karnataka) / Nagaland / Andhra Pradesh and Telangana		

CHALLENGES TO FEDERALISM · EMERGING ISSUES · REFORMS · COMMISSIONS · ASSESSMENT

PYQ None quoted in the handout · Centre State Relations handout pp. 36-42

✎ *Federalism is challenged by political, legislative, administrative and financial centralisation and by weak coordination bodies. Emerging issues are delimitation, climate, public health, migration and weak local government. Reform needs restraint in using*

constitutional offices, real consultation, fair finance and decentralisation below the State. Four commissions (Rajamannar, Sarkaria, NCRWC, Punchhi) shaped the debate.

MAJOR CHALLENGES TO INDIAN FEDERALISM

The challenges can be seen under five heads: political, legislative, administrative, financial and institutional.

1. Political centralisation

→ ***Dominance of national parties:*** major parties often have a centralised high command. Decisions on leadership, policy and candidate selection are taken nationally, reducing State-level autonomy.

→ ***Different parties at Centre and States:*** political differences turn constitutional disagreements into long conflicts (Governors, Central agencies, financial transfers).

→ ***Weak regional representation:*** the Rajya Sabha represents States, but party discipline and national priorities can override State-specific concerns.

→ ***Unequal bargaining:*** States whose parties are influential coalition partners may get more political influence than others.

→ ***Federal implication:*** political centralisation can weaken State autonomy even without any formal change in the constitutional division of powers.

2. Legislative centralisation

→ ***Encroachment on State subjects:*** the Union may use broad entries in the Union or Concurrent Lists to legislate on matters close to State responsibilities. Example: the Farm Laws 2020 raised questions about Parliament's authority over agricultural markets.

→ ***Dominance over the Concurrent List:*** under Article 254, Central law generally prevails over conflicting State law.

→ ***Inadequate consultation:*** States may have little say in laws on education, agriculture, labour and other shared subjects.

→ ***Delays in assent:*** disputes under Articles 200 and 201 can delay laws passed by elected State Legislatures.

→ ***International agreements:*** the Union's Article 253 power may affect State subjects without enough State involvement in treaty talks.

→ ***Federal implication:*** concern about the balance between national uniformity and State legislative autonomy.

3. Administrative centralisation

→ ***Broad Union directions:*** Articles 256 and 257 let the Centre give binding directions.

→ ***All-India Services:*** disputes over central deputation, transfers and cadre management affect State control.

→ ***Central investigating agencies:*** States withdrawing ***general consent for the CBI*** shows disagreement over investigative jurisdiction.

→ ***Deployment of Central forces:*** expansion of BSF jurisdiction raised concerns about the division of responsibility between national security agencies and State Police.

→ ***Union ministries on State subjects:*** involvement in agriculture, health and local governance can help coordination but reduce State policy flexibility.

→ ***Federal implication:*** coordination turns problematic when Union supervision is seen as interference.

4. Financial dependence

→ ***Vertical imbalance:*** States carry big expenditure responsibilities but depend on the Union for much of their money.

→ ***Cesses and surcharges:*** being outside the divisible pool, they reduce what is shared.

→ ***Conditional grants:*** Centrally Sponsored Schemes can limit States' freedom to set spending priorities.

→ ***GST and tax autonomy:*** States have less independent control over several indirect taxes and must negotiate changes in the GST Council.

→ ***Borrowing restrictions:*** disputes over Article 293, fiscal deficit limits and off-budget borrowing.

→ ***Federal implication:*** States may have constitutional duties without enough independent resources to perform them.

5. Weak intergovernmental institutions

→ ***Infrequent meetings:*** the Inter-State Council has not been a regular forum.

→ ***Advisory nature:*** recommendations of the Inter-State and Zonal Councils are generally not binding.

→ ***Weak follow-up:*** limited monitoring reduces effect.

→ ***No general pre-legislative consultation duty:*** nothing requires consultation through the Inter-State Council before every law affecting States.

→ ***Institutional overlap:*** NITI Aayog Governing Council, GST Council and other forums handle different aspects of coordination, not always in an integrated way.

→ ***Federal implication:*** weak consultation pushes disputes from negotiation to political confrontation or litigation.

EMERGING CHALLENGES TO INDIAN FEDERALISM

Delimitation and political representation

→ ***Delimitation*** is readjusting the allocation of seats and boundaries of constituencies on the basis of population. It affects the balance of political representation among States.

→ ***Constitutional framework:*** Articles 81 and 82 (Lok Sabha seats and readjustment after a Census); Article 170 (State Assemblies); the ***42nd Amendment (1976)*** froze the inter-State allocation of parliamentary seats on the ***1971 Census***; the ***84th Amendment (2001)*** extended the freeze until figures of the first Census after 2026; the ***87th Amendment (2003)*** allowed boundaries to be readjusted using the ***2001 Census*** without changing the State-wise seat allocation.

→ ***Federal issues:*** (1) States with lower population growth fear a fall in their share of seats; (2) higher-population States may gain; (3) changed representation can alter regional bargaining power in Parliament; (4) delimitation must also fix unequal population per constituency to keep equal representation; (5) ***women's reservation*** under the 106th Amendment is tied to the delimitation framework.

Constitution (131st Amendment) Bill, 2026

→ Introduced in the Lok Sabha on ***16 April 2026***.

→ ***Proposals:*** raise the maximum Lok Sabha strength from ***550 to 850***; up to ***815*** seats from States and ***35*** from Union Territories; allow delimitation using a Census specified by parliamentary law; help carry out women's reservation through the proposed delimitation framework.

→ ***Outcome:*** the Bill was ***defeated in the Lok Sabha on 17 April 2026*** and did not become law. (current affairs; verify)

→ ***Federal significance:*** the debate shows how hard it is to balance population-based representation, demographic performance and State political interests.

→ ***Way forward:*** broad political consultation, transparent criteria and safeguards against avoidable regional imbalance.

Climate change and environmental federalism

→ Climate change needs cooperation across State boundaries.

→ ***Issues:*** air pollution, river pollution and forest degradation cross State borders; floods, droughts and heatwaves need Union-State coordination; Himalayan, coastal and drought-prone States face different risks; States may lack money for adaptation and disaster mitigation.

→ Example: air pollution in ***Delhi-NCR*** needs coordination among Delhi, Haryana, Punjab, Uttar Pradesh and Union authorities.

	→ ***Way forward:*** inter-State environmental coordination; river-basin and ***airshed*** based planning; enough funding for adaptation and disaster management; State flexibility in climate policy.
Public health federalism	→ Public health is mainly a State List subject, but major health emergencies need national coordination. → ***Issues:*** States run health services while the Union gives policy, funds and technical coordination; ***COVID-19*** showed the need to balance national measures with State health needs; States differ in hospitals, staff, money and disease surveillance; uniform Central guidelines may not suit regional conditions. → ***Way forward:*** cooperative planning, disease surveillance, financial support and State implementation capacity.
Migration and regional mobility	→ Migration links State economies but can also create political and administrative tension. → ***Issues:*** job competition can fuel demands for local preference; migrants may face discrimination or social barriers; workers need ***portable welfare benefits***; labour protection involves several governments. → ***Way forward:*** promote labour mobility, portable benefits, protection of migrant workers and cooperation between source and destination States.
Federalism and local self-government	→ The ***73rd and 74th Amendments (1992)*** strengthened Panchayats and Municipalities, but decentralisation is incomplete in many States. → ***Issues:*** (1) ***incomplete devolution***: many local bodies lack functions, funds and functionaries; (2) ***financial dependence*** on State and Central transfers; (3) ***weak State Finance Commissions***, delayed in constitution and in acting on recommendations; (4) ***administrative control***: State departments keep tasks that elected local governments could do; (5) ***parallel institutions*** such as development authorities work outside normal local democratic accountability. → ***Federal significance:*** stronger federalism needs decentralisation ***below*** the State level, not only more State autonomy from the Union.

STRENGTHENING COOPERATIVE AND COMPETITIVE FEDERALISM

Institutional reforms	→ 1. ***Revitalise the Inter-State Council:*** regular meetings; consultation, coordination and dispute resolution. → 2. ***Strengthen Zonal Councils:*** boundary disputes, infrastructure, security and regional development. → 3. ***Set up sectoral forums:*** regular Union-State consultation on health, education, agriculture, industry and environment. → 4. ***Improve follow-up:*** clear mechanisms to review implementation of intergovernmental recommendations.
Legislative reforms	→ 1. ***Respect State legislative powers:*** avoid needless intervention in State List subjects. → 2. ***Consult on Concurrent List laws:*** meaningful consultation before laws affecting States. → 3. ***Protect State-specific legislation:*** use Article 254(2) appropriately where States need flexibility. → 4. ***Strengthen the Rajya Sabha:*** more weight to State interests in national lawmaking. → 5. ***Consult States on international agreements*** that affect their responsibilities.
Administrative reforms	→ 1. ***Restrained Union directions:*** use Articles 256 and 257 only where constitutionally necessary. → 2. ***Reform the Governor's office:*** political neutrality, security of tenure and clear limits on discretion.

	→ 3. ***Improve All-India Service management:*** transparent deputation, cadre allocation and personnel policies. → 4. ***Security coordination:*** better cooperation between Central agencies and State Police. → 5. ***Reduce administrative overlap:*** clear responsibilities under Centrally Sponsored Schemes and shared programmes.
Financial reforms	→ 1. ***Predictable transfers:*** timely and transparent devolution and grants. → 2. ***Rationalise cesses and surcharges*** to protect the divisible pool. → 3. ***More untied grants*** so States set their own development priorities. → 4. ***Equitable horizontal distribution:*** recognise income distance, population, demographic performance and geographic disadvantage. → 5. ***Responsible borrowing:*** discipline with reasonable flexibility. → 6. ***Strengthen local finances:*** better State Finance Commissions and transfers to local bodies.
Political and administrative decentralisation	→ 1. ***Internal party democracy:*** strengthen regional leadership and State-level decisions within national parties. → 2. ***Respect constitutional conventions:*** do not use constitutional offices for partisan advantage. → 3. ***Greater State participation:*** involve Chief Ministers and State institutions in national policy. → 4. ***Strengthen local governments:*** real devolution of functions, funds and functionaries.

MAJOR COMMISSIONS ON CENTRE-STATE RELATIONS

Rajamannar Committee (1969). Appointed by the Tamil Nadu Government to study Centre-State relations and suggest more State autonomy.	→ ***Recommendations:*** reduce excessive concentration of legislative and administrative power at the Centre; transfer ***residuary legislative powers to States***; reconsider the Concurrent List; strengthen States' independent financial resources; set up an effective Inter-State Council. → ***Significance:*** an early systematic demand for decentralisation and State autonomy.
Sarkaria Commission (1983-88). Appointed by the Union Government under Justice R. S. Sarkaria. It accepted the need for a strong Centre but warned against over-centralisation.	→ ***Recommendations:*** consult States before legislating on Concurrent List subjects; keep residuary ***taxation*** with the Union and put other residuary matters in the Concurrent List; appoint an eminent, politically detached Governor after consulting the State; Article 356 only as a last resort, with warnings and safeguards; a permanent Inter-State Council under Article 263; fair transfers and avoid needless use of non-shareable revenue. → ***Significance:*** tried to improve cooperation within the existing framework, not redesign the Union.
NCRWC (2002). Chaired by Justice M. N. Venkatachaliah.	→ ***Recommendations:*** a more consultative process for appointing Governors involving Union and State representatives; protect the Governor's independence and constitutional role; better institutional cooperation and respect for federal principles; stronger safeguards against misuse of Article 356; better democratic decentralisation and accountability.

→ ***Significance:*** stressed constitutional conventions, institutional neutrality and effective federal cooperation.

Punchhi Commission (2007–10). Chaired by Justice M. M. Punchhi. It studied Centre-State relations in the context of coalition politics, economic reforms, internal security and changing governance.

→ ***Recommendations:*** structured consultation with States before Central laws on the Concurrent List; involve States in treaties affecting their responsibilities; fixed tenure, independence and an impeachment-type removal for Governors; clearer procedures for Articles 200 and 201 delays; treat Articles 256 and 257 directions as last resort; strengthen the Inter-State Council; review how cesses, surcharges and Centrally Sponsored Schemes affect State autonomy; consult States better before deploying Central forces.

→ ***Significance:*** favoured stronger State participation and more effective institutions for modern federal problems.

RSNP – **R**ajamannar 1969 → **S**arkaria 1983 → **N**CRWC 2002 → **P**unchhi 2007: the order of the four commissions (own mnemonic)

OVERALL ASSESSMENT OF INDIAN FEDERALISM

Indian federalism has moved from a largely centralised system after Independence to a more complex arrangement with regional political assertion, economic competition and intergovernmental bargaining.

Strengths	Continuing weaknesses
National integration: a strong Union keeps political and territorial unity	***Political centralisation:*** national party structures and constitutional offices can weaken State autonomy
Regional autonomy: States have protected legislative and administrative responsibilities	***Fiscal dependence:*** States rely on Union transfers for major spending duties
Accommodation of diversity: linguistic reorganisation, asymmetric provisions, regional institutions	***Weak consultation:*** important decisions without enough State participation
Judicial protection: federalism recognised as basic structure	***Inter-State disputes:*** water, boundary and resource disputes remain hard to settle
Institutional cooperation: Finance Commission, GST Council, Inter-State Council, NITI Aayog	***Incomplete decentralisation:*** Panchayats and Municipalities often lack powers and resources

→ ***Constitutional restraint*** by each level within its powers.

Way forward. The goal is not to weaken the Union or give States unrestricted powers, but to get a proper balance between national coordination and regional autonomy. This needs:

→ ***Cooperative institutions:*** stronger consultation and dispute resolution.

→ ***Fiscal fairness:*** predictable and equitable resources.

→ ***Political neutrality:*** no misuse of constitutional offices and institutions.

→ ***Democratic decentralisation:*** strengthen both State governments and local self-government.

→ ***Mutual trust:*** replace needless confrontation with negotiation and shared responsibility.

Conclusion: Indian federalism is a dynamic system shaped by constitutional principles, politics and changing economic needs. Its strength is combining national unity with regional diversity. Its future depends on strengthening cooperative and competitive federalism, protecting State autonomy and making constitutional institutions work with restraint and mutual respect.

Recall drill: cover and answer

Five heads of federal challenges	Political, legislative, administrative, financial, institutional	Delimitation freeze: 42nd, 84th, 87th Amendments	1971 Census freeze (1976); extended to first Census after 2026 (2001); boundaries on 2001 Census, seats unchanged (2003)
131st Bill: proposed maximum / outcome	850 (815 + 35); defeated 17 April 2026 (verify)	Amendments for local government	73rd and 74th (1992)
Rajamannar / Sarkaria / NCRWC / Punchhi chairs	Tamil Nadu committee / Justice R. S. Sarkaria / Justice M. N. Venkatachaliah / Justice M. M. Punchhi	Rajamannar key demand	Residuary powers to States
Sarkaria on residuary	Taxation with Union; others to Concurrent List	Punchhi on Governor	Fixed tenure and impeachment-type removal
Goal of reform	Balance of national coordination and regional autonomy, not weakening the Union		